

The Life of Cicero, Volume II.

Anthony Trollope

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CICERO, VOLUME II. ***

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THE LIFE OF CICERO

BY
ANTHONY TROLLOPE

IN TWO VOLUMES
VOL. II.

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VOLUME I.

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THE

LIFE OF CICERO.

CHAPTER I.

HIS RETURN FROM EXILE.

Cicero's life for the next two years was made conspicuous by a series of speeches which were produced by his exile and his return. These are remarkable for the praise lavished on himself, and by the violence with which he attacked his enemies. It must be owned that never was abuse more abusive, or self-praise uttered in language more laudatory. ¹ Cicero had now done all that was useful in his public life. The great monuments of his literature are to come. None of these had as yet been written except a small portion of his letters—about a tenth—and of these he thought no more in regard to the public than do any ordinary letter-writers of to-day. Some poems had been produced, and a history of his own Consulship in Greek; but these are unknown to us. He had already become the greatest orator, perhaps, of all time—and we have many of the speeches spoken by him. Some we have—those five, namely, telling the story of Verres—not intended to be spoken, but written for the occasion of the day rather than with a view to permanent literature. He had been Quæstor, Ædile, Prætor, and Consul, with singular and undeviating success. He had been honest in the exercise of public functions when to be honest was to be singular. He had bought golden opinions from all sorts of people. He had been true to his country, and useful also—a combination which it was given to no other public man of those days to achieve. Having been Prætor and Consul, he had refused the accustomed rewards, and had abstained from the provinces. His speeches, with but few exceptions, had hitherto been made in favor of honesty. They are declamations against injustice, against bribery, against cruelty, and all on behalf of decent civilized life. Had he died then, he would not have become the hero of literature, the marvel among men of

letters whom the reading world admires; but he would have been a great man, and would have saved himself from the bitterness of Cæsarean tongues.

His public work was in truth done. His further service consisted of the government of Cilicia for a year—an employment that was odious to him, though his performance of it was a blessing to the province. After that there came the vain struggle with Cæsar, the attempt to make the best of Cæsar victorious, the last loud shriek on behalf of the Republic, and then all was over. The fourteen years of life which yet remained to him sufficed for erecting that literary monument of which I have spoken, but his public usefulness was done. To the reader of his biography it will seem that these coming fourteen years will lack much of the grace which adorned the last twenty. The biographer will be driven to make excuses, which he will not do without believing in the truth of them, but doubting much whether he may beget belief in others. He thinks that he can see the man passing from one form to another—his doubting devotion to Pompey, his enforced adherence to Cæsar, his passionate opposition to Antony; but he can still see him true to his country, and ever on the alert against tyranny and on behalf of pure patriotism.

At the present we have to deal with Cicero in no vacillating spirit, but loudly exultant and loudly censorious. Within the two years following his return he made a series of speeches, in all of which we find the altered tone of his mind. There is no longer that belief in the ultimate success of justice, and ultimate triumph of the Republic, which glowed in his Verrine and Catiline orations. He is forced to descend in his aspirations. It is not whether Rome shall be free, or the bench of justice pure, but whether Cicero shall be avenged and Gabinius punished. It may have been right—it was right—that Cicero should be avenged and Gabinius punished; but it must be admitted that the subjects are less alluring.

His first oration, as generally received, was made to the Senate in honor of his return. The second was addressed to the people on the same subject. The third was spoken to the college of priests, with the view of recovering the ground on which his house had stood, and which Clodius had attempted to alienate forever by dedicating it to a pretended religious purpose. The next, as coming on our list, though not so in time, was addressed again to the

Senate concerning official reports made by the public soothsayers as interpreters of occult signs, as to whether certain portents had been sent by the gods to show that Cicero ought not to have back his house. Before this was made he had defended Sextius, who as Tribune had been peculiarly serviceable in assisting his return. This was before a bench of judges; and separated from this, though made apparently at the same time, is a violent attack upon Vatinius, one of Cæsar's creatures, who was a witness against Sextius. Then there is a seventh, regarding the disposition of the provinces among the Proprætors and Proconsuls, the object of which was to enforce the recall of Piso from Macedonia and Gabinius from Syria, and to win Cæsar's favor by showing that Cæsar should be allowed to keep the two Gauls and Illyricum. To these must be added two others, made within the same period, for Cælius and Balbus. The close friendship between Cicero and the young man Cælius was one of the singular details of the orator's life. Balbus was a Spaniard, attached to Cæsar, and remarkable as having been the first man not an Italian who achieved the honor of the Consulship.

It has been disputed whether the first four of these orations were really the work of Cicero, certain German critics and English scholars having declared them to be "*parum Ciceronias*"—too little like Cicero. That is the phrase used by Nobbe, who published a valuable edition of all Cicero's works, after the text of Ernesti, in a single volume. Mr. Long, in his introduction to these orations, denounces them in language so strong as to rob them of all chance of absolute acceptance from those who know the accuracy of Mr. Long's scholarship.² There may probably have been subsequent interpolations. The first of the four, however, is so closely referred to by Cicero himself in the speech made by him two years subsequently in the defence of Plancius, that the fact of an address to the Senate in the praise of those who had assisted him in his return cannot be doubted; and we are expressly told by the orator that, because of the importance of the occasion, he had written it out before he spoke it.³ As to the Latinity, it is not within my scope, nor indeed within my power, to express a confident opinion; but as to the matter of the speech, I think that Cicero, in his then frame of mind, might have uttered what is attributed to him. Having said so much, I shall best continue my narrative by dealing with the four speeches as though they were genuine.

B.C. 57, ætat. 50. Cicero landed at Brundisium on the 5th of August, the day on which his recall from exile had been enacted by the people, and there met his daughter Tullia, who had come to welcome him back to Italy on that her birthday. But she had come as a widow, having just lost her first husband, Piso Frugi. At this time she was not more than nineteen years old. Of Tullia's feelings we know nothing from her own expressions, as they have not reached us; but from the warmth of her father's love for her, and by the closeness of their friendship, we are led to imagine that the joy of her life depended more on him than on any of her three husbands. She did not live long with either of them, and died soon after the birth of a child, having been divorced from the third. I take it, there was much of triumph in the meeting, though Piso Frugi had died so lately.

The return of Cicero to Rome was altogether triumphant. It must be remembered that the contemporary accounts we have had of it are altogether from his own pen. They are taken chiefly from the orations I have named above, though subsequent allusions to the glory of his return to Rome are not uncommon in his works. But had his boasting not been true, the contradictions to them would have been made in such a way as to have reached our ears. Plutarch, indeed, declares that Cicero's account of the glory of his return fell short of the truth.

It may be taken for granted that with that feeble monster, the citizen populace of Rome, Cicero had again risen to a popularity equal to that which had been bestowed upon him when he had just driven Catiline out of Rome. Of what nature were the crowds who were thus loud in the praise of their great Consul, and as loud afterward in their rejoicings at the return of the great exile, we must form our own opinion from circumstantial evidence. There was a mass of people, with keen ears taking artistic delight in eloquence and in personal graces, but determined to be idle, and to be fed as well as amused in their idleness; and there were also vast bands of men ready to fight—bands of gladiators they have been called, though it is probable that but few of them had ever been trained to the arena—whose business it was to shout as well as to fight on behalf of their patrons. We shall not be justified in supposing that those who on the two occasions named gave their sweet voices for Cicero were only the well-ordered, though idle, proportion of the people, whereas they who had voted against him in favor of Clodius had all been assassins, bullies, and swordsmen. We

shall probably be nearer the mark if we imagine that the citizens generally were actuated by the prevailing feelings of their leaders at the moment, but were carried into enthusiasm when enabled, without detriment to their interests, to express their feelings for one who was in truth popular with them. When Cicero, after the death of the five conspirators, declared that the men "had lived"—"vixerunt"—his own power was sufficient to insure the people that they would be safe in praising him. When he came back to Rome, Pompey had been urgent for his return, and Cæsar had acceded to it. When the bill was passed for banishing him, the Triumvirate had been against him, and Clodius had been able to hound on his crew. But Milo also had a crew, and Milo was Cicero's friend. As the Clodian crew helped to drive Cicero from Rome, so did Milo's crew help to bring him back again.

Cicero, on reaching Rome, went at once to the Capitol, to the temple of Jupiter, and there returned thanks for the great thing that had been done for him. He was accompanied by a vast procession who from the temple went with him to his brother's house, where he met his wife, and where he resided for a time. His own house in the close neighborhood had been destroyed. He reached Rome on the 4th of September, and on the 5th an opportunity was given to the then hero of the day for expressing his thanks to the Senate for what they had done for him. His intellect had not grown rusty in Macedonia, though he had been idle. On the 5th, Cicero spoke to the Senate; on the 6th, to the people. Before the end of the month he made a much longer speech to the priests in defence of his own property. Out of the full heart the mouth speaks, and his heart was very full of the subject.

His first object was to thank the Senate and the leading members of it for their goodness to him. The glowing language in which this is done goes against the grain with us when we read continuously the events of his life as told by himself. His last grievous words had been expressions of despair addressed to Atticus; now he breaks out into a pæan of triumph. We have to remember that eight months had intervened, and that the time had sufficed to turn darkness into light. "If I cannot thank you as I ought, O Conscript Fathers, for the undying favors which you have conferred on me, on my brother, and my children, ascribe it, I beseech you, to the greatness of the things you have done for me, and not to the defect of my virtue." Then he praises the two Consuls, naming them, Lentulus and Metellus—Metellus, as the reader will remember, having till lately been his enemy. He lauds the

Prætors and the Tribunes, two of the latter members having opposed his return; but he is loudest in praise of Pompey—that "Sampsiceramus," that "Hierosolymarius," that "Arabarches" into whose character he had seen so clearly when writing from Macedonia to Atticus—that "Cn. Pompey who, by his valor, his glory, his achievements, stands conspicuously the first of all nations, of all ages, of all history." We cannot but be angry when we read the words, though we may understand how well he understood that he was impotent to do anything for the Republic unless he could bring such a man as Pompey to act with him. We must remember, too, how impossible it was that one Roman should rise above the falsehood common to Romans. We cannot ourselves always escape even yet from the atmosphere of duplicity in which policy delights. He describes the state of Rome in his absence. "When I was gone, you"—you, the Senate—"could decree nothing for your citizens, or for your allies, or for the dependent kings. The judges could give no judgment; the people could not record their votes; the Senate availed nothing by its authority. You saw only a silent Forum, a speechless Senate-house, a city dumb and deserted." We may suppose that Rome was what Cicero described it to be when he was in exile, and Cæsar had gone to his provinces; but its condition had been the result of the crushing tyranny of the Triumvirate rather than of Cicero's absence.

Lentulus, the present Consul, had been, he says, a second father, almost a god, to him. But he would not have needed the hand of a Consul to raise him from the ground, had he not been wounded by consular hands. Catulus, one of Rome's best citizens, had told him that though Rome had now and again suffered from a bad Consul, she had never before been afflicted by two together. While there was one Consul worthy of the name, Catulus had declared that Cicero would be safe. But there had come two, two together, whose spirits had been so narrow, so low, so depraved, so burdened with greed and ignorance, "that they had been unable to comprehend, much less to sustain the splendor of the name of Consul. Not Consuls were they, but buyers and sellers of provinces." These were Piso and Gabinius, of whom the former was now governor of Macedonia, and the latter of Syria. Cicero's scorn against these men, who as Consuls had permitted his exile, became a passion with him. His subsequent hatred of Antony was not as bitter. He had come there to thank the assembled Senators for their care of him, but he is carried off so violently by his anger that he devotes a considerable portion

of his speech to these indignant utterances. The reader does not regret it. Abuse makes better reading than praise, has a stronger vitality, and seems, alas, to come more thoroughly from the heart! Those who think that genuine invective has its charms would ill spare Piso and Gabinius.

He goes back to his eulogy, and names various Prætors and officers who have worked on his behalf. Then he declares that by the view of the present Consul, Lentulus, a decree has been passed in his favor more glorious than has been awarded to any other single Roman citizen—namely that from all Italy those who wished well to their country should be collected together for the purpose of bringing him back from his banishment—him, Cicero. There is much in this in praise of Lentulus, but more in praise of Cicero. Throughout these orations we feel that Cicero is put forward as the hero, whereas Piso and Gabinius are the demons of the piece. "What could I leave as a richer legacy to my posterity," he goes on to say, opening another clause of his speech, "than that the Senate should have decreed that the citizen who had not come forward in my defence was one regardless of the Republic." By these boastings, though he was at the moment at the top of the ladder of popularity, he was offending the self-importance of all around him. He was offending especially Pompey, with whom it was his fate to have to act.⁴ But that was little to the offence he was giving to those who were to come many centuries after him, who would not look into the matter with sufficient accuracy to find that his vanity deserved forgiveness because of his humanity and desire for progress. "O Lentulus," he says, at the end of the oration, "since I am restored to the Republic, as with me the Republic is itself restored, I will slacken nothing in my efforts at liberty; but, if it may be possible, will add something to my energy." In translating a word here and there as I have done, I feel at every expression my incapacity. There is no such thing as good translation. If you wish to drink the water, with its life and vigor in it, you must go to the fountain and drink it there.

On the day following he made a similar speech to the people—if, indeed, the speech we have was from his mouth or his pen—as to which it has been remarked that in it he made no allusion to Clodius, though he was as bitter as ever against the late Consuls. From this we may gather that, though his audience was delighted to hear him, even in his self-praise, there might have been dispute had he spoken ill of one who had been popular as Tribune. His praise of Pompey was almost more fulsome than that of the

day before, and the same may be said of his self-glorification. Of his brother's devotion to him he speaks in touching words, but in words which make us remember how untrue to him afterward was that very brother. There are phrases so magnificent throughout this short piece that they obtain from us, as they are read, forgiveness for the writer's faults. "*Sic ulciscar facinorum singula.*" Let the reader of Latin turn to chapter ix. of the oration and see how the speaker declares that he will avenge himself against the evil-doers whom he has denounced.

Cicero, though he had returned triumphant, had come back ruined in purse, except so far as he could depend on the Senate and the people for reimbursing to him the losses to which he had been subjected. The decree of the Senate had declared that his goods should be returned to him, but the validity of such a promise would depend on the value which might be put upon the goods in question. His house on the Palatine Hill had been razed to the ground; his Tusculan and Formian villas had been destroyed; his books, his pictures, his marble columns, his very trees, had been stolen; but, worst of all, an attempt had been made to deprive him forever of the choicest spot of ground in all the city, the Park Lane of Rome, by devoting the space which had belonged to him to the service of one of the gods. Clodius had caused something of a temple to Liberty to be built there, because ground so consecrated was deemed at Rome, as with us, to be devoted by consecration to the perpetual service of religion. It was with the view of contesting this point that Cicero made his next speech, *Pro Domo Sua*, for the recovery of his house, before the Bench of Priests in Rome. It was for the priests to decide this question. The Senate could decree the restitution of property generally, but it was necessary that that spot of ground should be liberated from the thralldom of sacerdotal tenure by sacerdotal interference. These priests were all men of high birth and distinction in the Republic. Nineteen among them were "*Consulares*," or past-Consuls. Superstitious awe affects more lightly the consciences of priests than the hearts of those who trust the priests for their guidance. Familiarity does breed contempt. Cicero, in making this speech, probably felt that, if he could carry the people with him, the College of Priests would not hold the prey with grasping hands. The nineteen *Consulares* would care little for the sanctity of the ground if they could be brought to wish well to Cicero. He did his best. He wrote to Atticus concerning it a few days after the speech was made, and

declared that if he had ever spoken well on any occasion he had done so then, so deep had been his grief, and so great the importance of the occasion;⁵ and he at once informs his friend of the decision of the Bench, and of the ground on which it was based. "If he who declares that he dedicated the ground had not been appointed to that business by the people, nor had been expressly commanded by the people to do it, then that spot of ground can be restored without any breach of religion." Cicero asserts that he was at once congratulated on having gained his cause, the world knowing very well that no such authority had been conferred on Clodius. In the present mood of Rome, all the priests, with the nineteen Consulares, were no doubt willing that Cicero should have back his ground. The Senate had to interpret the decision, and on the discussion of the question among them Clodius endeavored to talk against time. When, however, he had spoken for three hours, he allowed himself to be coughed down. It may be seen that in some respects even Roman fortitude has been excelled in our days.

In the first portion of this speech, *Pro Domo Sua*, Cicero devotes himself to a matter which has no bearing on his house. Concomitant with Cicero's return there had come a famine in Rome. Such a calamity was of frequent occurrence, though I doubt whether their famines ever led to mortality so frightful as that which desolated Ireland just before the repeal of the Corn Laws. No records, as far as I am aware, have reached us of men perishing in the streets; but scarcity was not uncommon, and on such occasions complaints would become very loud. The feeding of the people was a matter of great difficulty, and subject to various chances. We do not at all know what was the number to be fed, including the free and the slaves, but have been led by surmises to suppose that it was under a million even in the time of Augustus. But even though the number was no more than five hundred thousand at this time, the procuring of food must have been a complicated and difficult matter. It was not produced in the country. It was imported chiefly from Sicily and Africa, and was plentiful or the reverse, not only in accordance with the seasons but as certain officers of state were diligent and honest, or fraudulent and rapacious. We know from one of the Verrine orations the nature of the laws on the subject, but cannot but marvel that, even with the assistance of such laws, the supply could be maintained with any fair proportion to the demand. The people looked to the

government for the supply, and when it fell short would make their troubles known with seditious grumbings, which would occasionally assume the guise of insurrection. At this period of Cicero's return food had become scarce and dear; and Clodius, who was now in arms against Pompey as well as against Cicero, caused it to be believed that the strangers flocking into Rome to welcome Cicero had eaten up the food which should have filled the bellies of the people. An idea farther from truth could hardly have been entertained: no chance influx of visitors on such a population could have had the supposed effect. But the idea was spread abroad, and it was necessary that something should be done to quiet the minds of the populace. Pompey had hitherto been the resource in State difficulties. Pompey had scattered the pirates, who seem, however, at this period to have been gathering head again. Pompey had conquered Mithridates. Let Pompey have a commission to find food for Rome. Pompey himself entertained the idea of a commission which should for a time give him almost unlimited power. Cæsar was increasing his legions and becoming dominant in the West. Pompey, who still thought himself the bigger man of the two, felt the necessity of some great step in rivalry of Cæsar. The proposal made on his behalf was that all the treasure belonging to the State should be placed at his disposal; that he should have an army and a fleet, and should be for five years superior in authority to every Proconsul in his own province. This was the first great struggle made by Pompey to strangle the growing power of Cæsar. It failed altogether.⁶ The fear of Cæsar had already become too great in the bosoms of Roman Senators to permit them to attempt to crush him in his absence. But a mitigated law was passed, enjoining Pompey to provide the food required, and conferring upon him certain powers. Cicero was nominated as his first lieutenant, and accepted the position. He never acted, however, giving it up to his brother Quintus. A speech which he made to the people on the passing of the law is not extant; but as there was hot blood about it in Rome, he took the opportunity of justifying the appointment of Pompey in the earlier portion of this oration to the priests. It must be understood that he did not lend his aid toward giving those greater powers which Pompey was anxious to obtain. His trust in Pompey had never been a perfect trust since the first days of the Triumvirate. To Cicero's thinking, both Pompey and Cæsar were conspirators against the Republic. Cæsar was the bolder, and therefore the more dangerous. It might probably come to pass that the services of Pompey would be needed for restraining Cæsar.

Pompey naturally belonged to the "optimates," while Cæsar was as naturally a conspirator. But there never again could come a time in which Cicero would willingly intrust Pompey with such power as was given to him nine years before by the Lex Manilia. Nevertheless, he could still say grand things in praise of Pompey. "To Pompey have been intrusted wars without number, wars most dangerous to the State, wars by sea and wars by land, wars extraordinary in their nature. If there be a man who regrets that this has been done, that man must regret the victories which Rome has won." But his abuse of Clodius is infinitely stronger than his praise of Pompey. For the passages in which he alluded to the sister of Clodius I must refer the reader to the speech itself. It is impossible here to translate them or to describe them. And these words were spoken before the College of Priests, of whom nineteen were Consulares! And they were prepared with such care that Cicero specially boasted of them to Atticus, and declares that they should be put into the hands of all young orators. Montesquieu says that the Roman legislators, in establishing their religion, had no view of using it for the improvement of manners or of morals.⁷ The nature of their rites and ceremonies gives us evidence enough that it was so. If further testimony were wanting, it might be found in this address, *Ad Pontifices*. Cicero himself was a man of singularly clean life as a Roman nobleman, but, in abusing his enemy, he was restrained by no sense of what we consider the decency of language.

He argues the question as to his house very well, as he did all questions. He tells the priests that the whole joy of his restoration must depend on their decision. Citizens who had hitherto been made subject to such penalties had been malefactors; whereas, it was acknowledged of him that he had been a benefactor to the city. Clodius had set up on the spot, not a statue of Liberty, but, as was well known to all men, the figure of a Greek prostitute. The priests had not been consulted. The people had not ratified the proposed consecration. Of the necessity of such authority he gives various examples. "And this has been done," he says, "by an impure and impious enemy of all religions—by this man among women, and woman among men—who has gone through the ceremony so hurriedly, so violently, that his mind and his tongue and his voice have been equally inconsistent with each other." "My fortune," he says, as he ends his speech, "all moderate as it is, will suffice for me. The memory of my name will be a patrimony sufficient for my

children;" but if his house be so taken from him, so stolen, so falsely dedicated to religion, he cannot live without disgrace. Of course he got back his house; and with his house about £16,000 for its re-erection, and £4000 for the damage done to the Tusculan villa with £2000 for the Formian villa. With these sums he was not contented; and indeed they could hardly have represented fairly the immense injury done to him.

B.C. 56, ætat. 51. So ended the work of the year of his return. From the following year, besides the speeches, we have twenty-six letters of which nine were written to Lentulus, the late Consul, who had now gone to Cilicia as Proconsul. Lentulus had befriended him, and he found it necessary to show his gratitude by a continued correspondence, and by a close attendance to the interests of the absent officer. These letters are full of details of Roman politics, too intricate for such a work as this—perhaps I might almost say too uninteresting, as they refer specially to Lentulus himself. In one of them he tells his friend that he has at last been able to secure the friendship of Pompey for him. It was, after all, but a show of friendship. He has supped with Pompey, and says that when he talks to Pompey everything seems to go well: no one can be more gracious than Pompey. But when he sees the friends by whom Pompey is surrounded he knows, as all others know, that the affair is in truth going just as he would not have it.⁸ We feel as we read these letters, in which Pompey's name is continually before us, how much Pompey prevailed by his personal appearance, by his power of saying gracious things, and then again by his power of holding his tongue. "You know the slowness of the man," he says to Lentulus, "and his silence."⁹ A slow, cautious, hypocritical man, who knew well how to use the allurements of personal manners! These letters to Lentulus are full of flattery.

There are five letters to his brother Quintus, dealing with the politics of the time, especially with the then King of Egypt, who was to be, or was not to be, restored. From all these things, however, I endeavor to abstain as much as possible, as matters not peculiarly affecting the character of Cicero. He gives his brother an account of the doings in the Senate, which is interesting as showing us how that august assembly conducted itself. While Pompey was speaking with much dignity, Clodius and his supporters in vain struggled with shouts and cries to put him down. At noon Pompey sat down,

and Clodius got possession of the rostra, and in the middle of a violent tumult remained on his feet for two hours. Then, on Pompey's side, the "optimates" sang indecent songs —"versus obscenissimi"—in reference to Clodius and his sister Clodia. Clodius, rising in his anger, demanded, "Who had brought the famine?" "Pompey," shouted the Clodians. "Who wanted to go to Egypt?" demanded Clodius. "Pompey," again shouted his followers. After that, at three o'clock, at a given signal, they began to spit upon their opponents. Then there was a fight, in which each party tried to drive the others out. The "optimates" were getting the best of it, when Cicero thought it as well to run off lest he should be hurt in the tumult.¹⁰ What hope could there be for an oligarchy when such things occurred in the Senate? Cicero in this letter speaks complacently of resisting force by force in the city. Even Cato, the law-abiding, precise Cato, thought it necessary to fall into the fashion and go about Rome with an armed following. He bought a company of gladiators and circus-men; but was obliged to sell them, as Cicero tells his brother with glee, because he could not afford to feed them.¹¹

There are seven letters also to Atticus—always more interesting than any of the others. There is in these the most perfect good-feeling, so that we may know that the complaints made by him in his exile had had no effect of estranging his friend; and we learn from them his real, innermost thoughts, as they are not given even to his brother—as thoughts have surely seldom been confided by one man of action to another. Atticus had complained that he had not been allowed to see a certain letter which Cicero had written to Cæsar. This he had called a *παλινωδία*, or recantation, and it had been addressed to Cæsar with the view of professing a withdrawal to some extent of his opposition to the Triumvirate. It had been of sufficient moment to be talked about. Atticus had heard of it, and had complained that it had not been sent to him. Cicero puts forward his excuses, and then bursts out with the real truth:

"Why should I nibble round the unpalatable morsel which has to be swallowed?" The recantation had seemed to himself to be almost base, and he had been ashamed of it. "But," says he, "farewell to all true, upright, honest policy. You could hardly believe what treachery there is in those who ought to be our leading men, and who would be so if there was any truth in

them."¹² He does not rely upon those who, if they were true to their party, would enable the party to stand firmly even against Cæsar. Therefore it becomes necessary for him to truckle to Cæsar, not for himself but for his party. Unsupported he cannot stand in open hostility to Cæsar. He truckles. He writes to Cæsar, singing Cæsar's praises. It is for the party rather than for himself, but yet he is ashamed of it.

There is a letter to Lucceius, an historian of the day then much thought of, of whom however our later world has heard nothing. Lucceius is writing chronicles of the time, and Cicero boldly demands to be praised. "Ut ornes mea postule"¹³—"I ask you to praise me." But he becomes much bolder than that. "Again and again I beseech you, without any beating about the bush, to speak more highly of me than you perhaps think that I deserve, even though in doing so you abandon all the laws of history." Then he uses beautiful flattery to his correspondent. Alexander had wished to be painted only by Apelles. He desires to be praised by none but Lucceius. Lucceius, we are told, did as he was asked.

B.C. 56, ætat. 51. I will return to the speeches of the period to which this chapter is devoted, taking that first which he made to the Senate as to the report of the soothsayers respecting certain prodigies. Readers familiar with Livy will remember how frequently, in time of disaster, the anger of Heaven was supposed to have been shown by signs and miracles, indications that the gods were displeased, and that expiations were necessary.¹⁴ The superstition, as is the fate of all superstitions, had frequently been used for most ungodlike purposes. If a man had a political enemy, what could do him better service than to make the populace believe that a house had been crushed by a thunder-bolt, or that a woman had given birth to a pig instead of a child, because Jupiter had been offended by that enemy's devices? By using such a plea the Grecians got into Troy, together with the wooden horse, many years ago. The Scotch worshippers of the Sabbath declared the other day, when the bridge over the Tay was blown away, that the Lord had interposed to prevent travelling on Sunday!

Cicero had not been long back from his exile when the gods began to show their anger. A statue of Juno twisted itself half round; a wolf had been seen in the city; three citizens were struck with lightning; arms were heard to clang, and then wide subterranean noises. Nothing was easier than the

preparation and continuing of such portents. For many years past the heavens above and the earth beneath had been put into requisition for prodigies.¹⁵ The soothsayers were always well pleased to declare that there had been some neglect of the gods. It is in the nature of things that the superstitious tendencies of mankind shall fall a prey to priestcraft. The quarrels between Cicero and Clodius were as full of life as ever. In this year, Clodius being *Ædile*, there had come on debates as to a law passed by Cæsar as Consul, in opposition to Bibulus, for the distribution of lands among the citizens. There was a question as to a certain tax which was to be levied on these lands. The tax-gatherers were supported by Cicero, and denounced by Clodius. Then Clodius and his friends found out that the gods were showering their anger down upon the city because the ground on which Cicero's house had once stood was being desecrated by its re-erection. An appeal was made to the soothsayers. They reported, and Cicero rejoined. The soothsayers had of course been mysterious and doubtful. Cicero first shows that the devotion of his ground to sacred purposes had been an absurdity, and then he declares that the gods are angry, not with him but with Clodius. To say that the gods were not angry at all was more than Cicero dared. The piece, taken as a morsel of declamatory art, is full of vigor, is powerful in invective, and carries us along in full agreement with the orator; but at the conclusion we are led to wish that Cicero could have employed his intellect on higher matters.

There are, however, one or two passages which draw the reader into deep mental inquiry as to the religious feelings of the time. In one, which might have been written by Paley, Cicero declares his belief in the creative power of some god—or gods, as he calls them.¹⁶ And we see also the perverse dealings of the Romans with these gods, dealings which were very troublesome—not to be got over except by stratagem. The gods were made use of by one party and the other for dishonest state purposes. When Cicero tells his hearers what the gods intended to signify by making noises in the sky, and other divine voices, we feel sure that he was either hoaxing them who heard him or saying what he knew they would not believe.

B.C. 56, *ætät*. Previous to the speech as to the "aruspices," he had defended
51. Sextius—or Sestius, as he is frequently called—on a charge

brought against him by Clodius in respect of violence. We at once think of the commonplace from Juvenal:

"Quis tulerit Gracchos de seditione querentes."

But Rome, without remonstrating, put up with any absurdity of that kind. Sextius and Milo and others had been joined together in opposing the election of Clodius as *Ædile*, and had probably met violence with violence. As surely as an English master of hounds has grooms and whips ready at his command, Milo had a band of bullies prepared for violence. Clodius himself had brought an action against Milo, who was defended by Pompey in person. The case against Sextius was intrusted to Albinovanus, and Hortensius undertook the defence. Sextius before had been one of the most forward in obtaining the return of Cicero, and had travelled into Gaul to see Cæsar and to procure Cæsar's assent. Cæsar had not then assented; but not the less great had been the favor conferred by Sextius on Cicero. Cicero had been grateful, but it seems that Sextius had thought not sufficiently grateful; hence there had grown up something of a quarrel. But Cicero, when he heard of the proceeding against his old friend, at once offered his assistance. For a Roman to have more than one counsel to plead for him was as common as for an Englishman. Cicero was therefore added to Hortensius, and the two great advocates of the day spoke on the same side. We are told that Hortensius managed the evidence, showing, probably, that Clodius struck the first blow. Cicero then addressed the judges with the object of gaining their favor for the accused. In this he was successful, and Sextius was acquitted. As regards Sextius and his quarrel with Clodius, the oration has but little interest for us. There is not, indeed, much about Sextius in it. It is a continuation of the *pæan* which Cicero was still singing as to his own return, but it is distinguished from his former utterances by finer thought and finer language. The description of public virtue as displayed by Cato has perhaps, in regard to melody of words and grandeur of sentiment, never been beaten. I give the orator's words below in his own language, because in no other way can any idea of the sound be conveyed.¹⁷ There is, too, a definition made very cleverly to suit his own point of view between the conservatives and the liberals of the day. "Optimates" is the name by which the former are known; the latter are called "Populares."¹⁸

Attached to this speech for Sextius is a declamation against Vatinius, who was one of the witnesses employed by the prosecutor. Instead of examining this witness regularly, he talked him down by a separate oration. We have no other instance of such a forensic manœuvre either in Cicero's practice or in our accounts of the doings of other Roman advocates. This has reached us as a separate oration. It is a coarse tirade of abuse against a man whom we believe to have been bad, but as to whom we feel that we are not justified in supposing that we can get his true character here. He was a creature of Cæsar's, and Cicero was able to say words as to Vatinius which he was unwilling to speak as to Cæsar and his doings. It must be added here that two years later Cicero pleaded for this very Vatinius, at the joint request of Cæsar and Pompey, when Vatinius on leaving the Prætorship was accused of corruption.

B.C. 56, ætat. 51. The nature of the reward to which the aspiring oligarch of Rome always turned his eyes has been sufficiently explained. He looked to be the governor of a province. At this period of which we are speaking there was no reticence in the matter. Syria, or Macedonia, or Hispania had been the prize, or Sicily, or Sardinia. It was quite understood that an aspiring oligarch went through the dust and danger and expense of political life in order that at last he might fill his coffers with provincial plunder. There were various laws as to which these governments were allotted to the plunderers. Of these we need only allude to the *Leges Sempronie*, or laws proposed B.C. 123, by Caius Sempronius Gracchus, for the distribution of those provinces which were to be enjoyed by Proconsuls. There were prætorian provinces and consular provinces, though there was no law making it sure that any province should be either consular or prætorian. But the Senate, without the interference of the people and free from the Tribunes' veto, had the selection of provinces for the Consuls; whereas, for those intended for the Prætors, the people had the right of voting and the Tribunes of the people had a right of putting a veto on the propositions made. Now, in this year there came before the Senate a discussion as to the fate of three Proconsuls—not as to the primary allocation of provinces to them, but on the question whether they should be continued in the government which they held. Piso was in Macedonia, where he was supposed to have disgraced himself and the Empire which he served. Gabinius was in Syria, where it was acknowledged that he had done

good service, though his own personal character stood very low. Cæsar was lord in the two Gauls—that is, on both sides of the Alps, in Northern Italy, and in that portion of modern France along the Mediterranean which had been already colonized—and was also governor of Illyricum. He had already made it manifest to all men that the subjugation of a new empire was his object rather than provincial plunder. Whether we love the memory of Cæsar as of a great man who showed himself fit to rule the world, or turn away from him as from one who set his iron heel on the necks of men, and by doing so retarded for centuries the liberties of mankind, we have to admit that he rose by the light of his own genius altogether above the ambition of his contemporaries. If we prefer, as I do, the humanity of Cicero, we must confess to ourselves the supremacy of Cæsar, and acknowledge ourselves to belong to the beaten cause. "*Victrix causa Deis placuit; sed victa Catoni.*" In discussing the fate of these proconsular officials we feel now the absurdity of mixing together in the same debate the name of Piso and Gabinius with that of Cæsar. Yet such was the subject in dispute when Cicero made his speech, *De Provinciis Consularibus*, as to the adjudication of the consular provinces.

There was a strong opinion among many Senators that Cæsar should be stopped in his career. I need not here investigate the motives, either great or little, on which this opinion was founded. There was hardly a Senator among them who would not have wished Cæsar to be put down, though there were many who did not dare declare their wishes. There were reasons for peculiar jealousy on the part of the Senate. Cisalpine Gaul had been voted for him by the intervention of the people, and especially by that of the Tribune Vatinius—to Cæsar who was *Consularis*, whose reward should have been an affair solely for the Senate. Then there had arisen a demand, a most unusual demand, for the other Gaul also. The giving of two provinces to one governor was altogether contrary to the practice of the State; but so was the permanent and acknowledged continuance of a conspiracy such as the *Triumvirate* unusual. Cæsar himself was very unusual. Then the Senate, feeling that the second province would certainly be obtained, and anxious to preserve some shred of their prerogative, themselves voted the Farther Gaul. As it must be done, let it at any rate be said that they had done it. But as they had sent Cæsar over the Alps so they could recall him, or try to recall him. Therefore, with the question as to Piso and Gabinius, which

really meant nothing, came up this also as to Cæsar, which meant a great deal.

But Cæsar had already done great things in Gaul. He had defeated the Helvetians and driven Ariovistus out of the country. He had carried eight legions among the distant Belgæ, and had conquered the Nervii. In this very year he had built a huge fleet, and had destroyed the Veneti, a seafaring people on the coast of the present Brittany. The more powerful he showed himself to be, the more difficult it was to recall him; but also the more desirable in the eyes of many. In the first portion of his speech Cicero handles Piso and Gabinius with his usual invective. There was no considerable party desirous of renewing to them their governments, but Cicero always revelled in the pleasure of abusing them. He devotes by far the longer part of his oration to the merit of Cæsar.¹⁹ As for recalling him, it would be irrational. Who had counted more enemies in Rome than Marius? but did they recall Marius when he was fighting for the Republic?²⁰ Hitherto the Republic had been forced to fear the Gauls. Rome had always been on the defence against them. Now it had been brought about by Cæsar that the limits of the world were the limits of the Roman Empire.²¹ The conquest was not yet finished, but surely it should be left to him who had begun it so well. Even though Cæsar were to demand to return himself, thinking that he had done enough for his own glory, it would be for the Senators to restrain him—for the Senate to bid him finish the work that he had in hand.²² As for himself, continued Cicero, if Cæsar had been his enemy, what of that? Cæsar was not his enemy now. He had told the Senate what offers of employment Cæsar had made him. If he could not forget, yet he would forgive, former injuries.²³

It is important for the reading of Cicero's character that we should trace the meaning of his utterances about Cæsar from this time up to the day on which Cæsar was killed—his utterances in public, and those which are found in his letters to Atticus and his brother. That there was much of pretence—of falsehood, if a hard word be necessary to suit the severity of those who judge the man hardly—is admitted. How he praised Pompey in public, dispraising him in private, at one and the same moment, has been declared. How he applied for praise, whether deserved or not, has been shown. In excuse, not in defence, of this I allege that the Romans of the day

were habitually false after this fashion. The application to Lucceius proves the habitual falseness not of Cicero only, but of Lucceius also; and the private words written to Atticus, in opposition to the public words with which Atticus was well acquainted, prove the falseness also of Atticus. It was Roman; it was Italian; it was cosmopolitan; it was human. I only wish that it were possible to declare that it is no longer Italian, no longer cosmopolitan, no longer human. To this day it is very difficult even for an honorable man to tell the whole truth in the varying circumstances of public life. The establishment of even a theory of truth, with all the advantages which have come to us from Christianity, has been so difficult, hitherto so imperfect, that we ought, I think, to consider well the circumstances before we stigmatize Cicero as specially false. To my reading he seems to have been specially true. When Cæsar won his way up to power, Cicero was courteous to him, flattered him, and, though, never subservient, yet was anxious to comply when compliance was possible. Nevertheless, we know well that the whole scheme of Cæsar's political life was opposed to the scheme entertained by Cicero. It was Cicero's desire to maintain as much as he could of the old form of oligarchical rule under which, as a constitution, the Roman Empire had been created. It was Cæsar's intention to sweep it all away. We can see that now; but Cicero could only see it in part. To his outlook the man had some sense of order, and had all the elements of greatness. He was better, at any rate, than a Verres, a Catiline, a Clodius, a Piso, or a Gabinius. If he thought that by flattery he could bring Cæsar somewhat round, there might be conceit in his so thinking, but there could be no treachery. In doing so he did not abandon his political *beau ideal*. If better times came, or a better man, he would use them. In the mean time he could do more by managing Cæsar than by opposing him. He was far enough from succeeding in the management of Cæsar, but he did do much in keeping his party together. It was in this spirit that he advocated before the Senate the maintenance of Cæsar's authority in the two Gauls. The Senate decreed the withdrawal of Piso and Gabinius, but decided to leave Cæsar where he was. Mommsen deals very hardly with Cicero as to this period of his life. "They used him accordingly as—what he was good for—an advocate." "Cicero himself had to thank his literary reputation for the respectful treatment which he experienced from Cæsar." The question we have to ask ourselves is whether he did his best to forward that scheme of politics which he thought to be good for the Republic. To me it seems that

he did do so. He certainly did nothing with the object of filling his own pockets. I doubt whether as much can be said with perfect truth as to any other Roman of the period, unless it be Cato.

Balbus, for whom Cicero also spoke in this year, was a Spaniard of Cadiz, to whom Pompey had given the citizenship of Rome, who had become one of Cæsar's servants and friends, and whose citizenship was now disputed. Cicero pleaded in favor of the claim, and gained his cause. There were, no doubt, certain laws in accordance with which Balbus was or was not a citizen; but Cicero here says that because Balbus was a good man, therefore there should be no question as to his citizenship.²⁴ This could hardly be a good legal argument. But we are glad to have the main principles of Roman citizenship laid down for us in this oration. A man cannot belong to more than one State at a time. A man cannot be turned out of his State against his will. A man cannot be forced to remain in his State against his will.²⁵ This Balbus was acknowledged as a Roman, rose to be one of Cæsar's leading ministers, and was elected Consul of the Empire B.C. 40. Thirty-four years afterward his nephew became Consul. Nearly three centuries after that, A.D. 237, a descendant of Balbus was chosen as Emperor, under the name of Balbinus, and is spoken of by Gibbon with eulogy.²⁶

I know no work on Cicero written more pleasantly, or inspired by a higher spirit of justice, than that of Gaston Boissier, of the French Academy, called *Cicéron et ses Amis*. Among his chapters one is devoted to Cicero's remarkable intimacy with Cælius, which should be read by all who wish to study Cicero. We have now come to the speech which he made in this year in defence of Cælius. Cælius had entered public life very early, as the son of a rich citizen who was anxious that his heir should be enabled to shine as well by his father's wealth as by his own intellect. When he was still a boy, according to our ideas of boyhood, he was apprenticed to Cicero,²⁷ as was customary, in order that he might pick up the crumbs which fell from the great man's table. It was thus that a young man would hear what was best worth hearing; thus he would become acquainted with those who were best worth knowing; thus that he would learn in public life all that was best worth learning. Cælius heard all, and knew many, and learned much; but he perhaps learned too much at too early an age. He became bright and clever, but unruly and dissipated. Cicero, however, loved him well. He always

liked the society of bright young men, and could forgive their morals if their wit were good. Clodius—even Clodius, young Curio, Cælius and afterward Dolabella, were companions with whom he loved to associate. When he was in Cilicia, as Proconsul, this Cælius became almost a second Atticus to him, in the writing of news from Rome.

But Cælius had become one of Clodia's many lovers, and seems for a time to have been the first favorite, to the detriment of poor Catullus. The rich father had, it seems, quarrelled with his son, and Cælius was in want of money. He borrowed it from Clodia, and then, without paying his debt, treated Clodia as she had treated Catullus. The lady tried to get her money back, and when she failed she accused her former lover of an attempt to poison her. This she did so that Cælius was tried for the offence. There were no less than four accusers, or advocates, on her behalf, of whom her brother was one. Cælius was defended by Crassus as well as by Cicero, and was acquitted. All these cases combined political views with criminal charges. Cælius was declared to have been a Catilinian conspirator. He was also accused of being in debt, of having quarrelled with his father, of having insulted women, of having beaten a Senator, of having practised bribery, of having committed various murders, and of having perpetrated all social and political excesses to which his enemies could give a name. It was probable that his life had been very irregular, but it was not probably true that he had attempted to poison Clodia.

The speech is very well worth the trouble of reading. It is lively, bright, picturesque, and argumentative; and it tells the reader very much of the manners of Rome at the time. It has been condemned for a passage which, to my taste, is the best in the whole piece. Cicero takes upon himself to palliate the pleasures of youth, and we are told that a man so grave, so pure, so excellent in his own life, should not have condescended to utter sentiments so lax in defence of so immoral a young friend. I will endeavor to translate a portion of the passage, and I think that any ladies who may read these pages will agree with me in liking Cicero the better for what he said upon the occasion. He has been speaking of the changes which the manners of the world had undergone, not only in Rome but in Greece, since pleasure had been acknowledged even by philosophers to be necessary to life. "They who advocate one constant course of continual labor as the road to fame are left alone in their schools, deserted by their scholars. Nature

herself has begotten for us allurements, seduced by which Virtue herself will occasionally become drowsy. Nature herself leads the young into slippery paths, in which not to stumble now and again is hardly possible. Nature has produced for us a variety of pleasures, to which not only youth, but even middle-age, occasionally yields itself. If, therefore, you shall find one who can avert his eyes from all that is beautiful—who is charmed by no sweet smell, by no soft touch, by no rich flavor—who can turn a deaf ear to coaxing words—I indeed, and perhaps a few others, may think that the gods have been good to such a one; but I doubt whether the world at large will not think that the gods have made him a sorry fellow." There is very much more of it, delightfully said, and in the same spirit; but I have given enough to show the nature of the excuse for Cælius which has brought down on Cicero the wrath of the moralists.

CHAPTER II.

CICERO, ÆTAT. 52, 53, 54.

B.C. 55, ætat. 52. I can best continue my record of Cicero's life for this and the two subsequent years by following his speeches and his letters. It was at this period the main object of his political life to reconcile the existence of a Cæsar with that of a Republic—two poles which could not by any means be brought together. Outside of his political life he carried on his profession as an advocate with all his former energy, with all his former bitterness, with all his old friendly zeal, but never, I think, with his former utility. His life with his friends and his family was prosperous; but that ambition to do some great thing for his country which might make his name more famous than that of other Romans was gradually fading, and, as it went, was leaving regrets and remorse behind which would not allow him to be a happy man. But it was now, when he had reached his fifty-second year, that he in truth began that career in literature which has made him second to no Roman in reputation. There are some early rhetorical essays, which were taken from the Greek, of doubtful authenticity; there are the few lines which are preserved of his poetry; there are the speeches which he

wrote as well as spoke for the Rome of the day; and there are his letters, which up to this time had been intended only for his correspondents. All that we have from his pen up to this time has been preserved for us by the light of those great works which he now commenced. In this year, B.C. 55, there appeared the dialogue *De Oratore*, and in the next the treatise *De Republica*. It was his failure as a politician which in truth drove Cicero to the career of literature. As I intend to add to this second volume a few chapters as to his literary productions, I will only mention the dates on which these dialogues and treatises were given to the world as I go on with my work.

In the year B.C. 55, the two of the Triumvirate who had been left in Rome, Pompey and Crassus, were elected Consuls, and provinces were decreed to each of them for five years—to Pompey the two Spains, and to Crassus that Syria which was to be so fatal to him. All this had been arranged at Lucca, in the north of Italy, whither Cæsar was able to come as being within the bounds of his province, to meet his friends from Rome—or his enemies. All aristocratic Rome went out in crowds to Lucca, so that two hundred Senators might be seen together in the streets of that provincial town. It was nevertheless near enough to Rome to permit the conqueror from Gaul to look closely into the politics of the city. By his permission, if not at his instigation, Pompey and Crassus had been chosen Consuls, and to himself was conceded the government of his own province for five further years—that is, down to year B.C. 49 inclusive. It must now at least have become evident to Cicero that Cæsar intended to rule the Empire.

Though we already have Cicero's letters arranged for us in a chronological sequence which may be held to be fairly correct for biographical purposes, still there is much doubt remaining as to the exact periods at which many of them were written. Abeken, the German biographer, says that this year, B.C. 55, produced twelve letters. In the French edition of Cicero's works published by Panckoucke thirty-five are allotted to it. Mr. Watson, in his selected letters, has not taken one from the year in question. Mr. Tyrrell, who has been my Mentor hitherto in regard to the correspondence, has not, unfortunately, published the result of his labors beyond the year 53 B.C. at the time of my present writing. Some of those who have dealt with Cicero's life and works, and have illustrated them by his letters, have added something to the existing confusion by assuming an accuracy of knowledge

in this respect which has not existed. We have no right to quarrel with them for having done so; certainly not with Middleton, as in his time such accuracy was less valued by readers than it is now; and we have the advantage of much light which, though still imperfect, is very bright in comparison with that enjoyed by him. A study of the letters, however, in the sequence now given to them affords an accurate picture of Cicero's mind during the years between the period of his return from exile B.C. 57 and Milo's trial B.C. 52, although the reader may occasionally be misled as to the date of this or the other letter.

With the dates of his speeches, at any rate with the year in which they were made, we are better acquainted. They are of course much fewer in number, and are easily traced by the known historical circumstances of the time. B.C. 55, he made that attack upon his old enemy, the late Consul Piso, which is perhaps the most egregious piece of abuse extant in any language. Even of this we do not know the precise date, but we may be sure that it was spoken early in the year, because Cicero alludes in it to Pompey's great games which were in preparation, and which were exhibited when Pompey's new theatre was opened in May.²⁸ Plutarch tells us that they did not take place till the beginning of the following year.²⁹ Piso on his return from Macedonia attacked Cicero in the Senate in answer to all the hard things that had already been said of him, and Cicero, as Middleton says, "made a reply to him on the spot in an invective speech, the severest, perhaps, that ever was spoken by any man, on the person, the parts, the whole life and conduct of Piso, which as long as the Roman name subsists must deliver down a most detestable character of him to all posterity."

We are here asked to imagine that this attack was delivered on the spur of the moment in answer to Piso's attack. I cannot believe that it should have been so, however great may have been the orator's power over thoughts and words. We have had in our own days wonderful instances of ready and indignant reply made instantaneously, but none in which the angry eloquence has risen to such a power as is here displayed. We cannot but suppose that had human intellect ever been perfect enough for such an exertion, it would have soared high enough also to have abstained from it. It may have been that Cicero knew well enough beforehand what the day was about to produce, so as to have prepared his reply. It may well have been

that he himself undertook the polishing of his speech before it was given to the public in the words which we now read. We may, I think, take it for granted that Piso did make an attack upon him, and that Cicero answered him at once with words which crushed him, and which are not unfairly represented by those which have come down to us.

The imaginative reader will lose himself in wonder as he pictures to himself the figure of the pretentious Proconsul, with his assumption of confidence, as he was undergoing the castigation which this great master of obloquy was inflicting upon him, and the figure of the tall, lean orator, with his long neck and keen eyes, with his arms trained to assist his voice, managing his purple bordered toga with a perfect grace, throwing all his heart into his impassioned words as they fell into the ears of the Senators around him without the loss of a syllable. This Lucius Calpurnius Piso Cæsonius had come from one of the highest families in Rome, and had possessed interest enough to be elected Consul for the year in which Cicero was sent into banishment.³⁰ He was closely connected with that Piso Frugi to whom Cicero's daughter had been married; and Cicero, when he was threatened by the faction of Clodius—a faction which he did not then believe to be supported by the Triumvirate—had thought that he was made safe, at any rate, from cruel results by consular friendship and consular protection. Piso Cæsonius had failed him altogether, saying, in answer to Cicero's appeal, that the times were of such a nature that every one must look to himself. The nature of Cicero's rage may be easily conceived. An attempt to describe it has already been made. It was not till after his Consulate that he was ever waked to real anger, and the one object whom he most entirely hated with his whole soul was Lucius Piso.

By the strength of Cicero's eloquence this man has occupied an immortality of meanness. We cannot but believe that he must have in some sort deserved it, or the justice of the world would have vindicated his character. It should, however, be told of him that three years afterward he was chosen Censor, together with Appius Claudius. But it must also be told that, as far as we can judge, both these men were unworthy of the honor. They were the last two Censors elected in Rome before the days of the Empire. It is impossible not to believe that Piso was vile, but impossible also to believe that he was as vile as Cicero represented him. Cæsar was at this time his son-in-law, as he was father to Calphurnia, with whom Shakspeare has

made us familiar. I do not know that Cæsar took in bad part the hard things that were said of his father-in-law.

The first part of the speech is lost. The first words we know because they have been quoted by Quintilian, "Oh ye gods immortal, what day is this which has shone upon me at last?"³¹ We may imagine from this that Cicero intended it to be understood that he exulted in the coming of his revenge. The following is a fair translation of the opening passage of what remains to us: "Beast that you are, do you not see, do you not perceive, how odious to the men around you is that face of yours?" Then with rapid words he heaps upon the unfortunate man accusations of personal incompetencies. Nobody complains, says Cicero, that that fellow of yesterday, Gabinius, should have been made Consul: we have not been deceived in him. "But your eyes and eyebrows, your forehead, that face of yours, which should be the dumb index of the mind within, have deceived those who have not known you. Few of us only have been aware of your infamous vices, the sloth of your intellect, your dulness, your inability to speak. When was your voice heard in the Forum? when has your counsel been put to the proof? when did you do any service either in peace or war? You have crept into your high place by the mistakes of men, by the regard to the dirty images of your ancestors, to whom you have no resemblance except in their present grimy color. And shall he boast to me," says the orator, turning from Piso to the audience around, "that he has gone on without a check from one step in the magistracy to another? That is a boast for me to make, for me—"homini novo"—a man without ancestors, on whom the Roman people has showered all its honors. You were made Ædile, you say; the Roman people choose a Piso for their Ædile—not this man from any regard for himself, but because he is a Piso. The Prætorship was conferred not on you but on your ancestors who were known and who were dead! Of you, who are alive no one has known anything. But me—!" Then he continues the contrast between himself and Piso; for the speech is as full of his own merits as of the other man's abominations

So the oration goes on to the end. He asserts, addressing himself to Piso, that if he saw him and Gabinius crucified together, he did not know whether he would be most delighted by the punishment inflicted on their bodies or by the ruin of their reputation. He declares that he has prayed for all evil on Piso and Gabinius, and that the gods have heard him, but it has not been for

death, or sickness, or for torment, that he had prayed, but for such evils as have in truth come upon them. Two Consuls sent with large armies into two of the grandest provinces have returned with disgrace. That one—meaning Piso—has not dared even to send home an account of his doings; and the other—Gabinus—has not had his words credited by the Senate, nor any of his requests granted! He, Cicero, had hardly dared to hope for all this, but the gods had done it for him! The most absurd passage is that in which he tells Piso that, having lost his army—which he had done—he had brought back nothing in safety but that "old impudent face of his."³² Altogether it is a tirade of abuse very inferior to Cicero's dignity. Le Clerc, the French critic and editor, speaks the truth when he says, "Il faut avouer qu'il manque surtout de modération, et que la gravité d'un orateur consulaire y fait trop souvent place à l'emportement d'un ennemi." It is, however, full of life, and amusing as an expression of honest hatred. The reader when reading it will of course remember that Roman manners allowed a mode of expression among the upper classes which is altogether denied to those among us who hope to be regarded as gentlemen.

The games in Pompey's theatre, to the preparation of which Cicero alludes in his speech against Piso, are described by him with his usual vivacity and humor in a letter written immediately after them to his friend Marius. Pompey's games, with which he celebrated his second Consulship, seem to have been divided between the magnificent theatre which he had just built—fragments of which still remain to us—and the "circus maximus." This letter from Cicero is very interesting, as showing the estimation in which these games were held, or were supposed to be held, by a Roman man of letters, and as giving us some description of what was done on the occasion. Marius had not come to Rome to see them, and Cicero writes as though his friend had despised them. Cicero himself, having been in Rome, had of course witnessed them. To have been in Rome and not to have seen them would have been quite out of the question. Not to come to Rome from a distance was an eccentricity. He congratulated Marius for not having come, whether it was that he was ill, or that the whole thing was too despicable: "You in the early morning have been looking out upon your view over the bay while we have been staring at puppets half asleep. Most costly games, but I should say—judging of you by myself—that they would have been quite revolting to you. Poor Æsopus was there acting, but so unfitted by age

that all his friends could not but wish that he had desisted. Why should I tell you of it all? The very costliness of the affair took away all the pleasure. Six hundred mules on the stage in the acting of Clytemnestra, or three thousand golden goblets in The Trojan Horse—what delight could they give you? If your slave Protogenes was reading to you something—so that it were not one of my speeches—you were better off at any rate than we. There were two marvellous slaughterings of beasts which lasted for five days. Nobody denies but that they were very grand. But what pleasure can there be to a man of letters³³ when some weak human creature is destroyed by a sturdy beast, or when some lonely animal is pierced through by a hunting-spear. The last day was the day of elephants, in which there could be no delight except to the vulgar crowd. You could not but pity them, feeling that the poor brutes had something in common with humanity." In these combats were killed twenty elephants and two hundred lions. The bad taste and systematical corruption of Rome had reached its acme when this theatre was opened and these games displayed by Pompey.

He tells Atticus,³⁴ in a letter written about this time, that he is obliged to write to him by the hand of a secretary; from which we gather that such had not been, at any rate, his practice. He is every day in the Forum, making speeches; and he had already composed the dialogues *De Oratore*, and had sent them to Lentulus. Though he was no longer in office, his time seems to have been as fully occupied as when he was Prætor or Consul.

We have records of at least a dozen speeches, made B.C. 55 and B.C. 54, between that against Piso and the next that is extant, which was delivered in defence of Plancius. He defended Cispius, but Cispius was convicted. He defended Caninius Gallus, of whom we may presume that he was condemned and exiled, because Cicero found him at Athens on his way to Cilicia, Athens being the place to which exiled Roman oligarchs generally betook themselves.³⁵ In this letter to his young friend Cælius he speaks of the pleasure he had in meeting with Caninius at Athens; but in the letter to Marius which I have quoted he complains of the necessity which has befallen him of defending the man. The heat of the summer of this year he passed in the country, but on his return to the city in November he found Crassus defending his old enemy Gabinius. Gabinius had crept back from his province into the city, and had been received with universal scorn and a

shower of accusations. Cicero at first neither accused nor defended him, but, having been called on as a witness, seems to have been unable to refrain from something of the severity with which he had treated Piso. There was at any rate a passage of arms in which Gabinius called him a banished criminal.³⁶ The Senate then rose as one body to do honor to their late exile. He was, however, afterward driven by the expostulations of Pompey to defend the man. At his first trial Gabinius was acquitted, but was convicted and banished when Cicero defended him. Cicero suffered very greatly in the constraint thus put upon him by Pompey, and refused Pompey till Cæsar's request was added. We can imagine that nothing was more bitter to him than the obligation thus forced upon him. We have nothing of the speech left, but can hardly believe that it was eloquent. From this, however, there rose a reconciliation between Crassus and Cicero, both Cæsar and Pompey having found it to their interest to interfere. As a result of this, early in the next year Cicero defended Crassus in the Senate, when an attempt was made to rob the late Consul of his coveted mission to Syria. Of what he did in this respect he boasts in a letter to Crassus,³⁷ which, regarded from our point of view, would no doubt be looked upon as base. He despised Crassus, and here takes credit for all the fine things he had said of him; but we have no right to think that Cicero could have been altogether unlike a Roman. He speaks also in the Senate on behalf of the people of Tenedos, who had brought their immunities and privileges into question by some supposed want of faith. All we know of this speech is that it was spoken in vain. He pleaded against an Asiatic king, Antiochus of Comagene, who was befriended by Pompey, but Cicero seems to have laughed him out of some of his petty possessions.³⁸ He spoke for the inhabitants of Reate on some question of water-privilege against the Interamnates. Interamna we now know as Terne, where a modern Pope made a lovely water-fall, and at the same time rectified the water-privileges of the surrounding district. Cicero went down to its pleasant Tempe, as he calls it, and stayed there awhile with one Axius.³⁹ He returned thence to Rome to undertake some case for Fonteius, and attended the games which Milo was giving, Milo having been elected Ædile. Here we have a morsel of dramatic criticism on Antiphon the actor and Arbuscula the actress, which reminds one of Pepys. Then he defended Messius, then Drusus, then Scaurus. He mentions all these cases in the same letter, but so slightly that

we cannot trouble ourselves with their details. We only feel that he was kept as busy as a London barrister in full practice. He also defended Vatinius—that Vatinius with whose iniquities he had been so indignant at the trial of Sextius. He defended him twice at the instigation of Cæsar; and he does not seem to have suffered in doing so, as he had certainly done when called upon to stand up and plead for his late consular enemy, Gabinius. Valerius Maximus, a dull author, often quoted but seldom read, whose task it was to give instances of all the virtues and vices produced by mankind, refers to these pleadings for Gabinius and Vatinius as instances of an almost divine forgiveness of injury.⁴⁰ I think we must seek for the good, if good is to be discovered in the proceeding, in the presumed strength which might be added to the Republic by friendly relations between himself and Cæsar.

B.C. 54, ætat. 53. In the spring of the year we find Cicero writing to Cæsar in apparently great intimacy. He recommends to Cæsar his young friend Trebatius, a lawyer, who was going to Gaul in search of his fortune, and in doing so he refers to a joking promise from Cæsar that he would make another friend, whom he had recommended, King of Gaul; or, if not that, foreman at least to Lepta, his head of the mechanics. Lepta was an officer in trust under Cæsar, with whose name we become familiar in Cicero's correspondence, though I do not remember that Cæsar ever mentions him. "Send me some one else that I may show my friendship," Cæsar had said, knowing well that Cicero was worth any price of the kind. Cicero declares to Cæsar that on hearing this he held up his hands in grateful surprise, and on this account he had sent Trebatius. "Mi Cæsar," he says, writing with all affection; and then he praises Trebatius, assuring Cæsar that he does not recommend the young man loosely, as he had some other young men who were worthless—such as Milo, for instance. This results in much good done to Trebatius, though the young man at first does not like the service with the army. He is a lawyer, and finds the work in Gaul very rough. Cicero, who is anxious on his behalf, laughs at him and bids him take the good things that come in his way. In subsequent years Trebatius was made known to the world as the legal pundit whom Horace pretends to consult as to the libellous nature of his satires.⁴¹

In September of this year Cicero pleaded in court for his friend Cn. Plancius, against whom there was brought an accusation that, in canvassing

and obtaining the office of *Ædile*, he had been guilty of bribery. In all these accusations, which come before us as having been either promoted or opposed by Cicero, there is not one in which the reader sympathizes more strongly with the person accused than in this. Plancius had shown Cicero during his banishment the affection of a brother, or almost of a son. Plancius had taken him in and provided for him in Macedonia, when to do so was illegal. Cicero now took great delight in returning the favor. The reader of this oration cannot learn from it that Plancius had in truth done anything illegal. The complaint really made against him was that he, filling the comparatively humble position of a knight, had ventured to become the opposing candidate of such a gallant young aristocrat as M. Juventius Laterensis, who was beaten at this election, and now brought this action in revenge. There is no tearing of any enemy to tatters in this oration, but there is much pathos, and, as was usual with Cicero at this period of his life, an inordinate amount of self-praise. There are many details as to the way in which the tribes voted at elections, which the patient and curious student will find instructive, but which will probably be caviare to all who are not patient and curious students. There are a few passages of peculiar force. Addressing himself to the rival of Plancius, he tells Laterensis that, even though the people might have judged badly in selecting Plancius, it was not the less his duty to accept the judgment of the people.⁴² Say that the people ought not to have done so; but it should have been sufficient for him that they had done so. Then he laughs with a beautiful irony at the pretensions of the accuser. "Let us suppose that it was so," he says.⁴³ "Let no one whose family has not soared above *prætorian* honors contest any place with one of consular family. Let no mere knight stand against one with *prætorian* relations." In such a case there would be no need of the people to vote at all. Farther on he gives his own views as to the honors of the State in language that is very grand. "It has," he says, "been my first endeavor to deserve the high rank of the State; my second, to have been thought to deserve it. The rank itself has been but the third object of my desires."⁴⁴ Plancius was acquitted—it seems to us quite as a matter of course.

In this perhaps the most difficult period of his existence, when the organized conspiracy of the day had not as yet overturned the landmarks of the constitution, he wrote a long letter to his friend Lentulus,⁴⁵ him who had been prominent as Consul in rescuing him from his exile, and who was now

Proconsul in Cilicia. Lentulus had probably taxed him, after some friendly fashion, with going over from the "optimates" or Senatorial party to that of the conspirators Pompey, Cæsar, and Crassus. He had been called a deserter for having passed in his earlier years from the popular party to that of the Senate, and now the leading optimates were doubtful of him—whether he was not showing himself too well inclined to do the bidding of the democratic leaders. The one accusation has been as unfair as the other. In this letter he reminds Lentulus that a captain in making a port cannot always sail thither in a straight line, but must tack and haul and use a slant of wind as he can get it. Cicero was always struggling to make way against a head-wind, and was running hither and thither in his attempt, in a manner most perplexing to those who were looking on without knowing the nature of the winds; but his port was always there, clearly visible to him, if he could only reach it. That port was the Old Republic, with its well-worn and once successful institutions. It was not to be "fetched." The winds had become too perverse, and the entrance had become choked with sand. But he did his best to fetch it; and, though he was driven hither and thither in his endeavors, it should be remembered that to lookers-on such must ever be the appearance of those who are forced to tack about in search of their port.

I have before me Mr. Forsyth's elaborate and very accurate account of this letter. "Now, however," says the biographer, "the future lay dark before him; and not the most sagacious politician at Rome could have divined the series of events—blundering weakness on the one side and unscrupulous ambition on the other—which led to the Dictatorship of Cæsar and the overthrow of the constitution." Nothing can be more true. Cicero was probably the most sagacious politician in Rome; and he, though he did understand much of the weakness—and, it should be added, of the greed—of his own party, did not foresee the point which Cæsar was destined to reach, and which was now probably fixed before Cæsar's own eyes. But I cannot agree with Mr. Forsyth in the result at which he had arrived when he quoted a passage from one of the notes affixed by Melmoth to his translation of this letter: "It was fear alone that determined his resolution; and having once already suffered in the cause of liberty, he did not find himself to be disposed to be twice its martyr." I should not have thought these words worthy of refutation had they not been backed by Mr. Forsyth. How did Cicero show his fear? Had he feared—as indeed there was cause enough, when it was difficult for a

leading man to keep his throat uncut amid the violence of the times, or a house over his head—might he not have made himself safe by accepting Cæsar's offers? A Proconsul out of Rome was safe enough, but he would not be a Proconsul out of Rome till he could avoid it no longer. When the day of danger came, he joined Pompey's army against Cæsar, doubting, not for his life but for his character, as to what might be the best for the Republic. He did not fear when Cæsar was dead and only Antony remained. When the hour came in which his throat had to be cut, he did not fear. When a man has shown such a power of action in the face of danger as Cicero displayed at forty-four in his Consulship, and again at sixty-four in his prolonged struggle with Antony, it is contrary to nature that he should have been a coward at fifty-four.

And all the evidence of the period is opposed to this theory of cowardice. There was nothing special for him to fear when Cæsar was in Gaul, and Crassus about to start for Syria, and Pompey for his provinces. Such was the condition of Rome, social and political, that all was uncertain and all was dangerous. But men had become used to danger, and were anxious only, in the general scramble, to get what plunder might be going. Unlimited plunder was at Cicero's command—provinces, magistracies, abnormal lieutenancies—but he took nothing. He even told his friend in joke that he would have liked to be an augur, and the critics have thereupon concluded that he was ready to sell his country for a trifle. But he took nothing when all others were helping themselves.

The letter to Lentulus is well worth studying, if only as evidence of the thoughtfulness with which he weighed every point affecting his own character. He did wish to stand well with the "optimates," of whom Lentulus was one. He did wish to stand well with Cæsar, and with Pompey, who at this time was Cæsar's jackal. He did find the difficulty of running with the hare and hunting with the hounds. He must have surely learned at last to hate all compromise. But he had fallen on hard times, and the task before him was impossible. If, however, his hands were clean when those of others were dirty, and his motives patriotic while those of others were selfish, so much ought to be said for him.

In the same year he defended Rabirius Postumus, and in doing so carried on the purpose which he had been instigated to undertake by Cæsar in

defending Gabinius. This Rabirius was the nephew of him whom ten years before Cicero had defended when accused of having killed Saturninus. He was a knight, and, as was customary with the Equites, had long been engaged in the pursuit of trade, making money by lending money, and such like. He had, it seems, been a successful man, but, in an evil time for himself, had come across King Ptolemy Auletes when there was a question of restoring that wretched sovereign to the throne of Egypt. As Cicero was not himself much exercised in this matter, I have not referred to the king and his affairs, wishing as far as possible to avoid questions which concern the history of Rome rather than the life of Cicero; but the affairs of this banished king continually come up in the records of this time. Pompey had befriended Auletes, and Gabinius, when Proconsul in Syria, had succeeded in restoring the king to his throne—no doubt in obedience to Pompey, though not in obedience to the Senate. Auletes, when in Rome, had required large sums of money—suppliant kings when in the city needed money to buy venal Senators—and Rabirius had supplied him. The profits to be made from suppliant kings when in want of money were generally very great, but this king seems so have got hold of all the money which Rabirius possessed, so that the knight-banker found himself obliged to become one of the king's suite when the king went back to take possession of his kingdom. In no other way could he hang on to the vast debt that was owing to him. In Egypt he found himself compelled to undergo various indignities. He became no better than a head-servant among the king's servants. One of the charges brought against him was that he, a Roman knight, had allowed himself to be clothed in the half-feminine garb of an Oriental attendant upon a king. It was also brought against him as part of the accusation that he had bribed, or had endeavored to bribe, a certain Senator. The crime nominally laid to the charge of Rabirius was "de repetundis"—for extorting money in the position of a magistrate. The money alluded to had been, in truth, extorted by Gabinius from Ptolemy Auletes as the price paid for his restoration, and had come in great part probably from out of the pocket of Rabirius himself. Gabinius had been condemned, and ordered to repay the money. He had none to repay, and the claim, by some clause in the law to that effect was transferred to Rabirius as his agent. Rabirius was accused as though he had extorted the money—which he had in fact lost, but the spirit of the accusation lay in the idea that he, a Roman knight, had basely subjected himself to an Egyptian king. That Rabirius had been base and

sordid there can be no doubt. That he was ruined by his transaction with Auletes is equally certain. It is supposed that he was convicted. He was afterward employed by Cæsar, who, when in power, may have recalled him from banishment. There are many passages in the oration to which I would fain refer the reader had I space to do so. I will name only one in which Cicero endeavors to ingratiate himself with his audience by referring to the old established Roman hatred of kings: "Who is there among us who, though he may not have tried them himself, does not know the ways of kings? 'Listen to me here!' 'Obey my word at once!' 'Speak a word more than you are told, and you'll see what you'll get!' 'Do that a second time, and you die!' We should read of such things and look at them from a distance, not only for our pleasure, but that we may know of what we have to be aware, and what we ought to avoid."⁴⁶

There is a letter written in this year to Curio, another young friend such as Cælius, of whom I have spoken. Curio also was clever, dissipated, extravagant, and unscrupulous. But at this period of his life he was attached to Cicero, who was not indifferent to the services which might accrue to him from friends who might be violent and unscrupulous on the right side.

B.C. 53, ætat. 54. This letter was written to secure Curio's services for another friend not quite so young, but equally attached, and perhaps of all the Romans of the time the most unscrupulous and the most violent. This friend was Milo, who was about to stand for the Consulship of the following year. Curio was on his road from Asia Minor, where he had been Quæstor, and is invited by Cicero in language peculiarly pressing to be the leader of Milo's party on the occasion.⁴⁷ We cannot but imagine that the winds which Curio was called upon to govern were the tornadoes and squalls which were to be made to rage in the streets of Rome to the great discomfiture of Milo's enemies during his canvass. To such a state had Rome come, that for the first six months of this year there were no Consuls, an election being found to be impossible. Milo had been the great opponent of Clodius in the city rows which had taken place previous to the exile of Cicero. The two men are called by Mommsen the Achilles and the Hector of the streets.⁴⁸ Cicero was of course on Milo's side, as Milo was an enemy to Clodius. In this matter his feeling was so strong that he declares to Curio that he does not think that the welfare and fortunes of one man were ever so

dear to another as now were those of Milo to him. Milo's success is the only object of interest he has in the world. This is interesting to us now as a prelude to the great trial which was to take place in the next year, when Milo, instead of being elected Consul, was convicted of murder.

In the two previous years Cæsar had made two invasions into Britain, in the latter of which Quintus Cicero had accompanied him. Cicero in various letters alludes to this undertaking, but barely gives it the importance which we, as Britons, think should have been attached to so tremendous an enterprise. There might perhaps be some danger, he thought, in crossing the seas, and encountering the rocky shores of the island, but there was nothing to be got worth the getting. He tells Atticus that he can hardly expect any slaves skilled either in music or letters,⁴⁹ and he suggests to Trebatius that, as he will certainly find neither gold nor slaves, he had better put himself into a British chariot and come back in it as soon as possible.⁵⁰ In this year Cæsar reduced the remaining tribes of Gaul, and crossed the Rhine a second time. It was his sixth year in Gaul, and men had learned to know what was his nature. Cicero had discovered his greatness, as also Pompey must have done, to his great dismay; and he had himself discovered what he was himself; but two accidents occurred in this year which were perhaps as important in Roman history as the continuance of Cæsar's success. Julia, Cæsar's daughter and Pompey's wife, died in childbed. She seems to have been loved by all, and had been idolized from the time of the marriage by her uxorious husband, who was more than twenty-four years her senior. She certainly had been a strong bond of union between Cæsar and Pompey; so much so that we are surprised that such a feeling should have been so powerful among the Romans of the time. "Concordiæ pignus," a "pledge of friendship," she is called by Paterculus, who tells us in the same sentence that the Triumvirate had no other bond to hold it together.⁵¹ Whether the friendship might have remained valid had Julia lived we cannot say; but she died, and the two friends became enemies. From the moment of Julia's death there was no Triumvirate.

The other accident was equally fatal to the bond of union which had bound the three men together. Late in the year, after his Consulship, B.C. 54, Crassus had gone to his Syrian government with the double intention of increasing his wealth and rivalling the military glories of Cæsar and

Pompey. In the following year he became an easy victim to Eastern deceit, and was destroyed by the Parthians, with his son and the greater part of the Roman army which had been intrusted to him.⁵² We are told that Crassus at last destroyed himself. I doubt, however, whether there was enough of patriotism alive among Romans at the time to create the feeling which so great a loss and so great a shame should have occasioned. As far as we can learn, the destruction of Crassus and his legions did not occasion so much thought in Rome as the breaking up of the Triumvirate.

Cicero's daughter Tullia was now a second time without a husband. She was the widow of her first husband Piso; had then, B.C. 56, married Crassipes, and had been divorced. Of him we have heard nothing, except that he was divorced. A doubt has been thrown on the fact whether she was in truth ever married to Crassipes. We learn from letters, both to his brother and to Atticus, that Cicero was contented with the match, when it was made, and did his best to give the lady a rich dowry.⁵³

In this year Cicero was elected into the College of Augurs, to fill the vacancy made by the death of young Crassus, who had been killed with his father in Parthia. The reader will remember that he had in a joking manner expressed a desire for the office. He now obtained it without any difficulty, and certainly without any sacrifice of his principle. It had formerly been the privilege of the augurs to fill up the vacancies in their own college, but the right had been transferred to the people. It was now conferred upon Cicero without serious opposition.

CHAPTER III.

MILO.

B.C. 52, ætat. 55. The preceding year came to an end without any consular election. It was for the election expected to have taken place that the services of Curio had been so ardently bespoken by Cicero on behalf of Milo. In order to impede the election Clodius accused Milo of being in debt, and Cicero defended him. What was the nature of the accusation we do not

exactly know. "An inquiry into Milo's debts!" Such was the name given to the pleadings as found with the fragments which have come to us.⁵⁴ In these, which are short and not specially interesting, there is hardly a word as to Milo's debts; but much abuse of Clodius, with some praise of Cicero himself, and some praise also of Pompey, who was so soon to take up arms against Cicero, not metaphorically, but in grim reality of sword and buckler, in this matter of his further defence of Milo. We cannot believe that Milo's debts stood in the way of his election, but we know that at last he was not elected. Early in the year Clodius was killed, and then, at the suggestion of Bibulus—whom the reader will remember as the colleague of Cæsar in the Consulship when Cæsar reduced his colleague to ridiculous impotence by his violence—Pompey was elected as sole Consul, an honor which befell no other Roman.⁵⁵ The condition of Rome must have been very low when such a one as Bibulus thought that no order was possible except by putting absolute power into the hands of him who had so lately been the partner of Cæsar in the conspiracy which had not even yet been altogether brought to an end. That Bibulus acted under constraint is no doubt true. It would be of little matter now from what cause he acted, were it not that his having taken a part in this utter disruption of the Roman form of government is one proof the more that there was no longer any hope for the Republic.

But the story of the killing of Clodius must be told at some length, because it affords the best-drawn picture that we can get of the sort of violence with which Roman affairs had to be managed; and also because it gave rise to one of the choicest morsels of forensic eloquence that have ever been prepared by the intellect and skill of an advocate. It is well known that the speech to which I refer was not spoken, and could not have been spoken, in the form in which it has reached us. We do not know what part of it was spoken and what was omitted; but we do know that the *Pro Milone* exists for us, and that it lives among the glories of language as a published oration. I find, on looking through the *Institutio Oratoria* of Quintilian, that in his estimation the *Pro Milone* was the first in favor of all our author's orations—"facile princeps," if we may collect the critic's ideas on the subject from the number of references made and examples taken. Quintilian's work consists of lessons on oratory, which he supports by quotations from the great orators, both Greek and Latin, with whose speeches he has made himself familiar. Cicero was to him the chief of

orators; so much so that we may almost say that Quintilian's *Institutio* is rather a lecture in honor of Cicero than a general lesson. With the Roman school-master's method of teaching for the benefit of the Roman youth of the day we have no concern at present, but we can gather from the references made by him the estimation in which various orations were held by others, as well as by him, in his day. The *Pro Cluentio*, which is twice as long as the *Pro Milone*, and which has never, I think, been a favorite with modern readers, is quoted very frequently by Quintilian. It is the second in the list. Quintilian makes eighteen references to it; but the *Pro Milone* is brought to the reader's notice thirty-seven times. Quintilian was certainly a good critic; and he understood how to recommend himself to his own followers by quoting excellences which had already been acknowledged as the best which Roman literature had afforded.

Those who have gone before me in writing the life of Cicero have, in telling their story as to Milo, very properly gone to Asconius for their details. As I must do so too, I shall probably not diverge far from them. Asconius wrote as early as in the reign of Claudius, and had in his possession the annals of the time which have not come to us. Among other writings he could refer to those books of Livy which have since been lost. He seems to have done his work as commentator with no glow of affection and with no touch of animosity, either on one side or on the other. There can be no reason for doubting the impartiality of Asconius as to Milo's trial, and every reason for trusting his knowledge of the facts.

B.C. 52, ætat. 55. When the year began, no Consuls had been chosen, and an interrex became necessary—one interrex after another—to make the election of Consuls possible in accordance with the forms of the constitution. These men remained in office each for five days, and it was customary that an election which had been delayed should be completed within the days of the second or third interrex. There were three candidates, Milo, Hypsæus, and Q. Metellus Scipio, by all of whom bribery and violence were used with open and unblushing profligacy. Cicero was wedded to Milo's cause, as we have seen from his letter to Curio, but it does not appear that he himself took any active part in the canvass. The duties to be done required rather the services of a Curio. Pompey, on the other hand, was nearly as warmly engaged in favor of Hypsæus and Scipio, though in the turn which affairs took he seems to have been willing enough to accept

the office himself when it came in his way. Milo and Clodius had often fought in the streets of Rome, each ruffian attended by a band of armed combatants, so that in audacity, as Asconius says, they were equal.

On the 20th of January Milo was returning to Rome from Lanuvium, where he had been engaged, as chief magistrate of the town, in nominating a friend for the municipality. He was in a carriage with his wife Fausta, and with a friend, and was followed, as was his wont, by a large band of armed men, among whom were two noted gladiators, Eudamus and Birria. At Bovillæ, near the temple of the Bona Dea, his cortege was met by Clodius on horseback, who had with him some friends, and thirty slaves armed with swords. Milo's attendants were nearly ten times as numerous. It is not supposed by Asconius that either of the two men expected the meeting, which may be presumed to have been fortuitous. Milo and Clodius passed each other without words or blows—scowling, no doubt; but the two gladiators who were at the end of the file of Milo's men began to quarrel with certain of the followers of Clodius. Clodius interfered, and was stabbed in the shoulder by Birria; then he was carried to a neighboring tavern while the fight was in progress. Milo, having heard that his enemy was there concealed—thinking that he would be greatly relieved in his career by the death of such a foe, and that the risk should be run though the consequences might be grave—caused Clodius to be dragged out from the tavern and slaughtered. On what grounds Asconius has attributed these probable thoughts to Milo we do not know. That the order was given the jury believed, or at any rate affected to believe.

Up to this moment Milo was no more guilty than Clodius, and neither of them, probably, guilty of more than their usual violence. Partisans on the two sides endeavored to show that each had prepared an ambush for the other, but there is no evidence that it was so. There is no evidence existing now as to this dragging out of Clodius that he might be murdered; but we know what was the general opinion of Rome at the time and we may conclude that it was right. The order probably was given by Milo—as it would have been given by Clodius in similar circumstances—at the spur of the moment, when Milo allowed his passion to get the better of his judgment.

The thirty servants of Clodius were either killed or had run away and hidden themselves, when a certain Senator, S. Tedi-^{us}, coming that way, found the dead body on the road, and carrying it into the city on a litter deposited it in the dead man's house. Before nightfall the death of Clodius was known through the city, and the body was surrounded by a crowd of citizens of the lower order and of slaves. With them was Fulvia, the widow, exposing the dead man's wounds and exciting the people to sympathy. On the morrow there was an increased crowd, among whom were Senators and Tribunes, and the body was carried out into the Forum, and the people were harangued by the Tribunes as to the horror of the deed that had been done. From thence the body was borne into the neighboring Senate-house⁵⁶ by the crowd, under the leading of Sextus Clodius, a cousin of the dead man. Here it was burnt with a great fire fed with the desks and benches, and even with the books and archives which were stored there. Not only was the Senate-house destroyed by the flames, but a temple also that was close to it. Milo's house was attacked, and was defended by arms. We are made to understand that all Rome was in a state of violence and anarchy. The Consuls' fasces had been put away in one of the temples—that of Venus Libitina: these the people seized and carried to the house of Pompey, declaring that he should be Dictator, and he alone Consul, mingling anarchy with a marvellous reverence for legal forms.

But there arose in the city a feeling of great anger at the burning of the Senate-house, which for a while seemed to extinguish the sympathy for Clodius, so that Milo, who was supposed to have taken himself off, came back to Rome and renewed his canvass, distributing bribes to all the citizens—"millia assuum"—perhaps something over ten pounds to every man. Both he and Cælius harangued the people, and declared that Clodius had begun the fray. But no Consuls could be elected while the city was in such a state, and Pompey, having been desired to protect the Republic in the usual form, collected troops from all Italy. Preparations were made for trying Milo, and the friends of each party demanded that the slaves of the other party should be put to the torture and examined as witnesses; but every possible impediment and legal quibble was used by the advocates on either side. Hortensius, who was engaged for Milo, declared that Milo's slaves had all been made free men and could not be touched. Stories were told backward and forward of the cruelty and violence on each side. Milo made an offer to

Pompey to abandon his canvass in favor of Hypsæus, if Pompey would accept this as a compromise. Pompey answered, with the assumed dignity that was common to him, that he was not the Roman people, and that it was not for him to interfere.

It was then that Pompey was created sole Consul at the instigation of Bibulus. He immediately caused a new law to be passed for the management of the trial which was coming on, and when he was opposed in this by Cælius, declared that if necessary he would carry his purpose by force of arms. Pretending to be afraid of Milo's violence, he remained at home, and on one occasion dismissed the Senate. Afterward, when Milo entered the Senate, he was accused by a Senator present of having come thither with arms hidden beneath his toga; whereupon he lifted his toga and showed that there were none. Asconius tells us that upon this Cicero declared that all the other charges made against the accused were equally false. This is the first word of Cicero's known to us in the matter.

Two or three men declared that because they had been present at the death of Clodius they had been kidnapped and kept close prisoners by Milo; and the story, whether true or false, did Milo much harm. It seems that Milo became again very odious to the people, and that their hatred was for the time extended to Cicero as Milo's friend and proposed advocate. Pompey seems to have shared the feeling, and to have declared that violence was contemplated against himself. "But such was Cicero's constancy," says Asconius, "that neither the alienation of the people nor the suspicions of Pompey, no fear of what might befall himself at the trial, no dread of the arms which were used openly against Milo, could hinder him from going on with the defence, although it was within his power to avoid the quarrel with the people and to renew his friendship for Pompey by abstaining from it." Domitius Ænobarbus was chosen as President, and the others elected as judges were, we are told, equally good men. Milo was accused both of violence and bribery, but was able to arrange that the former case should be tried first. The method of the trial is explained. Fifty-one judges or jurymen were at last chosen. Schola was the first witness examined, and he exaggerated as best he could the horror of the murder. When Marcellus, as advocate for Milo, began to examine Schola, the people were so violent that the President was forced to protect Marcellus by taking him within the barrier of the judges' seats. Milo also was obliged to demand protection

within the court. Pompey, then sitting at the Treasury, and frightened by the clamor, declared that he himself would come down with troops on the next day. After the hearing of the evidence the Tribune Munatius Plancus harangued the people, and begged them to come in great numbers on the morrow so that Milo might not be allowed to escape. On the following day, which was the 11th of April, all the taverns were shut. Pompey filled the Forum and every approach to it with his soldiers. He himself remained seated at the Treasury as before, surrounded by a picked body of men. At the trial on this day, when three of the advocates against Milo had spoken—Appius, Marc Antony, and Valerius Nepos—Cicero stood up to defend the criminal. Brutus had prepared an oration declaring that the killing of Clodius was in itself a good deed, and praiseworthy on behalf of the Republic; but to this speech Cicero refused his consent, arguing that a man could not legally be killed simply because his death was to be desired, and Brutus's speech was not spoken. Witnesses had declared that Milo had lain in wait for Clodius. This Cicero alleged to be false, contending that Clodius had lain in wait for Milo, and he endeavored to make this point and no other. "But it is proved," says Asconius, "that neither of the men had any design of violence on that day; that they met by chance, and that the killing of Clodius had come from the quarrelling of the slaves. It was well known that each had often threatened the death of the other. Milo's slaves had no doubt been much more numerous than those of Clodius when the meeting took place; but those of Clodius had been very much better prepared for fighting. When Cicero began to address the judges, the partisans of Clodius could not be induced to abstain from riot even by fear of the soldiery; so that he was unable to speak with his accustomed firmness."

Such is the account as given by Asconius, who goes on to tell us that out of the fifty-one judges thirty-eight condemned Milo and only thirteen were for acquitting him. Milo, therefore, was condemned, and had to retire at once into exile at Marseilles.

It seems to have been acknowledged by the judges that Clodius had not been wounded at first by any connivance on the part of Milo; but they thought that Milo did direct that Clodius should be killed during the fight which the slaves had commenced among themselves. As far as we can take any interest in the matter we must suppose that it was so; but we are forced to agree with Brutus that the killing of Clodius was in itself a good deed

done—and we have to acknowledge at the same time that the killing of Milo would have been as good. Though we may doubt as to the manner in which Clodius was killed, there are points in the matter as to which we may be quite assured. Milo was condemned, not for killing Clodius, but because he was opposed at the moment to the line of politics which Pompey thought would be most conducive to his own interests. Milo was condemned, and the death of the wretched Clodius avenged, because Pompey had desired Hypsæus to be Consul and Milo had dared to stand in his way. An audience was refused to Cicero, not from any sympathy with Clodius, but because it suited Pompey that Milo should be condemned. Could Cicero have spoken the words which afterward were published, the jury might have hesitated and the criminal might have been acquitted. Cæsar was absent, and Pompey found himself again lifted into supreme power—for a moment. Though no one in Rome had insulted Pompey as Clodius had done, though no one had so fought for Pompey as Cicero had done, still it suited Pompey to avenge Clodius and to punish Cicero for having taken Milo's part in regard to the consulship. Milo, after his condemnation for the death of Clodius, was condemned in three subsequent trials, one following the other almost instantly, for bribery, for secret conspiracy, and again for violence in the city. He was absent, but there was no difficulty in obtaining his conviction. When he was gone one Saufeius, a friend of his, who had been with him during the tumult, was put upon his trial for his share in the death of Clodius. He at any rate was known to have been guilty in the matter. He had been leader of the party who attacked the tavern, had killed the tavern-keeper, and had dragged out Clodius to execution. But Saufeius was twice acquitted. Had there been any hope of law-abiding tranquillity in Rome, it might have been well that Clodius should be killed and Milo banished. As it was, neither the death of the one nor the banishment of the other could avail anything. The pity of it was—the pity—that such a one as Cicero, a man with such intellect, such ambition, such sympathies, and such patriotism, should have been brought to fight on such an arena.

B.C. 52, ætat. 55. We have in this story a graphic and most astounding picture of the Rome of the day. No Consuls had been or could be elected, and the system by which "interreges" had been enabled to superintend the election of their successors in lieu of the Consuls of the expiring year had broken down. Pompey had been made sole Consul in an informal manner,

and had taken upon himself all the authority of a Dictator in levying troops. Power in Rome seems at the moment to have been shared between him and bands of gladiators, but he too had succeeded in arming himself, and as the Clodian faction was on his side, he was for a while supreme. For law by this time he could have but little reverence, having been partner with Cæsar in the so-called Triumvirate for the last eight years. But yet he had no aptitude for throwing the law altogether on one side, and making such a coup-de-main as was now and again within his power. Beyond Pompey there was at this time no power in Rome, except that of the gladiators, and the owners of the gladiators, who were each intent on making plunder out of the Empire. There were certain men, such as were Bibulus and Cato, who considered themselves to be "optimates"—leading citizens who believed in the Republic, and were no doubt anxious to maintain the established order of things—as we may imagine the dukes and earls are anxious in these days of ours. But they were impotent and bad men of business, and as a body were too closely wedded to their "fish ponds"—by which Cicero means their general luxuries and extravagances. In the bosoms of these men there was no doubt an eager desire to perpetuate a Republic which had done so much for them, and a courage sufficient for the doing of some great deed, if the great deed would come in their way. They went to Pharsalia, and Cato marched across the deserts of Libya. They slew Cæsar, and did some gallant fighting afterward; but they were like a rope of sand, and had among them no fitting leader and no high purpose.

Outside of these was Cicero, who certainly was not a fitting leader when fighting was necessary, and who as to politics in general was fitted rather by noble aspirations than supported by fixed purposes. We are driven to wonder that there should have been, at such a period and among such a people, aspirations so noble joined with so much vanity of expression. Among Romans he stands the highest, because of all Romans he was the least Roman. He had begun with high resolves, and had acted up to them. Among all the Quæstors, Ædiles, Prætors, and Consuls Rome had known, none had been better, none honester, none more patriotic. There had come up suddenly in those days a man imbued with the unwonted idea that it behooved him to do his duty to the State according to the best of his lights—no Cincinnatus, no Decius, no Camillus, no Scipio, no pretentious follower of those half-mythic heroes, no demigod struggling to walk across

the stage of life enveloped in his toga and resolved to impose on all eyes by the assumption of a divine dignity, but one who at every turn was conscious of his human duty, and anxious to do it to the best of his human ability. He did it; and we have to acknowledge that the conceit of doing it overpowered him. He mistook the feeling of people around him, thinking that they too would be carried away by their admiration of his conduct. Up to the day on which he descended from his Consul's seat duty was paramount with him. Then gradually there came upon him the conviction that duty, though it had been paramount with him, did not weigh so very much with others. He had been lavish in his worship of Pompey, thinking that Pompey, whom he had believed in his youth to be the best of citizens, would of all men be the truest to the Republic. Pompey had deceived him, but he could not suddenly give up his idol. Gradually we see that there fell upon him a dread that the great Roman Republic was not the perfect institution which he had fancied. In his early days Chrysogonus had been base, and Verres, and Oppianicus, and Catiline; but still, to his idea, the body of the Roman Republic had been sound. But when he had gone out from his Consulship, with resolves strung too high that he would remain at Rome, despising provinces and plunder, and be as it were a special providence to the Republic, gradually he fell from his high purpose, finding that there were no Romans such as he had conceived them to be. Then he fell away and became the man who could condescend to waste his unequalled intellect in attacking Piso, in praising himself, and in defending Milo. The glory of his active life was over when his Consulship was done—the glory was over, with the exception of that to come from his final struggle with Antony—but the work by which his immortality was to be achieved was yet before him. I think that after defending Milo he must have acknowledged to himself that all partisan fighting in Rome was mean, ignoble, and hollow. With the Senate-house and its archives burnt as a funeral pile for Clodius, and the Forum in which he had to plead lined with soldiers who stopped him by their clang of arms instead of protecting him in his speech, it must have been acknowledged by Cicero that the old Republic was dead, past all hope of resurrection. He had said so often to Atticus; but men say words in the despondency of the moment which they do not wish to have accepted as their established conviction. In such humor Cicero had written to his friend; but now it must have occurred to him that his petulant expressions were becoming only too true. When instigating Curio to canvass for Milo, and defending Milo as

though it had been a good thing for a Roman nobleman to travel in the neighborhood of the city with an army at his heels, he must have ceased to believe even in himself as a Roman statesman.

In the oration which we possess—which we must teach ourselves to regard as altogether different from that which Cicero had been able to pronounce among Pompey's soldiers and the Clodian rabble—the reader is astonished by the magnificence of the language in which a case so bad in itself could be enveloped, and is made to feel that had he been on the jury, and had such an address been made to him, he would certainly have voted for an acquittal. The guilt or innocence of Milo as to the murder really turned on the point whether he did or did not direct that Clodius should be dragged out of the tavern and slain; but here in this oration three points are put forward, in each of which it was within the scope of the orator to make the jury believe that Clodius had in truth prepared an ambushade, that Clodius was of all Romans the worst, and that Milo was loyal and true, and, in spite of a certain fierceness of disposition, a good citizen at heart. We agree with Milo, who declared, when banished, that he would never have been able to enjoy the fish of Marseilles had Cicero spoken in the Forum the speech which he afterward composed.

"I would not remind you," he says, "of Milo's Tribuneship, nor of all his service to the State, unless I could make plain to you as daylight the ambush which on that day was laid for him by his enemy. I will not pray you to forgive a crime simply because Milo has been a good citizen; nor, because the death of Clodius has been a blessing to us all, will I therefore ask you to regard it as a deed worthy of praise. But if the fact of the ambush be absolutely made evident, then I beseech you at any rate to grant that a man may lawfully defend himself from the arrogance and from the arms of his enemies."⁵⁷ From this may be seen the nature of the arguments used. For the language the reader must turn to the original. That it will be worth his while to do so he has the evidence of all critics—especially that of Milo when he was eating sardines in his exile, and of Quintilian when he was preparing his lessons on rhetoric. It seems that Cicero had been twitted with using something of a dominating tyranny in the Senate—which would hardly have been true, as the prevailing influence of the moment was that of Pompey—but he throws aside the insinuation very grandly. "Call it tyranny if you please—if you think it that, rather than some little authority which

has grown from my services to the State, or some favor among good men because of my rank. Call it what you will, while I am able to use it for the defence of the good against the violence of the evil-minded."⁵⁸ Then he describes the fashion in which these two men travelled on the occasion—the fashion of travelling as it suited him to describe it. "If you did not hear the details of the story, but could see simply a picture of all that occurred, would it not appear which of them had planned the attack, which of them was ignorant of all evil? One of them was seated in his carriage, clad in his cloak, and with his wife beside him. His garments, his clients, his companions all show how little prepared he was for fighting. Then, as to the other, why was he leaving his country-house so suddenly? Why should he do this so late in the evening? Why did he travel so slowly at this time of the year? He was going, he says, to Pompey's villa. Not that he might see Pompey, because he knew that Pompey was at Alsium. Did he want to see the villa? He had been there a thousand times. Why all this delay, and turning backward and forward? Because he would not leave the spot till Milo had come up. And now compare this ruffian's mode of travelling with that of Milo. It has been the constant custom with Clodius to have his wife with him, but now she was not there. He has always been in a carriage, but now he was on horseback. His young Greek sybarites have ever been with him, even when he went as far as Tuscany; on this occasion there were no such trifles in his company. Milo, with whom such companions were not usual, had his wife's singing-boys with him and a bevy of female slaves. Clodius, who usually never moved without a crowd of prostitutes at his heels, now had no one with him but men picked for this work in hand."⁵⁹ What a picture we have here of the manner in which noble Romans were wont to move about the city and the suburbs! We may imagine that the singing-boys of Milo's wife were quite as bad as the Greek attendants in whom Clodius usually rejoiced. Then he asks a question as to Pompey full of beautiful irony. If Pompey could bring back Clodius from the dead—Pompey, who is so fond of him; Pompey, who is so powerful, so fortunate, so capable of all things; Pompey, who would be so glad to do it because of his love for the man—do you not know that on behalf of the Republic he would leave him down among the ghosts where he is?⁶⁰ There is a delightful touch of satire in this when we remember how odious Clodius had been to Pompey in days not long gone by, and how insolent.

The oration is ended by histrionic effects in language which would have been marvellous had they ever been spoken, but which seem to be incredible to us when we know that they were arranged for publication when the affair was over. "O me wretched! O me unhappy!"⁶¹ But these attempts at translation are all vain. The student who wishes to understand what may be the effect of Latin words thrown into this choicest form should read the Milo.

We have very few letters from Cicero in this year—four only, I think, and they are of no special moment. In one of them he recommends Avianus to Titus Titius, a lieutenant then serving under Pompey.⁶² In this he is very anxious to induce Titius to let Avianus know all the good things that Cicero had said of him. In our times we sometimes send our letters of introduction open by the hands of the person introduced, so that he may himself read his own praise; but the Romans did not scruple to ask that this favor might be done for them. "Do me this favor, Titius, of being kind to Avianus; but do me also the greater favor of letting Avianus know that I have asked you." What Cicero did to Titius other noble Romans did in their communications with their friends in the provinces. In another letter to Marius he expresses his great joy at the condemnation of that Munatius Plancus who had been Tribune when Clodius was killed. Plancus had harangued the people, exciting them against Milo and against Cicero, and had led to the burning of the Senate-house and of the temple next door. For this Plancus could not be accused during his year of office, but he had been put upon his trial when that year was over. Pompey had done his best to save him, but in vain; and Cicero rejoices not only that the Tribune who had opposed him should be punished, but that Pompey should have been beaten, which he attributes altogether to the favor shown toward himself by the jury.⁶³ He is aroused to true exultation that there should have been men on the bench who, having been chosen by Pompey in order that they might acquit this man, had dared to condemn him. Cicero had himself spoken against Plancus on the occasion. Sextus Clodius, who had been foremost among the rioters, was also condemned.

B.C. 52, ætat. 55. This was the year in which Cæsar was so nearly conquered by the Gauls at Gergovia, and in which Vercingetorix, having shut himself up in Alesia, was overcome at last by the cruel strategy of the Romans. The brave Gaul, who had done his best to defend his country and had carried himself to the last with a fine gallantry, was kept by his conqueror six years in chains and then strangled amid the glories of that conqueror's triumph, a signal instance of the mercy which has been attributed to Cæsar as his special virtue. In this year, too, Cicero's dialogues with Atticus, *De Legibus*, were written. He seems to have disturbed his labors in the Forum with no other work.

CHAPTER IV.

CILICIA.

B.C. 51, ætat. 56. We cannot but think that at this time the return of Cæsar was greatly feared at Rome by the party in the State to which Cicero belonged; and this party must now be understood as including Pompey. Pompey had been nominally Proconsul in Spain since the year of his second Consulship, conjointly with Crassus, B.C. 55, but had remained in Rome and had taken upon himself the management of Roman affairs, considering himself to be the master of the irregular powers which the Triumvirate had created; and of this party was also Cicero, with Cato, Bibulus, Brutus, and all those who were proud to call themselves "optimates." They were now presumed to be desirous to maintain the old republican form of government, and were anxious with more or less sincerity according to the character of the men. Cato and Brutus were thoroughly in earnest, not seeing, however, that the old form might be utterly devoid of the old spirit. Pompey was disposed to take the same direction, thinking that all must be well in Rome as long as he was possessed of high office, grand names, and the appanages of Dictatorship. Cicero, too, was anxious, loyally anxious, but anxious without confidence. Something might perhaps be saved if these optimates could be aroused to some idea of their duty by the exercise of eloquence such as his own.

I will quote a few words from Mr. Froude's *Cæsar*: "If Cæsar came to Rome as Consul, the Senate knew too well what it might expect;" and then he adds, "Cicero had for some time seen what was coming."⁶⁴ As to these assertions I quite agree with Mr. Froude; but I think that he has read wrongly both the history of the time and the character of the man when he goes on to state that "Cicero preferred characteristically to be out of the way at the moment when he expected that the storm should break, and had accepted the government of Cilicia and Cyprus." All the known details of Cicero's life up to the period of his government of Cilicia, during his government, and after his return from that province, prove that he was characteristically wedded to a life in Rome. This he declared by his distaste to that employment and his impatience of return while he was absent. Nothing, I should say, could be more certain than that he went to Cilicia in obedience to new legal enactments which he could not avoid, but which, as they acted upon himself, were odious to him. Mr. Froude tells us that he held the government but for two years.⁶⁵ The period of these provincial governments had of late much varied. The acknowledged legal duration was for one year. They had been stretched by the governing party to three, as in the case of Verres in Sicily; to five, as with Pompey for his Spanish government; to ten for Cæsar in Gaul. This had been done with the view of increasing the opportunities for plunder and power, but had been efficacious of good in enabling governors to carry out work for which one year would not have sufficed. It may be a question whether Cicero as Proconsul in Cilicia deserved blame for curtailing the period of his services to the Empire, or praise for abstaining from plunder and power; but the fact is that he remained in his province not two years but exactly one;⁶⁶ and that he escaped from it with all the alacrity which we may presume to be expected by a prisoner when the bars of his jail have been opened for him. Whether we blame him or praise him, we can hardly refrain from feeling that his impatience was grotesque. There certainly was no desire on Cicero's part either to go to Cilicia or to remain there, and of all his feelings that which prompted him never to be far absent from Rome was the most characteristic of the man.

Among various laws which Pompey had caused to be passed in the previous year, B.C. 52, and which had been enacted with views personal to himself and his own political views, had been one "*de jure magistratum*"—as to

the way in which the magistrates of the Empire should be selected. Among other clauses it contained one which declared that no Prætor and no Consul should succeed to a province till he had been five years out of office. It would be useless here to point out how absolutely subversive of the old system of the Republic this new law would have been, had the new law and the old system attempted to live together. The Proprætor would have been forced to abandon his aspirations either for the province or for the Consulship, and no consular governor would have been eligible for a province till after his fiftieth year. But at this time Pompey was both consul and governor, and Cæsar was governor for ten years with special exemption from another clause in the law which would otherwise have forbidden him to stand again for the Consulship during his absence.⁶⁷ The law was wanted probably only for the moment; but it had the effect of forcing Cicero out of Rome. As there would naturally come from it a dearth of candidates for the provinces it was further decreed by the Senate that the ex-Prætors and ex-Consuls who had not yet served as governors should now go forth and undertake the duties of government. In compliance with this order, and probably as a specially intended consequence of it, Cicero was compelled to go to Cilicia. Mr. Froude has said that "he preferred characteristically to be out of the way." I have here given what I think to be the more probable cause of his undertaking the government of Cilicia.

B.C. 51, ætat. 56. In April of this year Cicero before he started wrote the first of a series of letters which he addressed to Appius Claudius, who was his predecessor in the province. This Appius was the brother of the Publius Clodius whom we have known for the last two or three years as Cicero's pest and persecutor; but he addresses Appius as though they were dear friends: "Since it has come to pass, in opposition to all my wishes and to my expectations, that I must take in hand the government of a province, I have this one consolation in my various troubles—that no better friend to yourself than I am could follow you, and that I could take up the government from the hands of none more disposed to make the business pleasant to me than you will be."⁶⁸ And then he goes on: "You perceive that, in accordance with the decree of the Senate, the province has to be occupied." His next letter on the subject was written to Atticus while he was still in Italy, but when he had started on his journey. "In your farewell to me," he says, "I have seen the nature of your love to me. I know well what

is my own for you. It must, then, be your peculiar care to see lest by any new arrangement this parting of ours should be prolonged beyond one year."⁶⁹ Then he goes on to tell the story of a scene that had occurred at Arcanum, a house belonging to his brother Quintus, at which he had stopped on the road for a family farewell. Pomponia was there, the wife of Quintus and the sister to Atticus. There were a few words between the husband and the wife as to the giving of the invitation for the occasion, in which the lady behaved with much Christian perversity of temper. "Alas," says Quintus to his brother, "you see what it is that I have to suffer every day!" Knowing as we all do how great were the powers of the Roman paterfamilias, and how little woman's rights had been ventilated in those days, we should have thought that an ex-Prætor might have managed his home more comfortably; but ladies, no doubt, have had the capacity to make themselves disagreeable in all ages.

I doubt whether we have any testimony whatever as to Cicero's provincial government, except that which comes from himself and which is confined to the letters written by him at the time.⁷⁰ Nevertheless, we have a clear record of his doings, so full and satisfactory are the letters which he then wrote. The truth of his account of himself has never been questioned. He draws a picture of his own integrity, his own humanity, and his own power of administration which is the more astonishing, because we cannot but compare it with the pictures which we have from the same hand of the rapacity, the cruelty, and the tyranny of other governors. We have gone on learning from his speeches and his letters that these were habitual plunderers, tyrants, and malefactors, till we are taught to acknowledge that, in the low condition to which Roman nature had fallen, it was useless to expect any other conduct from a Roman governor; and then he gives us the account of how a man did govern, when, as by a miracle, a governor had been found honest, clear-headed, sympathetic, and benevolent. That man was himself; and he gives this account of himself, as it were, without a blush! He tells the story of himself, not as though it was remarkable! That other governors should grind the bones of their subjects to make bread of them, and draw the blood from their veins for drink; but that Cicero should not condescend to take even the normal tribute when willingly offered, seems to Cicero to have been only what the world had a right to expect from him! A wonderful testimony is this as to the man's character; but

surely the universal belief in his own account of his own governorship is more wonderful. "The conduct of Cicero in his command was meritorious," says De Quincey. "His short career as Proconsul in Cilicia had procured for him well-merited honor," says Dean Merivale.⁷¹ "He had managed his province well; no one ever suspected Cicero of being corrupt or unjust," says Mr. Froude, who had, however, said (some pages before) that Cicero was "thinking as usual of himself first, and his duty afterward."⁷² Dio Cassius, who is never tired of telling disagreeable stories of Cicero's life, says not a word of his Cilician government, from which we may, at any rate, argue that no stories detrimental to Cicero as a Proconsul had come in the way of Dio Cassius. I have confirmed what I have said as to this episode in Cicero's life by the corroborating testimony of writers who have not been generally favorable in their views of his character. Nevertheless, we have no testimony but his own as to what Cicero did in Cilicia.⁷³

It has never occurred to any reader of Cicero's letters to doubt a line in which he has spoken directly of his own conduct. His letters have often been used against himself, but in a different manner. He has been judged to give true testimony against himself, but not false testimony in his own favor. His own record has been taken sometimes as meaning what it has not meant—and sometimes as implying much more than the writer intended. A word which has required for its elucidation an insight into the humor of the man has been read amiss, or some trembling admissions to a friend of shortcoming in the purpose of the moment has been presumed to refer to a continuity of weakness. He has been injured, not by having his own words as to himself discredited, but by having them too well credited where they have been misunderstood. It is at any rate the fact that his own account of his own proconsular doings has been accepted in full, and that the present reader may be encouraged to believe what extracts I may give to him by the fact that all other readers before him have believed them.

From his villa at Cumæ on his journey he wrote to Atticus in high spirits. Hortensius had been to see him—his old rival, his old predecessor in the glory of the Forum—Hortensius, whom he was fated never to see again. His only request to Hortensius had been that he should assist in taking care that he, Cicero, should not be required to stay above one year in his province. Atticus is to help him also; and another friend, Furnius, who may probably

be the Tribune for the next year, has been canvassed for the same object. In a further letter from Beneventum he alludes to a third marriage for his daughter Tullia, but seems to be aware that, as he is leaving Italy, he cannot interfere in that matter himself. He writes again from Venusia, saying that he purports to see Pompey at Tarentum before he starts, and gives special instructions to Atticus as to the payment of a debt which is due by him to Cæsar. He has borrowed money of Cæsar, and is specially anxious that the debt should be settled. In another letter from Tarentum he presses the same matter. He is anxious to be relieved from the obligation.⁷⁴

From Athens he wrote again to his friend a letter which is chiefly remarkable as telling us something of the quarrel between Marcus Claudius Marcellus, who was one of the Consuls for the year, and Cæsar, who was still absent in Gaul. This Marcellus, and others of his family who succeeded him in his office, were hotly opposed to Cæsar, belonging to that party of the State to which Cicero was attached, and to which Pompey was returning.⁷⁵ It seems to have been the desire of the Consul not only to injure but to insult Cæsar. He had endeavored to get a decree of the Senate for recalling Cæsar at once, but had succeeded only in having his proposition postponed for consideration in the following year—when Cæsar would naturally return. But to show how little was his regard to Cæsar, he caused to be flogged in Rome a citizen from one of those towns of Cisalpine Gaul to which Cæsar had assumed to give the privilege of Roman citizenship. The man was present as a delegate from his town, Novocomum⁷⁶—the present Como—in furtherance of the colony's claims, and the Consul had the man flogged to show thereby that he was not a Roman. Marcellus was punished for his insolence by banishment, inflicted by Cæsar when Cæsar was powerful. We shall learn before long how Cicero made an oration in his favor; but, in the letter written from Athens, he blames Marcellus much for flogging the man.⁷⁷ "Fight in my behalf," he says, in the course of this letter; "for if my government be prolonged, I shall fail and become mean." The idea of absence from Rome is intolerable to him. From Athens also he wrote to his young friend Cælius, from whom he had requested information as to what was going on in Rome. But Cælius has to be again instructed as to the nature of the subjects which are to be regarded as interesting. "What!—do you think that I have asked you to send me stories of gladiators, law-court adjournments, and the pilferings of Christus—trash that no one would

think of mentioning to me if I were in Rome?"⁷⁸ But he does not finish his letter to Cælius without begging Cælius to assist in bringing about his speedy recall. Cælius troubles him much afterward by renewed requests for Cilician panthers wanted for Ædilian shows. Cicero becomes very sea-sick on his journey, and then reaches Ephesus, in Asia Minor, dating his arrival there on the five hundred and sixtieth day from the battle of Bovilla, showing how much the contest as to Milo still clung to his thoughts.⁷⁹ Ephesus was not in his province, but at Ephesus all the magistrates came out to do him honor, as though he had come among them as their governor. "Now has arrived," he says, "the time to justify all those declarations which I have made as to my own conduct; but I trust I can practise the lessons which I have learned from you." Atticus, in his full admiration of his friend's character, had doubtless said much to encourage and to instigate the virtue which it was Cicero's purpose to employ. We have none of the words ever written by Atticus to Cicero, but we have light enough to show us that the one friend was keenly alive to the honor of the other, and thoroughly appreciated its beauty. "Do not let me be more than a year away," he exclaims; "do not let even another month be added."⁸⁰ Then there is a letter from Cælius praying for panthers.⁸¹ In passing through the province of Asia to his own province, he declares that the people everywhere receive him well. "My coming," he says, "has cost no man a shilling."⁸² His whole staff has now joined him except one Tullius, whom he speaks of as a friend of Atticus, but afterward tells us he had come to him from Titinius. Then he again enjoins Atticus to have that money paid to Cæsar. From Tralles, still in the province of Asia, he writes to Appius, the outgoing governor, a letter full of courtesies, and expressing an anxious desire for a meeting. He had offered before to go by any route which might suit Appius, but Appius, as appears afterward, was anxious for anything rather than to encounter the new governor within the province he was leaving.⁸³

On 31st July he reached Laodicea, within his own boundaries, having started on his journey on 10th May, and found all people glad to see him; but the little details of his office harass him sadly. "The action of my mind, which you know so well, cannot find space enough. All work worthy of my industry is at an end. I have to preside at Laodicea while some Plotius is giving judgment at Rome. * * * And then am I not regretting at every

moment the life of Rome—the Forum, the city itself, my own house? Am I not always regretting you? I will endeavor to bear it for a year; but if it be prolonged, then it will be all over with me. * * * You ask me how I am getting on. I am spending a fortune in carrying out this grand advice of yours. I like it hugely; but when the time comes for paying you your debts I shall have to renew the bill. * * * To make me do such work as this is putting a saddle upon a cow"—cutting a block with a razor, as we should say—"clearly I am not made for it; but I will bear it, so that it be only for one year."⁸⁴

From Laodicea, a town in Phrygia, he went west to Synnada. His province, known as Cilicia, contained the districts named on the map of Asia Minor as Phrygia, Pisidia, Pamphylia, part of Cappadocia, Cilicia, and the island of Cyprus. He soon found that his predecessors had ruined the people. "Know that I have come into a province utterly and forever destroyed," he says to Atticus.⁸⁵ "We hear only of taxes that cannot be paid, of men's chattels sold on all sides, of the groans from the cities, of lamentations, of horrors such as some wild beast might have produced rather than a human being. There is no room for question. Every man is tired of his life; and yet some relief is given now, because of me, and by my officers, and by my lieutenants. No expense is imposed on any one. We do not take even the hay which is allowed by the Julian law—not even the wood. Four beds to lie on is all we accept, and a roof over our heads. In many places not even that, for we live in our tents. Enormous crowds therefore come to us, and return, as it were, to life through the justice and moderation of your Cicero. Appius, when he knew that I was come, ran away to Tarsus, the farthest point of the province." What a picture we have here of the state of a Roman dependency under a normal Roman governor, and of the good which a man could do who was able to abstain from plunder! In his next letter his pride expresses itself so loudly that we have to remember that this man, after all, is writing only his own secret thoughts to his bosom friend. "If I can get away from this quickly, the honors which will accrue to me from my justice will be all the greater, as happened to Scævola, who was governor in Asia only for nine months."⁸⁶ Then again he declares how Appius had escaped into the farthest corner of the province—to Tarsus—when he knew that Cicero was coming.

He writes again to Appius, complaining. "When I compare my conduct to yours," he says, "I own that I much prefer my own."⁸⁷ He had taken every pains to meet Appius in a manner convenient to him, but had been deceived on every side. Appius had, in a way unusual among Roman governors, carried on his authority in remote parts of the province, although he had known of his successor's arrival. Cicero assures him that he is quite indifferent to this. If Appius will relieve him of one month's labor out of the twelve he will be delighted. But why has Appius taken away three of the fullest cohorts, seeing that in the entire province the number of soldiers left has been so small? But he assures Appius that, as he makes his journey, neither good nor bad shall hear evil spoken by him of his predecessor. "But as for you, you seem to have given to the dishonest reasons for thinking badly of me." Then he describes the exact course he means to take in his further journey, thus giving Appius full facility for avoiding him.

From Cybistra, in Cappadocia, he writes official letters to Caius Marcellus, who had been just chosen Consul, the brother of Marcus the existing Consul; to an older Caius Marcellus, who was their father, a colleague of his own in the College of Augurs, and to Marcus the existing Consul, with his congratulations, also to Æmilius Paulus, who had also been elected Consul for the next year. He writes, also, a despatch to the Consuls, to the Prætors, to the Tribunes, and to the Senate, giving them a statement as to affairs in the province. These are interesting, rather as showing the way in which these things were done, than by their own details. When he reaches Cilicia proper he writes them another despatch, telling them that the Parthians had come across the Euphrates. He writes as Wellington may have done from Torres Vedras. He bids them look after the safety of their Eastern dominions. Though they are too late in doing this, yet better now than never.⁸⁸ "You know," he says, "with what sort of an army you have supported me here; and you know also that I have undertaken this duty not in blind folly, but because in respect for the Republic I have not liked to refuse. * * * As for our allies here in the province, because our rule here has been so severe and injurious, they are either too weak to help us, or so embittered against us that we dare not trust them."

Then there is a long letter to Appius,⁸⁹ respecting the embassy which was to be sent from the province to Rome, to carry the praises of the departing

governor and declare his excellence as a Proconsul! This was quite the usual thing to do! The worse the governor the more necessary the embassy; and such was the terror inspired even by a departing Roman, and such the servility of the allies—even of those who were about to escape from him—that these embassies were a matter of course. There had been a Sicilian embassy to praise Verres. Appius had complained as though Cicero had impeded this legation by restricting the amount to be allowed for its expenses. He rebukes Appius for bringing the charge against him.

The series of letters written this year by Cælius to Cicero is very interesting as giving us a specimen of continued correspondence other than Ciceronian. We have among the eight hundred and eighty-five letters ten or twelve from Brutus, if those attributed to him were really written by him; ten or twelve from Decimus Brutus, and an equal number from Plancus; but these were written in the stirring moments of the last struggle, and are official or military rather than familiar. We have a few from Quintus, but not of special interest unless we are to consider that treatise on the duties of a candidate as a letter. But these from Cælius to his older friend are genuine and natural as those from Cicero himself. There are seventeen. They are scattered over three or four years, but most of them refer to the period of Cicero's provincial government.

The marvel to me is that Cælius should have adopted a style so near akin to that of his master in literature. Scholars who have studied the words can probably tell us of deficiencies in language; but the easy, graphic tone is to my ear Ciceronian. Tiro, who was slave, secretary, freedman, and then literary executor, may have had the handling of these letters, and have done something toward producing their literary excellence. The subjects selected were not always good, and must occasionally have produced in Cicero's own mind a repetition of the reprimand which he once expressed as to the gladiatorial shows and law-court adjournments; but Cælius does communicate much of the political news from Rome. In one letter, written in October of this year, he declares what the Senate has decreed as to the recall of Cæsar from Gaul, and gives the words of the enactments made, with the names subscribed to them of the promoters—and also the names of the Tribunes who had endeavored to oppose them.⁹⁰ The purport of these decrees I have mentioned before. The object was to recall Cæsar, and the effect was to postpone any such recall till it would mean nothing; but

Cælius specially declares that the intention of recalling Cæsar was agreeable to Pompey, whereby we may know that the pact of the Triumvirate was already at an end. In another letter he speaks of the coming of the Parthians, and of Cicero's inability to fight with them because of the inadequate number of soldiers intrusted to him. Had there been a real Roman army, then Cælius would have been afraid, he says, for his friend's life. As it is, he fears only for his reputation, lest men should speak ill of him for not fighting, when to fight was beyond his power.⁹¹ The language here is so pretty that I am tempted to think that Tiro must have had a hand in it. At Rome, we must remember, the tidings as to Crassus were as yet uncertain. We cannot, however, doubt that Cælius was in truth attached to Cicero.

But Cicero was forced to fight, not altogether unwillingly—not with the Parthians, but with tribes which were revolting from Roman authority because of the Parthian success. "It has turned out as you wished it," he says to Cælius—"a job just sufficient to give me a small coronet of laurel." Hearing that men had risen in the Taurus range of mountains, which divided his province from that of Syria, in which Bibulus was now governor, he had taken such an army as he was able to collect to the Amanus, a mountain belonging to that range, and was now writing from his camp at Pindenissum, a place beyond his own province. Joking at his own soldiering, he tells Cælius that he had astonished those around him by his prowess. "Is this he whom we used to know in the city? Is this our talkative Senator? You can understand the things they said."⁹² * * * When I got to the Amanus I was glad enough to find our friend Cassius had beaten back the real Parthians from Antioch." But Cicero claims to have done some gallant things: "I have harassed those men of Amanus who are always troubling us. Many I have killed; some I have taken; the rest are dispersed. I came suddenly upon their strongholds, and have got possession of them. I was called 'Imperator' at the river Issus." It is hardly necessary to explain, yet once again, that this title belonged properly to no commander till it had been accorded to him by his own soldiers on the field of battle.⁹³ He reminds Cælius that it was on the Issus that Alexander had conquered Darius. Then he had sat down before Pindenissum with all the machinery of a siege—with the turrets, covered ways, and ramparts. He had not as yet quite taken the town. When he had done so, he would send home his official

account of it all; but the Parthians may yet come, and there may be danger. "Therefore, O my Rufus"—he was Cælius Rufus—"see that I am not left here, lest, as you suspect, things should go badly with me." There is a mixture in all this of earnestness and of drollery, of boasting and of laughing at what he was doing, which is inimitable in its reality. His next letter is to his other young friend, Curio, who has just been elected Tribune. He gives much advice to Curio, who certainly always needed it.⁹⁴ He carries on the joke when he tells Atticus that the "people of Pindenissum have surrendered." "Who the mischief are these Pindenissians? you will say. I have not even heard the name before. What would you have? I cannot make an Ætolia out of Cilicia. With such an army as this do you expect me to do things like a Macedonicus?"⁹⁵ * * * I had my camp on the Issus, where Alexander had his—a better soldier no doubt than you or I. I really have made a name for myself in Syria. Then up comes Bibulus, determined to be as good as I am; but he loses his whole cohort." The failure made by Bibulus at soldiering is quite as much to him as his own success. Then he goes back to Laodicea, leaving the army in winter-quarters, under the command of his brother Quintus.

But his heart is truly in other matters, and he bursts out, in the same letter, with enthusiastic praise of the line of conduct which Atticus has laid down for him: "But that which is more to me than anything is that I should live so that even that fellow Cato cannot find fault with me. May I die, if it could be done better. Nor do I take praise for it as though I was doing something distasteful; I never was so happy as in practising this moderation. The thing itself is better to me even than the reputation of it. What would you have me say? It was worth my while to be enabled thus to try myself, so that I might know myself as to what I could do."

Then there is a long letter to Cato in which he repeats the story of his grand doings at Pindenissum. The reader will be sure that a letter to Cato cannot be sincere and pleasant as are those to Atticus and Cælius. "If there be one man far removed from the vulgar love of praise, it is I," he says to Cato.⁹⁶ He tells Cato that they two are alike in all things. They two only have succeeded in carrying the true ancient philosophy into the practice of the Forum. Never surely were two men more unlike than the stiff-necked Cato and the versatile Cicero.

B.C. 50, ætat. 57. Lucius Æmilius Paullus and C. Clodius Marcellus were Consuls for the next year. Cicero writes to both of them with tenders of friendship; but from both of them he asks that they should take care to have a decree of the Senate passed praising his doings in Cilicia.⁹⁷ With us, too, a returning governor is anxious enough for a good word from the Prime-minister; but he does not ask for it so openly. The next letter from Cælius tells him that Appius has been accused as to malpractices in his government, and that Pompey is in favor of Appius. Curio has gone over to Cæsar. But the important subject is the last handled: "It will be mean in you if I should have no Greek panthers."⁹⁸ The next refers to the marriages and divorces of certain ladies, and ends with an anecdote told as to a gentleman with just such ill-natured wit as is common in London. No one could have suspected Ocella of looking after his neighbor's wife unless he had been detected thrice in the fact.⁹⁹

From Laodicea he answers a querulous letter which his predecessor had written, complaining, among other things, that Cicero had failed to show him personal respect. He proves that he had not done so, and then rises to a strain of indignation. "Do you think that your grand old names will affect me who, even before I had become great in the service of my country, knew how to distinguish between titles and the men who bore them?"¹⁰⁰

The next letter to Appius is full of flattery, and asking for favors, but it begins with a sharp reproof. "Now at last I have received an epistle worthy of Appius Claudius. The sight of Rome has restored you to your good-humor. Those I got from you in your journey were such that I could not read them without displeasure."¹⁰¹

In February Cicero wrote a letter to Atticus which is, I think, more expressive in describing the mind of the man than any other which we have from him. In it is commenced the telling of a story respecting Brutus—the Brutus we all know so well—and one Scaptius, of whom no one would have heard but for this story, which, as it deeply affects the character of Cicero, must occupy a page or two in our narrative; but I must first refer to his own account of his own government as again given here. Nothing was ever so wonderful to the inhabitants of a province as that they should not have been put to a shilling of expense since he had entered it. Not a penny

had been taken on his own behalf or on that of the Republic by any belonging to him, except on one day by one Tullius, and by him indeed under cover of the law. This dirty fellow was a follower with whom Titinius had furnished him. When he was passing from Tarsus back into the centre of his province wondering crowds came out to him, the people not understanding how it had been that no letters had been sent to them exacting money, and that none of his staff had been quartered on them. In former years during the winter months they had groaned under exactions. Municipalities with money at their command had paid large sums to save themselves from the quartering of soldiers on them. The island of Cyprus, which on a former occasion had been made to pay nearly £50,000 on this head,¹⁰² had been asked for nothing by him. He had refused to have any honors paid to him in return for this conduct. He had prohibited the erection of statues, shrines, and bronze chariots in his name—compliments to Roman generals which had become common. The harvest that year was bad; but so fully convinced were the people of his honest dealing, that they who had saved up corn—the regraters—brought it freely into market at his coming. As some scourge from hell must have been the presence of such governors as Appius and his predecessors among a people timid but industrious like these Asiatic Greeks. Like an unknown, unexpected blessing, direct from heaven, must have been the coming of a Cicero.

Now I will tell the story of Brutus and Scaptius and their money—premiseing that it has been told by Mr. Forsyth with great accuracy and studied fairness. Indeed, there is not a line in Mr. Forsyth's volume which is not governed by a spirit of justice. He, having thought that Cicero had been too highly praised by Middleton, and too harshly handled by subsequent critics, has apparently written his book with the object of setting right these exaggerations. But in his comments on this matter of Brutus and Scaptius he seems to me not to have considered the difference in that standard of honor and honesty which governs himself, and that which prevailed in the time of Cicero. Not seeing, as I think, how impossible it was for a Roman governor to have achieved that impartiality of justice with which a long course of fortunate training has imbued an English judge, he accuses Cicero of "trifling with equity." The marvel to me is that one man such as Cicero—a man single in his purpose—should have been able to raise his own ideas of justice so high above the level prevailing with the best of those around

him. It had become the nature of a Roman aristocrat to pillage an ally till hardly the skin should be left to cover the man's bones. Out of this nature Cicero elevated himself completely. In his own conduct he was free altogether from stain. The question here arose how far he could dare to go on offending the instincts, the habits, the nature, of other noble Romans, in protecting from their rapacity the poor subjects who were temporarily beneath his charge. It is easy for a judge to stand indifferent between a great man and a little when the feelings of the world around him are in favor of such impartiality; but it must have been hard enough to do so when such conduct seemed to the noblest Romans of the day to be monstrous, fanatical, and pretentious.

In this case Brutus, our old friend whom all English readers have so much admired because he dared to tell his brother-in-law Cassius that he was

"Much condemned to have an itching palm,"

appears before us in the guise of an usurious money-lender. It would be hard in the history of usury to come across the well-ascertained details of a more grasping, griping usurer. His practice had been of the kind which we may have been accustomed to hear rebuked with the scathing indignation of our just judges. But yet Brutus was accounted one of the noblest Romans of the day, only second, if second, to Cato in general virtue and philosophy. In this trade of money-lending the Roman nobleman had found no more lucrative business than that of dealing with the municipalities of the allies. The cities were peopled by a money-making, commercial race, but they were subjected to the grinding impositions of their governors. Under this affliction they were constantly driven to borrow money, and found the capitalists who supplied it among the class by whom they were persecuted and pillaged. A Brutus lent the money which an Appius exacted—and did not scruple to do so at forty-eight per cent., although twelve per cent. per annum, or one per cent. per month, was the rate of interest permitted by law.

But a noble Roman such as Brutus did not carry on his business of this nature altogether in his own name. Brutus dealt with the municipality of Salamis in the island of Cyprus, and there had two agents, named Scaptius and Matinius, whom he specially recommended to Cicero as creditors of the city of Salamis, praying Cicero, as governor of the province, to assist these

men in obtaining the payment of their debts.¹⁰³ This was quite usual, but it was only late in the transaction that Cicero became aware that the man really looking for his money was the noble Roman who gave the recommendation. Cicero's letter tells us that Scaptius came to him, and that he promised that for Brutus's sake he would take care that the people of Salamis should pay their debt.¹⁰⁴ Scaptius thanked him, and asked for an official position in Salamis which would have given him the power of compelling the payment by force. Cicero refused, explaining that he had determined to give no such offices in his province to persons engaged in trade. He had refused such requests already—even to Pompey and to Torquatus. Appius had given the same man a military command in Salamis—no doubt also at the instance of Brutus—and the people of Salamis had been grievously harassed. Cicero had heard of this, and had recalled the man from Cyprus. Of this Scaptius had complained bitterly, and at last he and delegates from Salamis who were willing to pay their debt, if they could only do it without too great extortion, went together to Cicero who was then at Tarsus, in the most remote part of his province. Here he was called upon to adjudicate in the matter, Scaptius trusting to the influence which Brutus would naturally have with his friend the governor, and the men of Salamis to the reputation for justice which Cicero had already created for himself in Cilicia. The reader must also be made to understand that Cicero had been entreated by Atticus to oblige Brutus, who was specially the friend of Atticus. He must remember also that this narrative is sent by Cicero to Atticus, who exhorted his correspondent, even with tears in his eyes, to be true to his honor in the government of his province.¹⁰⁵ He is appealing from Atticus to Atticus. I am bound to oblige you—but how can I do so in opposition to your own lessons? That is his argument to Atticus.

Then there arises a question as to the amount of money due. The principal is not in dispute, but the interest. The money has been manifestly lent on an understanding that four per cent. per month, or forty-eight per cent. per annum, should be charged on it. But there has been a law passed that higher interest than one per cent. per month, or twelve per cent. per annum, shall not be legal. There has, however, been a counter decree made in regard to these very Salaminians, and made apparently at the instigation of Brutus, saying that any contract with them shall be held in force, notwithstanding

the law. But Cicero again has made a decree that he will authorize no exaction above twelve per cent. in his province. The exact condition of the legal claim is less clear to me than to Mr. Forsyth, who has the advantage of being a lawyer. Be that as it may, Cicero decides that twelve per cent. shall be exacted, and orders the Salaminians to pay the amount. To his request they demur, but at last agree to obey, alleging that they are enabled to do so by Cicero's own forbearance to them, Cicero having declined to accept the presents which had been offered to him from the island.¹⁰⁶ They will therefore pay this money in some sort, as they say, out of the governor's own pocket.

But when the sum is fixed, Scaptius, finding that he cannot get it over-reckoned after some fraudulent scheme of his own, declines to receive it. If with the assistance of a friendly governor he cannot do better than that for himself and his employer, things must be going badly with Roman noblemen. But the delegates are now very anxious to pay this money, and offer to deposit it. Scaptius begs that the affair shall go no farther at present, no doubt thinking that he may drive a better bargain with some less rigid future governor. The delegates request to be allowed to place their money as paid in some temple, by doing which they would acquit themselves of all responsibility; but Cicero begs them to abstain. "Impetravi ab Salaminiiis ut silerent," he says. "I shall be grieved, indeed, that Brutus should be angry with me," he writes; "but much more grieved that Brutus should have proved himself to be such as I shall have found him."

Then comes the passage in his letter on the strength of which Mr. Forsyth has condemned Cicero, not without abstract truth in his condemnation: "They, indeed, have consented"—that is the Salaminians—"but what will befall them if some such governor as Paulus should come here? And all this I have done for the sake of Brutus!" Æmilius Paulus was the Consul, and might probably have Cilicia as a province, and would no doubt give over the Salaminians to Brutus and his myrmidons without any compunction. In strictness—with that assurance in the power of law by means of which our judges are enabled to see that their righteous decisions shall be carried out without detriment to themselves—Cicero should have caused the delegates from Salamis instantly to have deposited their money in the temple. Instead of doing so, he had only declared the amount due according to his idea of justice—in opposition to all Romans, even to Atticus—and had then

consented to leave the matter, as for some further appeal. Do we not know how impossible it is for a man to abide strictly by the right, when the strict right is so much in advance of all around him as to appear to other eyes than his own as straitlaced, unpractical, fantastic, and almost inhuman? Brutus wanted his money sorely, and Brutus was becoming a great political power on the same side with Pompey, and Cato, and the other "optimates." Even Atticus was interfering for Brutus. What other Roman governor of whom we have heard would have made a question on the subject? Appius had lent a guard of horse-soldiers to this Scaptius with which he had outraged all humanity in Cyprus—had caused the councillors of the city to be shut up till they would come to obedience, in doing which he had starved five of them to death! Nothing had come of this, such being the way with the Romans in their provinces. Yet Cicero, who had come among these poor wretches as an unheard-of blessing from heaven, is held up to scorn because he "trifled with equity!" Equity with us runs glibly on all fours. With Appius in Cilicia it was utterly unknown. What are we to say of the man who, by the strength of his own conscience and by the splendor of his own intellect, could advance so far out of the darkness of his own age, and bring himself so near to the light of ours!

Let us think for a moment of our own Francis Bacon, a man more like to Cicero than any other that I can remember in history. They were both great lawyers, both statesmen, both men affecting the *omne scibile*, and coming nearer to it than perhaps any other whom we can name; both patriots, true to their conceived idea of government, each having risen from obscure position to great power, to wealth, and to rank; each from his own education and his nature prone to compromise, intimate with human nature, not over-scrupulous either as to others or as to himself. They were men intellectually above those around them, to a height of which neither of them was himself aware. To flattery, to admiration, to friendship, and to love each of them was peculiarly susceptible. But one failed to see that it behooved him, because of his greatness, to abstain from taking what smaller men were grasping; while the other swore to himself from his very outset that he would abstain—and kept the oath which he had sworn. I am one who would fain forgive Bacon for doing what I believe that others did around him; but if I can find a man who never robbed, though all others around him did—in whose heart the "auri sacra fames" had been absolutely quenched, while the

men with whom he had to live were sickening and dying with an unnatural craving—then I seem to have recognized a hero.

Another complaint is made against Cicero as to Ariobarzanes, the King of Cappadocia, and is founded, as are all complaints against Cicero, on Cicero's own telling of the story in question. Why there should have been complaint in this matter I have not been able to discover. Ariobarzanes was one of those Eastern kings who became milch cows to the Roman nobles, and who, in their efforts to satisfy the Roman nobles, could only fleece their own subjects. The power of this king to raise money seems to have been limited to about £8000 a month.¹⁰⁷ Out of this he offered a part to Cicero as the Proconsul who was immediately over him. This Cicero declined, but pressed the king to pay the money to the extortionate Brutus, who was a creditor, and who endeavored to get this money through Cicero. But Pompey also was a creditor, and Pompey's name was more dreadful to the king than that of Brutus. Pompey, therefore, got it all, though we are told that it was not enough to pay him his interest; but Pompey, getting it all, was graciously pleased to be satisfied "Cnæus noster clementer id fert." "Our Cicero puts up with that, and asks no questions about the capital," says Cicero, ironically. Pompey was too wise to kill the goose that laid such golden eggs. Nevertheless, we are told that Cicero, in this case, abused his proconsular authority in favor of Brutus. Cicero effected nothing for Brutus; but, when there was a certain amount of plunder to be divided among the Romans, refused any share for himself. Pompey got it all, but not by Cicero's aid.

There is another long letter, in which Cicero again, for the third time, tells the story of Brutus and Scaptius.¹⁰⁸ I mention it, as he continues to describe his own mode of doing his work. He has been at Laodicea from February to May, deciding questions that had been there brought before him from all parts of his province except Cilicia proper. The cities which had been ground down by debt have been enabled to free themselves, and then to live under their own laws. This he has done by taking nothing from them for his own expenses—not a farthing. It is marvellous to see how the municipalities have sprung again into life under this treatment. "He has been enabled by this to carry on justice without obstruction and without severity. Everybody has been allowed approach to him—a custom which

has been unknown in the provinces. There has been no back-stairs influence. He has walked openly in his own courts, as he used to do when a candidate at home. All this has been grateful to the people, and much esteemed; nor has it been too laborious to himself, as he had learned the way of it in his former life." It was thus that Cicero governed Cilicia.

There are further letters to Appius and Cælius, written from various parts of the province, which cannot fail to displease us because we feel that Cicero is endeavoring to curry favor. He wishes to stand well with those who might otherwise turn against him on his reappearance in Rome. He is afraid lest Appius should be his enemy and lest Pompey should not be his friend. The practice of justice and of virtue would, he knew, have much less effect in Rome than the friendship and enmity of such men. But to Atticus he bursts out into honest passion against Brutus. Brutus had recommended to him one Gavius, whom, to oblige Brutus, he appointed to some office. Gavius was greedy, and insolent when his greed was not satisfied. "You have made me a prefect," said Gavius; "where am I to go for my rations?" Cicero tells him that as he has done no work he will get no pay; whereupon Gavius, quite unaccustomed to such treatment, goes off in a huff. "If Brutus can be stirred by the anger of such a knave as this," he says to Atticus, "you may love him, if you will, yourself; you will not find me a rival for his friendship."¹⁰⁹ Brutus, however, became a favorite with Cicero, because he had devoted himself to literature. In judging these two men we should not lean too heavily on Brutus, because he did no worse than his neighbors. But then, how are we to judge of Cicero?

In the latter months of his government there began a new trouble, in which it is difficult to sympathize with him, because we are unable to produce in our own minds a Roman's estimation of Roman things. With true spirit he had laughed at his own military doings at Pindenissum; but not the less on that account was he anxious to enjoy the glories of a triumph, and to be dragged through the city on a chariot, with military trophies around him, as from time immemorial the Roman conquerors had been dragged when they returned from their victories.

For the old barbaric conquerors this had been fine enough. A display of armor—of helmets, of shields, and of swords—a concourse of chariots, of trumpets, and of slaves, of victims kept for the Tarpeian rock, the spoils and

rapine of battle, the self-asserting glory of the big fighting hero, the pride of bloodshed, and the boasting over fallen cities, had been fit for men who had in their hearts conceived nothing greater than military renown. Our sympathies go along with a Camillus or a Scipio steeped in the blood of Rome's enemies. A Marius, a Pompey, and again a few years afterward a Cæsar, were in their places as they were dragged along the Via Sacra up to the Capitol amid the plaudits of the city, in commemoration of their achievements in arms; but it could not be so with Cicero. "Concedat laurea linguæ" had been the watchword of his life. "Let the ready tongue and the fertile brain be held in higher honor than the strong right arm." That had been the doctrine which he had practised successfully. To him it had been given to know that the lawyer's gown was raiment worthier of a man than the soldier's breastplate. How, then, could it be that he should ask for so small a thing as a triumph in reward for so small a deed as that done at Pindenissum? But it had become the way with all Proconsuls who of late years had been sent forth from Rome into the provinces. Men to whose provincial government a few cohorts were attached aspired to be called "Imperator" by their soldiers after mock battles, and thought that, as others had followed up their sham victories with sham triumphs, it should be given to them to do the same. If Bibulus triumphed it would be a disgrace to Cicero not to triumph. We measure our expected rewards not by our own merits but by the good things which have been conceded to others. To have returned from Pindenissum and not to be allowed the glory of trumpets would be a disgrace, in accordance with the theory then prevailing in Rome on such matters; therefore Cicero demanded a triumph.

In such a matter it was in accordance with custom that the General should send an immediate account of his victorious doings, demand a "supplication," and have the triumph to be decreed to him or not after his return home. A supplication was in form a thanksgiving to the gods for the great favor shown by them to the State, but in fact took the guise of public praise bestowed upon the man by whose hands the good had been done. It was usually a reward for military success, but in the affair of Catiline a supplication had been decreed to Cicero for saving the city, though the service rendered had been of a civil nature. Cicero now applied for a supplication, and obtained it. Cato opposed it, and wrote a letter to Cicero explaining his motives—upon high republican principles. Cicero might

have endured this more easily had not Cato voted for a supplication in honor of Bibulus, whose military achievements had, as Cicero thought, been less than his own. One Hirrus opposed it also, but in silence, having intended to allege that the numbers slain by Cicero in his battles were not sufficient to justify a supplication. We learn that, according to strict rule, two thousand dead men should have been left on the field. Cicero's victims had probably been much fewer; nevertheless the supplication was granted, and Cicero presumed that the triumph would follow as a matter of course. Alas, there came grievous causes to interfere with the triumph!

Of all that went on at Rome Cælius continued to send Cicero accounts. The Triumvirate was now over. Cælius says that Pompey will not attack Cæsar openly, but that he does all he can to prevent Cæsar from being elected Consul before he shall have given up his province and his army.¹¹⁰ For details Cælius refers him to a *Commentarium*—a word which has been translated as meaning "newspaper" in this passage—by Melmoth. I think that there is no authority for this idea, and that the commentary was simply the compilation of Cælius, as were the commentaries we so well know the compilation of Cæsar. The *Acta Diurna* were published by authority, and formed an official gazette. These no doubt reached Cicero, but were very different in their nature from the private record of things which he obtained from his friend.

There are passages in Greek, in two letters¹¹¹ written about this time to Atticus, which refer to the matter from which probably arose his quarrel with his wife, and her divorce. He makes no direct allusion to his wife, but only to a freedman of hers, Philotomus. When Milo was convicted, his goods were confiscated and sold as a part of his punishment. Philotomus is supposed to have been a purchaser, and to have made money out of the transaction—taking advantage of his position to acquire cheap bargains—as should not have been done by any one connected with Cicero, who had been Milo's friend. The cause of Cicero's quarrel with his wife has never been absolutely known, but it is supposed to have arisen from her want of loyalty to him in regard to money. She probably employed this freedman in filling her pockets at the expense of her husband's character.

B.C. 50, ætat. 57. In his own letters he tells of preparations made for his return, and allusions are made as to his expected triumph. He is grateful

to Cælius as to what has been done as to the supplication, and expresses his confidence that all the rest will follow.¹¹² He is so determined to hurry away that he will not wait for the nomination of a successor, and resolves to put the government into the hands of any one of his officers who may be least unfit to hold it. His brother Quintus was his lieutenant, but if he left Quintus people would say of him that in doing so he was still keeping the emoluments in his own hands. At last he determines to intrust it to a young Quæstor named C. Cælius—no close connection of his friend Cælius, as Cicero finds himself obliged to apologize for the selection to his friend. "Young, you will say. No doubt; but he had been elected Quæstor, and is of noble birth."¹¹³ So he gives over the province to the young man, having no one else fitter.

Cicero tells us afterward, when at Athens on his way home, that he had considerable trouble with his own people on withholding certain plunder which was regarded by them as their perquisite. He had boasted much of their conduct—having taken exception to one Tullius, who had demanded only a little hay and a little wood. But now there came to be pickings—savings out of his own proconsular expenses—to part with which at the last moment was too hard upon them. "How difficult is virtue," he exclaims; "how doubly difficult to pretend to act up to it when it is not felt!"¹¹⁴ There had been a certain sum saved which he had been proud to think that he would return to the treasury. But the satellites were all in arms: "Ingemuit nostra cohors." Nevertheless, he disregarded the "cohort," and paid the money into the treasury.

As to the sum thus saved, there has been a dispute which has given rise to some most amusing literary vituperation. The care with which MSS. have been read now enables us to suppose that it was ten hundred thousand sesterces—thus expressed, "H.S.X."—amounting to something over £8000. We hear elsewhere, as will be mentioned again, that Cicero realized out of his own legitimate allowance in Cilicia a profit of about £18,000; and we may imagine that the "cohort" should think itself aggrieved in losing £8000 which they expected to have divided among them. Middleton has made a mistake, having supposed the X to be CId or M—a thousand instead of ten—and quotes the sum saved as having amounted to eight hundred thousand instead of eight thousand pounds. We who have had so much done for us by

intervening research, and are but ill entitled to those excuses for error which may fairly be put forward on Middleton's behalf, should be slow indeed in blaming him for an occasional mistake, seeing how he has relieved our labors by infinite toil on his part; but De Quincey, who has been very rancorous against Cicero, has risen to a fury of wrath in his denunciation of Cicero's great biographer. "Conyers Middleton," he says, "is a name that cannot be mentioned without an expression of disgust." The cause of this was that Middleton, a beneficed clergyman of the Church of England, and a Cambridge man, differed from other Cambridge clergymen on controversial points and church questions. Bentley was his great opponent—and as Bentley was a stout fighter, so was Middleton. Middleton, on the whole, got the worst of it, because Bentley was the stronger combatant; but he seems to have stood in good repute all his life, and when advanced in years was appointed Professor of Natural History. He is known to us, however, only as the biographer of Cicero. Of this book, Monk, the biographer of Middleton's great opponent, Bentley, declares that, "for elegance, purity, and ease, Middleton's style yields to none in the English language." De Quincey says of it that, by "weeding away from it whatever is colloquial, you would strip it of all that is characteristic"—meaning, I suppose, that the work altogether wants dignity of composition. This charge is, to my thinking, so absolutely contrary to the fact, that it needs only to be named to be confuted by the opinion of all who have read the work. De Quincey pounces upon the above-named error with profoundest satisfaction, and tells us a pleasant little story about an old woman who thought that four million people had been once collected at Caernarvon. Middleton had found the figure wrongly deciphered and wrongly copied for him, and had translated it as he found it, without much thought. De Quincey thinks that the error is sufficient to throw over all faith in the book: "It is in the light of an evidence against Middleton's good-sense and thoughtfulness that I regard it as capital." That is De Quincey's estimate of Middleton as a biographer. I regard him as a laborer who spared himself no trouble, who was enabled by his nature to throw himself with enthusiasm into his subject, who knew his work as a writer of English, and who, by a combination of erudition, intelligence, and industry, has left us one of those books of which it may truly be said that no English library should be without it.

The last letter written by Cicero in Asia was sent to Atticus from Ephesus the day before he started—on the last day, namely, of September. He had been delayed by winds and by want of vessels large enough to carry him and his suite. News here reached him from Rome—news which was not true in its details, but true enough in its spirit. In a letter to Atticus he speaks of "miros terrores Cæsarianos"¹¹⁵—"dreadful reports as to outrages by Cæsar;" that he would by no means dismiss his army; that he had with him the Prætors elect, one of the Tribunes, and even one of the Consuls; and that Pompey had resolved to leave the city. Such were the first tidings presaging Pharsalia. Then he adds a word about his triumph. "Tell me what you think about this triumph, which my friends desire me to seek. I should not care about it if Bibulus were not also asking for a triumph—Bibulus, who never put a foot outside his own doors as long as there was an enemy in Syria!" Thus Cicero had to suffer untold misery because Bibulus was asking for a triumph!

CHAPTER V.

THE WAR BETWEEN CÆSAR AND POMPEY.

What official arrangements were made for Proconsuls in regard to money, when in command of a province, we do not know. The amounts allowed were no doubt splendid, but it was not to them that the Roman governor looked as the source of that fortune which he expected to amass. The means of plunder were infinite, but of plunder always subject to the danger of an accusation. We remember how Verres calculated that he could divide his spoil into three sufficient parts—one for the lawyers, one for the judges, so as to insure his acquittal, and then one for himself. This plundering was common—so common as to have become almost a matter of course; but it was illegal, and subjected some unfortunate culprits to exile, and to the disgorging of a part of what they had taken. No accusation was made against Cicero. As to others there were constantly threats, if no more than threats. Cicero was not even threatened. But he had saved out of his legitimate expenses a sum equal to £18,000 of our money—from which we

may learn how noble were the appanages of a Roman governor. The expenses of all his staff passed through his own hands, and many of those of his army. Any saving effected would therefore be to his own personal advantage. On this money he counted much when his affairs were in trouble, as he was going to join Pompey at Pharsalia in the following year. He then begged Atticus to arrange his matters for him, telling him that the sum was at his call in Asia,¹¹⁶ but he never saw it again: Pompey borrowed it—or took it; and when Pompey had been killed the money was of course gone.

His brother Quintus was with him in Cilicia, but of his brother's doings there he says little or nothing. We have no letters from him during the period to his wife or daughter. The latter was married to her third husband, Dolabella, during his absence, with no opposition from Cicero, but not in accordance with his advice. He had purposed to accept a proposition for her hand made to him by Tiberius Nero, the young Roman nobleman who afterward married that Livia whom Augustus took away from him even when she was pregnant, in order that he might marry her himself, and who thus became the father of the Emperor Tiberius. It is worthy of remark at the same time that the Emperor Tiberius married the granddaughter of Atticus. Cicero when in Cilicia had wished that Nero should be chosen; but the family at home was taken by the fashion and manners of Dolabella, and gave the young widow to him as her third husband when she was yet only twenty-five. This marriage, like the others, was unfortunate. Dolabella, though fashionable, nobly born, agreeable, and probably handsome, was thoroughly worthless. He was a Roman nobleman of the type then common—heartless, extravagant, and greedy. His country, his party, his politics were subservient, not to ambition or love of power, but simply to a desire for plunder. Cicero tried hard to love him, partly for his daughter's sake, more perhaps from the necessity which he felt for supporting himself by the power and strength of the aristocratic party to which Dolabella belonged.

I cannot bring him back to Rome, and all that he suffered there, without declaring that much of his correspondence during his government, especially during the latter months of it, and the period of his journey home, is very distressing. I have told the story of his own doings, I think, honestly, and how he himself abstained, and compelled those belonging to him to do so; how he strove to ameliorate the condition of those under his rule; how

he fully appreciated the duty of doing well by others, so soon to be recognized by all Christians. Such humanity on the part of a Roman at such a period is to me marvellous, beautiful, almost divine; but, in eschewing Roman greed and Roman cruelty, he was unable to eschew Roman insincerity. I have sometimes thought that to have done so it must have been necessary for him altogether to leave public life. Why not? my readers will say. But in our days, when a man has mixed himself for many years with all that is doing in public, how hard it is for him to withdraw, even though, in withdrawing he fears no violence, no punishment, no exile, no confiscation. The arguments, the prayers, the reproaches of those around him draw him back; and the arguments, the reproaches from within are more powerful even than those from his friends. To be added to these is the scorn, perhaps the ridicule, of his opponents. Such are the difficulties in the way of the modern politician who thinks that he has resolved to retire; but the Roman ex-Consul, ex-Prætor, ex-Governor had entered upon a mode of warfare in which his all, his life, his property, his choice of country, his wife, his children, were open to the ready attacks of his eager enemies. To have deserved well would be nothing, unless he could keep a party round him bound by mutual interests to declare that he had deserved well. A rich man, who desired to live comfortably beyond the struggle of public life, had to abstain, as Atticus had done, from increasing the sores, from hurting the ambition, from crushing the hopes of aspirants. Such a man might be safe, but he could not be useful; such, at any rate, had not been Cicero's life. In his earlier days, till he was Consul, he had kept himself free from political interference in doing the work of his life; but since that time he had necessarily put himself into competition with many men, and had made many enemies by the courage of his opinions. He had found even those he had most trusted opposed to him. He had aroused the jealousy not only of the Cæsars and the Crassuses and the Pisos, but also of the Pompeys and Catos and Brutuses. Whom was he not compelled to fear? And yet he could not escape to his books; nor, in truth, did he wish it. He had made for himself a nature which he could not now control.

He had not been long in Cilicia before he knew well how cruel, how dishonest, how greedy, how thoroughly Roman had been the conduct of his predecessor Appius. His letters to Atticus are full of the truths which he had to tell on that matter. His conduct, too, with regard to Appius was mainly

right. As far as in him lay he endeavored to remedy the evils which the unjust Proconsul had done, and to stop what further evil was still being done. He did not hesitate to offend Appius when it was necessary to do so by his interference. But Appius was a great nobleman, one of the "optimates," a man with a strong party at his back in Rome. Appius knew well that Cicero's good word was absolutely necessary to save him from the ruin of a successful accusation. Cicero knew also that the support of Appius would be of infinite service to him in his Roman politics. Knowing this, he wrote to Appius letters full of flattery—full of falsehood, if the plain word can serve our purpose better. Dolabella, the new son-in-law, had taken upon himself, for some reason as to which it can hardly be worth our while to inquire, to accuse Appius of malversation in his province. That Appius deserved condemnation there can be no doubt; but in these accusations the contests generally took place not as to the proof of the guilt, but as to the prestige and power of the accuser and the accused. Appius was tried twice on different charges, and was twice acquitted; but the fact that his son-in-law should be the accuser was fraught with danger to Cicero. He thought it necessary for the hopes which he then entertained to make Appius understand that his son-in-law was not acting in concert with him, and that he was desirous that Appius should receive all the praise which would have been due to a good governor. So great was the influence of Appius at Rome that he was not only acquitted, but shortly afterward elected Censor. The office of Censor was in some respects the highest in Rome. The Censors were elected only once in four years, remaining in office for eighteen months. The idea was that powers so arbitrary as these should be in existence only for a year and a half out of each four years. Questions of morals were considered by them. Should a Senator be held to have lived as did not befit a Senator, a Censor could depose him. As Appius was elected Censor immediately after his acquittal, together with that Piso whom Cicero had so hated, it may be understood that his influence was very great.¹¹⁷ It was great enough to produce from Cicero letters which were flattering and false. The man who had been able to live with a humanity, a moderation, and an honesty befitting a Christian, had not risen to that appreciation of the beauty of truth which an exercise of Christianity is supposed to exact.

"Sed quid agas? Sic vivitur!"¹¹⁸—"What would you have me do? It is thus we live now!" This he exclaims in a letter to Cælius, written a short time

before he left the province. "What would you say if you read my last letter to Appius?" You would open your eyes if you knew how I have flattered Appius—that was his meaning. "Sic vivitur!"—"It is so we live now." When I read this I feel compelled to ask whether there was an opportunity for any other way of living. Had he seen the baseness of lying as an English Christian gentleman is expected to see it, and had adhered to truth at the cost of being a martyr, his conduct would have been high though we might have known less of it; but, looking at all the circumstances of the period, have we a right to think that he could have done so?

From Athens on his way home Cicero wrote to his wife, joining Tullia's name with hers. "Lux nostra," he calls his daughter; "the very apple of my eye!" He had already heard from various friends that civil war was expected. He will have to declare himself on his arrival—that is, to take one side or the other—and the sooner he does so the better. There is some money to be looked for—a legacy which had been left to him. He gives express directions as to the persons to be employed respecting this, omitting the name of that Philotomus as to whose honesty he is afraid. He calls his wife "suavissima et optatissima Terentia," but he does not write to her with the true love which was expressed by his letters when in exile. From Athens, also, where he seems to have stayed nearly two months, he wrote in December. He is easy, he says, about his triumph unless Cæsar should interfere—but he does not care much about his triumph now. He is beginning to feel the wearisomeness of the triumph; and indeed it was a time in which the utter hollowness of triumphal pretensions must have made the idea odious to him. But to have withdrawn would have been to have declared his own fears, his own doubts, his own inferiority to the two men who were becoming declared as the rival candidates for Roman power. We may imagine that at such a time he would gladly have gone in quiet to his Roman mansion or to one of his villas, ridding himself forever of the trouble of his lictors, his fasces, and all the paraphernalia of imperial dignity; but a man cannot rid himself of such appanages without showing that he has found it necessary to do so. It was the theory of a triumph that the victorious Imperator should come home hot (as it were) from the battle-field, with all his martial satellites around him, and have himself carried at once through Rome. It was barbaric and grand, as I have said before, but it required the martial satellites. Tradition had become law, and the Imperator

intending to triumph could not dismiss his military followers till the ceremony was over. In this way Cicero was sadly hampered by his lictors when, on his landing at Brundisium, he found that Italy was already preparing for her great civil war.

B.C. 50, ætat. 57. Early in this year it had been again proposed in the Senate that Cæsar should give up his command. At this time the two Consuls, L. Æmilius Paulus and C. Claudius Marcellus, were opposed to Cæsar, as was also Curio, who had been one of Cicero's young friends, and was now Tribune. But two of these Cæsar managed to buy by the payment of enormous bribes. Curio was the more important of the two, and required the larger bribe. The story comes to us from Appian,¹¹⁹ but the modern reader will find it efficiently told by Mommsen.¹²⁰ The Consul had fifteen hundred talents, or about £500,000! The sum named as that given by Cæsar to Curio was something greater, because he was so deeply in debt! Bribes to the amount of above a million of money, such as money is to us now, bestowed upon two men for their support in the Senate! It was worth a man's while to be a Consul or a Tribune in those days. But the money was well earned—plunder, no doubt, extracted from Gaul. The Senate decided that both Pompey and Cæsar should be required to abandon their commands—or rather they adopted a proposal to that effect without any absolute decree. But this sufficed for Cæsar, who was only anxious to be relieved from the necessity of obeying any order from the Senate by the knowledge that Pompey also was ordered, and also was disobedient. Then it was—in the summer of this year—that the two commanders were desired by the Senate to surrender each of them a legion, or about three thousand men, under the pretence that the forces were wanted for the Parthian war. The historians tell us that Pompey had lent a legion to Cæsar, thus giving us an indication of the singular terms on which legions were held by the proconsular officers who commanded them. Cæsar nobly sends up to Rome two legions, the one as having been ordered to be restored by himself, and the other as belonging to Pompey. He felt, no doubt, that a show of nobleness in this respect would do him better service than the withholding of the soldiers. The men were stationed at Capua, instead of being sent to the East, and no doubt drifted back into Cæsar's hands. The men who had served under Cæsar would not willingly find themselves transferred to Pompey.

Cæsar in the summer came across the Alps into Cisalpine Gaul, which as yet had not been legally taken from him, and in the autumn sat himself down at Ravenna, which was still within his province. It was there that he had to meditate the crossing of the Rubicon and the manifestation of absolute rebellion. Matters were in this condition when Cicero returned to Italy, and heard the corroboration of the news as to the civil war which had reached him at Athens.

In a letter written from Athens, earlier than the one last quoted, Cicero declared to Atticus that it would become him better to be conquered with Pompey than to conquer with Cæsar.¹²¹ The opinion here given may be taken as his guiding principle in politics till Pompey was no more. Through all the doubts and vacillations which encumbered him, this was the rule not only of his mind but of his heart. To him there was no Triumvirate: the word had never been mentioned to his ears. Had Pompey remained free from Cæsar it would have been better. The two men had come together, and Crassus had joined them. It was better for him to remain with them and keep them right, than to stand away, angry and astray, as Cato had done. The question how far Cæsar was justified in the position which he had taken up by certain alleged injuries, affected Cicero less than it has done subsequent inquirers. Had an attempt been made to recall Cæsar illegally? Was he subjected to wrong by having his command taken away from him before the period had passed for which the people had given it? Was he refused indulgences to which the greatness of his services entitled him—such as permission to sue for the Consulship while absent from Rome—while that, and more than that, had been granted to Pompey? All these questions were no doubt hot in debate at the time, but could hardly have affected much the judgment of Cicero, and did not at all affect his conduct. Nor, I think, should they influence the opinions of those who now attempt to judge the conduct of Cæsar. Things had gone beyond the domain of law, and had fallen altogether into that of potentialities. Decrees of the Senate or votes of the people were alike used as excuses. Cæsar, from the beginning of his career, had shown his determination to sweep away as cobwebs the obligations which the law imposed upon him. It is surely vain to look for excuses for a man's conduct to the practice of that injustice against him which he has long practised against others. Shall we forgive a house-breaker because the tools which he has himself invented are used at last

upon his own door? The modern lovers of Cæsar and of Cæsarism generally do not seek to wash their hero white after that fashion. To them it is enough that the man has been able to trample upon the laws with impunity, and to be a law not only to himself but to all the world around him. There are some of us who think that such a man, let him be ever so great—let him be ever so just, if the infirmities of human nature permit justice to dwell in the breast of such a man—will in the end do more harm than good. But they who sit at the feet of the great commanders admire them as having been law-breaking, not law-abiding. To say that Cæsar was justified in the armed position which he took in Northern Italy in the autumn of this year, is to rob him of his praise. I do not suppose that he had meditated any special line of policy during the years of hard work in Gaul, but I think that he was determined not to relinquish his power, and that he was ready for any violence by which he might preserve it.

If such was Cicero's idea of this man—if such the troubled outlook which he took into the circumstances of the Empire—he thought probably but little of the legality of Cæsar's recall. What would the Consuls do, what would Curio do, what would Pompey do, and what Cæsar? It was of this that he thought. Had law-abiding then been possible, he would have been desirous to abide by the law. Some nearest approach to the law would be the best. Cæsar had ignored all laws, except so far as he could use them for his own purposes. Pompey, in conspiring with Cæsar, had followed Cæsar's lead; but was desirous of using the law against Cæsar when Cæsar outstripped him in lawlessness. But to Cicero there was still some hope of restraining Pompey. Pompey, too, had been a conspirator, but not so notorious a conspirator as Cæsar. With Pompey there would be some bond to the Republic; with Cæsar there could be none; therefore it was better for him to fall with Pompey than to rise with Cæsar. That was his conviction till Pompey had altogether fallen.

His journey homeward is made remarkable by letters to Tiro, his slave and secretary. Tiro was taken ill, and Cicero was obliged to leave him at Patræ, in Greece. Whence he had come to Cicero we do not know, or when; but he had not probably fallen under his master's peculiar notice before the days of the Cilician government, as we find that on his arrival at Brundisium he writes to Atticus respecting him as a person whom Atticus had not much known.¹²² But his affection for Tiro is very warm, and his little solitudes

for the man whom he leaves are charming. He is to be careful as to what boat he takes, and under what captain he sails. He is not to hurry. The doctor is to be consulted and well paid. Cicero himself writes various letters to various persons, in order to secure that attention which Tiro could not have insured unless so assisted.

Early in January Cicero reached the city, but could not enter it because of his still unsettled triumph, and Cæsar crossed the little river which divided his province from the Roman territory. The 4th of January is the date given for the former small event. For the latter I have seen no precise day named. I presume that it was after the 6th, as on that day the Senate appointed Domitian as his successor in his province. On this being done, the two Tribunes, Antony and Cassius, hurried off to Cæsar, and Cæsar then probably crossed the stream. Cicero was appointed to a command in Campania—that of raising levies, the duties of which were not officially repugnant to his triumph.

His doings during the whole of this time were but little to his credit; but who is there whose doings were to his credit at that period? The effect had been to take all power out of his hand. Cæsar had given him up. Pompey could not do so, but we can imagine how willing Pompey would have been that he should have remained in Cilicia. He had been sent there, out of the way, but had hurried home again. If he would only have remained and plundered! If he would only have remained there and have been honest—so that he would be out of the way! But here he was—back in Italy, an honest, upright man! No one so utterly unlike the usual Roman, so lost amid the self-seekers of Rome, so unnecessarily clean-handed, could be found! Cato was honest, foolishly honest for his time; but with Cato it was not so difficult to deal as with Cicero. We can imagine Cato wrapping himself up in his robe and being savagely unreasonable. Cicero was all alive to what was going on in the world, but still was honest! In the mean time he remained in the neighborhood of Naples, writing to his wife and daughter, writing to Tiro, writing to Atticus, and telling us all those details which we now seem to know so well—because he has told us. In one of his letters to Atticus at this time he is sadly in earnest. He will die with Pompey in Italy, but what can he do by leaving it? He has his "lictors" with him still. Oh, those dreadful lictors! His friendship for Cnæus! His fear of having to join himself with the coming tyrant! "Oh that you would assist me with your

counsel!"¹²³ He writes again, and describes the condition of Pompey—of Pompey who had been Magnus. "See how prostrate he is. He has neither courage, counsel, men, nor industry! Put aside those things; look at his flight from the city, his cowardly harangues in the towns, his ignorance of his own strength and that of his enemy! * * * Cæsar in pursuit of Pompey! Oh, sad! * * * Will he kill him?" he exclaims. Then, still to Atticus, he defends himself. He will die for Pompey, but he does not believe that he can do any good either to Pompey or to the Republic by a base flight. Then there is another cause for staying in Italy as to which he cannot write. This was Terentia's conduct. At the end of one of his letters he tells Atticus that with the same lamp by which he had written would he burn that which Atticus had sent to him. In another he speaks of a Greek tutor who has deserted him, a certain Dionysius, and he boils over with anger. His letters to Atticus about the Greek tutor are amusing at this distance of time, because they show his eagerness. "I never knew anything more ungrateful; and there is nothing worse than ingratitude."¹²⁴

He heaps his scorn upon Pompey: "It is true, indeed, that I said that it was better to be conquered with him than to conquer with those others. I would indeed. But of what Pompey was it that I so spoke? Was it of this one who flies he knows not what, nor whom, nor whither he will fly?"¹²⁵ He writes again the same day: "Pompey had fostered Cæsar, and then had feared him. He had left the city; he had lost Picenum by his own fault, he had betaken himself to Apulia! Then he went into Greece, leaving us in the dark as to his plans!" He excuses a letter of his own to Cæsar. He had written to Cæsar in terms which might be pleasing to the great man. He had told Cæsar of Cæsar's admirable wisdom. Was it not better so? He was willing that his letter should be read aloud to all the people, if only those of Pompey might also be read aloud. Then follow copies of a correspondence between him and Pompey. In the last he declares¹²⁶ that "when he had written from Canusium he had not dreamed that Pompey was about to cross the sea. He had known that Pompey had intended to treat for peace—for peace even under unjust conditions—but he had never thought that Pompey was meditating a retreat out of Italy." He argues well and stoutly, and does take us along with him. Pompey had been beaten back from point to point, never once rallying himself against Cæsar. He had failed, and had slipped away, leaving a man here and there to stand up for the Republic. Pompey was

willing to risk nothing for Rome. It had come to pass at last that he was being taught Cæsarism by Cæsar, and when he died was more imperial than his master.

At this time Cicero's eyes were bad. "Mihi molestior lippitudo erat etiam quam ante fuerat." And again, "Lippitudinis meæ signum tibi sit librarii manus." But we may doubt whether any great men have lived so long with so little to tease them as to their health. And yet the amount of work he got through was great. He must have so arranged his affairs as to have made the most he could of his hours, and have carried in his memory information on all subjects. When we remember the size of the books which he read, their unwieldy shapes, their unfitness for such work as that of ours, there seems to have been a continuation of study such as we cannot endure. Throughout his life his hours were early, but they must also have been late. Of his letters we have not a half, of his speeches not a half, of his treatises not more than a half. When he was abroad during his exile, or in Cilicia during his government, he could not have had his books with him. That Cæsar should have been Cæsar, or Pompey Pompey, does not seem to me a matter so difficult as that Cicero should have been Cicero. Then comes that letter of which I spoke in my first chapter, in which he recapitulates the Getæ, the Armenians, and the men of Colchis. "Shall I, the savior of the city, assist to bring down upon that city those hordes of foreign men? Shall I deliver it up to famine and to destruction for the sake of one man who is no more than mortal?"¹²⁷ It was Pompey as to whom he then asked the question. For Pompey's sake am I to let in these crowds? We have been told, indeed, by Mr. Froude that the man was Cæsar, and that Cicero wrote thus anxiously with the special object of arranging his death!

"Now, if ever, think what we shall do," he says. "A Roman army sits round Pompey and makes him a prisoner within valley and rampart—and shall we live? The city stands; the Prætors give the law, the Ædiles keep up the games, good men look to their principal and their interest. Shall I remain sitting here? Shall I rush hither and thither madly, and implore the credit of the towns? Men of substance will not follow me. The revolutionists will arrest me. Is there any end to this misery? People will point at me and say, 'How wise he was not to go with him.' I was not wise. Of his victory I never wished to be the comrade—yet now I do of his sorrow."¹²⁸

B.C. 49, ætat.
58.

Pompey had crossed the sea from Brundisium, and Cæsar had retreated across Italy to Capua. As he was journeying he saw Cicero, and asked him to go to Rome. This Cicero refused, and Cæsar passed on. "I must then use other counsels," said Cæsar, thus leaving him for the last time before the coming battle. Cicero went on to Arpinum, and there heard the nightingales. From that moment he resolved. He had not thought it possible that when the moment came he should have been able to prevail against Cæsar's advice; but he had done so. He had feared that Cæsar would overcome him; but when the moment came he was strong against even Cæsar. He gave his boy his toga, or, as we should say, made a man of him. He was going after Pompey, not for the sake of Pompey, not for the sake of the Republic, but for loyalty. He was going because Atticus had told him to go. But as he is going there came fresh ground for grief. He writes to Atticus about the two boys, his son and nephew. The one is good by nature, and has not yet gone astray. The other, the elder and his nephew, has been encouraged by this uncle's indulgence, and has openly adopted evil ways. In other words, he has become Cæsarian—for a reward.¹²⁹ The young Quintus has shown himself to be very false. Cicero is so bound together with his family in their public life that this falling off of one of them makes him unhappy. Then Curio comes the way, and there is a most interesting conversation. It seems that Curio, who is fond of Cicero, tells him everything; but Cicero, who doubts him, lets him pass on. Then Cælius writes to him. Cælius implores him, for the sake of his children, to bear in mind what he is doing. He tells him much of Cæsar's anger, and asks him if he cannot become Cæsarian; at any rate to betake himself to some retreat till the storm shall pass by and quieter days should come. But Cælius, though it had suited Cicero to know him intimately, had not read the greatness of the man's mind. He did not understand in the least the difficulty which pervaded Cicero. To Cælius it was play—play in which a man might be beaten, or banished, or slaughtered; but it was a game in which men were fighting each for himself. That there should be a duty in the matter, beyond that, was inexplicable to Cælius. And his children, too—his anger against young Quintus and his forgiveness of Marcus! He thinks that Quintus had been purchased by a large bribe on Cæsar's side, and is thankful that it is no worse with him. What can have been worse to a young man than to have been open to such payment? Antony is frequently on the scene, and already disgusts us by the vain frivolity and impudence of his

life. And then Cicero's eyes afflict him, and he cannot see. Servius Sulpicius comes to him weeping. For Servius, who is timid and lachrymose, everything has gone astray. And then there is that Dionysius who had plainly told him that he desired to follow some richer or some readier master. At the last comes the news of his Tullia's child's birth. She is brought to bed of a son. He cannot, however, wait to see how the son thrives. From the midst of enemies, and with spies around him, he starts. There is one last letter written to his wife and daughter from on board the ship at Caieta, sending them many loves and many careful messages, and then he is off.

It was now the 11th of June, the third day before the ides, B.C. 49, and we hear nothing special of the events of his journey. When he reached the camp, which he did in safety, he was not well received there. He had given his all to place himself along with Pompey in the republican quarters, and when there the republicans were unwilling to welcome him. Pompey would have preferred that he should have remained away, so as to be able to say hereafter that he had not come.

Of what occurred to Cicero during the great battle which led to the solution of the Roman question we know little or nothing. We hear that Cicero was absent, sick at Dyrrachium, but there are none of those tirades of abuse with which such an absence might have been greeted. We hear, indeed, from other sources, very full accounts of the fighting—how Cæsar was nearly conquered, how Pompey might have prevailed had he had the sense to take the good which came in his way, how he failed to take it, how he was beaten, and how, in the very presence of his wife, he was murdered at last at the mouth of the Nile by the combined energies of a Roman and a Greek.

We can imagine how the fate of the world was decided on the Pharsalus where the two armies met, and the victory remained with Cæsar. Then there were weepings and gnashings of teeth, and there were the congratulations and self-applause of the victors. In all Cicero's letters there is not a word of it. There was terrible suffering before it began, and there is the sense of injured innocence on his return, but nowhere do we find any record of what took place. There is no mourning for Pompey, no turning to Cæsar as the conqueror. Petra has been lost, and Pharsalia has been won, but there is no sign.

B.C. 48, ætat. 59. Cicero, we know, spent the time at Dyrrachium close to which the battle of Petra was fought, and went from thence to Corcyra. There invitation was made to him, as the senior consular officer present, to take the command of the beaten army, but that he declined. We are informed that he was nearly killed in the scuffle which took place. We can imagine that it was so—that in the confusion and turmoil which followed he should have been somewhat roughly told that it behooved him to take the lead and to come forth as the new commander; that there should be a time at last in which no moment should be allowed him for doubt, but that he should doubt, and, after more or less of reticence, pass on. Young Pompey would have it so. What name would be so good to bind together the opponents of Cæsar as that of Cicero? But Cicero would not be led. It seems that he was petulant and out of sorts at the time; that he had been led into the difficulty of the situation by his desire to be true to Pompey, and that he was only able to escape from it now that Pompey was gone. We can well imagine that there should be no man less able to fight against Cæsar, though there was none whose name might be so serviceable to use as that of Cicero. At any rate, as far as we are concerned, there was silence on the subject on his part. He wrote not a word to any of the friends whom Pompey had left behind him, but returned to Italy dispirited, silent, and unhappy. He had indeed met many men since the battle of the Pharsalus, but to none of whom we are conversant had he expressed his thoughts regarding that great campaign.

Here we part from Pompey, who ran from the fighting-ground of Macedonia to meet his doom in the roads of Alexandria. Never had man risen so high in his youth to be extinguished so ingloriously in his age. He was born in the same year with Cicero, but had come up quicker into the management of the world's affairs, so as to have received something from his equals of that which was due to age. Habit had given him that ease of manners which enabled him to take from those who should have been his compeers the deference which was due not to his age but to his experience. When Cicero was entering the world, taking up the cudgels to fight against Sulla, Pompey had already won his spurs, in spite of Sulla but by means of Sulla. Men in these modern days learn, as they grow old in public life, to carry themselves with indifference among the backslidings of the world. In reading the life of Cicero, we see that it was so then. When defending Amerinus, we find the same character of man as was he who afterward took

Milo's part. There is the same readiness, the same ingenuity, and the same high indignation; but there is not the same indifference as to results. With Amerinus it is as though all the world depended on it; with Milo he felt it to be sufficient to make the outside world believe it. When Pompey triumphed, 70 B.C., and was made Consul for the second time, he was already old in glory—when Cicero had not as yet spoken those two orations against Verres which had made the speaking of another impossible. Pompey, we may say, had never been young. Cicero was never old. There was no moment in his life in which Cicero was not able to laugh with the Curios and the Cæliuses behind the back of the great man. There was no moment in which Pompey could have done so. He who has stepped from his cradle on to the world's high places has lost the view of those things which are only to be seen by idle and luxurious young men of the day. Cicero did not live for many years beyond Pompey, but I doubt whether he did not know infinitely more of men. To Pompey it had been given to rule them; but to Cicero to live with them.

CHAPTER VI.

AFTER THE BATTLE.

B.C. 48, ætat. 59. In the autumn of this year Cicero had himself landed at

Brundisium. He remained nearly a year at Brundisium, and it is melancholy to think how sad and how long must have been the days with him. He had no country when he reached the nearest Italian port; it was all Cæsar's, and Cæsar was his enemy. There had been a struggle for the masterdom between two men, and of the two the one had beaten with whom Cicero had not ranged himself. He had known how it would be. All the Getæ, and the men of Colchis, and the Armenians, all the lovers of the fish-ponds and those who preferred the delicacies of Baiæ to the work of the Forum, all who had been taught to think that there were provinces in order that they might plunder, men who never dreamed of a country but to sell it, all those whom Cæsar was determined either to drive out of Italy or keep there in obedience to himself, had been brought together in vain. We

already know, when we begin to read the story, how it will be with them and with Cæsar. On Cæsar's side there is an ecstasy of hope carried to the very brink of certainty; on the other is that fainting spirit of despair which no battalions can assuage. We hear of no Scæva and of no Crastinus on Pompey's side. Men change their nature under such leading as was that of Cæsar. The inferior men become heroic by contact with the hero; but such heroes when they come are like great gouts of blood dabbled down upon a fair cloth. Who that has eyes to see can look back upon the career of such a one and not feel an agony of pain as the stern man passes on without a ruffled face, after ordering the right hands of those who had fought at Uxellodunum to be chopped off at the wrist, in order that men might know what was the penalty of fighting for their country?

There are men—or have been, from time to time, in all ages of the world—let loose, as it were, by the hand of God to stop the iniquities of the people, but in truth the natural product of those iniquities. They have come and done their work, and have died, leaving behind them the foul smell of destruction. An Augustus followed Cæsar, and him Tiberius, and so on to a Nero. It was necessary that men should suffer much before they were brought back to own their condition. But they who can see a Cicero struggling to avoid the evil that was coming—not for himself but for the world around him—and can lend their tongues, their pens, their ready wits to ridicule his efforts, can hardly have been touched by the supremacy of human suffering.

It must have been a sorry time with him at Brundisium. He had to stay there waiting till Cæsar's pleasure had been made known to him, and Cæsar was thinking of other things. Cæsar was away in Egypt and the East, encountering perils at Alexandria which, if all be true that we have heard, imply that he had lived to be past fear. Grant that a man has to live as Cæsar did, and it will be well that he should be past fear. At any rate he did not think of Cicero, or thinking of him felt that he was one who must be left to brood in silence over the choice he had made. Cicero did brood—not exactly in silence—over the things that fate had done for him and for his country. For himself, he was living in Italy, and yet could not venture to betake himself to one of the eighteen villas which, as Middleton tells us, he had studded about the country for his pastime. There were those at Tusculum, Antium, Astura, Arpinum—at Formiæ, at Cumæ, at Puteoli, and

at Pompeii. Those who tell us of Cicero's poverty are surely wandering, carried away by their erroneous notions of what were a Roman nobleman's ideas as to money. At no period of his life do we find Cicero not doing what he was minded to do for want of money, and at no period is there a hint that he had allowed himself in any respect to break the law. It has been argued that he must have been driven to take fees and bribes and indirect payments, because he says that he wanted money. It was natural that he should occasionally want money, and yet be in the main indifferent. The incoming of a regular revenue was not understood as it is with us. A man here and there might attend to his money, as did Atticus. Cicero did not; and therefore, when in want of it, he had to apply to a friend for relief. But he always applies as one who knows well that the trouble is not enduring. Is it credible that a man so circumstanced should have remained with those various sources of extravagance which it would have been easy for him to have avoided or lessened? We are led to the conviction that at no time was it expedient to him to abandon his villas, though in the hurry-scurry of Roman affairs it did now and again become necessary for him to apply to Atticus for accommodation. Let us think what must have been Cæsar's demands for money. Of these we hear nothing, because he was too wise to have an Atticus to whom he wrote everything, or too wary to write letters upon business which should be treasured for the curiosity of after-ages.

To be hopeful and then tremulous; to be eager after success and then desponding; to have believed readily every good and then, as readily, evil; to have relied implicitly on a man's faith, and then to have turned round and declared how he had been deceived; to have been very angry and then to have forgiven—this seems to have been Cicero's nature. Verres, Catiline, Clodius, Piso, and Vatinius seem to have caused his wrath; but was there one of them against whom, though he did not forgive him, his anger did not die out? Then, at last, he was moved to an internecine fight with Antony. Is there any one who has read the story which we are going to tell who will not agree with us that, if after Mutina Octavius had thought fit to repudiate Antony and to follow Cicero's counsels, Antony would not have been spared?

Nothing angers me so much in describing Cicero as the assertion that he was a coward. It has sprung from a wrong idea of what constitutes cowardice. He did not care to fight; but are all men cowards who do not

care to fight when work can be so much better done by talking? He saw that fighting was the work fit for men of common clay, or felt it if he did not see it. When men rise to such a pitch as that which he filled, and Cæsar and Pompey, and some few others around them, their greatest danger does not consist in fighting. A man's tongue makes enemies more bitter than his sword. But Cicero, when the time came, never shirked his foe. Whether it was Verres or Catiline, or Clodius or Antony, he was always there, ready to take that foe by the throat, and ready to offer his own in return. At moments such as that there was none of the fear which stands aghast at the wrath of the injured one, and makes the man who is a coward quail before the eyes of him who is brave.

His friendship for Pompey is perhaps, of all the strong feelings of his life, the one most requiring excuse, and the most difficult to excuse. For myself I can see why it was so; but I cannot do that without acknowledging in it something which derogated from his greatness. Had he risen above Pompey, he would have been great indeed; for I look upon it as certain that he did see that Pompey was as untrue to the Republic as Cæsar. He saw it occasionally, but it was not borne in upon him at all times that Pompey was false. Cæsar was not false. Cæsar was an open foe. I doubt whether Pompey ever saw enough to be open. He never realized to himself more than men. He never rose to measures—much less to the reason for them. When Cæsar had talked him over, and had induced him to form the Triumvirate, Pompey's politics were gone. Cicero never blanched. Whether, full of new hopes, he attacked Chrysogonus with all the energy of one to whom his injured countrymen were dear, or, with the settled purpose of his life, he accused Verres in the teeth of the coming Consul Hortensius; whether in driving out Catiline, or in defending Milo; whether, even, in standing up before Cæsar for Marcellus, or in his final onslaught upon Antony, his purpose was still the same. As time passed on he took to himself coarser weapons, and went down into the arena and fought the beasts at Ephesus. Alas, it is so with mankind! Who can strive to do good and not fight beasts? And who can fight them but after some fashion of their own? He was fighting beasts at Ephesus when he was defending Milo. He was an oligarch, but he wanted the oligarchy round him to be true and honest! It was impossible. These men would not be just, and yet he must use them. Milo and Cælius and Curio were his friends. He knew them to be bad, but

he could not throw off from him all that were bad men. If by these means he could win his way to something that might be good, he would pardon their evil. As we make our way on to the end of his life we find that his character becomes tarnished, and that his high feelings are blunted by the party which he takes and the men with whom he associates.

He did not, indeed, fall away altogether. The magistracy offered to him, the lieutenancy offered to him, the "free legation" offered to him, the last appeal made to him that he would go to Rome and speak a few words—or that he would stay away and remain neutral—did not move him. He did not turn conspirator and then fight for the prize, as Pompey had done. But he had, for so many years, clung to Pompey as the leader of a party; had had it so dinned into his ears that all must depend on Pompey; had found himself so bound up with the man who, when appealed to as to his banishment, had sullenly told him he could only do as Cæsar would have him; whom he had felt to be mean enough to be stigmatized as Sampsiceramus, him of Jerusalem, the hero of Arabia; whom he knew to be desirous of doing with his enemies as Sulla had done with his—that, in spite of it all, he clung to him still!

I cannot but blame Cicero for this, but yet I can excuse it. It is hard to have to change your leader after middle life, and Cicero could only have changed his by becoming a leader himself. We can see how hopeless it was. Would it not have been mean had he allowed those men to go and fight in Macedonia without him? Who would have believed in him had he seemed to be so false? Not Cato, not Brutus, not Bibulus, not Scipio, not Marcellus. Such men were the leaders of the party of which he had been one. Would they not say that he had remained away because he was Cæsar's man? He must follow either Cæsar or Pompey. He knew that Pompey was beaten. There are things which a man knows, but he cannot bring himself to say so even to himself. He went out to fight on the side already conquered; and when the thing was done he came home with his heart sad, and lived at Brundisium, mourning his lot.

From thence he wrote to Atticus, saying that he hardly saw the advantage of complying with advice which had been given to him that he should travel incognito to Rome. But it is the special reason given which strikes us as being so unlike the arguments which would prevail to-day: "Nor have I

resting-places on the way sufficiently convenient for me to pass the entire daytime within them."¹³⁰ The "diversorium" was a place by the roadside which was always ready should the owner desire to come that way. It must be understood that he travelled with attendants, and carried his food with him, or sent it on before. We see at every turn how much money could do; but we see also how little money had done for the general comfort of the people. Brundisium is above three hundred miles from Rome, and the journey is the same which Horace took afterward, going from the city.¹³¹ Much had then been done to make travelling comfortable, or at any rate cheaper than it had been four-and-twenty years before. But now the journey was not made. He reminds Atticus in the letter that if he had not written through so long an interval it was not because there had been a dearth of subjects. It had been no doubt prudent for a man to be silent when so many eyes and so many ears were on the watch. He writes again some days later, and assures Atticus that Cæsar thinks well of his "lictors!" Oh those eternal lictors! "But what have I to do with lictors," he says, "who am almost ordered to leave the shores of Italy?"¹³² And then Cæsar had sent angry messages. Cato and Metellus had been said to have come home. Cæsar did not choose that this should be so, and had ordered them away. It was clearly manifest to every man alive now that Cæsar was the actual master of Italy.

During the whole of this winter he is on terms with Terentia, but he writes to her in the coldest strain. There are many letters to Terentia, more in number than we have ever known before, but they are all of the same order. I translate one here to show the nature of his correspondence: "If you are well, I am so also. The times are such that I expect to hear nothing from yourself, and on my part have nothing to write. Nevertheless, I look for your letters, and I write to you when a messenger is going to start. Voluminia ought to have understood her duty to you, and should have done what she did do better. There are other things, however, which I care for more, and grieve for more bitterly—as those have wished who have driven me from my own opinion."¹³³ Again he writes to Atticus, deploring that he should have been born—so great are his troubles—or, at any rate, that one should have been born after him from the same mother. His brother has addressed him in anger—his brother, who has desired to make his own affairs straight with Cæsar, and to swim down the stream pleasantly with other noble Romans of the time. I can imagine that with Quintus Cicero

there was nothing much higher than the wealth which the day produced. I can fancy that he was possessed of intellect, and that when it was fair sailing with our Consul it was all well with Quintus Cicero; but I can see also that, when Cæsar prevailed, it was occasionally a matter of doubt with Quintus whether his brother should not be abandoned among other things which were obtrusive and vain. He could not quite do it. His brother compelled him into propriety, and carried him along within the lines of the oligarchy. Then Cæsar fell, and Quintus saw that the matter was right; but Cæsar, though he fell, did not altogether fall, and therefore Quintus after all turned out to be in the wrong. I fancy that I can see how things went ill with Quintus.

B.C. 47, ætat. 60. Cæsar, after the battle of the Pharsalia, had followed Pompey, but had failed to catch him. When he came upon the scene in the roadstead at Alexandria, the murder had been effected. He then disembarked, and there, as circumstances turned out, was doomed to fight another campaign in which he nearly lost his life. It is not a part of my plan to write the life of Cæsar, nor to meddle with it further than I am driven to do in seeking after the sources of Cicero's troubles and aspiration; but the story must be told in a few words. Cæsar went from Alexandria into Asia, and, flashing across Syria, beat Pharnaces, and then wrote his famous "Veni, vidi, vici," if those words were ever written. Surely he could not have written them and sent them home! Even the subservience of the age would not have endured words so boastful, nor would the glory of Cæsar have so tarnished itself. He hurried back to Italy, and quelled the mutiny of his men by a masterpiece of stage-acting. Simply by addressing them as "Quirites," instead of "Milites," he appalled them into obedience. On this journey into Italy he came across Cicero. If he could be cruel without a pang—to the arranging the starvation of a townful of women, because they as well as the men must eat—he could be magnificent in his treatment of a Cicero. He had hunted to the death his late colleague in the Triumvirate, and had felt no remorse; though there seems to have been a moment when in Egypt the countenance of him who had so long been his superior had touched him. He had not ordered Pompey's death. On no occasion had he wilfully put to death a Roman whose name was great enough to leave a mark behind. He had followed the convictions of his countrymen, who had ever spared themselves. To him a thousand Gauls, or men of Eastern origin,

were as nothing to a single Roman nobleman. Whether there can be said to have been clemency in such a course it is useless now to dispute. To Cæsar it was at any rate policy as well. If by clemency he meant that state of mind in which it is an evil to sacrifice the life of men to a spirit of revenge, Cæsar was clement. He had moreover that feeling which induces him who wins to make common cause—in little things—with those who lose. We can see Cæsar getting down from his chariot when Cicero came to meet him, and, throwing his arms round his neck, walking off with him in pleasant conversation; and we can fancy him talking to Cicero pleasantly of the greatness which, in times yet to come, pursuits such as his would show in comparison with those of Cæsar's. "Cedant arma togæ; concedat laurea linguæ," we can hear Cæsar say, with an irony expressed in no tone of his voice, but still vibrating to the core of his heart, as he thought so much of his own undoubted military supremacy, and absolutely nothing of his now undoubted literary excellence.

B.C. 47, ætat. 60. But to go back a little; we shall find Cicero still waiting at Brundisium during August and September. In the former of these months he reminds Atticus that "he cannot at present sell anything, but that he can put by something so that it may be in safety when the ruin shall fall upon him."¹³⁴ From this may be deduced a state of things very different to that above described, but not contradicting it. I gather from this unintelligible letter, written, as he tells us, for the most part in his own handwriting, that he was at the present moment under some forfeiture of the law to Cæsar. It may well be that, as one adjudged to be a rebel to his country, his property should not be salable. If that were so, Cæsar in some of these bland moments must have revoked the sentence—and at such a time all sentences were within Cæsar's control—because we know that on his return Cicero's villas were again within his own power. But he is in sad trouble now about his wife. He has written to her to send him twelve thousand sesterces, which he had as it were in a bag, and she sends him ten, saying that no more is left. If she would deduct something from so small a sum, what would she do if it were larger?¹³⁵ Then follow two letters for his wife—a mere word in each—not a sign of affection nor of complaint in either of them. In the first he tells her she shall be informed when Cæsar is coming—in the latter, that he is coming. When he has resolved whether to go and meet him or to remain where he is till Cæsar shall have come upon

him, he will again write. Then there are three to Atticus, and two more to Terentia. In the first he tells him that Cæsar is expected. Some ten or twelve days afterward he is still full of grief as to his brother Quintus, whose conduct has been shameful. Cæsar he knows is near at hand, but he almost hopes that he will not come to Brundisium. In the third, as indeed he has in various others, he complains bitterly of the heat: it is of such a nature that it adds to his grief. Shall he send word to Cæsar that he will wait upon him nearer to Rome?¹³⁶ He is evidently in a sad condition. Quintus, it must be remembered, had been in Gaul with Cæsar, and had seen the rising sun. On his return to Italy he had not force enough to declare a political conviction, and to go over to Cæsar boldly. He had indeed become lieutenant to his brother when in Cilicia, having left Cæsar for the purpose. He afterward went with his brother to the Pharsalus, assuring the elder Cicero that they two would still be of the same party. Then the great catastrophe had come, when Cicero returned from that wretched campaign to Brundisium, and remained there in despair as at some penal settlement. Quintus followed Cæsar into Asia with his son, and there pleaded his own cause with him at the expense of his brother. Of Cæsar we must all admit that, though indifferent to the shedding of blood, arrogant, without principle in money and without heart in love, he was magnificent, and that he injured none from vindictive motives. He passed on, leaving Quintus Cicero, who as a soldier had been true to him, without, as we can fancy, many words. Cicero afterward interceded for his brother who had reviled him, and Quintus will ever after have to bear the stain of his treachery. Then came the two letters for his wife, with just a line in each. If her messenger should arrive, he will send her word back as to what she is to do. After an interval of nearly a month, there is the other—ordering, in perfectly restored good-humor, that the baths shall be ready at the Tusculan villa: "Let the baths be all ready, and everything fit for the use of guests; there will probably be many of them."¹³⁷ It is evident that Cæsar has passed on in a good-humor, and has left behind him glad tidings, such as should ever brighten the feet of the conqueror.

It is singular that, with a correspondence such as that of Cicero's, of which, at least through the latter two or three years of his life, every letter of his to his chief friend has been preserved, there should have been nothing left to us from that friend himself. It must have been the case, as Middleton

suggests, that Atticus, when Cicero was dead, had the handling of the entire MS., and had withdrawn his own; either that, or else Cicero and Atticus mutually agreed to the destruction of their joint labors, and Atticus had been untrue to his agreement, knowing well the value of the documents he preserved. That there is no letter from a woman—not even a line to Cicero from his dear daughter—is much to be regretted. And yet there are letters—many from Cælius, who is thus brought forward as almost a second and a younger Atticus—and from various Romans of the day. When we come to the latter days of his life, in which he had taken upon himself the task of writing to Plancus and others as to their supposed duty to the State, they become numerous. There are ten such from Plancus, and nine from Decimus Brutus; and there is a whole mass of correspondence with Marcus Brutus—to be taken for what it is worth. With a view to history, they are doubtless worth much; but as throwing light on Cicero's character, except as to the vigor that was in the man to the last, they are not of great value. How is it that a correspondence, which is for its main purpose so full, should have fallen so short in many of its details? There is no word, no allusion derogatory to Atticus in these letters, which have come to us from Cælius and others. We have Atticus left to us for our judgment, free from the confession of his own faults, and free also from the insinuations of others. Of whom would we wish that the familiar letters of another about ourselves should be published? Would those objectionable epithets as to Pompey have been allowed to hold their ground had Pompey lived and had they been in his possession?

But, in reading histories and biographies, we always accept with a bias in favor of the person described the anecdotes of those who talk of them. We know that the ready wit of the surrounding world has taken up these affairs of the moment and turned them into ridicule—then as they do now. We discount the "Hierosolymarius." We do not quite believe that Bibulus never left the house while an enemy was to be seen; but we think that a man may be expected to tell the truth of himself; at any rate, to tell no untruth against himself. We think that Cicero of all men may be left to do so—Cicero, who so well understood the use of words, and could use them in his own defence so deftly. I maintain that it has been that very deftness which has done him all the harm. Not one of those letters of the last years would have been written as it is now had Cicero thought, when writing it, that from it would

his conduct have been judged after two thousand years. "No," will say my readers, "that is their value; they would not have otherwise been true, as they are. We should not then have learned his secrets." I reply, "It is a hard bargain to make: others do not make such bargains on the same terms. But be sure, at any rate, that you read them aright: be certain that you make the necessary allowances. Do not accuse him of falsehood because he unsays on a Tuesday the words he said on the Monday. Bear in mind on his behalf all the temporary ill that humanity is heir to. Could you, living at Brundisium during the summer months, 'when you were scarcely able to endure the weight of the sun,'¹³⁸ have had all your intellects about you, and have been able always to choose your words?" No, indeed! These letters, if truth is to be expected from them, have to be read with all the subtle distinctions necessary for understanding the frame of mind in which they were written. His anger boils over here, and he is hot. Here tenderness has mastered him, and the love of old days. He is weak in body just now, and worn out in spirit; he is hopeless, almost to the brink of despair; he is bright with wit, he is full of irony, he is purposely enigmatic—all of which require an Atticus who knew him and the people among whom he had lived, and the times in which the events took place, for their special reading. Who is there can read them now so as accurately to decipher every intended detail? Then comes some critic who will not even attempt to read them—who rushes through them by the light of some foregone conclusion, and missing the point at which the writer subtly aims, tells us of some purpose of which he was altogether innocent! Because he jokes about the augurship, we are told how miserably base he was, and how ready to sell his country!

During the whole of the last year he must have been tortured by various turns of mind. Had he done well in joining himself to Pompey? and having done so, had he done well in severing himself, immediately on Pompey's death, from the Pompeians? Looking at the matter as from a stand-point quite removed from it, we are inclined to say that he had done well in both. He could not without treachery have gone over to Cæsar when Cæsar had come to the gate of Italy, and, as it were with a blast of his trumpet, had demanded the Consulship, a triumph, the use of his legions, and the continuance of his military power. "Let Pompey put down his, and I will put down mine," he had said. Had Pompey put down his, Pompey and Cicero, Cato and Brutus, and Bibulus would all have had to walk at the heels of

Cæsar. When Pompey declared that he would contest the point, he declared for them all. Cicero was bound to go to Pharsalia. But when, by Pompey's incompetence, Cæsar was the victor; when Pompey had fallen at the Nile, and all the lovers of the fish-ponds, and the intractable oligarchs, and the cutthroats of the Empire, such as young Pompey had become, had scattered themselves far and wide, some to Asia, some to Illyricum, some to Spain, and more to Africa—as a herd of deer shall be seen to do when a vast hound has appeared among them, with his jaws already dripping with blood—was Cicero then to take his part with any of them? I hold that he did what dignity required, and courage also. He went back to Italy, and there he waited till the conqueror should come.

It must have been very bitter. Never to have become great has nothing in it of bitterness for a noble spirit. What matters it to the unknown man whether a Cæsar or a Pompey is at the top of all things? Or if it does matter—as indeed that question of his governance does matter to every man who has a soul within him to be turned this way or that—which way he is turned, though there may be inner regrets that Cæsar should become the tyrant, perhaps keener regrets, if the truth were all seen, that Pompey's hands should be untrammelled, who sees them? I can walk down to my club with my brow unclouded, or, unless I be stirred to foolish wrath by the pride of some one equally vain, can enjoy myself amid the festivities of the hour. It is but a little affair to me. If it come in my way to do a thing, I will do my best, and there is an end of it. The sense of responsibility is not there, nor the grievous weight of having tried but failed to govern mankind. But to have clung to high places; to have sat in the highest seat of all with infinite honor; to have been called by others, and, worse still, to have called myself, the savior of my country; to have believed in myself that I was sufficient, that I alone could do it, that I could bring back, by my own justice and integrity, my erring countrymen to their former simplicity—and then to have found myself fixed in a little town, just in Italy, waiting for the great conqueror, who though my friend in things social was opposed to me body and soul as to rules of life—that, I say, must have been beyond the bitterness of death.

During this year he had made himself acquainted with the details of that affair, whatever it might be, which led to his divorce soon after his return to Rome. He had lived about thirty years with his wife, and the matter could

not but have been to him the cause of great unhappiness. Terentia was not only the mother of his children, but she had been to him also the witness of his rise in life and the companion of his fall. He was one who would naturally learn to love those with whom he was conversant. He seems to have projected himself out of his own time into those modes of thought which have come to us with Christianity, and such a separation from this woman after an intercourse of so many years must have been very grievous to him. All married Romans underwent divorce quite as a matter of course. There were many reasons. A young wife is more agreeable to the man's taste than one who is old. A rich wife is more serviceable than a poor. A new wife is a novelty. A strange wife is an excitement. A little wife is a relief to one overburdened with the flesh; a buxom wife to him who has become tired of the pure spirit. Xanthippe asks too much, while Griselda is too tranquil. And then, as a man came up in the world, causes for divorce grew without even the trouble of having to search for faults. Cæsar required that his wife should not be ill spoken of, and therefore divorced her. Pompey cemented the Triumvirate with a divorce. We cannot but imagine that, when men had so much the best of it in the affairs of life, a woman had always the worst of it in these enforced separations. But as the wind is tempered to the shorn lamb, so were divorces made acceptable to Roman ladies. No woman was disgraced by a divorce, and they who gave over their husbands at the caprice of a moment to other embraces would usually find consolation. Terentia when divorced from Cicero was at least fifty, and we are told she had the extreme honor of having married Sallust after her break with Cicero. They say that she married twice again after Sallust's death, and that having lived nearly through the reign of Augustus, she died at length at the age of a hundred and three. Divorce at any rate did not kill her. But we cannot conceive but that so sudden a disruption of all the ties of life must have been grievous to Cicero. We shall find him in the next chapter marrying a young ward, and then, too, divorcing her; but here we have only to deal with the torments Terentia inflicted on him. What those torments were we do not know, and shall never learn unless by chance the lost letters of Atticus should come to light. But the general idea has been that the lady had, in league with a freedman and steward in her service, been guilty of fraud against her husband. I do not know that we have much cause to lament the means of ascertaining the truth. It is sad to find that the great men with whose name we are occupied have been made subject to those

"whips and scorns of time" which we thought to be peculiar to ourselves, because they have stung us. Terentia, Cicero's wife two thousand years ago, sent him word that he had but £100 left in his box at home, when he himself knew well that there must be something more. That would have gone for nothing had there not been other things before that, many other things. So, in spite of his ordering at her hands the baths and various matters to be got ready for his friends at his Tusculum, a very short time after his return there he had divorced her.

During this last year he had been engaged on what has since been found to be the real work of his life. He had already written much, but had written as one who had been anxious to fill up vacant spaces of time as they came in his way. From this time forth he wrote as does one who has reconciled himself to the fact that there are no more days to be lost if he intends, before the sun be set, to accomplish an appointed task. He had already compiled the *De Oratore*, the *De Republica*, and the *De Legibus*. Out of the many treatises which we have from Cicero's hands, these are they which are known as the works of his earlier years. He commenced the year with an inquiry, *De Optimo Genere Oratorum*, which he intended as a preface to the translations which he made of the great speeches of Æschines and Demosthenes, *De Corona*. These translations are lost, though the preface remains. He then translated, or rather paraphrased the *Timæus* of Plato, of which a large proportion has come down to us, and the *Protagoras*, of which we have lost all but a sentence or two. We have his *Oratoriæ Partitiones*, in which, in a dialogue between himself and his son, he repeats the lessons on oratory which he has given to the young man. It is a recapitulation, in short, of all that had been said on a subject which has since been made common, and which owed its origin to the work of much earlier years. It is but dull reading, but I can imagine that even in these days it may be useful to a young lawyer. There is a cynical morsel among these precepts which is worth observing, "*Cito enim arescit lachryma præsertim in alienis malis;*"¹³⁹ and another grandly simple, "*Nihil enim est aliud eloquentia nisi copiose loquens sapientia.*" Can we fancy anything more biting than the idea that the tears caused by the ills of another soon grow dry on the orator's cheek, or more wise than that which tells us that eloquence is no more than wisdom speaking eloquently? Then he wrote the six *Paradoxes* addressed to Brutus—or rather he then gave them to the world, for they were surely

written at an earlier date. They are short treatises on trite subjects, put into beautiful language, so as to arrest the attention of all readers by the unreasonableness of their reasoning. The most remarkable is the third, in which he endeavored to show that a man cannot be wise unless he be all-wise, a doctrine which he altogether overturns in his *De Amicitia*, written but four years afterward. Cicero knew well what was true, and wrote his paradox in order to give a zest to the subject. In the fourth and the sixth are attacks upon Clodius and Crassus, and are here republished in what would have been the very worst taste amid the politeness of our modern times. A man now may hate and say so while his foe is still alive and strong; but with the Romans he might continue to hate, and might republish the words which he had written, eight years after the death of his victim.

I know nothing of Cicero's which so much puts us in mind of the struggles of the modern authors to make the most of every word that has come from them, as do these paradoxes. They remind us of some writer of leading articles who gets together a small bundle of essays and then gives them to the world. Each of them has done well at its time, but that has not sufficed for his ambition; therefore they are dragged out into the light and put forward with a separate claim for attention, as though they could stand well on their own legs. But they cannot stand alone, and they fall from having been put into a position other than that for which they were intended when written.

CHAPTER VII.

MARCELLUS, LIGARIUS, AND DEIOTARUS.

B.C. 46, ætat. 61. The battle of Thapsus, in Africa, took place in the spring of this year, and Cato destroyed himself with true stoical tranquillity, determined not to live under Cæsar's rule. If we may believe the story which, probably, Hirtius has given us, in his account of the civil war in Africa, and which has come down to us together with Cæsar's Commentaries, Cato left his last instructions to some of his officers, and then took his sword into his bed with him and stabbed himself. Cicero, who, in his dream of Scipio, has given his readers such excellent advice in regard to suicide, has understood that Cato must be allowed the praise of acting up to his own principles. He would die rather than behold the face of the tyrant who had enslaved him.¹⁴⁰ To Cato it was nothing that he should leave to others the burden of living under Cæsar; but to himself the idea of a superior caused an unendurable affront. The "Catonis nobile letum" has reconciled itself to the poets of all ages. Men, indeed, have refused to see that he fled from a danger which he felt to be too much for him, and that in doing so he had lacked something of the courage of a man. Many other Romans of the time did the same thing, but to none has been given all the honor which has been allowed to Cato.

Cicero felt as others have done, and allowed all his little jealousies to die away. It was but a short time before that Cato had voted against the decree of the Senate giving Cicero his "supplication." Cicero had then been much annoyed; but now Cato had died fighting for the Republic, and was to be forgiven all personal offences. Cicero wrote a eulogy of Cato which was known by the name of Cato, and was much discussed at Rome at the time. It has now been lost. He sent it to Cæsar, having been bold enough to say in it whatever occurred to him should be said in Cato's praise. We may imagine that, had it not pleased him to be generous—had he not been governed by that feeling of "De mortuis nil nisi bonum," which is now common to us all—he might have said much that was not good. Cato had endeavored to live up to the austere rules of the Stoics—a mode of living altogether antagonistic to Cicero's views. But we know that he praised Cato to the full—and we know also that Cæsar nobly took the praise in good part, as coming from Cicero, and answered it in an Anti-Cato, in which he stated his reasons for differing from Cicero. We can understand how Cæsar should have shown that the rigid Stoic was not a man likely to be of service to his country.

There came up at this period a question which made itself popular among the "optimates" of Rome, as to the return of Marcellus. The man of Como, whom Marcellus had flogged, will be remembered—the Roman citizen who had first been made a citizen by Cæsar. This is mentioned now not as the cause of Cæsar's enmity, who did not care much probably for his citizen, but as showing the spirit of the man. He, Marcellus, had been Consul four years since, B.C. 51, and had then endeavored to procure Cæsar's recall from his province. He was one of the "optimates," an oligarch altogether opposed to Cæsar, a Roman nobleman of fairly good repute, who had never bent to Cæsar, but had believed thoroughly in his order, and had thought, till the day of Pharsalia came, that the Consuls and the Senate would rule forever. The day of Pharsalia did come, and Marcellus went into voluntary banishment in Mitylene. After Pharsalia, Cæsar's clemency began to make itself known. There was a pardon for almost every Roman who had fought against him, and would accept it. No spark of anger burnt in Cæsar's bosom, except against one or two, of whom Marcellus was one. He was too wise to be angry with men whose services he might require. It was Cæsar's wish not to drive out the good men but to induce them to remain in Rome, living by the grace of his favor. Marcellus had many friends, and it seems that a public effort was made to obtain for him permission to come back to Rome. We must imagine that Cæsar had hitherto refused, probably with the idea of making his final concession the more valuable. At last the united Senators determined to implore his grace, and the Consulares rose one after another in their places, and all, with one exception,¹⁴¹ asked that Marcellus might be allowed to return. Cicero, however, had remained silent to the last. There must have been, I think, some plot to get Cicero on to his legs. He had gone to meet Cæsar at Brundisium when he came back from the East, had returned to Rome under his auspices, and had lived in pleasant friendship with Cæsar's friends. Pardon seems to have been accorded to Cicero without an effort. As far as he was concerned, that hostile journey to Dyrrachium—for he did not travel farther toward the camp—counted for nothing with Cæsar. He was allowed to live in peace, at Rome or at his villas, as he might please, so long as Cæsar might rule. The idea seems to have been that he should gradually become absorbed among Cæsar's followers. But hitherto he had remained silent. It was now six years since his voice had been heard in Rome. He had spoken for Milo—or had intended to speak—and, in the same affair, for Munatius Plancus, and for

Saufeiſus, B.C. 52. He had then been in his fifty-fifth year, and it might well be that ſix years of ſilence at ſuch a period of his life would not be broken. It was manifeſtly his intention not to ſpeak again, at any rate in the Senate; though the threats made by him as to his total retirement ſhould not be taken as meaning much. Such threats from ſtateſmen depend generally on the wiſhes of other men. But he held his place in the Senate, and occaſionally attended the debates. When this affair of Marcellus came on, and all the Senators of conſular rank—excepting only Volcatius and Cicero—had riſen, and had implored Cæſar in a few words to condeſcend to be generous; when Claudius Marcellus had knelt at Cæſar's feet to aſk for his brother's liberty, and Cæſar himſelf, after reminding them of the bitterness of the man, had ſtill declared that he could not reſuſe the prayers of the Senate, then Cicero, as though driven by the magnanimity of the conqueror, roſe from his place, and poured forth his thanks in the ſpeech which is ſtill extant.

That uſed to be the ſtory till there came the German critic Wolf, who at the beginning of this century told us that Cicero did not utter the words attributed to him, and could not have uttered them. According to Wolf, it would be doing Cicero an egregious wrong to ſuppoſe him capable of having uſed ſuch words, which are not Latin, and which were probably written by ſome ignoramus in the time of Tiberius. Such a verdict might have been taken as fatal—for Wolf's ſcholarſhip and powers of criticism are acknowledged—in ſpite of La Harpe, the French ſcholar and critic, who has named the Marcellus as a thing of excellence, comparing it with the eulogistic ſpeeches of Iſocrates. The praiſe of La Harpe was previous to the condemnation of Wolf, and we might have been willing to accede to the German as being the later and probably the more accurate. Mr. Long, the Britiſh editor of the Orations—Mr. Long, who has ſo loudly condemned the four ſpeeches ſuppoſed to have been made after Cicero's return from exile—gives us no certain guidance. Mr. Long, at any rate, has not been ſo diſgusted by the Tiberian Latin as to feel himſelf bound to repudiate it. If he can read the Pro Marcello, ſo can I, and ſo, my reader, might you do probably without detriment. But theſe differences among the great philologic critics tend to make us, who are ſo infinitely leſs learned, better contented with our own lot. I, who had read the Pro Marcello without ſtumbling over its halting Latinity, ſhould have felt myſelf cruſhed when I

afterward came across Wolf's denunciations, had I not been somewhat comforted by La Harpe. But when I found that Mr. Long, in his introduction to the piece, though he discusses Wolf's doctrine, still gives to the orator the advantage, as it may be, of his "imprimatur," I felt that I might go on, and not be ashamed of myself.¹⁴²

This is the story that has now to be told of the speech Pro Marcello. At the time the matter ended very tragically. As soon as Cæsar had yielded, Cicero wrote to Marcellus giving him strong reasons for coming home. Marcellus answered him, saying that it was impossible. He thanks Cicero shortly; but, with kindly dignity, he declines. "With the comforts of the city I can well dispense," he says.¹⁴³ Then Cicero urges him again and again, using excellent arguments for his return—which at length prevail. In the spring of the next year Marcellus, on his way back to Rome, is at Athens. There Servius Sulpicius spends a day with him; but, just as Sulpicius is about to pass on, there comes a slave to him who tells him that Marcellus has been murdered. His friend Magius Chilo had stabbed him overnight, and had then destroyed himself. It was said that Chilo had asked Marcellus to pay his debts for him, and that Marcellus had refused. It seems to be more probable that Chilo had his own reasons for not choosing that his friend should return to Rome.

Looking back at my own notes on the speech—it would make with us but a ten minutes' after-dinner speech—I see that it is said "that it is chiefly remarkable for the beauty of the language, and the abjectness of the praise of Cæsar." This was before I had heard of Wolf. As to the praise, I doubt whether it should be called abject, regard being had to the feelings of the moment in which it was delivered. Cicero had risen to thank Cæsar—on whose breath the recall of Marcellus depended—for his unexpected courtesy. In England we should not have thanked Cæsar as Cicero did: "O Cæsar, there is no flood of eloquence, no power of the tongue or of the pen, no richness of words, which may emblazon, or even dimly tell the story of your great deeds."¹⁴⁴ Such language is unusual with us—as it would also be unusual to abuse our Pisos and our Vatiniuses, as did Cicero. It was the Southerner and the Roman who spoke to Southerners and to Romans. But, undoubtedly, there was present to the mind of Cicero the idea of saying words which Cæsar might receive with pleasure. He was dictator, emperor,

lord of all things—king. Cicero should have remained away, as Marcellus had done, were he not prepared to speak after this fashion. He had long held aloof from speech. At length the time had come when he was, as it were, caught in a trap, and compelled to be eloquent.

B.C. 46, ætat. 61. The silence had been broken, and in the course of the autumn he spoke on behalf of Ligarius, beseeching the conqueror to be again merciful. This case was by no means similar to that of Marcellus, who was exiled by no direct forfeiture of his right to live in Italy, but who had expatriated himself. In this case Ligarius had been banished with others; but it seems that the punishment had been inflicted on him, not from the special ill-will of Cæsar, but from the malice of certain enemies who, together with Ligarius, had found themselves among Pompey's followers when Cæsar crossed the Rubicon. Ligarius had at this time been left as acting governor in Africa. In the confusion of the times an unfortunate Pompeian named Varus had arrived in Africa, and to him, as being superior in rank, Ligarius had given up the government. Varus had then gone, leaving Ligarius still acting, and one Tubero had come with his son, and had demanded the office. Ligarius had refused to give it up, and the two Tuberos had departed, leaving the province in anger, and had fought at the Pharsalus. After the battle they made their peace with Cæsar, and in the scramble that ensued Ligarius was banished. Now the case was brought into the courts, in which Cæsar sat as judge. The younger Tubero accused Ligarius, and Cicero defended him. It seems that, having been enticed to open his mouth on behalf of Marcellus, he found himself launched again into public life. But how great was the difference from his old life! It is not to the *Judices*, or *Patres Conscripti*, or to the *Quirites* that he now addresses himself, determined by the strength of his eloquence to overcome the opposition of stubborn minds, but to Cæsar, whom he has to vanquish simply by praise. Once again he does the same thing when pleading for Deiotarus, the King of Galatia, and it is impossible to deny, as we read the phrases, that the orator sinks in our esteem. It is not so much that we judge him to be small, as that he has ceased to be great. He begins his speech for Ligarius by saying, "My kinsman Tubero has brought before you, O Cæsar, a new crime, and one not heard of up to this day—that Ligarius has been in Africa."¹⁴⁵ The commencement would have been happy enough if it had not been addressed to Cæsar; for he was addressing a judge not appointed by

any form, but self-assumed—a judge by military conquest. We cannot imagine how Cæsar found time to sit there, with his legions round him still under arms, and Spain not wholly conquered. But he did do so, and allowed himself to be persuaded to the side of mercy. Ligarius came back to Rome, and was one of those who plunged their daggers into him. But I cannot think that he should have been hindered by this trial and by Cæsar's mercy from taking such a step, if by nothing else. Brutus and Cassius also stabbed him. The question to be decided is whether, on public grounds, these men were justified in killing him—a question as to which I should be premature in expressing an opinion here.

There are some beautiful passages in this oration. "Who is there, I ask," he says, "who alleges Ligarius to have been in fault because he was in Africa? He does so who himself was most anxious to be there, and now complains that he was refused admittance by Ligarius, he who was in arms against Cæsar. What was your sword doing, Tubero, in that Pharsalian army? Whom did you seek to kill then? What was the meaning of your weapon? What was it that you desired so eagerly, with those eyes and hands, with that passion in your heart? I press him too much; the young man seems to be disturbed. I will speak of myself, then, for I also was in that army."¹⁴⁶ This was in Cæsar's presence, and no doubt told with Cæsar. We were all together in the same cause—you, and I, and Ligarius. Why should you and I be pardoned and not Ligarius? The oration is for the most part simply eulogistic. At any rate it was successful, and became at Rome, for the time, extremely popular. He writes about it early in the following year to Atticus, who has urged him to put something into it, before it was published, to mitigate the feeling against Tubero. Cicero says in his reply to Atticus that the copies have already been given to the public, and that, indeed, he is not anxious on Tubero's behalf.

Early in this year he had divorced Terentia, and seems at once to have married Publilia. Publilia had been his ward, and is supposed to have had a fortune of her own. He explains his own motives very clearly in a letter to his friend Plancius. In these wretched times he would have formed no new engagement, unless his own affairs had been as sad for him as were those of the Republic; but when he found that they to whom his prosperity should have been of the greatest concern were plotting against him within his own walls, he was forced to strengthen himself against the perfidy of his old

inmates by placing his trust in new.¹⁴⁷ It must have been very bad with him when he had recourse to such a step as this. Shortly after this letter just quoted had been written, he divorced Publilia also—we are told because Publilia had treated Tullia with disrespect. We have no details on the subject, but we can well understand the pride of the young woman who declined to hear the constant praise of her step-daughter, and thought herself to be quite as good as Tullia. At any rate, she was sent away quickly from her new home, having remained there only long enough to have made not the most creditable episode in Cicero's life.

At this time Dolabella, who assumed the Consulship upon Cæsar's death, and Hirtius, who became Consul during the next year, used to attend upon Cicero and take lessons in elocution. So at least the story has been told, from a letter written in this year to his friend Pœtus; but I should imagine that the lessons were not much in earnest. "Why do you talk to me of your tunny-fish, your pilot-fish, and your cheese and sardines? Hirtius and Dolabella preside over my banquets, and I teach them in return to make speeches."¹⁴⁸ From this we may learn that Cæsar's friends were most anxious to be also Cicero's friends. It may be said that Dolabella was his son-in-law; but Dolabella was at this moment on the eve of being divorced. It was in spite of his marriage that Dolabella still clung to Cicero. All Cæsar's friends in Rome did the same; so that I am disposed to think that for this year, just till Tullia's death, he was falling, not into a happy state, but to the passive contentment of those who submit themselves to be ruled over by a single master. He had struggled all his life, and now finding that he must yield, he thought that he might as well do so gracefully. It was so much easier to listen to the State secrets of Balbus, and hear from Oppius how the money was spent, and then to dine with Hirtius or Dolabella, than to sit ever scowling at home, as Cato would have done had Cato lived. But with his feelings about the Republic at heart, how sad it must have been! Cato was gone, and Pompey, and Bibulus; and Marcellus was either gone or just about to go. Old age was creeping on. It was better to write philosophy, in friendship with Cæsar's friends, than to be banished again whither he could not write it at all. Much, no doubt, he did in preparation for all those treatises which the next eighteen months were to bring forth.

Cæsar, just at the end of the year, had been again called to Spain, B.C. 46, to quell the last throbbings of the Pompeians, and then to fight the final battle of Munda. It would seem odd to us that so little should have been said about such an event by Cicero, and that the little should depend on the education of his son, were it not that if we look at our own private letters, written to-day to our friends, we find the same omission of great things. To Cicero the doings of his son were of more immediate moment than the doings of Cæsar. The boy had been anxious to enlist for the Spanish war. Quintus, his cousin, had gone, and young Marcus was anxious to flutter his feathers beneath the eyes of royalty. At his age it was nothing to him that he had been taken to Pharsalia and made to bear arms on the opposite side. Cæsar had become Cæsar since he had learned to form his opinion on politics, and on Cæsar's side all things seemed to be bright and prosperous. The lad was anxious to get away from his new step-mother, and asked his father for the means to go with the army to Spain. It appears by Cicero's letter to Atticus on the subject¹⁴⁹ that, in discussing the matter with his son, he did yield. These Roman fathers, in whose hands we are told were the very lives of their sons, seem to have been much like Christian fathers of modern days in their indulgences. The lad was now nineteen years old, and does not appear to have been willing, at the first parental attempt, to give up his military appanages and that swagger of the young officer which is so dear to the would-be military mind. Cicero tells him that if he joined the army he would find his cousin treated with greater favor than himself. Young Quintus was older, and had been already able to do something to push himself with Cæsar's friends. "Sed tamen permisi"—"Nevertheless, I told him he might go," said Cicero, sadly. But he did not go. He was allured, probably, by the promise of a separate establishment at Athens, whither he was sent to study with Cratippus. We find another proof of Cicero's wealth in the costliness of his son's household at Athens, as premeditated by the father. He is to live as do the sons of other great noblemen. He even names the young noblemen with whom he is to live. Bibulus was of the Calpurnian "gens," Acidinus of the Manlian, and Messala of the Valerian, and these are the men whom Cicero, the "novus homo" from Arpinum, selects as those who shall not live at a greater cost than his son.¹⁵⁰ "He will not, however, at Athens want a horse." Why not? Why should not a young man so furnished want a horse at Athens? "There are plenty here at home for the road," says Cicero. So young Cicero is furnished, and sent forth to learn philosophy and

Greek. But no one has essayed to tell us why he should not want the horse. Young Cicero when at Athens did not do well. He writes home in the coming year, to Tiro, two letters which have been preserved for us, and which seem to give us but a bad account, at any rate, of his sincerity. "The errors of his youth," he says, "have afflicted him grievously." Not only is his mind shocked, but his ears cannot bear to hear of his own iniquity.¹⁵¹ "And now," he says, "I will give you a double joy, to compensate all the anxiety I have occasioned you. Know that I live with Cratippus, my master, more like a son than a pupil. I spend all my days with him, and very often part of the night." But he seems to have had some wit. Tiro has been made a freedman, and has bought a farm for himself. Young Marcus—from whom Tiro has asked for some assistance which Marcus cannot give him—jokes with him as to his country life, telling him that he sees him saving the apple-pips at dessert. Of the subsequent facts of the life of young Marcus we do not know much. He did not suffer in the proscriptions of Antony and Augustus, as did his father and uncle and his cousin. He did live to be chosen as Consul with Augustus, and had the reputation of a great drinker. For this latter assertion we have only the authority of Pliny the elder, who tells us an absurd story, among the wonders of drinking which he adduces.¹⁵² Middleton says a word or two on behalf of the young Cicero, which are as well worthy of credit as anything else that has been told. One last glance at him which we can credit is given in that letter to Tiro, and that we admit seems to us to be hypocritical.

B.C. 45, ætat. 62. In the spring of the year Cicero lost his daughter Tullia. We have first a letter of his to Lepta, a man with whom he had become intimate, saying that he had been kept in Rome by Tullia's confinement, and that now he is still detained, though her health is sufficiently confirmed, by the expectation of obtaining from Dolabella's agents the first repayment of her dowry. The repayment of the divorced lady's marriage portion was a thing of every-day occurrence in Rome, when she was allowed to take away as much as she had brought with her. Cicero, however, failed to get back Tullia's dowry. But he writes in good spirits. He does not think that he cares to travel any more. He has a house at Rome better than any of his villas in the country, and greater rest than in the most desert region. His studies are now never interrupted. He thinks it probable that Lepta will have to come to

him before he can be induced to go to Lepta. In the mean time let the young Lepta take care and read his Hesiod.¹⁵³

Then he writes in the spring to Atticus a letter from Antium, and we first hear that Tullia is dead. She had seemed to recover from childbirth; but her strength did not suffice, and she was no more.¹⁵⁴ A boy had been born, and was left alive. In subsequent letters we find that Cicero gives instructions concerning him, and speaks of providing for him in his will.¹⁵⁵ But of the child we hear nothing more, and must surmise that he also died. Of Tullia's death we have no further particulars; but we may well imagine that the troubles of the world had been very heavy on her. The little stranger was being born at the moment of her divorce from her third husband. She was about thirty-two years of age, and it seems that Cicero had taken consolation in her misfortunes from the expected pleasure of her companionship. She was now dead, and he was left alone.

She had died in February, and we know nothing of the first outbreak of his sorrow. It appears that he at first buried himself for a while in a villa belonging to Atticus, near Rome, and that he then retreated to his own at Astura. From thence, and afterward from Antium, there are a large number of letters, all dealing with the same subject. He declares himself to be inconsolable; but he does take consolation from two matters—from his books on philosophy, and from an idea which occurs to him that he will perpetuate the name of Tullia forever by the erection of a monument that shall be as nearly immortal as stones and bricks can make it.

His letters to Atticus at this time are tedious to the general reader, because he reiterates so often his instructions as to the purchase of the garden near Rome in which the monument is to be built; but they are at the same time touching and natural. "Nothing has been written," he says, "for the lessening of grief which I have not read at your house; but my sorrow breaks through it all."¹⁵⁶ Then he tells Atticus that he too has endeavored to console himself by writing a treatise on Consolation. "Whole days I write; not that it does any good." In that he was wrong. He could find no cure for his grief; but he did know that continued occupation would relieve him, and therefore he occupied himself continually. "Totos dies scribo." By doing so,

he did contrive not to break his heart. In a subsequent letter he says, "Reading and writing do not soften it, but they deaden it."¹⁵⁷

On the Appian Way, a short distance out of Rome, the traveller is shown a picturesque ancient building, of enormous strength, called the Mole of Cæcilia Metella. It is a castle in size, but is believed to have been the tomb erected to the memory of Cæcilia, the daughter of Metellus Creticus, and the wife of Crassus the rich. History knows of her nothing more, and authentic history hardly knows so much of the stupendous monument. There it stands, however, and is supposed to be proof of what might be done for a Roman lady in the way of perpetuating her memory. She was, at any rate, older than Tullia, having been the wife of a man older than Tullia's father. If it be the case that this monument be of the date named, it proves to us, at least, that the notion of erecting such monuments was then prevalent. Some idea of a similar kind—of a monument equally stupendous, and that should last as long—seems to have taken a firm hold of Cicero's mind. He has read all the authors he could find on the subject, and they agree that it shall be done in the fashion he points out. He does not, he says, consult Atticus on that matter, nor on the architecture, for he has already settled on the design of one Cluatus. What he wants Atticus to do for him now is to assist him in buying the spot on which it shall be built. Many gardens near Rome are named. If Drusus makes a difficulty, Atticus must see Damasippus. Then there are those which belong to Sica and to Silius! But at last the matter dies away, and even the gardens are not bought. We are led to imagine that Atticus has been opposed to the monument from first to last, and that the immense cost of constructing such a temple as Cicero had contemplated is proved to him to be injudicious. There is a charming letter written to him at this time by his friend Sulpicius, showing the great feeling entertained for him. But, as I have said before, I doubt whether that or any other phrases of consolation were of service to him. It was necessary for him to wait and bear it, and the more work that he did when he was bearing it, the easier it was borne. Luceius and Torquatus wrote to him on the same subject, and we have his answers.

B.C. 45, ætat. 62. In September Cæsar returned from Spain, having at last conquered the Republic. All hope for liberty was now gone. Atticus had instigated Cicero to write something to Cæsar as to his victories—something that should be complimentary, and at the same time friendly

and familiar; but Cicero had replied that it was impossible. "When I feel," he said, "that to draw the breath of life is in itself base, how base would be my assent to what has been done!"¹⁵⁸ But it is not only that. There are not words in which such a letter ever can be written. Do you not know that Aristotle, when he addressed himself to Alexander, wrote to a youth who had been modest; but then, when he had once heard himself called king, he became proud, cruel, and unrestrained? How, then, shall I now write in terms which shall suffice for his pride to the man who has been equalled to Romulus?" It was true; Cæsar had now returned inflated with such pride that Brutus, and Cassius, and Casca could no longer endure him. He came back, and triumphed over the five lands in which he had conquered not the enemies of Rome, but Rome itself. He triumphed nominally over the Gauls, the Egyptians, the Asiatics of Pontus, over the Africans, and the Spaniards; but his triumph was, in truth, over the Republic. There appears from Suetonius to have been five separate triumphal processions, each at the interval of a few days.¹⁵⁹ Amid the glory of the first Vercingetorix was strangled. To the glory of the third was added—as Suetonius tells us—these words, "Veni, vidi, vici," displayed on a banner. This I think more likely than that he had written them on an official despatch. We are told that the people of Rome refused to show any pleasure, and that even his own soldiers had enough in them of the Roman spirit to feel resentment at his assumption of the attributes of a king. Cicero makes but little mention of these gala doings in his letters. He did not see them, but wrote back word to Atticus, who had described it all. "An absurd pomp," he says, alluding to the carriage of the image of Cæsar together with that of the gods; and he applauds the people who would not clap their hands, even in approval of the Goddess of Victory, because she had shown herself in such bad company.¹⁶⁰ There are, however, but three lines on the subject, showing how little there is in that statement of Cornelius Nepos that he who had read Cicero's letters carefully wanted but little more to be well informed of the history of the day.

Cæsar was not a man likely to be turned away from his purpose of ruling well by personal pride—less likely, we should say, than any self-made despot dealt with in history. He did make efforts to be as he was before. He endeavored to live on terms of friendship with his old friends; but the spirit of pride which had taken hold of him was too much for him. Power had got

possession of him, and he could not stand against it. It was sad to see the way in which it compelled him to make himself a prey to the conspirators, were it not that we learn from history how impossible it is that a man should raise himself above the control of his fellow-men without suffering.

B.C. 45, ætat. 62. During these days Cicero kept himself in the country, giving himself up to his philosophical writings, and indulging in grief for Tullia. Efforts were repeatedly made to bring him to Rome, and he tells Atticus in irony that if he is wanted there simply as an augur, the augurs have nothing to do with the opening of temples. In the same letter he speaks of an interview he has just had with his nephew Quintus, who had come to him in his disgrace. He wants to go to the Parthian war, but he has not money to support him. Then Cicero uses, as he says, the eloquence of Atticus, and holds his tongue.¹⁶¹ We can imagine how very unpleasant the interview must have been. Cicero, however, decides that he will go up to the city, so that he may have Atticus with him on his birthday. This letter was written toward the close of the year, and Cicero's birthday was the 3d of January.

He then goes to Rome, and undertakes to plead the cause of Deiotarus, the King of Galatia, before Cæsar. This very old man had years ago become allied with Pompey, and, as far as we can judge, been singularly true to his idea of Roman power. He had seen Pompey in all his glory when Pompey had come to fight Mithridates. The Tetrarchs in Asia Minor, of whom this Deiotarus was one, had a hard part to play when the Romans came among them. They were forced to comply, either with their natural tendency to resist their oppressors, or else were obliged to fleece their subjects in order to satisfy the cupidity of the invaders. We remember Ariobarzanes, who sent his subjects in gangs to Rome to be sold as slaves in order to pay Pompey the interest on his debt. Deiotarus had similarly found his best protection in being loyal to Pompey, and had in return been made King of Armenia by a decree of the Roman Senate. He joined Pompey at the Pharsalus, and, when the battle was over, returned to his own country to look for further forces wherewith to aid the Republic. Unfortunately for him, Cæsar was the conqueror, and Deiotarus found himself obliged to assist the conqueror with his troops. Cæsar seems never to have forgiven him his friendship for Pompey. He was not a Roman, and was unworthy of forgiveness. Cæsar took away from him the kingdom of Armenia, but left him still titular King

of Galatia. But this enmity was known in the king's own court, and among his own family. His own daughter's son, one Castor, became desirous of ruining his grandfather, and brought a charge against the king. Cæsar had been the king's compelled guest in his journey in quest of Pharnaces, and had passed quickly on. Now, when the war was over and Cæsar had returned from his five conquered nations, Castor came forward with his accusation. Deiotarus, according to his grandson, had endeavored to murder Cæsar while Cæsar was staying with him. At this distance of time and place we cannot presume to know accurately what the circumstances were; but it appears to have been below the dignity of Cæsar to listen to such a charge. He did do so, however, and heard more than one speech on the subject delivered in favor of the accused. Brutus spoke on behalf of the aged king, and spoke in vain. Cicero did not speak in vain, for Cæsar decided that he would pronounce no verdict till he had himself been again in the East, and had there made further inquiries. He never returned to the East; but the old king lived to fight once more, and again on the losing side. He was true to the party he had taken, and ranged himself with Brutus and Cassius at the field of Philippi.

The case was tried, if tried it can be called, in Cæsar's private house, in which the audience cannot have been numerous. Cæsar seems to have admitted Cicero to say what could be said for his friend, rather than as an advocate to plead for his client, so that no one should accuse him, Cæsar, of cruelty in condemning the criminal. The speech must have occupied twenty minutes in the delivery, and we are again at a loss to conceive how Cæsar should have found the time to listen to it. Cicero declares that he feels the difficulty of pleading in so unusual a place—within the domestic walls of a man's private house, and without any of those accustomed supports to oratory which are to be found in a crowded law court. "But," he says, "I rest in peace when I look into your eyes and behold your countenance." The speech is full of flattery, but it is turned so adroitly that we almost forgive it.¹⁶²

There is a passage in which Cicero compliments the victor on his well-known mercy in his victories—from which we may see how much Cæsar thought of the character he had achieved for himself in this particular. "Of you alone, O Cæsar, is it boasted that no one has fallen under your hands

but they who have died with arms in their hands."¹⁶³ All who had been taken had been pardoned. No man had been put to death when the absolute fighting was brought to an end. Cæsar had given quarter to all. It is the modern, generous way of fighting. When our country is invaded, and we drive back the invaders, we do not, if victorious, slaughter their chief men. Much less, when we invade a country, do we kill or mutilate all those who have endeavored to protect their own homes. Cæsar has evidently much to boast, and among the Italians he has caused it to be believed. It suited Cicero to assert it in Cæsar's ears. Cæsar wished to be told of his own clemency among the men of his own country. But because Cæsar boasted, and Cicero was complaisant, posterity is not to run away with the boast, and call it true. For all that is great in Cæsar's character I am willing to give him credit; but not for mercy; not for any of those divine gifts the loveliness of which was only beginning to be perceived in those days by some few who were in advance of their time. It was still the maxim of Rome that a "supplicatio" should be granted only when two thousand of the enemy should have been left on the field. We have something still left of the pagan cruelty about us when we send triumphant words of the numbers slain on the field of battle. We cannot but remember that Cæsar had killed the whole Senate of the Veneti, a nation dwelling on the coast of Brittany, and had sold all the people as slaves, because they had detained the messengers he had sent to them during his wars in Gaul. "Gravius vindicandum statuit"¹⁶⁴—"He had thought it necessary to punish them somewhat severely." Therefore he had killed the entire Senate, and enslaved the entire people. This is only one of the instances of wholesale horrible cruelty which he committed throughout his war in Gaul—of cruelty so frightful that we shudder as we think of the sufferings of past ages. The ages have gone their way, and the sufferings are lessened by increased humanity. But we cannot allow Cicero's compliment to pass idly by. The "nemo nisi armatus" referred to Italians, and to Italians, we may take it, of the upper rank—among whom, for the sake of dramatic effect, Deiotarus was placed for the occasion.

This was the last of Cicero's casual speeches. It was now near the end of the year, and on the ides of March following it was fated that Cæsar should die. After which there was a lull in the storm for a while, and then Cicero broke out into that which I have called his final scream of liberty. There came the

Philippics—and then the end. This speech of which I have given record as spoken Pro Rege Deiotaro was the last delivered by him for a private purpose. Forty-two he has spoken hitherto, of which something of the story has been told; the Philippics of which I have got to speak are fourteen in number, making the total number of speeches which we possess to be fifty-six. But of those spoken by him we have not a half, and of those which we possess some have been declared by the great critics to be absolutely spurious. The great critics have perhaps been too hard upon them: they have all been polished. Cicero himself was so anxious for his future fame that he led the way in preparing them for the press. Quintilian tells us that Tiro adapted them.¹⁶⁵ Others again have come after him and have retouched them, sometimes, no doubt, making them smoother, and striking out morsels which would naturally become unintelligible to later readers. We know what he himself did to the Milo. Others subsequently may have received rougher usage, but still from loving hands. Bits have been lost, and other bits interpolated, and in this way have come to us the speeches which we possess. But we know enough of the history of the times, and are sufficient judges of the language, to accept them as upon the whole authentic. The great critic, when he comes upon a passage against which his very soul recoils, on the score of its halting Latinity, rises up in his wrath and tears the oration to tatters, till he will have none of it. One set of objectionable words he encounters after another, till the whole seems to him to be damnable, and the oration is condemned. It has been well to allude to this, because in dealing with these orations it is necessary to point out that every word cannot be accepted as having been spoken as we find it printed. Taken collectively, we may accept them as a stupendous monument of human eloquence and human perseverance.

B.C. 45, ætat. 62. Late in the year, on the 12th before the calends of January, or the 21st of December, there took place a little party at Puteoli, the account of which interests us. Cicero entertained Cæsar at supper. Though the date is given as above, and though December had originally been intended to signify, as it does with us, a winter month, the year, from want of proper knowledge, had run itself out of order, and the period was now that of October. The amendment of the calendar, which was made under Cæsar's auspices, had not as yet been brought into use, and we must understand that October, the most delightful month of the year, was the

period in question. Cicero was staying at his Puteolan villa, not far from Baia, close upon the sea-shore—the corner of the world most loved by all the great Romans of the day for their retreat in autumn.¹⁶⁶ Puteoli, we may imagine, was as pleasant as Baia, but less fashionable, and, if all that we hear be true, less immoral. Here Cicero had one of his villas, and here, a few months before his death, Cæsar came to visit him. He gives, in a very few lines to Atticus, a graphic account of the entertainment. Cæsar had sent on word to say that he was coming, so that Cicero was prepared for him. But the lord of all the world had already made himself so evidently the lord, that Cicero could not entertain him without certain of those inner quakings of the heart which are common to us now when some great magnate may come across our path and demand hospitality for a moment. Cicero jokes at his own solicitude, but nevertheless we know that he has felt it when, on the next morning, he sent Atticus an account of it. His guest has been a burden to him indeed, but still he does not regret it, for the guest behaved himself so pleasantly! We must remark that Cicero did not ostensibly shake in his shoes before him. Cicero had been Consul, and has had to lead the Senate when Cæsar was probably anxious to escape himself as an undetected conspirator. Cæsar has grown since, but only by degrees. He has not become, as Augustus did, "facile princeps." He is aware of his own power, but aware also that it becomes him to ignore his own knowledge. And Cicero is also aware of it, but conscious at the same time of a nominal equality. Cæsar is now Dictator, has been Consul four times, and will be Consul again when the new year comes on. But other Romans have been Dictator and Consul. All of which Cæsar feels on the occasion, and shows that he feels it. Cicero feels it also, and endeavors, not quite successfully, to hide it.

Cæsar has come accompanied by troops. Cicero names two thousand men—probably at random. When Cicero hears that they have come into the neighborhood, he is terribly put about till one Barba Cassius, a lieutenant in Cæsar's employment, comes and reassures him. A camp is made for the men outside in the fields, and a guard is put on to protect the villa. On the following day, about one o'clock, Cæsar comes. He is shut up at the house of one Philippus, and will admit no one. He is supposed to be transacting accounts with Balbus. We can imagine how Cicero's cooks were boiling and stewing at the time. Then the great man walked down upon the sea-shore.

Rome was the only recognized nation in the world. The others were provinces of Rome, and the rest were outlying barbaric people, hardly as yet fit to be Roman provinces. And he was now lord of Rome. Did he think of this as he walked on the shore of Puteoli—or of the ceremony he was about to encounter before he ate his dinner? He did not walk long, for at two o'clock he bathed, and heard "that story about Mamurra" without moving a muscle. Turn to your Catullus, the 57th Epigram, and read what Cæsar had read to him on this occasion, without showing by his face the slightest feeling. It is short enough, but I cannot quote it even in a note, even in Latin. Who told Cæsar of the foul words, and why were they read to him on this occasion? He thought but little about them, for he forgave the author and asked him afterward to supper. This was at the bath, we may suppose. He then took his siesta, and after that "ἐμετικὴν agebat." How the Romans went through the daily process and lived, is to us a marvel. I think we may say that Cicero did not practise it. Cæsar, on this occasion, ate and drank plenteously and with pleasure. It was all well arranged, and the conversation was good of its kind, witty and pleasant. Cæsar's couch seems to have been in the midst, and around him lay supping, at other tables, his freedmen, and the rest of his suite. It was all very well; but still, says Cicero, he was not such a guest as you would welcome back—not one to whom you would say, "Come again, I beg, when you return this way." Once is enough. There were no politics talked—nothing of serious matters. Cæsar had begun to find now that no use could be made of Cicero for politics. He had tried that, and had given it up. Philology was the subject—the science of literature and languages. Cæsar could talk literature as well as Cicero, and turned the conversation in that direction. Cicero was apt, and took the desired part, and so the afternoon passed pleasantly, but still with a little feeling that he was glad when his guest was gone.¹⁶⁷

Cæsar declared, as he went, that he would spend one day at Puteoli and another at Baiæ. Dolabella had a villa down in those parts, and Cicero knows that Cæsar, as he passed by Dolabella's house, rode in the midst of soldiers—in state, as we should say—but that he had not done this anywhere else. He had already promised Dolabella the Consulship.

Was Cicero mean in his conduct toward Cæsar? Up to this moment there had been nothing mean, except that Roman flattery which was simply Roman good manners. He had opposed him at Pharsalia—or rather in

Macedonia. He had gone across the water—not to fight, for he was no fighting man—but to show on which side he had placed himself. He had done this, not believing in Pompey, but still convinced that it was his duty to let all men know that he was against Cæsar. He had resisted every attempt which Cæsar had made to purchase his services. Neither with Pompey nor with Cæsar did he agree. But with the former—though he feared that a second Sulla would arise should he be victorious—there was some touch of the old Republic. Something might have been done then to carry on the government upon the old lines. Cæsar had shown his intention to be lord of all, and with that Cicero could hold no sympathy. Cæsar had seen his position, and had respected it. He would have nothing done to drive such a man from Rome. Under these circumstances Cicero consented to live at Rome, or in the neighborhood, and became a man of letters. It must be remembered that up to the ides of March he had heard of no conspiracy. The two men, Cæsar and Cicero, had agreed to differ, and had talked of philology when they met. There has been, I think, as yet, nothing mean in his conduct.

CHAPTER VIII.

CÆSAR'S DEATH.

B.C. 44, ætat. 63. After the dinner-party at Puteoli, described in the last chapter,

Cicero came up to Rome, and was engaged in literary pursuits. Cæsar was now master and lord of everything. In January Cicero wrote to his friend Curio, and told him with disgust of the tomfooleries which were being carried on at the election of Quæstors. An empty chair had been put down, and was declared to be the Consul's chair. Then it was taken away, and another chair was placed, and another Consul was declared. It wanted then but a few hours to the end of the consular year—but not the less was Caninius, the new Consul, appointed, "who would not sleep during his Consulship," which lasted but from mid-day to the evening. "If you saw all this you would not fail to weep," says Cicero!¹⁶⁸ After this he seems to have recovered from his sorrow. We have a correspondence with Pœtus which

always typifies hilarity of spirits. There is a discussion, of which we have but the one side, on "double entendre" and plain speaking. Pœtus had advocated the propriety of calling a spade a spade, and Cicero shows him the inexpediency. Then we come suddenly upon his letter to Atticus, written on the 7th of April, three weeks after the fall of Cæsar.

Mommsen endeavors to explain the intention of Cæsar in the adoption of the names by which he chose to be called, and in his acceptance of those which, without his choosing, were imposed upon him.¹⁶⁹ He has done it perhaps with too great precision, but he leaves upon our minds a correct idea of the resolution which Cæsar had made to be King, Emperor, Dictator, or what not, before he started for Macedonia, B.C. 49,¹⁷⁰ and the disinclination which moved him at once to proclaim himself a tyrant. Dictator was the title which he first assumed, as being temporary, Roman, and in a certain degree usual. He was Dictator for an indefinite period, annually, for ten years, and, when he died, had been designated Dictator for life. He had already been, for the last two years, named "Imperator" for life; but that title—which I think to have had a military sound in men's ears, though it may, as Mommsen says, imply also civil rule—was not enough to convey to men all that it was necessary that they should understand. Till the moment of his triumph had come, and that "Veni, vidi, vici" had been flaunted in the eyes of Rome—till Cæsar, though he had been ashamed to call himself a king, had consented to be associated with the gods—Brutus, Cassius, and those others, sixty in number we are told, who became the conspirators, had hardly realized the fact that the Republic was altogether at an end. A bitter time had come upon them; but it was softened by the personal urbanity of the victor. But now, gradually, the truth was declaring itself, and the conspiracy was formed. I am inclined to think that Shakspeare has been right in his conception of the plot. "I do fear the people choose Cæsar for their king," says Brutus. "I had as lief not be, as live to be in awe of such a thing as I myself," says Cassius.¹⁷¹ It had come home to them at length that Cæsar was to be king, and therefore they conspired.

It would be a difficult task in the present era to recommend to my readers the murderers of Cæsar as honest, loyal politicians, who did for their country, in its emergency, the best that the circumstances would allow. The

feeling of the world in regard to murder has so changed during the last two thousand years, that men, hindered by their sense of what is at present odious, refuse to throw themselves back into the condition of things a knowledge of which can have come to them only from books. They measure events individually by the present scale, and refuse to see that Brutus should be judged by us now in reference to the judgment that was formed of it then. In an age in which it was considered wise and fitting to destroy the nobles of a barbarous community which had defended itself, and to sell all others as slaves, so that the perpetrator simply recorded the act he had done as though necessary, can it have been a base thing to kill a tyrant? Was it considered base by other Romans of the day? Was that plea ever made even by Cæsar's friends, or was it not acknowledged by them all that "Brutus was an honorable man," even when they had collected themselves sufficiently to look upon him as an enemy? It appears abundantly in Cicero's letters that no one dreamed of regarding them as we regard assassins now, or spoke of Cæsar's death as we look upon assassination. "Shall we defend the deeds of him at whose death we are rejoiced?" he says: and again, he deplores the feeling of regret which was growing in Rome on account of Cæsar's death, "lest it should be dangerous to those who have slain the tyrant for us."¹⁷² We find that Quintilian, among his stock lessons in oratory, constantly refers to the old established rule that a man did a good deed who had killed a tyrant—a lesson which he had taken from the Greek teachers.¹⁷³ We are, therefore, bound to accept this murder as a thing praiseworthy according to the light of the age in which it was done, and to recognize the fact that it was so regarded by the men of the day.

We are told now that Cicero "hated" Cæsar. There was no such hatred as the word implies. And we are told of "assassins," with an intention to bring down on the perpetrators of the deed the odium they would have deserved had the deed been done to-day; but the word has, I think, been misused. A king was abominable to Roman ears, and was especially distasteful to men like Cicero, Brutus, and the other "optimates" who claimed to be peers. To be "primus inter pares" had been Cicero's ambition—to be the leading oligarch of the day. Cæsar had gradually mounted higher and still higher, but always leaving some hope—infinitesimally small at last—that he might be induced to submit himself to the Republic. Sulla had submitted.

Personally there was no hatred; but that hope had almost vanished, and therefore, judging as a Roman, when the deed was done, Cicero believed it to have been a glorious deed. There can be no doubt on that subject. The passages in which he praises it are too numerous for direct quotation; but there they are, interspersed through the letters and the Philippics. There was no doubt of his approval. The "assassination" of Cæsar, if that is to be the word used, was to his idea a glorious act done on behalf of humanity. The all-powerful tyrant who had usurped dominion over his country had been made away with, and again they might fall back upon the law. He had filched the army. He had run through various provinces, and had enriched himself with their wealth. He was above all law; he was worse than a Marius or a Sulla, who confessed themselves, by their open violence, to be temporary evils. Cæsar was creating himself king for all time. No law had established him. No plebiscite of the nation had endowed him with kingly power. With his life in his hands, he had dared to do it, and was almost successful. It is of no purpose to say that he was right and Cicero was wrong in their views as to the government of so mean a people as the Romans had become. Cicero's form of government, under men who were not Ciceros, had been wrong, and had led to a state of things in which a tyrant might for the time be the lesser evil; but not on that account was Cicero wrong to applaud the deed which removed Cæsar. Middleton in his life (vol. ii, p. 435) gives us the opinion of Suetonius on this subject, and tells us that the best and wisest men in Rome supposed Cæsar to have been justly killed. Mr. Forsyth generously abstains from blaming the deed, as to which he leaves his readers to form their own opinion. Abeken expresses no opinion concerning its morality, nor does Morabin. It is the critics of Cicero's works who have condemned him without thinking much, perhaps, of the judgment they have given.

But Cicero was not in the conspiracy, nor had he even contemplated Cæsar's death. Assertions to the contrary have been made both lately and in former years, but without foundation. I have already alluded to some of these, and have shown that phrases in his letters have been misinterpreted. A passage was quoted by M. Du Rozoir—*Ad Att.*, lib. x., 8—"I don't think that he can endure longer than six months. He must fall, even if we do nothing." How often might it be said that the murder of an English minister had been intended if the utterings of such words be taken as a testimony! He quotes

again—Ad Att., lib. xiii., 40—"What good news could Brutus hear of Cæsar, unless that he hung himself?" This is to be taken as meditating Cæsar's death, and is quoted by a French critic, after two thousand years, in proof of Cicero's fatal ill-will!¹⁷⁴ The whole tenor of Cicero's letters proves that he had never entertained the idea of Cæsar's destruction.

How long before the time the conspiracy may have been in existence we have no means of knowing; but we feel that Cicero was not a man likely to be taken into the plot. He would have dissuaded Brutus and Cassius. Judging from what we know of his character, we think that he would have distrusted its success. Though he rejoiced in it after it was done, he would have been wretched while burdened with the secret. At any rate, we have the fact that he was not so burdened. The sight of Cæsar's slaughter, when he saw it, must have struck him with infinite surprise, but we have no knowledge of what his feelings may have been when the crowd had gathered round the doomed man. Cicero has left us no description of the moment in which Cæsar is supposed to have gathered his toga over his face so that he might fall with dignity. It certainly is the case that when you take your facts from the chance correspondence of a man you lose something of the most touching episodes of the day. The writer passes these things by, as having been surely handled elsewhere. It is always so with Cicero. The trial of Milo, the passing of the Rubicon, the battle of the Pharsalus, and the murder of Pompey are, with the death of Cæsar, alike unnoticed. "I have paid him a visit as to whom we spoke this morning. Nothing could be more forlorn."¹⁷⁵ It is thus the next letter begins, after Cæsar's death, and the person he refers to is Matius, Cæsar's friend; but in three weeks the world had become used to Cæsar's death. The scene had passed away, and the inhabitants of Rome were already becoming accustomed to his absence. But there can be no doubt as to Cicero's presence at Cæsar's fall. He says so clearly to Atticus.¹⁷⁶ Morabin throws a doubt upon it. The story goes that Brutus, descending from the platform on which Cæsar had been seated, and brandishing the bloody dagger in his hand, appealed to Cicero. Morabin says that there is no proof of this, and alleges that Brutus did it for stage effect. But he cannot have seen the letter above quoted, or seeing it, must have misunderstood it.¹⁷⁷

It soon became evident to the conspirators that they had scotched the snake, and not killed it. Cassius and others had desired that Antony also should be killed, and with him Lepidus. That Antony would be dangerous they were sure. But Marcus Brutus and Decimus overruled their counsels. Marcus had declared that the "blood of the tyrant was all that the people required."¹⁷⁸ The people required nothing of the kind. They were desirous only of ease and quiet, and were anxious to follow either side which might be able to lead them and had something to give away. But Antony had been spared; and though cowed at the moment by the death of Cæsar, and by the assumption of a certain dignified forbearance on the part of the conspirators, was soon ready again to fight the battle for the Cæsareans. It is singular to see how completely he was cowed, and how quickly he recovered himself.

Mommsen finishes his history with a loud pæan in praise of Cæsar, but does not tell us of his death. His readers, had they nothing else to inform them, might be led to suppose that he had gone direct to heaven, or at any rate had vanished from the world, as soon as he had made the Empire perfect. He seems to have thought that had he described the work of the daggers in the Senate-house he would have acknowledged the mortality of his godlike hero. We have no right to complain of his omissions. For research, for labor, and for accuracy he has produced a work almost without parallel. That he should have seen how great was Cæsar because he accomplished so much, and that he should have thought Cicero to be small because, burdened with scruples of justice, he did so little, is in the idiosyncrasy of the man. A Cæsar was wanted, impervious to clemency, to justice, to moderation—a man who could work with any tools. "Men had forgotten what honesty was. A person who refused a bribe was regarded not as an upright man but as a personal foe."¹⁷⁹ Cæsar took money, and gave bribes, when he had the money to pay them, without a scruple. It would be absurd to talk about him as dishonest. He was above honesty. He was "supra grammaticam." It is well that some one should have arisen to sing the praises of such a man—some two or three in these latter days. To me the character of the man is unpleasant to contemplate, unimpressible, very far from divine. There is none of the human softness necessary for love; none of the human weakness needed for sympathy.

On the 15th of March Cæsar fell. When the murder had been effected, Brutus and the others concerned in it went out among the people expecting to be greeted as saviors of their country. Brutus did address the populace, and was well received; but some bad feeling seems to have been aroused by hard expressions as to Cæsar's memory coming from one of the Prætors. For the people, though they regarded Cæsar as a tyrant, and expressed themselves as gratified when told that the would-be king had been slaughtered, still did not endure to hear ill spoken of him. He had understood that it behooved a tyrant to be generous, and appealed among them always with full hands—not having been scrupulous as to his mode of filling them. Then the conspirators, frightened at menacing words from the crowd, betook themselves to the Capitol. Why they should have gone to the Capitol as to a sanctuary I do not think that we know. The Capitol is that hill to a portion of which access is now had by the steps of the church of the Ara Cœli in front, and from the Forum in the rear. On one side was the fall from the Tarpeian rock down which malefactors were flung. On the top of it was the temple to Jupiter, standing on the site of the present church. And it was here that Brutus and Cassius and the other conspirators sought for safety on the evening of the day on which Cæsar had been killed. Here they remained for the two following days, till on the 18th they ventured down into the city. On the 17th Dolabella claimed to be Consul, in compliance with Cæsar's promise, and on the same day the Senate, moved by Antony, decreed a public funeral to Cæsar. We may imagine that the decree was made by them with fainting hearts. There were many fainting hearts in Rome during those days, for it became very soon apparent that the conspirators had carried their plot no farther than the death of Cæsar.

Brutus, as far as the public service was concerned, was an unpractical, useless man. We know nothing of public work done by him to much purpose. He was filled with high ideas as to his own position among the oligarchs, and with especial notions as to what was due by Rome to men of his name. He had a fierce conception of his own rights—among which to be Prætor, and Consul, and Governor of a province were among the number. But he had taken early in life to literature and philosophy, and eschewed the crowd of "Fish-ponders," such as were Antony and Dolabella, men prone to indulge the luxury of their own senses. His idea of liberty seems to have been much the same as Cicero's—the liberty to live as one of the first men

in Rome; but it was not accompanied, as it was with Cicero, by an innate desire to do good to those around him. To maintain the Prætors, Consuls, and Governors so that each man high in position should win his way to them as he might be able to obtain the voices of the people, and not to leave them to be bestowed at the call of one man who had thrust himself higher than all—that seems to have been his *beau ideal* of Roman government. It was Cicero's also—with the addition that when he had achieved his high place he should serve the people honestly. Brutus had killed Cæsar, but had spared Antony, thinking that all things would fall into their accustomed places when the tyrant should be no more. But he found that Cæsar had been tyrant long enough to create a lust for tyranny; and that though he might suffice to kill a king, he had no aptitude for ruling a people.

It was now that those scenes took place which Shakspeare has described with such accuracy—the public funeral, Antony's oration, and the rising of the people against the conspirators. Antony, when he found that no plan had been devised for carrying on the government, and that the men were struck by amazement at the deed they had themselves done, collected his thoughts and did his best to put himself in Cæsar's place. Cicero had pleaded in the Senate for a general amnesty, and had carried it as far as the voice of the Senate could do so. But the amnesty only intended that men should pretend to think that all should be forgotten and forgiven. There was no forgiving, as there could be no forgetting. Then Cæsar's will was brought forth. They could not surely dispute his will or destroy it. In this way Antony got hold of the dead man's papers, and with the aid of the dead man's private secretary or amanuensis, one Fabricius, began a series of most unblushing forgeries. He procured, or said that he procured, a decree to be passed confirming by law all Cæsar's written purposes. Such a decree he could use to any extent to which he could carry with him the sympathies of the people. He did use it to a great extent, and seems at this period to have contemplated the assumption of dictatorial power in his own hands. Antony was nearly being one of the greatest rascals the world has known. The desire was there, and so was the intellect, had it not been weighted by personal luxury and indulgence.

Now young Octavius came upon the scene. He was the great-nephew of Cæsar, whose sister Julia had married one Marcus Atius. Their daughter Atia had married Caius Octavius, and of that marriage Augustus was the

child. When Octavius, the father, died, Atia, the widow, married Marcius Philippus, who was Consul B.C. 56. Cæsar, having no nearer heir, took charge of the boy, and had, for the last years of his life, treated him as his son, though he had not adopted him. At this period the youth had been sent to Apollonia, on the other side of the Adriatic, in Macedonia, to study with Apollodorus, a Greek tutor, and was there when he heard of Cæsar's death. He was informed that Cæsar had made him his heir and at once crossed over into Italy with his friend Agrippa. On the way up to Rome he met Cicero at one of his southern villas, and in the presence of the great orator behaved himself with becoming respect. He was then not twenty years old, but in the present difficulty of his position conducted himself with a caution most unlike a boy. He had only come, he said for what his great-uncle had left him; and when he found that Antony had spent the money, does not appear to have expressed himself immediately in anger. He went on to Rome, where he found that Antony and Dolabella and Marcus Brutus and Decimus Brutus and Cassius were scrambling for the provinces and the legions. Some of the soldiers came to him, asking him to avenge his uncle's death; but he was too prudent as yet to declare any purpose of revenge.

Not long after Cæsar's death Cicero left Rome, and spent the ensuing month travelling about among his different villas. On the 14th of April he writes to Atticus, declaring that whatever evil might befall him he would find comfort in the ides of March. In the same letter he calls Brutus and the others "our heroes," and begs his friend to send him news—or if not news, then a letter without news.¹⁸⁰ In the next he again calls them his heroes, but adds that he can take no pleasure in anything but in the deed that had been done. Men are still praising the work of Cæsar, and he laments that they should be so inconsistent. "Though they laud those who had destroyed Cæsar, at the same time they praise his deeds."¹⁸¹ In the same letter he tells Atticus that the people in all the villages are full of joy. "It cannot be told how eager they are—how they run out to meet me, and to hear my accounts of what was done. But the Senate passes no decree!"¹⁸² He speaks of going into Greece to see his son—whom he never lived to see again—telling him of letters from the lad from Athens, which, he thinks, however, may be hypocritical, though he is comforted by finding their language to be clear. He has recovered his good-humor, and can be jocose. One Cluvius has left him a property at Puteoli, and the house has tumbled down; but he has sent

for Chrysippus, an architect. But what are houses falling to him? He can thank Socrates and all his followers that they have taught him to disregard such worldly things. Nevertheless, he has deemed it expedient to take the advice of a certain friend as to turning the tumble-down house into profitable shape.¹⁸³ A little later he expresses his great disgust that Cæsar, in the public speeches in Rome, should be spoken of as that "great and most excellent man."¹⁸⁴ And yet he had said, but a few months since, in his oration for King Deiotarus, in the presence of Cæsar, "that he looked only into his eyes, only into his face—that he regarded only him." The flattery and the indignant reprobation do, in truth, come very near upon each other, and induce us to ask whether the fact of having to live in the presence of royalty be not injurious to the moral man. Could any of us have refused to speak to Cæsar with adulation—any of us whom circumstances compelled to speak to him? Power had made Cæsar desirous of a mode of address hardly becoming a man to give or a man to receive. Does not the etiquette of to-day require from us certain courtesies of conversation, which I would call abject were it not that etiquette requires them? Nevertheless, making the best allowance that I can for Cicero, the difference of his language within a month or two is very painful. In the letter above quoted Octavius comes to him, and we can see how willing was the young aspirant to flatter him.

He sees already that, in spite of the promised amnesty, there must be internecine feud. "I shall have to go into the camp with young Sextus"—Sextus Pompeius—"or perhaps with Brutus, a prospect at my years most odious." Then he quotes two lines of Homer, altering a word: "To you, my child, is not given the glory of war; eloquence, charming eloquence, must be the weapon with which you will fight." We hear of his contemplated journey into Greece, under the protection of a free legation. He was going for the sake of his son; but would not people say that he went to avoid the present danger? and might it not be the case that he should be of service if he remained?¹⁸⁵ We see that the old state of doubt is again falling upon him. Αἰδέομαι Τρῶας. Otherwise he could go and make himself safe in Athens. There is a correspondence between him and Antony, of which he sends copies to Atticus. Antony writes to him, begging him to allow Sextus Clodius to return from his banishment. This Sextus had been condemned because of the riot on the death of his uncle in Milo's affair, and Antony

wishes to have him back. Cicero replies that he will certainly accede to Antony's views. It had always been a law with him, he says, not to maintain a feeling of hatred against his humbler enemies. But in both these letters we see the subtilty and caution of the writers. Antony could have brought back Sextus without Cicero, and Cicero knew that he could do so. Cicero had no power over the law. But it suited Antony to write courteously a letter which might elicit an uncivil reply. Cicero, however, knew better, and answered it civilly.

He writes to Tiro telling him that he has not the slightest intention of quarrelling with his old friend Antony, and will write to Antony, but not till he shall have seen him, Tiro; showing on what terms of friendship he stands with his former slave, for Tiro had by this time been manumitted.¹⁸⁶ He writes to Tiro quite as he might have written to a younger Atticus, and speaks to him of Atticus with all the familiarity of confirmed friendship. There must have been something very sweet in the nature of the intercourse which bound such a man as Cicero to such another as Tiro.

Atticus applies to him, desiring him to use his influence respecting a certain question of importance as to Buthrotum. Buthrotum was a town in Epirus opposite to the island of Corcyra, in which Atticus had an important interest. The lands about the place were to be divided, and to be distributed to Roman soldiers—much, as we may suppose to the injury of Atticus. He has earnestly begged the interference of Cicero for the protection of the Buthrotians, and Cicero tells him that he wishes he could have seen Antony on the subject, but that Antony is too much busied looking after the soldiers in the Campagna. Cicero fails to have the wishes of Atticus carried out, and shortly the subject becomes lost in the general confusion. But the discussion shows of how much importance at the present moment Cicero's interference with Antony is considered. It shows also that up to this period, a few months previous to the envenomed hatred of the second Philippic, Antony and Cicero were presumed to be on terms of intimate friendship.

The worship of Cæsar had been commenced in Rome, and an altar had been set up to him in the Forum as to a god. Had Cæsar, when he perished, been said to have usurped the sovereign authority, his body would have been thrown out as unworthy of noble treatment. Such treatment the custom of the Republic required. It had been allowed to be buried, and had been

honored, not disgraced. Now, on the spot where the funeral pile had been made, the altar was erected, and crowds of men clamored round it, worshipping. That this was the work of Antony we cannot doubt. But Dolabella, Cicero's repudiated son-in-law, who in furtherance of a promise from Cæsar had seized the Consulship, was jealous of Antony and caused the altar to be thrown down and the worshippers to be dispersed. Many were killed in the struggle—for, though the Republic was so jealous of the lives of the citizens as not to allow a criminal to be executed without an expression of the voice of the entire people, any number might fall in a street tumult, and but little would be thought about it. Dolabella destroyed the altar, and Cicero was profuse in his thanks.¹⁸⁷ For though Tullia had been divorced, and had since died, there was no cause for a quarrel. Divorces were so common that no family odium was necessarily created. Cicero was at this moment most anxious to get back from Dolabella his daughter's dowry. It was never repaid. Indeed, a time was quickly coming in which such payments were out of the question, and Dolabella soon took a side altogether opposed to the Republic—for which he cared nothing. He was bought by Antony, having been ready to be bought by any one. He went to Syria as governor before the end of the year, and at Smyrna, on his road, he committed one of those acts of horror on Trebonius, an adverse governor, in which the Romans of the day would revel when liberated from control. Cassius came to avenge his friend Trebonius, and Dolabella, finding himself worsted, destroyed himself. He had not progressed so far in corruption as Verres, because time had not permitted it—but that was the direction in which he was travelling. At the present moment, however, no praise was too fervid to be bestowed upon him by Cicero's pen. That turning of Cæsar into a god was opposed to every feeling of his heart, both, as to men and as to gods.

A little farther on¹⁸⁸ we find him complaining of the state of things very grievously: "That we should have feared this thing, and not have feared the other!"—meaning Cæsar and Antony. He declares that he must often read, for his own consolation, his treatise on old age, then just written and addressed to Atticus. "Old age is making me bitter," he says; "I am annoyed at everything. But my life has been lived. Let the young look to the future." We here meet the name of Cærellia in a letter to his friend. She had probably been sent to make up the quarrel between him and his young wife

Publilia. Nothing came of it, and it is mentioned only because Cærellia's name has been joined so often with that of Cicero by subsequent writers. In the whole course of his correspondence with Atticus I do not remember it to occur, except in one or two letters at this period. I imagine that some story respecting the lady was handed down, and was published by Dio Cassius when the Greek historian found that it served his purpose to abuse Cicero.

On June 22nd he sent news to Atticus of his nephew. Young Quintus had written home to his father to declare his repentance. He had been in receipt of money from Antony, and had done Antony's dirty work. He had been "Antoni dextella"—"Antony's right hand"—according to Cicero, and had quarrelled absolutely with his father and his uncle. He now expresses his sorrow, and declares that he would come himself at once, but that there might be danger to his father. And there is money to be expected if he will only wait. "Did you ever hear of a worse knave?" Cicero adds. Probably not; but yet he was able to convince his father and his uncle, and some time afterward absolutely offered to prosecute Antony for stealing the public money out of the treasury. He thought, as did some others, that the course of things was going against Antony. As a consequence of this he was named in the proscriptions, and killed, with his father. In the same letter Cicero consults Atticus as to the best mode of going to Greece. Brundisium is the usual way, but he has been told by Tiro that there are soldiers in the town.¹⁸⁹ He is now at Arpinum, on his journey, and receives a letter from Brutus inviting him back to Rome, to see the games given by Brutus. He is annoyed to think that Brutus should expect this. "These shows are now only honorable to him who is bound to give them," he says; "I am not bound to see them, and to be present would be dishonorable."¹⁹⁰ Then comes his parting with Atticus, showing a demonstrative tenderness foreign to the sternness of our northern nature. "That you should have wept when you had parted from me, has grieved me greatly. Had you done it in my presence, I should not have gone at all."¹⁹¹ "Nonis Juliis!"¹⁹² he exclaims. The name of July had already come into use—the name which has been in use ever since—the name of the man who had now been destroyed! The idea distresses him. "Shall Brutus talk of July?" It seems that some advertisement had been published as to his games in which the month was so called.

Writing from one of his villas in the south, he tells Atticus that his nephew has again been with him, and has repented him of all his sins. I think that Cicero never wrote anything vainer than this: "He has been so changed," he says, "by reading some of my writings which I happened to have by me, and by my words and precepts, that he is just such a citizen as I would have him."¹⁹³ Could it be that he should suppose that one whom he had a few days since described as the biggest knave he knew should be so changed by a few words well written and well pronounced? Young Quintus must in truth have been a clever knave. In the same letter Cicero tells us that Tiro had collected about seventy of his letters with a view to publication. We have at present over seven hundred written before that day.

Just as he is starting he gives his friend a very wide commission: "By your love for me, do manage my matters for me. I have left enough to pay everything that I owe. But it will happen, as it often does, that they who owe me will not be punctual. If anything of that kind should happen, only think of my character. Put me right before the world by borrowing, or even by selling, if it be necessary."¹⁹⁴ This is not the language of a man in distress, but of one anxious that none should lose a shilling by him. He again thinks of starting from Brundisium, and promises, when he has arrived there, instantly to begin a new work. He has sent his *De Gloria* to Atticus; a treatise which we have lost. We should be glad to know how he treated this most difficult subject. We are astonished at his fecundity and readiness. He was now nearly sixty-three, and, as he travels about the country, he takes with him all the adjuncts necessary for the writing of treatises such as he composed at this period of his life! His *Topica*, containing Aristotelian instructions as to a lawyer's work, he put together on board ship, immediately after this, for the benefit of Trebatius, to whom it had been promised.

July had come, and at last he resolved to sail from Pompeii and to coast round to Sicily. He lands for a night at Velia, where he finds Brutus, with whom he has an interview. Then he writes a letter to Trebatius, who had there a charming villa, bought no doubt with Gallic spoils. He is reminded of his promise, and going on to Rhegium writes his *Topica*, which he sends to Trebatius from that place. Thence he went across to Syracuse, but was afraid to stay there, fearing that his motions might be watched, and that

Antony would think that he had objects of State in his journey. He had already been told that some attributed his going to a desire to be present at the Olympian games; but the first notion seems to have been that he had given the Republic up as lost, and was seeking safety elsewhere. From this we are made to perceive how closely his motions were watched, and how much men thought of them. From Syracuse he started for Athens—which place, however, he was doomed never to see again. He was carried back to Leucopetra on the continent; and though he made another effort, he was, he says, again brought back. There, at the villa of his friend Valerius, he learned tidings which induced him to change his purpose, and hurry off to Rome. Brutus and Cassius had published a decree of the Senate, calling all the Senators, and especially the Consulares, to Rome. There was reason to suppose that Antony was willing to relax his pretensions. They had strenuously demanded his attendance, and whispers were heard that he had fled from the difficulties of the times. "When I heard this, I at once abandoned my journey, with which, indeed, I had never been well pleased."¹⁹⁵ Then he enters into a long disquisition with Atticus as to the advice which had been given to him, both by Atticus and by Brutus, and he says some hard words to Atticus. But he leaves an impression on the reader's mind that Brutus had so disturbed him by what had passed between them at Velia, that from that moment his doubts as to going, which had been always strong, had overmastered him. It was not the winds at Leucopetra that hindered his journey, but the taunting words which Brutus had spoken. It was suggested to him that he was deserting his country. The reproach had been felt by him to be heavy, for he had promised to Atticus that he would return by the first of January; yet he could not but feel that there was something in it of truth. The very months during which he would be absent would be the months of danger. Indeed, looking out upon the political horizon then, it seemed as though the nearest months, those they were then passing, would be the most dangerous. If Antony could be got rid of, be made to leave Italy, there might be something for an honest Senator to do—a man with consular authority—a something which might not jeopardize his life. When men now call a politician of those days a coward for wishing to avoid the heat of the battle, they hardly think what it is for an old man to leave his retreat and rush into the Forum, and there encounter such a one as Antony, and such soldiers as were his soldiers. Cicero, who had been brave enough in the emergencies of his career, and had gone about his work

sometimes regardless of his life, no doubt thought of all this. It would be pleasant to him again to see his son, and to look upon the rough doings of Rome from amid the safety of Athens; but when his countrymen told him that he had not as yet done enough—when Brutus, with his cold, bitter words, rebuked him for going—then his thoughts turned round on the quick pivot on which they were balanced, and he hurried back to the fight.

He travelled at once up to Rome, which he reached on the last of August, and there received a message from Antony demanding his presence in the Senate on the next day. He had been greeted on his journey once again by the enthusiastic welcome of his countrymen, who looked to receive some especial advantage from his honesty and patriotism. Once again he was made proud by the clamors of a trusting people. But he had not come to Rome to be Antony's puppet. Antony had some measure to bring before the Senate in honor of Cæsar which it would not suit Cicero to support or to oppose. He sent to say that he was tired after his journey and would not come. Upon this the critics deal hardly with him, and call him a coward. "With an incredible pusillanimity," says M. Du Rozoir, "Cicero excused himself, alleging his health and the fatigue of his voyage." "He pretended that he was too tired to be present," says Mr Long. It appears to me that they who have read Cicero's works with the greatest care have become so enveloped by the power of his words as to expect from them an unnatural weight. If a politician of to-day, finding that it did not suit him to appear in the House of Commons on a certain evening, and that it would best become him to allow a debate to pass without his presence, were to make such an excuse, would he be treated after the same fashion? Pusillanimity, and pretence, in regard to those Philippics in which he seems to have courted death by every harsh word that he uttered! The reader who has begun to think so must change his mind, and be prepared, as he progresses, to find quite another fault with Cicero. Impetuous, self-confident, rash; throwing down the gage with internecine fury; striving to crush with his words the man who had the command of the legions of Rome; sticking at nothing which could inflict a blow; forcing men by his descriptions to such contempt of Antony that they should be induced to leave the stronger party, lest they too should incur something of the wrath of the orator—that they will find to be the line which Cicero adopted, and the demeanor he put on during the next twelve months! He thundered with his Philippics through

Rome, addressing now the Senate and now the people with a hardihood which you may condemn as being unbecoming one so old, who should have been taught equanimity by experience; but pusillanimity and pretence will not be the offences you will bring against him.

Antony, not finding that Cicero had come at his call, declared in the Senate that he would send his workmen to dig him out from his house. Cicero alludes to this on the next day without passion.¹⁹⁶ Antony was not present, and in this speech he expresses no bitterness of anger. It should hardly have been named one of the Philippics, which title might well have been commenced with the second. The name, it should be understood, has been adopted from a jocular allusion by Cicero to the Philippics of Demosthenes, made in a letter to Brutus. We have at least the reply of Brutus, if indeed the letter be genuine, which is much to be doubted.¹⁹⁷ But he had no purpose of affixing his name to them. For many years afterward they were called Antonianæ, and the first general use of the term by which we know them has probably been comparatively modern. The one name does as well as another, but it is odd that speeches from Demosthenes should have given a name to others so well known as these made by Cicero against Antony. Plutarch, however, mentions the name, saying that it had been given to the speeches by Cicero himself.

In this, the first, he is ironically reticent as to Antony's violence and unpatriotic conduct. Antony was not present, and Cicero tells his hearers with a pleasant joke that to Antony it may be allowed to be absent on the score of ill-health, though the indulgence had been refused to him. Antony is his friend, and why had Antony treated him so roughly? Was it unusual for Senators to be absent? Was Hannibal at the gate, or were they dealing for peace with Pyrrhus, as was the case when they brought the old blind Appius down to the House? Then he comes to the question of the hour, which was, nominally, the sanctioning as law those acts of Cæsar's which he had decreed by his own will before his death. When a tyrant usurps power for a while and is then deposed, no more difficult question can be debated. Is it not better to take the law as he leaves it, even though the law has become a law illegally, than encounter all the confusion of retrograde action? Nothing could have been more iniquitous than some of Sulla's laws, but Cicero had opposed their abrogation. But here the question was one not

of Cæsar's laws, but of decrees subsequently made by Antony and palmed off upon the people as having been found among Cæsar's papers. Soon after Cæsar's death a decision had been obtained by Antony in favor of Cæsar's laws or acts, and hence had come these impudent forgeries under the guise of which Antony could cause what writings he chose to be made public. "I think that Cæsar's acts should be maintained," says Cicero, "not as being in themselves good, for that no one can assert. I wish that Antony were present here without his usual friends," he adds, alluding to his armed satellites. "He would tell us after what manner he would maintain those acts of Cæsar's. Are they to be found in notes and scraps and small documents brought forward by one witness, or not brought forward at all but only told to us? And shall those which he engraved in bronze, and which he wished to be known as the will of the people and as perpetual laws—shall they go for nothing?"¹⁹⁸ Here was the point in dispute. The decree had been voted soon after Cæsar's death, giving the sanction of the Senate to his laws. For peace this had been done, as the best way out of the difficulty which oppressed the State. But it was intolerable that, under this sanction, Antony should have the power of bringing forth new edicts day after day, while the very laws which Cæsar had passed were not maintained. "What better law was there, or more often demanded in the best days of the Republic, than that law," passed by Cæsar, "under which the provinces were to be held by the Prætors only for one year, and by the Consuls for not more than two? But this law is abolished. So it is thus that Cæsar's acts are to be maintained?"¹⁹⁹ Antony, no doubt, and his friends, having an eye to the fruition of the provinces, had found among Cæsar's papers—or said they had found—some writing to suit their purpose. All things to be desired were to be found among Cæsar's papers. "The banished are brought back from banishment, the right of citizenship is given not only to individuals but to whole nations and provinces, exceptions from taxations are granted, by the dead man's voice."²⁰⁰ Antony had begun, probably, with some one or two more modest forgeries, and had gone on, strengthened in impudence by his own success, till Cæsar dead was like to be worse to them than Cæsar living. The whole speech is dignified, patriotic, and bold, asserting with truth that which he believed to be right, but never carried into invective or dealing with expressions of anger. It is very short, but I know no speech of his more closely to its purpose. I can see him now, with his toga round him, as he utters the final words: "I have lived perhaps long enough—both as to length

of years and the glory I have won. What little may be added, shall be, not for myself, but for you and for the Republic." The words thus spoken became absolutely true.

CHAPTER IX.

THE PHILIPPICS.

B.C. 44, ætat. 63. Cicero was soon driven by the violence of Antony's conduct to relinquish the idea of moderate language, and was ready enough to pick up the gauntlet thrown down for him. From this moment to the last scene of his life it was all the fury of battle and the shout of victory, and then the scream of despair. Antony, when he read Cicero's speech, the first Philippic, the language of which was no doubt instantly sent to him, seems to have understood at once that he must either vanquish Cicero or be vanquished by him. He appreciated to the letter the ironically cautious language in which his conduct was exposed. He had not chosen to listen to Cicero, but was most anxious to get Cicero to listen to him. Those "advocates" of whom Cicero had spoken would be around him, and at a nod, or perhaps without a nod, would do to Cicero as Brutus and Cassius had done to Cæsar. The last meeting of the Senate had been on the 2d of September. When it was over, Antony, we are told, went down to his villa at Tivoli, and there devoted himself for above a fortnight to the getting up of a speech by which he might silence, or at any rate answer Cicero. Nor did he leave himself to his own devices, but took to himself a master of eloquence who might teach him when to make use of his arms, where to stamp his feet, and in what way to throw his toga about with a graceful passion. He was about forty at this time,²⁰¹ and in the full flower of his manhood, yet, for such a purpose, he did not suppose himself to know all that lessons would teach him in the art of invective. There he remained, mouthing out his phrases in the presence of his preceptor, till he had learned by heart all that the preceptor knew. Then he summoned Cicero to meet him in the Senate on the 19th. This Cicero was desirous of doing, but was prevented by his friends, who were afraid of the "advocates." There is extant a letter

from Cicero to Cassius in which he states it to be well known in Rome that Antony had declared that he, Cicero, had been the author of Cæsar's death, in order that Cæsar's old soldiers might slay him.²⁰² There were other Senators, he says, who did not dare to show themselves in the Senate-house—Piso, and Servilius, and Cotta. Antony came down and made his practised oration against Cicero. The words of his speech have not been preserved, but Cicero has told us the manner of it, and some of the phrases which he used. The authority is not very good, but we may imagine from the results that his story is not far from the truth. From first to last it was one violent tirade of abuse which he seemed to vomit forth from his jaws, rather than to "speak after the manner of a Roman Consular." Such is Cicero's description.

It has been said of Antony that we hear of him only from his enemies. He left behind him no friend to speak for him, and we have heard of him certainly from one enemy; but the tidings are of a nature to force upon us belief in the evil which Cicero spoke of him. Had he been a man of decent habits of life, and of an honest purpose, would Cicero have dared to say to the Romans respecting him the words which he produced, not only in the second Philippic, which was unspoken, but also in the twelve which followed? The record of him, as far as it goes, is altogether bad. Plutarch tells us that he was handsome, and a good soldier, but altogether vicious. Plutarch is not a biographer whose word is to be taken as to details, but he is generally correct in his estimate of character. Tacitus tells us but little about him as direct history, but mentions him ever in the same tone. Tacitus knew the feeling of Rome regarding him. Paterculus speaks specially of his fraud, and breaks out into strong repudiation of the murder of Cicero.²⁰³ Valerius Maximus, in his anecdotes, mentions him slightly, as an evil man is spoken of who has forced himself into notice. Virgil has stamped his name with everlasting ignominy. "Sequiturque nefas Egyptia conjux." I can think of no Roman writer who has named him with honor. He was a Roman of the day—what Rome had made him—brave, greedy, treacherous, and unpatriotic.

Cicero again was absent from the Senate, but was in Rome when Antony attacked him. We learn from a letter to Cornificius that Antony left the city shortly afterward, and went down to Brundisium to look after the legions which had come across from Macedonia, with which Cicero asserts that he

intends to tyrannize over them all in Rome.²⁰⁴ He then tells his correspondent that young Octavius has just been discovered in an attempt to have Antony murdered, but that Antony, having found the murderer in his house, had not dared to complain. He seems to think that Octavius had been right! The state of things was such that men were used to murder; but this story was probably not true. He passes on to declare in the next sentence that he receives such consolation from philosophy as to be able to bear all the ills of fortune. He himself goes to Puteoli, and there he writes the second Philippic. It is supposed to be the most violent piece of invective ever produced by human ingenuity and human anger. The readers of it must, however, remember that it was not made to be spoken—was not even written, as far as we are aware, to be shown to Antony, or to be published to the world. We do not even know that Antony ever saw it. There has been an idea prevalent that Antony's anger was caused by it, and that Cicero owed to it his death; but the surmise is based on probability—not at all on evidence. Cicero, when he heard what Antony had said of him, appears to have written all the evil he could say of his enemy, in order that he might send it to Atticus. It contained rather what he could have published than what he did intend to publish. He does, indeed, suggest, in the letter which accompanied the treatise when sent to Atticus, in some only half-intelligible words, that he hopes the time may come when the speech "shall find its way freely even into Sica's house;"²⁰⁵ but we gather even from that his intention that it should have no absolutely public circulation. He had struggled to be as severe as he knew how, but had done it, as it were, with a halter round his neck; and for Antony's anger—the anger which afterward produced the proscription—there came to be cause enough beyond this. Before that day he had endeavored to stir up the whole Empire against Antony, and had all but succeeded.

It has been alleged that Cicero again shows his cowardice by writing and not speaking his oration, and also by writing it only for private distribution. If he were a coward, why did he write it at all? If he were a coward, why did he hurry into this contest with Antony? If he be blamed because his Philippic was anonymous, how do the anonymous writers of to-day escape? If because he wrote it, and did not speak it, what shall be said of the party writers of to-day? He was a coward, say his accusers, because he avoided a danger. Have they thought of the danger which he did run when they bring

those charges against him? of what was the nature of the fight? Do they remember how many Romans in public life had been murdered during the last dozen years? We are well aware how far custom goes, and that men became used to the fear of violent death. Cicero was now habituated to that fear, and was willing to face it. But not on that account are we to imagine that, with his eyes open, he was to be supposed always ready to rush into immediate destruction. To write a scurrilous attack, such as the second Philippic, is a bad exercise for the ingenuity of a great man; but so is any anonymous satire. It is so in regard to our own times, which have received the benefit of all antecedent civilization. Cicero, being in the midst of those heartless Romans, is expected to have the polished manners and high feelings of a modern politician! I have hardly a right to be angry with his critics because by his life he went so near to justify the expectation.

He begins by asking his supposed hearers how it has come to pass that during the last twenty years the Republic had had no enemy who was not also his enemy. "And you, Antony, whom I have never injured by a word, why is it that, more brazen-faced than Catiline, more fierce than Clodius, you should attack me with your maledictions? Will your enmity against me be a recommendation for you to every evil citizen in Rome? * * * Why does not Antony come down among us to-day?" he says, as though he were in the Senate and Antony were away. "He gives a birthday fête in his garden: to whom, I wonder? I will name no one. To Phormio, perhaps, or Gnatho, or Ballion? Oh, incredible baseness; lust and impudence not to be borne!" These were the vile knaves of the Roman comedy—the Nymbs, Pistols, and Bobadils. "Your Consulship no doubt will be salutary; but mine did only evil! You talk of my verses," he says—Antony having twitted him with the "cedant arma togæ." "I will only say that you do not understand them or any other. Clodius was killed by my counsels—was he? What would men have said had they seen him running from you through the Forum—you with your drawn sword, and him escaping up the stairs of the bookseller's shop?"²⁰⁶ * * * It was by my advice that Cæsar was killed! I fear, O conscript fathers, lest I should seem to have employed some false witness to flatter me with praises which do not belong to me. Who has ever heard me mentioned as having been conversant with that glorious affair? Among those who did do the deed, whose name has been hidden—or, indeed, is not most widely known? Some had been inclined to boast that

they were there, though they were absent; but not one who was present has ever endeavored to conceal his name."

"You deny that I have had legacies? I wish it were true, for then my friends might still be living. But where have you learned that, seeing that I have inherited twenty million sesterces?²⁰⁷ I am happier in this than you. No one but a friend has made me his heir. Lucius Rubrius Cassinas, whom you never even saw, has named you." He here refers to a man over whose property Antony was supposed to have obtained control fraudulently. "Did he know of you whether you were a white man or a negro? * * * Would you mind telling me what height Turselius stood?" Here he names another of whose property Antony is supposed to have obtained possession illegally. "I believe all you know of him is what farms he had. * * * Do you bear in mind," he says, "that you were a bankrupt as soon as you had become a man? Do you remember your early friendship with Curio, and the injuries you did his father?" Here it is impossible to translate literally, but after speaking as he had done very openly, he goes on: "But I must omit the iniquities of your private life. There are things I cannot repeat here. You are safe, because the deeds you have done are too bad to be mentioned. But let us look at the affairs of your public life. I will just go through them;" which he does, laying bare as he well knew how to do, every past act. "When you had been made Quæstor you flew at once to Cæsar. You knew that he was the only refuge for poverty, debt, wickedness, and vice. Then, when you had gorged upon his generosity and your plunderings—which indeed you spent faster than you got it—you betook yourself instantly to the Tribunate. * * * It is you, Antony, you who supplied Cæsar with an excuse for invading his country." Cæsar had declared at the Rubicon that the Tribunate had been violated in the person of Antony. "I will say nothing here against Cæsar, though nothing can excuse a man for taking up arms against his country. But of you it has to be confessed that you were the cause. * * * He has been a very Helen to us Trojans. * * * He has brought back many a wretched exile, but has forgotten altogether his own uncle"—Cicero's colleague in the Consulship, who had been banished for plundering his province. "We have seen this Tribune of the people carried through the town on a British war-chariot. His lictors with their laurels went before him. In the midst, on an open litter, was carried an actress. When you come back from Thessaly with your legions to Brundisium you did not kill me! Oh,

what a kindness! * * * You with those jaws of yours, with that huge chest, with that body like a gladiator, drank so much wine at Hippea's marriage that in the sight of all Rome you were forced to vomit. * * * When he had seized Pompey's property he rejoiced like some stage-actor who in a play is as poor as Poverty, and then suddenly becomes rich. All his wine, the great weight of silver, the costly furniture and rich dresses, in a few days where were they all? A Charybdis do I call him? He swallowed them all like an entire ocean!" Then he accuses him of cowardice and cruelty in the Pharsalian wars, and compares him most injuriously with Dolabella. "Do you remember how Dolabella fought for you in Spain, when you were getting drunk at Narbo? And how did you get back from Narbo? He has asked as to my return to the city. I have explained to you, O conscript fathers, how I had intended to be here in January, so as to be of some service to the Republic. You inquire how I got back. In daylight—not in the dark, as you did; with Roman shoes on and a Roman toga—not in barbaric boots and an old cloak. * * * When Cæsar returned from Spain you again pushed yourself into his intimacy—not a brave man, we should say, but still strong enough for his purposes. Cæsar did always this—that if there were a man ruined, steeped in debt, up to his ears in poverty—a base, needy, bold man—that was the man whom he could receive into his friendship." This as to Cæsar was undoubtedly true. "Recommended in this way, you were told to declare yourself Consul." Then he describes the way in which he endeavored to prevent the nomination of Dolabella to the same office. Cæsar had said that Dolabella should be Consul, but when Cæsar was dead this did not suit Antony. When the tribes had been called in their centuries to vote, Antony, not understanding what form of words he ought to have used as augur to stop the ceremony, had blundered. "Would you not call him a very Lælius?" says Cicero. Lælius had made for himself a name among augurs for excellence.

"Miserable that you are, you throw yourself at Cæsar's feet asking only permission to be his slave. You sought for yourself that state of slavery which it has ever been easy for you to endure. Had you any command from the Roman people to ask the same for them? Oh, that eloquence of yours; when naked you stood up to harangue the people! Who ever saw a fouler deed than that, or one more worthy scourges?" "Has Tarquin suffered for this; have Spurius Cassius, Melius, and Marcus Manlius suffered, that after

many ages a king should be set up in Rome by Marc Antony?" With abuse of a similar kind he goes on to the end of his declamation, when he again professes himself ready to die at his post in defence of the Republic. That he now made up his mind so to die, should it become necessary, we may take for granted, but we cannot bring ourselves to approve of the storm of abuse under which he attempted to drown the memory and name of his antagonist. So virulent a torrent of words, all seeming, as we read them, to have been poured out in rapid utterances by the keen energy of the moment, astonish us, when we reflect that it was the work of his quiet moments. That he should have prepared such a task in the seclusion of his closet is marvellous. It has about it the very ring of sudden passion; but it must be acknowledged that it is not palatable. It is more Roman and less English than anything we have from Cicero—except his abuse of Piso, with whom he was again now half reconciled.

But it was solely on behalf of his country that he did it. He had grieved when Cæsar had usurped the functions of the government; but in his grief he had respected Cæsar, and had felt that he might best carry on the contest by submission. But, when Cæsar was dead, and Antony was playing tyrant, his very soul rebelled. Then he sat down to prepare his first instalment of keen personal abuse, adding word to word and phrase to phrase till he had built up this unsavory monument of vituperation. It is by this that Antony is now known to the world. Plutarch makes no special mention of the second Philippic. In his life of Antony he does not allude to these orations at all, but in that of Cicero he tells us how Antony had ordered that right hand to be brought to him with which Cicero had written his Philippics.

The "young Octavius" of Shakespeare had now taken the name of Octavianus—Caius Julius Cæsar Octavianus—and had quarrelled to the knife with Antony. He had assumed that he had been adopted by Cæsar, and now demanded all the treasures his uncle had collected as his own. Antony, who had already stolen them, declared that they belonged to the State. At any rate there was cause enough for quarrelling among them, and they were enemies. Each seems to have brought charges of murder against the other, and each was anxious to obtain possession of the soldiery. Seen as we see now the period in Rome of which we are writing—every safeguard of the Republic gone, all law trampled under foot, Consuls, Prætors, and Tribunes not elected but forced upon the State, all things in disorder, the provinces

becoming the open prey of the greediest plunderer—it is apparent enough that there could be no longer any hope for a Cicero. The marvel is that the every-day affairs of life should have been carried on with any reference to the law. When we are told that Antony stole Cæsar's treasures and paid his debts with them, we are inclined to ask why he had paid his debts at all. But Cicero did hope. In his whole life there is nothing more remarkable than the final vitality with which he endeavored to withstand the coming deluge of military despotism. Nor in all history is there anything more wonderful than the capacity of power to re-establish itself, as is shown by the orderly Empire of Augustus growing out of the disorder left by Cæsar. One is reminded by it of the impotency of a reckless heir to bring to absolute ruin the princely property of a great nobleman brought together by the skill of many careful progenitors. A thing will grow to be so big as to be all but indestructible. It is like that tower of Cæcilia Metella against which the storms of twenty centuries have beaten in vain. Looking at the state of the Roman Empire when Cicero died, who would not declare its doom? But it did "retrick its beams," not so much by the hand of one man, Augustus, as by the force of the concrete power collected within it—"Quod non imber edax non aquilo impotens Possit diruere."²⁰⁸ Cicero with patriotic gallantry thought that even yet there might be a chance for the old Republic—thought that by his eloquence, by his vehemence of words, he could turn men from fraud to truth, and from the lust of plundering a province to a desire to preserve their country. Of Antony now he despaired, but he still hoped that his words might act upon this young Cæsar's heart. The youth was as callous as though he had already ruled a province for three years. No Roman was ever more cautious, more wise, more heartless, more able to pick his way through blood to a throne, than the young Augustus. Cicero fears Octavian—as we must now call him—and knows that he can only be restrained by the keeping of power out of his hands. Writing to Atticus from Arpinum, he says, "I agree altogether with you. If Octavian gets power into his hands he will insist upon the tyrant's decrees much more thoroughly than he did when the Senate sat in the temple of Tellus. Everything then will be done in opposition to Brutus. But if he be conquered, then see how intolerable would be the dominion of Antony."²⁰⁹ In the same letter he speaks of the *De Officiis*, which he has just written. In his next and last epistle to his old friend he congratulates himself on having been able at last to quarrel with Dolabella. Dolabella had turned upon him in the end, bought

by Antony's money. He then returns to the subject of Octavian, and his doubts as to his loyalty. He has been asked to pledge himself to Octavian, but has declined till he shall see how the young man will behave when Casea becomes candidate for the Tribunate. If he show himself to be Casea's enemy, Casea having been one of the conspirators, Cicero will know that he is not to be trusted. Then he falls into a despairing mood, and declares that there is no hope. "Even Hippocrates was unwilling to bestow medicine on those to whom it could avail nothing." But he will go to Rome, into the very jaws of the danger. "It is less base for such as I am to fall publicly than privately." With these words, almost the last written by him to Atticus, this correspondence is brought to an end: the most affectionate, the most trusting, and the most open ever published to the world as having come from one man to another. No letters more useful to the elucidation of character were ever written; but when read for that purpose they should be read with care, and should hardly be quoted till they have been understood.

B.C. 44, aetat. 63. The struggles for the provinces were open and acknowledged. Under Cæsar, Decimus Brutus had been nominated for Cisalpine Gaul, Marcus Brutus for Macedonia, and Cassius for Syria. It will be observed that these three men were the most prominent among the conspirators. Since that time Antony and Dolabella had obtained votes of the people to alter the arrangement. Antony was to go to Macedonia, and Dolabella to Syria. This was again changed when Antony found that Decimus had left Rome to take up his command. He sent his brother Caius to Macedonia, and himself claimed to be Governor of Cisalpine Gaul. Hence there were two Roman governors for each province; and in each case each governor was determined to fight for the possession. Antony hurried out of Rome before the end of the year with the purpose of hindering Decimus from the occupation of the north of Italy, and Cicero went up to Rome, determined to take a part in the struggle which was imminent. The Senate had been summoned for the 19th of December, and attended in great numbers. Then it was that he spoke the third Philippic, and in the evening of the same day he spoke the fourth to the people. It should be understood that none of these speeches were heard by Antony. Cicero had at this time become the acknowledged chief of the Republican party, having drifted into the position which Pompey had so long filled. Many of Cæsar's friends, frightened by his death, or rather cowed by the absence of his genius, had

found it safer to retreat from the Cæsarean party, of which the Antonys, with Dolabella, the cutthroats and gladiators of the empire, had the command. Hirtius and Pansa, with Balbus and Oppius, were among them. They, at this moment, were powerful in Rome. The legions were divided—some with Antony, some with Octavian, and some with Decimus Brutus. The greater number were with Antony, whom they hated for his cruelty; but were with him because the mantle of Cæsar's power had fallen on to his shoulders. It was felt by Cicero that if he could induce Octavian to act with him the Republic might be again established. He would surely have influence enough to keep the lad from hankering after his great uncle's pernicious power. He was aware that the dominion did in fact belong to the owner of the soldiers, but he thought that he could control this boy-officer, and thus have his legions at the command of the Republic.

The Senate had been called together, nominally for the purpose of desiring the Consuls of the year to provide a guard for its own safety. Cicero makes it an occasion for perpetuating the feeling against Antony, which had already become strong in Rome. He breaks out into praise of Octavian, whom he calls "this young Cæsar—almost a boy;" tells them what divine things the boy had already done, and how he had drawn away from the rebels those two indomitable legions, the Martia and the Fourth. Then he proceeds to abuse Antony. Tarquinius, the man whose name was most odious to Romans, had been unendurable as a tyrant, though himself not a bad man; but Antony's only object is to sell the Empire, and to spend the price. Antony had convoked the Senate for November, threatening the Senators with awful punishments should they absent themselves; but, when the day came, Antony, the Consul, had himself fled. He not only pours out the vials of his wrath but of his ridicule upon Antony's head, and quotes his bungling words. He gives instances of his imprudence, and his impotence, and of his greed. Then he again praises the young Cæsar, and the two Consuls for the next year, and the two legions, and Decimus Brutus, who is about to fight the battle of the Republic for them in the north of Italy, and votes that the necessary guard be supplied. In the same evening he addresses the people in his fourth Philippic. He again praises the lad and the two legions, and again abuses Antony. No one can say after this day that he hid his anger, or was silent from fear. He congratulates the Romans on their patriotism—vain congratulations—and encourages them to make new

efforts. He bids them rejoice that they have a hero such as Decimus Brutus to protect their liberties, and, almost, that they have such an enemy as Antony to conquer. It seems that his words, few as they were—perhaps because they were so few—took hold of the people's imaginations; so that they shouted to him that he had on that day a second time saved his country, as he reminds them afterward.²¹⁰

From this time forward we are without those intimate and friendly letters which we have had with us as our guide through the last twenty-one years of Cicero's life. For though we have a large body of correspondence written during the last year of his life, which are genuine, they are written in altogether a different style from those which have gone before. They are for the most part urgent appeals to those of his political friends to whom he can look for support in his views—often to those to whom he looked in vain. They are passionate prayers for the performance of a public duty, and as such are altogether to the writer's credit. His letters to Plancus are beautiful in their patriotism, as are also those to Decimus Brutus. When we think of his age, of his zeal, of his earnestness, and of the dangers which he ran, we hardly know how sufficiently to admire the public spirit with which at such a crisis he had taken on himself to lead the party. But our guide to his inner feelings is gone. There are no further letters to tell us of every doubt at his heart. We think of him as of some stalwart commander left at home to arrange the affairs of the war, while the less experienced men were sent to the van.

There is also a book of letters published as having passed between Cicero and Junius Brutus. The critics have generally united in condemning them as spurious. They are at, any rate, if genuine, cold and formal in their language.

B.C. 43, ætat. 64. Antony had proceeded into Cisalpine Gaul to drive out of the province the Consul named by the people to govern it. The nomination of Decimus had in truth been Cæsar's nomination; but the right of Decimus to rule was at any rate better than that of any other claimant. He had been appointed in accordance with the power then in existence, and his appointment had been confirmed by the decree of the Senate sanctioning all Cæsar's acts. It was, after all, a question of simple power, for Cæsar had overridden every legal form. It became necessary, however, that they who

were in power in Rome should decide. The Consuls Hirtius and Pansa had been Cæsar's friends, and had also been the friends of Antony. They had not the trust in Antony which Cæsar had inspired; but they were anxious to befriend him—or rather not to break with him. When the Senate met, they called on one Fufius Calenus—who was Antony's friend and Pansa's father-in-law—first to offer his opinion. He had been one of Cæsar's Consuls, appointed for a month or two, and was now chosen for the honorable part of first spokesman, as being a Consular Senator. He was for making terms with Antony, and suggested that a deputation of three Senators should be sent to him with a message calling upon him to retire. The object probably was to give Antony time, or rather to give Octavian time, to join with Antony if it suited him. Others spoke in the same sense, and then Cicero was desired to give his opinion. This was the fifth Philippic. He is all for war with Antony—or rather he will not call it war, but a public breach of the peace which Antony has made. He begins mildly enough, but warms with his subject as he goes on: "Should they send ambassadors to a traitor to his country? * * * Let him return from Mutina." I keep the old Latin name, which is preserved for us in that of Modena. "Let him cease to contend with Decimus. Let him depart out of Gaul. It is not fit that we should send to implore him to do so. We should by force compel him. * * * We are not sending messengers to Hannibal, who, if Hannibal would not obey, might be desired to go on to Carthage. Whither shall the men go if Antony refuses to obey them?" But it is of no use. With eloquent words he praises Octavian and the two legions and Decimus. He praises even the coward Lepidus, who was in command of legions, and was now Governor of Gaul beyond the Alps and of Northern Spain, and proposes that the people should put up to him a gilt statue on horseback—so important was it to obtain, if possible, his services. Alas! it was impossible that such a man should be moved by patriotic motives. Lepidus was soon to go with the winning side, and became one of the second triumvirate with Antony and Octavian.

Cicero's eloquence was on this occasion futile. At this sitting the Senate came to no decision, but on the third day afterward they decreed that the Senators, Servius Sulpicius, Lucius Piso, and Lucius Philippus, should be sent to Antony. The honors which he had demanded for Lepidus and the others were granted, but he was outvoted in regard to the ambassadors. On the 4th of January Cicero again addressed the people in the Forum. His task

was very difficult. He wished to give no offence to the Senate, and yet was anxious to stir the citizens and to excite them to a desire for immediate war. The Senate, he told them, had not behaved disgracefully, but had—temporized. The war, unfortunately, must be delayed for those twenty days necessary for the going and coming of the ambassadors. The ambassadors could do nothing. But still they must wait. In the mean time he will not be idle. For them, the Roman people, he will work and watch with all his experience, with diligence almost above his strength, to repay them for their faith in him. When Cæsar was with them they had had no choice but obedience—so much the times were out of joint. If they submit themselves to be slaves now, it will be their own fault. Then in general language he pronounces an opinion—which was the general Roman feeling of the day: "It is not permitted to the Roman people to become slaves—that people whom the immortal gods have willed to rule all nations of the earth."²¹¹ So he ended the sixth Philippic, which, like the fourth, was addressed to the people. All the others were spoken in the Senate.

He writes to Decimus at Mutina about this time a letter full of hope—of hope which we can see to be genuine. "Recruits are being raised in all Italy—if that can be called recruiting which is in truth a spontaneous rushing into arms of the entire population."²¹² He expects letters telling him what "our Hirtius" is doing, and what "my young Cæsar." Hirtius and Pansa, the Consuls of the year, though they had been Cæsar's party, and made Consuls by Cæsar, were forced to fight for the Republic. They had been on friendly terms with Cicero, and they doubted Antony. Hirtius had now followed the army, and Pansa was about to do so. They both fell in the battle that was fought at Mutina, and no one can now accuse them of want of loyalty. But "my Cæsar," on whose behalf Cicero made so many sweet speeches, for whose glory he was so careful, whose early republican principles he was so anxious to direct, made his terms with Antony on the first occasion. At that time Cicero wrote to Plancus, Consul elect for the next year, and places before his eyes a picture of all that he can do for the Republic. "Lay yourself out—yes, I pray you, by the immortal gods—for that which will bring you to the height of glory and renown."²¹³

At the end of January or beginning of February he again addressed the Senate on the subject of the embassy—a matter altogether foreign from that

which it had been convoked to discuss. To Cicero's mind there was no other subject at the present moment fit to occupy the thoughts of a Roman Senator. "We have met together to settle something about the Appian Way, and something about the coinage. The mind revolts from such little cares, torn by greater matters." The ambassadors are expected back—two of them at least, for Sulpicius had died on his road. He cautions the Senate against receiving with quiet composure such an answer as Antony will probably send them. "Why do I—I who am a man of peace—refuse peace? Because it is base, because it is full of danger—because peace is impossible." Then he proceeds to explain that it is so. "What a disgrace would it be that Antony, after so many robberies, after bringing back banished comrades, after selling the taxes of the State, putting up kingdoms to auction, shall rise up on the consular bench and address a free Senate! * * * Can you have an assured peace while there is an Antony in the State—or many Antonys? Or how can you be at peace with one who hates you as does he; or how can he be at peace with those who hate him as do you? * * * You have such an opportunity," he says at last, "as never fell to the lot of any. You are able, with all senatorial dignity, with all the zeal of the knights, with all the favor of the Roman people, now to make the Republic free from fear and danger, once and forever." Then he thus ends his speech, "About those things which have been brought before us, I agree with Servilius." That is the seventh Philippic.

In February the ambassadors returned, but returned laden with bad tidings. Servius Sulpicius, who was to have been their chief spokesman, died just as they reached Antony. The other two immediately began to treat with him, so as to become the bearers back to Rome of conditions proposed by him. This was exactly what they had been told not to do. They had carried the orders of the Senate to their rebellious officer, and then admitted the authority of that rebel by bringing back his propositions. They were not even allowed to go into Mutina so as to see Decimus; but they were, in truth, only too well in accord with the majority of the Senate, whose hearts were with Antony. Anything to those lovers of their fish-ponds was more desirable than a return to the loyalty of the Republic. The Deputies were received by the Senate, who discussed their embassy, and on the next day they met again, when Cicero pronounced his eighth Philippic. Why he did not speak on the previous day I do not know. Middleton is somewhat confused in his

account. Morabin says that Cicero was not able to obtain a hearing when the Deputies were received. The Senate did on that occasion come to a decision; against which act of pusillanimity Cicero on the following day expressed himself very vehemently. They had decided that this was not to be called a war, but rather a tumult, and seem to have hesitated in denouncing Antony as a public enemy. The Senate was convoked on the next day to decide the terms of the amnesty to be accorded to the soldiers who had followed Antony, when Cicero, again throwing aside the minor matter, burst upon them in his wrath. He had hitherto inveighed against Antony; now his anger is addressed to the Senate. "Lucius Cæsar," he said, "has told us that he is Antony's uncle, and must vote as such. Are you all uncles to Antony?" Then he goes on to show that war is the only name by which this rebellion can be described. "Has not Hirtius, who has gone away, sick as he is, called it a war? Has not young Cæsar, young as he is, prompted to it by no one, undertaken it as a war?" He repeats the words of a letter from Hirtius which could only have been used in war: "I have taken Claterna. Their cavalry has been put to flight. A battle has been fought. So many men have been killed. This is what you call peace!" Then he speaks of other civil wars, which he says have grown from difference of opinion—"except that last between Pompey and Cæsar, as to which I will not speak. I have been ignorant of its cause, and have hated its ending." But in this war all men are of one opinion who are worthy of the name of Romans. "We are fighting for the temples of our gods, for our walls, our homes, for the abode of the Roman people, for their Penates, their altars, their hearths for the graves of ancestors—and we are fighting only against Antony. * * * Fufius Calenus tells us of peace—as though I of all men did not know that peace was a blessing. But tell me, Calenus, is slavery peace?" He is very angry with Calenus. Although he has called him his friend, he was in great wrath against him. "I am fighting for Decimus and you for Antony. I wish to preserve a Roman city; you wish to see it battered to the ground. Can you deny this, you who are creating all means of delays by which Decimus may be weakened and Antony made strong?"

"I had consoled myself with this," he says, "that when these ambassadors had been sent and had returned despised, and had told the Senate that not only had Antony refused to leave Gaul but was besieging Mutina, and would not let them even see Decimus—that then, in our passion and our

rage, we should have gone forth with our arms, and our horses, and our men, and at once have rescued our General. But we—since we have seen the audacity, the insolence, and the pride of Antony—we have become only more cowardly than before." Then he gives his opinion about the amnesty: "Let any of those who are now with Antony, but shall leave him before the ides of March and pass to the armies of the Consuls, or of Decimus, or of young Cæsar, be held to be free from reproach. If one should quit their ranks through their own will, let them be rewarded and honored as Hirtius and Pansa, our Consuls, may think proper." This was the eighth Philippic, and is perhaps the finest of them all. It does not contain the bitter invective of the second, but there is in it a true feeling of patriotic earnestness. The ninth also is very eloquent, though it is rather a pæan sung on behalf of his friend Sulpicius, who in bad health had encountered the danger of the journey, and had died in the effort, than one of these Philippics which are supposed to have been written and spoken with the view of demolishing Antony. It is a specimen of those funereal orations delivered on behalf of a citizen who had died in the service of his country which used to be common among the Romans.

The tenth is in praise of Marcus Junius Brutus. Were I to attempt to explain the situation of Brutus in Macedonia, and to say how he had come to fill it, I should be carried away from my purpose as to Cicero's life, and should be endeavoring to write the history of the time. My object is simply to illustrate the life of Cicero by such facts as we know. In the confusion which existed at the time, Brutus had obtained some advantages in Macedonia, and had recovered for himself the legions of which Caius Antonius had been in possession, and who was now a prisoner in his hands. At this time young Marcus Cicero was his lieutenant, and it is told us how one of those legions had put themselves under his command. Brutus had at any rate written home letters to the Senate early in March, and Pansa had called the Senate together to receive them.

Again he attacks Fufius Calenus, Pansa's father-in-law, who was the only man in the Senate bold enough to stand up against him; though there were doubtless many of those foot Senators—men who traversed the house backward and forward to give their votes—who were anxious to oppose him. He thanks Pansa for calling them so quickly, seeing that when they had parted yesterday they had not expected to be again so soon convoked. We

may gather from this the existence of a practice of sending messengers round to the Senators' houses to call them together. He praises Brutus for his courage and his patience. It is his object to convince his hearers, and through them the Romans of the day, that the cause of Antony is hopeless. Let us rise up and crush him. Let us all rise, and we shall certainly crush him. There is nothing so likely to attain success as a belief that the success has been already attained. "From all sides men are running together to put out the flames which he has lighted. Our veterans, following the example of young Cæsar, have repudiated Antony and his attempts. The 'Legio Martia' has blunted the edge of his rage, and the 'Legio Quarta' has attacked him. Deserted by his own troops, he has broken through into Gaul, which he has found to be hostile to him with its arms and opposed to him in spirit. The armies of Hirtius and of young Cæsar are upon his trail; and now Pansa's levies have raised the heart of the city and of all Italy. He alone is our enemy, although he has along with him his brother Lucius, whom we all regret so dearly, whose loss we have hardly been able to endure! What wild beast do you know more abominable than that, or more monstrous—who seems to have been created lest Marc Antony himself should be of all things the most vile?" He concludes by proposing the thanks of the Senate to Brutus, and a resolution that Quintus Hortensius, who had held the province of Macedonia against Caius Antonius, should be left there in command. The two propositions were carried.

As we read this, all appears to be prospering on behalf of the Republic; but if we turn to the suspected correspondence between Brutus and Cicero, we find a different state of things. And these letters, though we altogether doubt their authenticity—for their language is cold, formal, and un-Ciceronian—still were probably written by one who had access to those which Cicero had himself penned: "As to what you write about wanting men and money, it is very difficult to give you advice. I do not see how you are to raise any except by borrowing it from the municipalities"—in Macedonia—"according to the decree of the Senate. As to men, I do not know what to propose. Pansa is so far from sparing men from his army, that he begrudges those who go to you as volunteers. Some think that he wishes you to be less strong than you are—which, however, I do not suspect myself."²¹⁴ A letter might fall into the hands of persons not intended to read it, and Cicero was forced to be on his guard in communicating his suspicions—Cicero or the

pseudo-Cicero. In the next Brutus is rebuked for having left Antony live when Cæsar was slain. "Had not some god inspired Octavian," he says, "we should have been altogether in the power of Antony, that base and abominable man. And you see how terrible is our contest with him." And he tries to awaken him to the necessity of severity. "I see how much you delight in clemency. That is very well. But there is another place, another time, for clemency. The question for us is whether we shall any longer exist or be put out of the world." These, which are intended to represent his private fears, deal with the affairs of the day in a tone altogether different from that of his public speeches. Doubt, anxiety, occasionally almost despair, are expressed in them. But not the less does he thunder on in the Senate, aware that to attain success he must appear to have obtained it.

The eleventh Philippic was occasioned by the news which had arrived in Rome of the death of Trebonius. Trebonius had been surprised in Smyrna by a stratagem as to which alone no disgrace would have fallen on Dolabella, had he not followed up his success by killing Trebonius. How far the bloody cruelty, of which we have the account in Cicero's words, was in truth executed, it is now impossible to say. The Greek historian Appian gives us none of these horrors, but simply intimates that Trebonius, having been taken in the snare, had his head cut off.²¹⁵ That Cicero believed the story is probable. It is told against his son-in-law, of whom he had hitherto spoken favorably. He would not have spoken against the man except on conviction. Dolabella was immediately declared an enemy to the Republic. Cicero inveighs against him with all his force, and says that such as Dolabella is, he had been made by the cruelty of Antony. But he goes on to philosophize, and declare how much more miserable than Trebonius was Dolabella himself, who is so base that from his childhood those things had been a delight to him which have been held as disgraceful by other children. Then he turns to the question which is in dispute, whether Brutus should be left in command of Macedonia, and Cassius of Syria—Cassius was now on his way to avenge the death of Trebonius—or whether other noble Romans, Publius Servilius, for instance, or that Hirtius and Pansa, the two Consuls, when they can be spared from Italy, shall be sent there. It is necessary here to read between the lines. The going of the Consuls would mean the withdrawing of the troops from Italy, and would leave Rome open to the Cæsarean faction. At present Decimus and Cicero, and whoever else there

might be loyal to the Republic, had to fight by the assistance of other forces than their own. Hirtius and Pansa were constrained to take the part of the Republic by Cicero's eloquence, and by the action of those Senators who felt themselves compelled to obey Cicero. But they did not object to send the Consuls away, and the Consular legions, under the plea of saving the provinces. This they were willing enough to do—with the real object of delivering Italy over to those who were Cicero's enemies but were not theirs. All this Cicero understood, and, in conducting the contest, had to be on his guard, not only against the soldiers of Antony but against the Senators also, who were supposed to be his own friends, but whose hearts were intent on having back some Cæsar to preserve for them their privileges.

Cicero in this matter talked some nonsense. "By what right, by what law," he asks, "shall Cassius go to Syria? By that law which Jupiter sanctioned when he ordained that all things good for the Republic should be just and legal." For neither had Brutus a right to establish himself in Macedonia as Proconsul nor Cassius in Syria. This reference to Jupiter was a begging of the question with a vengeance. But it was perhaps necessary, in a time of such confusion, to assume some pretext of legality, let it be ever so poor. Nothing could now be done in true obedience to the laws. The Triumvirate, with Cæsar at its head, had finally trodden down all law; and yet every one was clamoring for legal rights! Then he sings the praises of Cassius, but declares that he does not dare to give him credit in that place for the greatest deed he had done. He means, of course, the murder of Cæsar.

Paterculus tells us that all these things were decreed by the Senate.²¹⁶ But he is wrong. The decree of the Senate went against Cicero, and on the next day, amid much tumult, he addressed himself to the people on the subject. This he did in opposition to Pansa, who endeavored to hinder him from speaking in the Forum, and to Servilia, the mother-in-law of Cassius, who was afraid lest her son-in-law should encounter the anger of the Consuls. He went so far as to tell the people that Cassius would not obey the Senate, but would take upon himself, on such an emergency, to act as best he could for the Republic.²¹⁷ There was no moment in this stirring year, none, I think, during Cicero's life, in which he behaved with greater courage than now in appealing from the Senate to the people, and in the hardihood with

which he declared that the Senate's decree should be held as going for nothing. Before the time came in which it could be carried out both Hirtius and Pansa were dead. They had fallen in relieving Decimus at Mutina. His address on this occasion to the people was not made public, and has not been preserved.

Then there came up the question of a second embassy, to which Cicero at first acceded. He was induced to do so, as he says, by news which had arrived of altered circumstances on Antony's part. Calenus and Piso had given the Senate to understand that Antony was desirous of peace. Cicero had therefore assented, and had agreed to be one of the deputation. The twelfth Philippic was spoken with the object of showing that no such embassy should be sent. Cicero's condition at this period was most peculiar and most perilous. The Senate would not altogether oppose his efforts, but they hated them. They feared that, if Antony should succeed, they who had opposed Antony would be ruined. Those among them who were the boldest openly reproached Cicero with the danger which they were made to incur in fighting his battles.²¹⁸ To be rid of Cicero was their desire and their difficulty. He had agreed to go on this embassy—who can say for what motives? To him it would be a mission of especial peril. It was one from which he could hardly hope ever to come back alive. It may be that he had agreed to go with his life in his hand, and to let them know that he at any rate had been willing to die for the Republic. It may be that he had heard of some altered circumstances. But he changed his mind and resolved that he would not go, unless driven forth by the Senate. There seems to have been a manifest attempt to get him out of Rome and send him where he might have his throat cut. But he declined; and this is the speech in which he did so. "It is impossible," says the French critic, speaking of the twelfth Philippic, "to surround the word 'I fear' with more imposing oratorical arguments." It has not occurred to him that Cicero may have thought that he might even yet do something better with the lees and dregs of his life than throw them away by thus falling into a trap. Nothing is so common to men as to fear to die—and nothing more necessary, or men would soon cease to live. To fear death more than ignominy is the disgrace—a truth which the French critic does not seem to have recognized when he twits the memory of Cicero with his scornful sneer, "J'ai peur." Did it occur to the French critic to ask himself for what purpose should Cicero go to Antony's camp, where he would

probably be murdered, and by so doing favor the views of his own enemies in Rome? The deputation was not sent; but in lieu of the deputation Pansa, the remaining Consul, led his legions out of Rome at the beginning of April.

B.C. 43, ætat. 64. Lepidus, who was Proconsul in Gaul and Northern Spain, wrote a letter at this time to the Senate recommending them to make peace with Antony. Cicero in his thirteenth Philippic shows how futile such a peace would be. That Lepidus was a vain, inconstant man, looking simply to his own advantage in the side which he might choose, is now understood; but when this letter was received he was supposed to have much weight in Rome. He had, however, given some offence to the Senate, not having acknowledged all the honors which had been paid to him. The advice had been rejected, and Cicero shows how unfit the man was to give it. This, however, he still does with complimentary phrases, though from a letter written by him to Lepidus about this time the nature of his feeling toward the man is declared: "You would have done better, in my judgment, if you had left alone this attempt at making peace, which approves itself neither to the Senate nor to the people, not to any good man."²¹⁹ When we remember the ordinary terms of Roman letter-writing, we must acknowledge that this was a plain and not very civil attempt to silence Lepidus. He then goes on in the Philippic to read a letter which Antony had sent to Hirtius and to young Cæsar, and which they had sent on to the Senate. The letter is sufficiently bold and abusive—throwing it in their teeth that they would rather punish the murderer of Trebonius than those of Cæsar. Cicero does this with some wit, but we feel compelled to observe that as much is to be said on the one side as on the other. Brutus, Cassius, with Trebonius and others, had killed Cæsar. Dolabella, perhaps with circumstances of great cruelty, had killed Trebonius. Cicero had again and again expressed his sorrow that Antony had been spared when Cæsar was killed. We have to go back before the first slaughter to resolve who was right and who was wrong, and even afterward can only take the doings of each in that direction as part of the internecine feud. Experience has since explained to us the results of introducing bloodshed into such quarrels. The laws which recognize war are and were acknowledged. But when A kills B because he thinks B to have done evil, A can no longer complain of murder. And Cicero's criticism is somewhat puerile. "And thou, boy," Antony had said in addressing Octavian—"Et te, puer!" "You shall find him to be a man by-and-by," says Cicero. Antony's Latin is not Ciceronian. "Utrum sit elegantius," he asks, putting some further question about Cæsar and Trebonius. "As if there could be anything elegant in this war," demands

Cicero. He goes through the letter in the same way, turning Antony into ridicule in a manner which must have riveted in the heart of Fulvia, Antony's wife, who was in Rome, her desire to have that bitter-speaking tongue torn out of his mouth. Such was the thirteenth Philippic.

On the 21st of April was spoken the fourteenth and the last. Pansa early in the month had left Rome, and marched toward Mutina with the intention of relieving Decimus. Antony, who was then besieging Mutina after such a fashion as to prevent all egress or ingress, and had all but brought Decimus to starvation, finding himself about to be besieged, put his troops into motion, and attacked those who were attacking him. Then was fought the battle in which Antony was beaten, and Pansa, one of the Consuls, so wounded that he perished soon afterward. Antony retreated to his camp, but was again attacked by Hirtius and Octavian, and by Decimus, who sallied out of the town. He was routed, and fled, but Hirtius was killed in the battle. Suetonius tells us that in his time a rumor was abroad that Augustus, then Octavian, had himself killed Hirtius with his own hands in the fight—Hirtius having been his fellow-general, and fighting on the same side; and that he had paid Glyco, Pansa's doctor, to poison him while dressing his wounds.²²⁰ Tacitus had already made the story known.²²¹ It is worth repeating here only as showing the sort of conduct which a grave historian and a worthy biographer were not ashamed to attribute to the favorite Emperor of Rome.

It was on the receipt of the news in Rome of the first battle, but before the second had been fought, that the last Philippic was spoken. Pansa was not known to have been mortally wounded, nor Hirtius killed, nor was it known that Decimus had been relieved; but it was understood that Antony had received a check. Servilius had proposed a supplication, and had suggested that they should put away their saga and go back to their usual attire. The "sagum" was a common military cloak, which the early Romans wore instead of the toga when they went out to war. In later days, when the definition between a soldier and a civilian became more complete, they who were left at home wore the sagum, in token of their military feelings, when the Republic was fighting its battles near Rome. I do not suppose that when Crassus was in Parthia, or Cæsar in Gaul, the sagum was worn. It was not exactly known when the distant battles were being fought. But Cicero had taken care that the sagum should be properly worn, and had even put it on

himself—to do which as a Consular was not required of him. Servilius now proposed that they should leave off their cloaks, having obtained a victory; but Cicero would not permit it. Decimus, he says, has not been relieved, and they had taken to their cloaks as showing their determination to succor their General in his distress. And he is discontented with the language used: "You have not even yet called Antony a 'public enemy.'" Then he again lashes out against the horror of Antony's proceedings: "He is waging war, a war too dreadful to be spoken of, against four Roman Consuls"—he means Hirtius and Pansa, who were already Consuls, and in truth already dead, and Decimus and Plancus, who were designated as Consuls for the next year. Plancus, however, joined his legions afterward with those of Antony, and insisted in establishing the Second Triumvirate. "Rushing from one scene of slaughter to another, he causes wherever he goes misery, desolation, bloodshed, and agony." The language is so fine that it is worth our while to see the words.²²² "Is he not responsible for the horrors of Dolabella? What he would do in Rome, were it not for the protection of Jupiter, may be seen from the miseries which his brother has inflicted on those poor men of Parma—that Lucius, whom all men hate, and the gods too would hate, if they hated as they ought. In what city was Hannibal as cruel as Antony at Parma; and shall we not call him an enemy?" Servilius had asked for a supplication, but had only asked for one of moderate length. And Servilius had not called the generals Imperatores. Who should be so called but they who have been valiant, and lucky, and successful? Cicero forgets the meaning of the title, and that even Bibulus had been called Imperator in Syria. Here he runs off from his subject, and at some length praises himself. It seems that Rome was in a tumult at the time, and that Antony's enemies did all they could to support him, and also to turn his head. He had been carried into the Senate-house in triumph, and had been thanked by the whole city. After lauding the different generals, and calling them all Imperatores, he desires the Senate to decree them a supplication for fifty days. Fifty days are to be devoted to thanksgiving to the gods, though it had already been declared how very little they have done for which to be thankful, as Decimus had not yet been liberated.

Fifty days are granted for the battle of Mutina, which as yet was supposed to have been but half fought. When we hear the term "supplicatio" first mentioned in Livy one day was granted. It had grown to twenty when the

gods were thanked for the victory over Vercingetorix. Now for this half-finished affair fifty was hardly enough. When the time was over, Antony and Lepidus had joined their forces triumphantly. Pansa and Hirtius were dead, and Decimus Brutus had fled, and had probably been murdered. Nothing increases so out of proportion to the occasion as the granting of honors. Stars, when they fall in showers, pale their brilliancy, and turn at last to no more than a cloud of dust. Honors are soon robbed of all their honor when once the first step downward has been taken. The decree was passed, and Cicero finished his last speech on so poor an occasion. But though the thing itself then done be small and trivial to us now, it was completed in magnificent language.²²³ The passage of which I give the first words below is very fine in the original, though it does not well bear translation. Thus he ended his fourteenth Philippic, and the silver tongue which had charmed Rome so often was silent forever.

We at least have no record of any further speech; nor, as I think, did he again take the labor of putting into words which should thrill through all who heard them, not the thoughts but the passionate feelings of the moment.

I will venture to quote from a contemporary his praise of the Philippics. Mr. Forsyth says: "Nothing can exceed the beauty of the language, the rhythmical flow of the periods, and the harmony of the style. The structure of the Latin language, which enables the speaker or writer to collocate his words, not, as in English, merely according to the order of thought, but in the manner best calculated to produce effect, too often baffles the powers of the translator who seeks to give the force of the passage without altering the arrangement. Often again, as is the case with all attempts to present the thoughts of the ancient in a modern dress, a periphrasis must be used to explain the meaning of an idea which was instantly caught by the Greek or Roman ear. Many allusions which flashed like lightning upon the minds of the Senators must be explained in a parenthesis, and many a home-thrust and caustic sarcasm are now deprived of their sting, which pierced sharply at the moment of their utterance some twenty centuries ago.

"But with all such disadvantages I hope that even the English reader will be able to recognize in these speeches something of the grandeur of the old Roman eloquence. The noble passages in which Cicero strove to force his

countrymen for very shame to emulate the heroic virtues of their forefathers, and urged them to brave every danger and welcome death rather than slavery in the last struggle for freedom, are radiant with a glory which not even a translation can destroy. And it is impossible not to admire the genius of the orator whose words did more than armies toward recovering the lost liberty of Rome."

His words did more than armies, but neither could do anything lasting for the Republic. What was one honest man among so many? We remember Mommsen's verdict: "On the Roman oligarchy of this period no judgment can be passed save one of inexorable and remorseless condemnation." The farther we see into the facts of Roman history in our endeavors to read the life of Cicero, the more apparent becomes its truth. But Cicero, though he saw far toward it, never altogether acknowledged it. In this consists the charm of his character, though at the same time the weakness of his political aspirations; his weakness—because he was vain enough to imagine that he could talk men back from their fish-ponds; its charm—because he was able through it all to believe in honesty. The more hopeless became the cause, the sweeter, the more impassioned, the more divine, became his language. He tuned his notes to still higher pitches of melody, and thought that thus he could bring back public virtue. Often in these Philippics the matter is small enough. The men he has to praise are so little; and Antony does not loom large enough in history to have merited from Cicero so great a meed of vituperation! Nor is the abuse all true, in attributing to him motives so low. But Cicero was true through it all, anxious, all on fire with anxiety to induce those who heard him to send men to fight the battles to which he knew them, in their hearts, to be opposed.

The courage, the persistency, and the skill shown, in the attempt were marvellous. They could not have succeeded, but they seem almost to have done so. I have said that he was one honest man among many. Brutus was honest in his patriotism, and Cassius, and all the conspirators. I do not doubt that Cæsar was killed from a true desire to restore the Roman Republic. They desired to restore a thing that was in itself evil—the evils of which had induced Cæsar to see that he might make himself its master. But Cicero had conceived a Republic in his own mind—not Utopian, altogether human and rational—a Republic which he believed to have been that of Scipio, of Marcellus, and Lælius: a Republic which should do nothing for

him but require his assistance, in which the people should vote, and the oligarchs rule in accordance with the established laws. Peace and ease, prosperity and protection, it would be for the Rome of his dream to bestow upon the provinces. Law and order, education and intelligence, it would be for her rulers to bestow upon Rome. In desiring this, he was the one honest man among many. In accordance with that theory he had lived, and I claim for him that he had never departed from it. In his latter days, when the final struggle came, when there had arisen for him the chance of Cæsar's death, when Antony was his chief enemy, when he found himself in Rome with authority sufficient to control legions, when the young Cæsar had not shown—probably had not made—his plans, when Lepidus and Plancus and Pollio might still prove themselves at last true men, he was once again alive with his dream. There might yet be again a Scipio, or a Cicero as good as Scipio, in the Republic; one who might have lived as gloriously, and die—not amid the jealousies but with the love of his countrymen.

It was not to be. Looking back at it now, we wonder that he should have dared to hope for it. But it is to the presence within gallant bosoms of hope still springing, though almost forlorn, of hope which has in its existence been marvellous, that the world is indebted for the most beneficial enterprises. It was not given to Cicero to stem the tide and to prevent the evil coming of the Cæsars; but still the nature of the life he had led, the dreams of a pure Republic, those aspirations after liberty have not altogether perished. We have at any rate the record of the great endeavors which he made.

Nothing can have been worse managed than the victory at Mutina. The two Consuls were both killed; but that, it may be said, was the chance of war. Antony with all his cavalry was allowed to escape eastward toward the Cottian Alps. Decimus Brutus seems to have shown himself deficient in all the qualities of a General, except that power of endurance which can hold a town with little or no provision. He wrote to Cicero saying that he would follow Antony. He makes a promise that Antony shall not be allowed to remain in Italy. He beseeches Cicero to write to that "windy fellow Lepidus," to prevent him from joining the enemy. Lepidus will never do what is right unless made to do so by Cicero. As to Plancus, Decimus has his doubts, but he thinks that Plancus will be true to the Republic now that Antony is beaten.²²⁴ In his next letter he speaks of the great confusion

which has come among them from the death of the two Consuls. He declares also how great has been Antony's energy in already recruiting his army. He has opened all the prisons and workhouses, and taken the men he found there. Ventidius has joined him with his army, and he still fears Lepidus. And young Cæsar, who is supposed to be on their side, will obey no one, and can make none obey him. He, Decimus, cannot feed his men. He has spent all his own money and his friends'. How is he to support seven legions?²²⁵ On the next day he writes again, and is still afraid of Plancus and of Lepidus and of Pollio. And he bids Cicero look after his good name: "Stop the evil tongues of men if you can."²²⁶ A few days afterward Cicero writes him a letter which he can hardly have liked to receive. What business had Brutus to think the senate cowardly?²²⁷ Who can be afraid of Antony conquered who did not fear him in his strength? How should Lepidus doubt now when victory had declared for the Republic? Though Antony may have collected together the scrapings of the jails, Decimus is not to forget that he, Decimus, has the whole Roman people at his back.

Cicero was probably right to encourage the General, and to endeavor to fill him with hope. To make a man victorious you should teach him to believe in victory. But Decimus knew the nature of the troops around him, and was aware that every soldier was so imbued with an idea of the power of Cæsar that, though Cæsar was dead, they could fight with only half a heart against soldiers who had been in his armies. The name and authority and high office of the two Consuls had done something with them, and young Cæsar had been with the Consuls. But both the Consuls had been killed—which was in itself ominous—and Antony was still full of hope, and young Cæsar was not there, and Decimus was unpopular with the men. It was of no use that Cicero should write with lofty ideas and speak of the spirit of the Senate. Antony had received a severe check, but the feeling of military rule which Cæsar had engendered was still there, and soldiers who would obey their officers were not going to submit themselves to "votes of the people." Cicero in the mean time had his letters passing daily between himself and the camps, thinking to make up by the energy of his pen for the weakness of his party. Lepidus sends him an account of his movements on the Rhone, declaring how he was anxious to surround Antony. Lepidus was already meditating his surrender. "I ask from you, my Cicero, that if you have seen with what zeal I have in former times served the Republic, you should look

for conduct equal to it, or surpassing it for the future; and, that you should think me the more worthy of your protection, the higher are my deserts."²²⁸ He was already, when writing that letter, in treaty with Antony. Plancus writes to him at the same time apologizing for his conduct in joining Lepidus. It was a service of great danger for him, Plancus, but it was necessary for Lepidus that this should be done. We are inclined to doubt them all, knowing whither they were tending. Lepidus was false from the beginning. Plancus doubled for a while, and then yielded himself.

The reader, I think, will have had no hope for Cicero and the Republic since the two Consuls were killed; but as he comes upon the letters which passed between Cicero and the armies he will have been altogether disheartened.

CHAPTER X.

CICERO'S DEATH.

B.C. 43, ætat. 64. What other letters from Cicero we possess were written almost exclusively with the view of keeping the army together, and continuing the contest against Antony. There are among them a few introductory letters of little or no interest. And these military despatches, though of importance as showing the eager nature of the man, seem, as we read them, to be foreign to his nature. He does not understand war, and devotes himself to instigating men to defend the Republic, of whom we suspect that they were not in the least affected by the words they received from him. The correspondence as to this period of his life consists of his letters to the Generals, and of theirs to him. There are nearly as many of the one as of the other, and the reader is often inclined to doubt whether Cicero be writing to Plancus or Plancus to Cicero. He remained at Rome, and we can only imagine him as busy among the official workshops of the State, writing letters, scraping together money for the troops, struggling in vain to raise levies, amid a crowd of hopeless, doubting, disheartened Senators, whom he still kept together by his eloquence as Republicans, though each was eager to escape.

But who can be made Consuls in the place of Pansa and Hirtius? Octavian, who had not left Italy after the battle of Mutina, was determined to be one; but the Senate, probably under the guidance of Cicero, for a time would not have him. There was a rumor that Cicero had been elected—or is said to have been such a rumor. Our authority for it comes from that correspondence with Marcus Brutus on the authenticity of which we do not trust, and the date of which we do not know.²²⁹ "When I had already written my letter, I heard that you had been made Consul. When that is done I shall believe that we shall have a true Republic, and one supported by its own strength." But probably neither was the rumor true, nor the fact that there was such a rumor. It was not thus that Octavian meant to play his part. He had been passed over by Cicero when a General against Antony was needed. Decimus had been used, and Hirtius and Pansa had been employed as though they had been themselves strong as were the Consuls of old. So they were to Cicero—in whose ears the very name of Consul had in it a resonance of the magnificence of Rome. Octavian thought that Pansa and Hirtius were but Cæsar's creatures, who at Cæsar's death had turned against him. But even they had been preferred to him. In those days he was very quick to learn. He had been with the army, and with Cæsar's soldiers, and was soon instructed in the steps which it was wise that he should take. He put aside, as with a sweep of his hand, all the legal impediments to his holding the Consulship. Talk to him of age! He had already heard that word "boy" too often. He would show them what a boy would do. He would let them understand that there need be no necessity for him to canvass, to sue for the Consulship cap in hand, to have morning levees and to know men's names—as had been done by Cicero. His uncle had not gone through those forms when he had wanted the Consulship. Octavian sent a military order by a band of officers, who, marching into the Senate, demanded the office. When the old men hesitated, one Cornelius, a centurion, showed them his sword, and declared that by means of that should his General be elected Consul. The Greek biographers and historians, Plutarch, Dio, and Appian, say that he was minded to make Cicero his fellow-Consul, promising to be guided by him in everything; but it could hardly have been so, with the feelings which were then hot against Cicero in Octavian's bosom. Dio Cassius is worthy of little credit as to this period, and Appian less so, unless when supported by Latin authority. And we find that Plutarch inserts stories with that freedom which writers use who do not suppose that others coming

after them will have wider sources of information than their own. Octavian marched into Rome with his legions, and had himself chosen Consul in conjunction with Quintius Pedius, who had also been one of the coheirs to Cæsar's will. This happened in September. Previous to this Cicero had sent to Africa for troops; but the troops when they came all took part with the young Cæsar.

A story is told which appears to have been true, and to have assisted in creating that enmity which at last induced Octavian to assent to Cicero's death. He was told that Cicero had said that "the young man was to be praised, and rewarded, and elevated!"²³⁰ The last word, "tollendum," has a double meaning; might be elevated to the skies—or to the "gallows." In English, if meaning the latter, we should say that such a man must be "put out of the way." Decimus Brutus told this to Cicero as having been repeated by Sigulius, and Cicero answers him, heaping all maledictions upon Sigulius. But he does not deny the words, or their intention—and though he is angry, he is angry half in joke. He had probably allowed himself to use the witticism, meaning little or nothing—choosing the phrase without a moment's thought, because it contained a double meaning. No one can conceive that he meant to imply that young Cæsar should be murdered. "Let us reward him, but for the moment let us be rid of him." And then, too, he had in the same sentence called him a boy. As far as evidence goes, we know that the words were spoken. We can trust the letter from Decimus to Cicero, and the answer from Cicero to Decimus. And we know that, a short time afterward, Octavian, sitting in the island near Bologna with Antony, consented that Cicero's name should be inserted in the fatal list as one of those doomed to be murdered.

In the mean time Lepidus had taken his troops over to Antony, and Pollio joined them soon afterward with his from Spain. After that it was hardly to be expected that Plancus should hesitate. There has always been a doubt whether Plancus should or should not be regarded as a traitor. He held out longer than the others, and is supposed to have been true in those assurances which he made to Cicero of Republican fervor. Why was he bound to obey Cicero, who was then at Rome, sending out his orders without official authority? While the Consuls had been alive he could obey the Consuls; and at the Consuls' death he could for a while follow the spirit of their instructions. But as that spirit died away he found himself without

orders other than Cicero's. In this condition was it not better for him to go with the other Generals of the Empire rather than to perish with a falling party? In addition to this it will happen at such a time that the soldiers themselves have a will of their own. With them the name of Cæsar was still powerful, and to their thinking Antony was fighting on dead Cæsar's side. When we read the history of this year, the fact becomes clear that out of Rome Cæsar's name was more powerful than Cicero's eloquence. Governed by such circumstances, driven by events which he could not control, Plancus has the merit of having been the last among the doubtful Generals to desert the cause which Cicero had at heart. Cassius and Brutus in the East were still collecting legions for the battle of Philippi. With that we shall have no trouble here. In the West, Plancus found himself bound to follow the others, and to join Antony and Lepidus in spite of the protestations he had made. To those who read Cicero's letters of this year the question must often arise whether Plancus was a true man. I have made his excuse to the reader with all that I can say in his favor. The memory of the man is, however, unpleasant to me.

Decimus, when he found himself thus alone, endeavored to force his way with his army along the northern shore of the Adriatic, so as to join Marcus Brutus in Macedonia. To him, as one of those who had slain Cæsar, no power was left of deserting. He was doomed unless he was victorious. He was deserted by his soldiers, who left him in batches, and at last was taken alive, when wandering through the country, and sent (dead) to Antony. Marcus Brutus and Cassius seem to have turned a deaf ear to all Cicero's entreaties that they should come to his rescue. Cicero in his last known letter—which however was written as far back as in July—is very eager with Cassius: "Only attempts are heard of your army, very great in themselves, but we expect to hear of deeds. * * * Nothing can be grander or more noble than yourself, and therefore it is that we are longing for you here in Rome. * * * Believe me that everything depends on you and Brutus—that we are waiting for both of you. For Brutus we are waiting constantly."²³¹ This was after Lepidus had gone, but while Plancus was supposed to be as yet true—or rather, not yet false. He did, no doubt, write letters to Brutus urging him in the same way. Alas, alas! it was his final effort made for the Republic.

In September Octavian marched into Rome as a conqueror, at the head of those troops from Africa which had been sent as a last resource to help the Republicans. Then we may imagine that Cicero recognized the fact that there was left nothing further for which to struggle. The Republic was done, his dream was over, and he could only die. Brutus and Cassius might still carry on the contest; but Rome had now fallen a second time, in spite of his efforts, and all hope must have fled from him. When Cæsar had conquered at Pharsalia, and on his return from the East had graciously met him at Brundisium, and had generously accorded to him permission to live under the shadow of his throne, the time for him must have been full of bitterness. But he had not then quite realized the meaning of a tyrant's throne. He had not seen how willingly the people would submit themselves, how little they cared about their liberty; nor had he as yet learned the nature of military despotism. Rome had lived through Sulla's time, and the Republic had been again established. It might live through Cæsar's period of command. When Cæsar had come to him and supped with him, as a prince with one of his subjects, his misery had been great. Still there was a hope, though he knew not from whence. Those other younger men had felt as he had felt—and Cæsar had fallen. To his eyes it was as though some god had interfered to restore to him, a Roman, his ancient form of government. Cæsar was now dead, and all would be right—only that Antony was left alive. There was need for another struggle before Consuls, Prætors, and Ædiles could be elected in due order; and when he found that the struggle was to be made under his auspices, he girded up his loins and was again happy. No man can be unhappy who is pouring out his indignation in torrents, and is drinking in the applause of his audience. Every hard word hurled at Antony, and every note of praise heard in return, was evidence to him of his own power. He did believe, while the Philippics were going on, that he was stirring up a mighty power to arouse itself and claim its proper dominion over the world. There were moments between in which he may have been faint-hearted—in which he may have doubted as to young Cæsar—in which he feared that Pansa might escape from him, or that Decimus would fall before relief could reach him; but action lent a pleasantness and a grace to it all. It is sweet to fight with the hope of victory. But now, when young Cæsar had marched into Rome with his legions, and was doubtless prepared to join himself to Antony, there was no longer anything for Cicero to do in this world.

It is said, but not as I think on good authority, that Cicero went out to meet Cæsar—and if to meet him, then also to congratulate him. Appian tells us that in the Senate Cicero hastened to congratulate Cæsar, assuring him how anxious he had been to secure the Consulship for him, and how active. Cæsar smiled, and said that Cicero had perhaps been a little late in his friendship.²³² Dio Cassius only remarks that Cæsar was created Consul by the people in the regular way, two Consuls having been chosen; and adds that the matter was one of great glory to Cæsar, seeing that he had obtained the Consulship at an unusually early age.²³³ But, as I have said above, their testimony for many reasons is to be doubted. Each wrote in the interest of the Cæsars, and, in dealing with the period before the Empire, seems only to have been anxious to make out some connected story which should suit the Emperor's views. Young Cæsar left Rome still with the avowed purpose of proceeding against Antony as against one declared by the Senate to be an enemy; but the purpose was only avowed. Messengers followed him on the road, informing him that the ban had been removed, and he was then at liberty to meet his friend on friendly terms. Antony had sent word to him that it was not so much his duty as young Cæsar's to avenge the death of his uncle, and that unless he would assist him, he, Antony, would take his legions and join Brutus and Cassius.²³⁴ I prefer to believe with Mr. Forsyth that Cicero had retired with his brother Quintus to one of his villas. Plutarch tells us that he went to his Tusculan retreat, and that on receiving news of the proscriptions he determined to remove to Astura, on the sea-side, in order that he might be ready to escape into Macedonia. Octavian, in the mean time, having caused a law to be passed by Pedius condemning all the conspirators to death, went northward to meet Antony and Lepidus at Bononia, the Bologna of to-day. Here it was necessary that the terms of the compact should be settled by which the spoils of the world should be divided among them; and here they met, these three men, on a small river island, remote from the world—where, as it is supposed, each might think himself secure from the other. Antony and Lepidus were men old in craft—Antony in middle life, and Lepidus somewhat older. Cæsar was just twenty-one; but from all that we have been able to gather as to that meeting, he was fully able to hold his own with his elders. What each claimed as his share in the Empire is not so much matter of history as the blood which each demanded. Paterculus says that the death-warrants which were then signed

were all arranged in opposition to Cæsar.²³⁵ But Paterculus wrote as the servant of Tiberius, and had been the servant of Augustus. It was his object to tell the story as much in favor of Augustus as it could be told. It is said that, debating among themselves the murders which each desired for his own security, young Cæsar, on the third day only, gave up Cicero to the vengeance of Antony. It may have been so. It is impossible that we should have a record of what took place from day to day on that island. But we do know that there Cicero's death was pronounced, and to that doom young Cæsar assented. It did not occur to them, as it would have done to Julius Cæsar at such a time, that it would be better that they should show their mercy than their hatred. This proscription was made by hatred and not by fear. It was not Brutus and Cassius against whom it was directed—the common enemies of the three Triumviri. Sulla had attempted to stamp out a whole faction, and so far succeeded as to strike dumb with awe the remainder. But here the bargain of death was made by each against the other's friends. "Your brother shall go," said Antony to Lepidus. "If so, your uncle also," said Lepidus to Antony. So the one gave up his brother and the other his uncle, to indulge the private spleen of his partner; and Cicero must go to appease both. As it happened, though Cicero's fate was spoken, the two others escaped their doom. "Nothing so bad was done in those days," says Paterculus, "that Cæsar should have been compelled to doom any one to death, or that such a one as Cicero should have been doomed by any."²³⁶ Middleton thinks, and perhaps with fair reason, that Cæsar's objection was feigned, and that his delay was made for show. A slight change in quoting the above passage, unintentionally made, favors his view; "Or that Cicero should have been proscribed by him," he says, turning "ullo" into "illo." The meaning of the passage seems to be, that it was sad that Cæsar should have been forced to yield, or that any one should have been there to force him. As far as Cæsar is concerned, it is palliative rather than condemnatory. Suetonius, indeed, declares that though Augustus for a time resisted the proscription, having once taken it in hand he pursued it more bloodily than the others.²³⁷ It is said that the list when completed contained the names of three hundred Senators and two thousand Knights; but their fate was for a time postponed, and most of them ultimately escaped. We have no word of their deaths, as would have been the case had they all fallen. Seventeen were named for instant execution, and against these their doom went forth. We can understand that Cicero's name should have been the first on the list.

We are told that when the news reached Rome the whole city was struck with horror. During the speaking of the Philippics the Republican party had been strong and Cicero had been held in favor. The soldiers had still clung to the memory of Cæsar; but the men of mark in the city, those who were indolent and rich and luxurious, the "fish-ponders" generally, had thought that, now Cæsar was dead, and especially as Antony had left Rome, their safest course would be to join the Republic. They had done so, and had found their mistake. Young Cæsar had first come to Rome and they had been willing enough to receive him, but now he had met Antony and Lepidus, and the bloody days of Sulla were to come back upon them. All Rome was in such a tumult of horror and dismay that Pedius, the new Consul, was frightened out of his life by the clamor. The story goes that he ran about the town trying to give comfort, assuring one and another that he had not been included in the lists, till, as the result of it all, he himself, when the morning came, died from the exertion and excitement.

There is extant a letter addressed to Octavian—supposed to have been written by Cicero, and sometimes printed among his works—which, if written by him, must have been composed about this time. It no doubt was a forgery, and probably of a much later date; but it serves to show what were the feelings presumed to have been in Cicero's bosom at the time. It is full of abuse of Antony, and of young Cæsar. I can well imagine that such might have been Cicero's thoughts as he remembered the praise with which he had laden the young man's name; how he had decreed to him most unusual honors and voted statues for him. It had all been done in order that the Republic might be preserved, but had all been done in vain. It must have distressed him sorely at this time as he reflected how much eulogy he had wasted. To be sneered at by the boy when he came back to Rome to assume the Consulship, and to be told, with a laugh, that he had been a little late in his welcome! And to hear that the boy had decreed his death in conjunction with Antony and Lepidus! This was all that Rome could do for him at the end—for him who had so loved her, suffered so much for her, and been so valiant on her behalf! Are you not a little late to welcome me as one of my friends? the boy had said when Cicero had bowed and smiled to him. Then the next tidings that reached him contained news that he was condemned! Was this the youth of whom he had declared, since the year began, that "he knew well all the boy's sentiments; that nothing was dearer to the lad than

the Republic, nothing more reverent than the dignity of the Senate?" Was it for this that he had bade the Senate "fear nothing" as to young Octavian, "but always still look for better and greater things?" Was it for this that he had pledged his faith for him with such confident words—"I promise for him, I become his surety, I engage myself, conscript fathers, that Caius Cæsar will always be such a citizen as he has shown himself to-day?"²³⁸ And thus the young man had redeemed his tutor's pledges on his behalf! "A little late to welcome me, eh?" his pupil had said to him, and had agreed that he should be murdered. But, as I have said, the story of that speech rests on doubtful authority.

Had not Cicero too rejoiced at the uncle's murder? And having done so, was he not bound to endure the enmity he had provoked? He had not indeed killed Cæsar, or been aware that he was to be killed; but still it must be said of him that, having expressed his satisfaction at what had been done, he had identified himself with those who had killed him, and must share their fate. The slaying of a tyrant was almost by law enjoined upon Romans—was at any rate regarded as a virtue rather than a crime. There of course arises the question, who is to decide whether a man be a tyrant? and the idea being radically wrong, becomes enveloped in difficulty out of which there is no escape. But there remains as a fact the existence of the feeling which was at the time held to have justified Brutus—and also Cicero. A man has to inquire of his own heart with what amount of criminality he can accuse the Cicero of the day, or the young Augustus. Can any one say that Cicero was base to have rejoiced that Cæsar had been killed? Can any one not regard with horror the young Consul, as he sat there in the privacy of the island, with Antony on one side and Lepidus on the other, and then in the first days of his youth, with the down just coming on his cheeks, sending forth his edict for slaughtering the old friend of the Republic?

B.C. 43, ætat. 64. It is supposed that Cicero left Rome in company with his brother Quintus, and that at first they went to Tusculum. There was no bar to their escaping from Italy had they so chosen, and probably such was their intention as soon as tidings reached them of the proscription. It is pleasant to think that they should again have become friends before they died. In truth, Marcus the elder was responsible for his brother's fate. Quintus had foreseen the sun rising in the political horizon, and had made his adorations accordingly. He, with others of his class, had shown himself

ready to bow down before Cæsar. With his brother's assent he had become Cæsar's lieutenant in Gaul, such employment being in conformity with the practice of the Republic. When Cæsar had returned, and the question as to power arose at once between Cæsar and Pompey, Quintus, who had then been with his brother in Cilicia, was restrained by the influence of Marcus; but after Pharsalia the influence of Marcus was on the wane. We remember how young Quintus had broken away and had joined Cæsar's party. He had sunk so low that he had become "Antony's right hand." In that direction lay money, luxury, and all those good things which the government of the day had to offer. Cicero was so much in Cæsar's eyes, that Cæsar despised the elder and the younger Quintus for deserting their great relative, and would hardly have them. The influence of the brother and the uncle sat heavily on them. The shame of being Cæsarean while he was Pompeian, the shame of siding with Antony while he sided with the Republic, had been too great for them. While he was speaking his Philippics they could not but be enthusiastic on the same side. And now, when he was proscribed, they were both proscribed with him. As the story goes, Quintus returned from Tusculum to Rome to seek provision for their journey to Macedonia, there met his son, and they both died gallantly. Antony's hirelings came upon the two together, or nearly together, and, finding the son first, put him to the torture, so to learn from him the place of his father's concealment; then the father, hearing his son's screams, rushed out to his aid, and the two perished together. But this story also comes to us from Greek sources, and must be taken for what it is worth.

Marcus, alone in his litter, travelled through the country to his sea-side villa at Astura. Then he went on to Formiæ, sick with doubt, not knowing whether to stay and die, or encounter the winter sea in such boat as was provided for him. Should he seek the uncomfortable refuge of Brutus's army? We can remember his bitter exclamations as to the miseries of camp life. He did go on board; but was brought back by the winds, and his servants could not persuade him to make another attempt. Plutarch tells us that he was minded to go to Rome, to force his way into young Cæsar's house and there to stab himself, but that he was deterred from this melodramatic death by the fear of torture. The story only shows how great had been the attention given to every detail of his last moments, and what the people in Rome had learned to say of them. The same remark applies to

Plutarch's tale as to the presuming crows who pecked at the cordage of his sails when his boat was turned to go back to the land, and afterward with their beaks strove to drag the bedclothes from off him when he lay waiting his fate the night before the murderers came to him.

He was being carried down from his villa at Formiæ to the sea-side when Antony's emissaries came upon him in his litter. There seem to have been two of them—both soldiers and officers in the pay of Antony—Popilius Lænas and Herennius. They overtook him in the wood, through which paths ran from the villa down to the sea-shore. On arriving at the house they had not found Cicero, but were put upon his track by a freedman who had belonged to Quintus, named Philologus. He could hardly have done a kinder act than to show the men the way how they might quickly release Cicero from his agony. They went down to the end of the wood, and there met the slaves bearing the litter. The men were willing to fight for their master; but Cicero, bidding them put down the chair, stretched out his neck and received his death-blow. Antony had given special orders to his servants. They were to bring Cicero's head and his hands—the hands which had written the Philippics, and the tongue which had spoken them—and his order was obeyed to the letter. Cicero was nearly sixty-four when he died, his birthday being on the 3d of January following. It would be hardly worth our while to delay ourselves for a moment with the horrors of Antony's conduct, and those of his wife Fulvia—Fulvia the widow of Clodius and the wife of Antony—were it not that we may see what were the manners to which a great Roman lady had descended in those days in which the Republic was brought to an end. On the rostra was stuck up the head and the hands as a spectacle to the people, while Fulvia specially avenged herself by piercing the tongue with her bodkin. That is the story of Cicero's death as it has been generally told.

We are told also that Rome heard the news and saw the sight with ill-suppressed lamentation. We can easily believe that it should have been so. I have endeavored, as I have gone on with my work, to compare him to an Englishman of the present day; but there is no comparing English eloquence to his, or the ravished ears of a Roman audience to the pleasure taken in listening to our great orators. The world has become too impatient for oratory, and then our Northern senses cannot appreciate the melody of sounds as did the finer organs of the Roman people. We require truth, and

justice, and common-sense from those who address us, and get much more out of our public speeches than did the old Italians. We have taught ourselves to speak so that we may be believed—or have come near to it. A Roman audience did not much care, I fancy, whether the words spoken were true. But it was indispensable that they should be sweet—and sweet they always were. Sweet words were spoken to them, with their cadences all measured, with their rhythm all perfect; but no words had ever been so sweet as those of Cicero. I even, with my obtuse ears, can find myself sometimes lifted by them into a world of melody, little as I know of their pronunciation and their tone. And with the upper classes—those who read, his literature had become almost as divine as his speech. He had come to be the one man who could express himself in perfect language. As in the next age the Eclogues of Virgil and the Odes of Horace became dear to all the educated classes because of the charm of their expression, so in their time, I fancy, had become the language of Cicero. It is not surprising that men should have wept when they saw that ghastly face staring at them from the rostra, and the protruding tongue and the outstretched hands. The marvel is that, seeing it, they should still have borne with Antony.

That which Cicero has produced in literature is, as a rule, admitted to be excellent; but his character as a man has been held to be tarnished by three faults—dishonesty, cowardice, and insincerity. As to the first, I have denied it altogether, and my denial is now submitted to the reader for his judgment. It seems to have been brought against him not in order to make him appear guilty, but because it has appeared to be impossible that, when others were so deeply in fault, he should have been innocent. That he should have asked for nothing, that he should have taken no illicit rewards, that he should not have submitted to be fed, but that he should have kept his hands clean while all around him were grasping at everything—taking money, selling their aid for stipulated payments, grinding miserable creditors has been too much for believe. I will not take my readers back over the cases brought against him, but will ask them to ask themselves whether there is one supported by evidence fit to go before a jury. The accusations have been made by men clean-handed themselves; but to them it has appeared unreasonable to believe that a Roman oligarch of those days should be an honest gentleman.

As to his cowardice, I feel more doubt as to my power of carrying my readers with me, though no doubt as to Cicero's courage. Cowardice in a man is abominable. But what is cowardice? and what courage? It is a matter in which so many errors are made! Tinsel is so apt to shine like gold and dazzle the sight! In one of the earlier chapters of this book, when speaking of Catiline, I have referred to the remarks of a contemporary writer: "The world has generally a generous word for the memory of a brave man dying for his cause!" "All wounded in front," is quoted by this author from Sallust. "Not a man taken alive! Catiline himself gasping out his life ringed around with corpses of his friends." That is given as a picture of a brave man dying for his cause, who should excite our admiration even though his cause were bad. In the previous lines we have an intended portrait of Cicero, who, "thinking, no doubt, that he had done a good day's work for his patrons, declined to run himself into more danger." Here is one story told of courage, and another of fear. Let us pause for a moment and regard the facts. Catiline, when hunted to the last gasp, faced his enemy and died fighting like a man—or a bull. Who is there cannot do so much as that? For a shilling or eighteen-pence a day we can get an army of brave men who will face an enemy—and die, if death should come. It is not a great thing, nor a rare, for a man in battle not to run away. With regard to Cicero the allegation is that he would not be allowed to be bribed to accuse Cæsar, and thus incur danger. The accusation which is thus brought against him is borrowed from Sallust, and is no doubt false; but I take it in the spirit in which it is made. Cicero feared to accuse Cæsar, lest he should find himself enveloped, through Cæsar's means, in fresh danger. Grant that he did so. Was he wrong at such a moment to save his life for the Republic—and for himself? His object was to banish Catiline, and not to catch in his net every existing conspirator. He could stop the conspiracy by securing a few, and might drive many into arms by endeavoring to encircle all. Was this cowardice? During all those days he had to live with his life in his hands, passing about among conspirators who he knew were sworn to kill him, and in the midst of his danger he could walk and talk and think like a man. It was the same when he went down into the court to plead for Milo, with the gladiators of Clodius and the soldiery of Pompey equally adverse to him. It was the same when he uttered Philippic after Philippic in the presence of Antony's friends. True courage, to my thinking, consists not in facing an unavoidable danger. Any man worthy of the name can do that. The felon

that will be hung to-morrow shall walk up to the scaffold and seem ready to surrender the life he cannot save. But he who, with the blood running hot through his veins, with a full desire of life at his heart, with high aspirations as to the future, with everything around him to make him happy—love and friendship and pleasant work—when he can willingly imperil all because duty requires it, he is brave. Of such a nature was Cicero's courage.

As to the third charge—that of insincerity—I would ask of my readers to bethink themselves how few men are sincere now? How near have we approached to the beauty of truth, with all Christ's teaching to guide us? Not by any means close, though we are nearer to it than the Romans were in Cicero's days. At any rate we have learned to love it dearly, though we may not practise it entirely. He also had learned to love it, but not yet to practise it quite so well as we do. When it shall be said of men truly that they are thoroughly sincere, then the millennium will have come. We flatter, and love to be flattered. Cicero flattered men, and loved it better. We are fond of praise, and all but ask for it. Cicero was fond of it, and did ask for it. But when truth was demanded from him, truth was there.

Was Cicero sincere to his party, was he sincere to his friends, was he sincere to his family, was he sincere to his dependents? Did he offer to help and not help? Did he ever desert his ship, when he had engaged himself to serve? I think not. He would ask one man to praise him to another—and that is not sincere. He would apply for eulogy to the historian of his day—and that is not sincere. He would speak ill or well of a man before the judge, according as he was his client or his adversary—and that perhaps is not sincere. But I know few in history on whose positive sincerity in a cause his adherents could rest with greater security. Look at his whole life with Pompey—as to which we see his little insincerities of the moment because we have his letters to Atticus; but he was true to his political idea of a Pompey long after that Pompey had faded from his dreams. For twenty years we have every thought of his heart; and because the feelings of one moment vary from those of another, we call him insincere. What if we had Pompey's thoughts and Cæsar's, would they be less so? Could Cæsar have told us all his feelings? Cicero was insincere: I cannot say otherwise. But he was so much more sincere than other Romans as to make me feel that, when writing his life, I have been dealing with the character of one who might have been a modern gentleman.

CHAPTER XI.

CICERO'S RHETORIC.

It is well known that Cicero's works are divided into four main parts. There are the Rhetoric, the Orations, the Epistles, and the Philosophy. There is a fifth part, indeed—the Poetry; but of that there is not much, and of the little we have but little is esteemed. There are not many, I fear, who think that Cicero has deserved well of his country by his poetry. His prose works have been divided as I have stated them. Of these, two portions have been dealt with already—as far as I am able to deal with them. Of the Orations and Epistles I have spoken as I have gone on with my task, because the matter there treated has been available for the purposes of biography: the other two, the Rhetoric and the Philosophy, have been distinct from the author's life.²³⁹ They might have been good or bad, and his life would have been still the same; therefore it is necessary to divide them from his life, and to speak of them separately. They are the work of his silent chamber, as the others were the enthusiastic outpourings of his daily spirit, or the elaborated arguments of his public career. Who has left behind him so widely spread a breadth of literature? Who has made so many efforts, and has so well succeeded in them all? I do not know that it has ever been given to any one man to run up and down the strings of knowledge, and touch them all as though each had been his peculiar study, as Cicero has done.

His rhetoric has been always made to come first, because, upon the whole, it was first written. It may be as well here to give a list of his main works, with their dates—premising, however, that we by no means in that way get over the difficulty as to time, even in cases as to which we are sure of our facts. A treatise may have been commenced and then put by, or may have been written some time previously to publication. Or it may be, as were those which are called the *Academica*, that it was remodelled, and altered in its shape and form. The *Academica* were written at the instance of Atticus. We now have the altered edition of a fragment of the first book, and the original of the second book. In this manner there have come discrepancies which nearly break the heart of him who would fain make his list clear. But

here, on the whole, is presented to the reader with fair accuracy a list of the works of Cicero, independent of that continual but ever-changing current of his thought which came welling out from him daily in his speeches and his letters. Again, however, we must remember that here are omitted all those which are either wholly lost or have come to us only in fragments too abruptly broken for the purposes of continuous study. Of these I will not even attempt to give the names, though when we remember some of the subjects—the De Gloria, the De Re Militari—he could not go into the army for a month or two without writing a book about it—the De Auguriis, the De Philosophia, the De Suis Temporibus, the De Suis Consiliis, the De Jure Civili, and the De Universo, we may well ask ourselves what were the subjects on which he did not write. In addition to these, much that has come to us has been extracted, as it were unwillingly, from palimpsests, and is, from that and from other causes, fragmentary. We have indeed only fragments of the essays De Republica, De Legibus, De Natura Deorum, De Divinatione, and De Fato, in addition to the Academica.

The list of the works of which it is my purpose to give some shortest possible account in the following chapters is as follows:

TITLES OF THE WORKS	NATURE OF THE WORK.				THE DATE OF PUBLICATION
	Those as to	Rhetoric	are marked	*	
	" "	Philosophy	"	†	
	" "	The Moral Essays	"	‡	
Rheticorum ad. C. Herennium.	Four books, giving lessons in Rhetoric; supposed to have been written, not by Cicero, but by one Cornificius.* ²⁴⁰				B.C. 87, 86.
De Inventione.	Four books, giving lessons in Rhetoric, supposed to have been translated from the Greek. Two out of four have come to us.*				Ætat. 20, 21.

De Oratore.	Three dialogues, in three books—supposed to have been held under a plane-tree, in the garden at Tusculum belonging to Crassus, forty years before—in which are laid down instructions for the making of an orator.*	B.C. 55. Ætat. 52.
De Republica.	Six political discussions—supposed to have been held seventy-five years before the date at which they were written—on the best mode of governance. We have but a fragment of them.‡	B.C. 53. Ætat. 54.
De Legibus.	Three out of six books as to the best laws for governing the Republic. They are carried on between Atticus, Quintus, and Marcus. They are supposed to have been written B.C. 52 (ætat. 55 but were not published till after his death.‡	B.C. 52. Ætat. 55.
De Optimo Genere Oratorum.	A preface to the translation of the speeches of Æschines and of Demosthenes for and against Ctesiphon—in the matter of the Golden Crown.*	B.C. 45. Ætat. 61.
De Partitione Oratoria.	Instructions by questions and answers, supposed to have been previously given to his son in Greek, on the art of speaking in public.*	B.C. 46. Ætat. 61.
The Academica.	Treatises, in which he deals with the various phases of Philosophy taught by the Academy. It has been altered, and we have only a part of the first book of the altered portion and the second part of the treatise before it was altered. In its altered form it is addressed to Varro.†	B.C. 45. Ætat. 62.

De Finibus Bonorum et Malorum.	A treatise in five books, in the form of dialogues, as to the results to be looked for in inquiries as to what is good and what is evil. It is addressed to Brutus.†	B.C. 45. Ætat. 62.
Brutus: or, De Claris Oratoribus.	A treatise on the most perfect orators of past times. It is addressed to Brutus, and has, in a peculiar manner, been always called by his name.*	B.C. 45. Ætat. 62.
Orator.	A treatise, addressed to Brutus, to show what the perfect orator should be.*	B.C. 45. Ætat. 62.
Tusculanæ Disputationes.	Or the Tusculan Inquiries, supposed to have been held with certain friends in his Tusculan villa, as to contempt of Death and Pain and Sorrow, as to conquering the Passions, and the happiness to be derived from Virtue. They are addressed to Brutus.*	B.C. 45. Ætat. 62.
De Natura Deorum.	Three books addressed to Brutus. Velleius, Balbus, and Cotta discuss the relative merits of the Epicurean, Stoic, and Academic Schools.†	B.C. 44. Ætat. 63.
Divinatione.	He discusses with his brother Quintus the property of the gods to "divine," or rather to enable men to read prophecies. It is a continuation of a former work.†	B.C. 44. Ætat. 63.
De Fato.	The part only of a book on Destiny.†	B.C. 44. Ætat. 63.
The Topica.	A so-called translation from Aristotle. It is addressed to Trebatius.*	B.C. 44. Ætat. 63.
De Senectute.	A treatise on Old Age, addressed to Atticus, and called Cato Major.‡	B.C. 44. Ætat. 63.
De Amicitia.	A treatise on Friendship, addressed also to Atticus, and called Lælius.‡	B.C. 44. Ætat. 63.

De Officiis.	To his son. Treating of the Moral Duties of Life. Containing three books— I. On Honesty II. On Expediency III. Comparing Honesty and Expediency.	B.C. 44. Ætat. 63.
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It is to be observed from this list that for thirty years of his life Cicero was silent in regard to literature—for those thirty years in which the best fruits of a man's exertion are expected from him. Indeed, we may say that for the first fifty-two years of his life he wrote nothing but letters and speeches. Of the two treatises with which the list is headed, the first, in all probability, did not come from his pen, and the second is no more than a lad's translation from a Greek author. As to the work of translation, it must be understood that the Greek and Latin languages did not stand in reference to each other as they do now to modern readers. We translate in order that the pearls hidden under a foreign language may be conveyed to those who do not read it, and admit, when we are so concerned, that none can truly drink the fresh water from a fountain so handled. The Romans, in translating from the Greek, thinking nothing of literary excellence, felt that they were bringing Greek thought into a form of language in which it could be thus made useful. There was no value for the words, but only for the thing to be found in it. Thence it has come that no acknowledgment is made. We moderns confess that we are translating, and hardly assume for ourselves a third-rate literary place. When, on the other hand, we find the unexpressed thought floating about the world, we take it, and we make it our own when we put it into a book. The originality is regarded as being in the language, not in the thought. But to the Roman, when he found the thought floating about the world in the Greek character, it was free for him to adopt it and to make it his own. Cicero, had he done in these days with this treatise as I have suggested, would have been guilty of gross plagiarism, but there was nothing of the kind known then. This must be continually remembered in reading his essays. You will find large portions of them taken from the Greek without acknowledgment. Often it shall be so, because it suits him to contradict an assertion or to show that it has been allowed to lead to false conclusions. This general liberty of translation has been so frequently taken by the Latin poets—by Virgil and Horace, let us say, as being those best known—that they have been regarded by some as no more than

translations. To them to have been translators of Homer, or of Pindar and Stesichorus, and to have put into Latin language ideas which were noble, was a work as worthy of praise as that of inventing. And it must be added that the forms they have used have been perfect in their kind. There has been no need to them for close translation. They have found the idea, and their object has been to present it to their readers in the best possible language. He who has worked amid the bonds of modern translation well knows how different it has been with him. There is not much in the treatise *De Inventione* to arrest us. We should say, from reading it, that the matter it contains is too good for the production of a youth of twenty-one, but that the language in which it is written is not peculiarly fine. The writer intended to continue it—or wrote as though he did—and therefore we may imagine that it has come to us from some larger source. It is full of standing cases, or examples of the law courts, which are brought up to show the way in which these things are handled. We can imagine that a Roman youth should be practised in such matters, but we cannot imagine that the same youth should have thought of them all, and remembered them all, and should have been able to describe them.

The following is an example: "A certain man on his journey encountered a traveller going to make a purchase, having with him a sum of money. They chatted along the road together, and, as happens on such occasions, they became intimate. They went to the same inn, where they supped, and said that they would sleep together. Having supped they went to bed; when the landlord—for this was told after it had all been found out, and he had been taken for another offence—having perceived that one man had money, in the middle of the night, knowing how sound they would sleep from fatigue, crept up to them, and having taken out of its scabbard the sword of him that was without the money as it lay by his side, he killed the other man, put back the sword, and then went to his bed. But he whose sword had been used rose long before daylight and called loudly to his companion. Finding that the man slumbered too heavily to be stirred, he took himself and his sword and the other things he had brought away with him and started alone. But the landlord soon raised the hue-and-cry, 'A man has been killed!' and, with some of the guests, followed him who had gone off. They took the man on the road, and dragged his sword out of its sheath, which they found all bloody. They carried him back to the city, and he was accused." In this

cause there is the declaration of the crime alleged, "You killed the man." There is the defence, "I did not kill him." Thence arises the issue. The question to be judged is one of conjecture. "Did he kill him?"²⁴¹ We may judge from the story that the case was not one which had occurred in life, but had been made up. The truculent landlord creeping in and finding that everything was as he wished it; and the moneyless man going off in the dark, leaving his dead bedfellow behind him—as the landlord had intended that he should—form all the incidents of a stock piece for rehearsal rather than the occurrence of a true murder. The same may be said of other examples adduced, here as afterward, by Quintilian. They are well-known cases, and had probably been handed down from one student to another. They tell us more of the manners of the people than of the rudiments of their law.

From this may be seen the nature of the work. From thence we skip over thirty years and come at once to B.C. 55. The days of the Triumvirate had come, and the quarrel with Clodius—of Cicero's exile and his return, together with the speeches which he had made, in the agony of his anger, against his enemies. And all this had taken place since those halcyon days in which he had risen, on the voices of his countrymen, to be Quæstor, Ædile, Prætor, and Consul. He had first succeeded as a public man, and then, having been found too honest, he had failed. There can be no doubt that he had failed because he had been too honest. I must have told the story of his political life badly if I have not shown that Cæsar had retired from the assault because Cicero was Consul, but had retired only as a man does who steps back in order that his next spring forward may be made with more avail. He chose well the time for his next attack, and Cicero was driven to decide between three things—he must be Cæsarean, or must be quiet, or he must go. He would not be Cæsarean, he certainly could not be quiet, and he went. The immediate effect of his banishment was on him so great that he could not employ himself. But he returned to Rome, and, with too evident a reliance on a short-lived popularity, he endeavored to replace himself in men's eyes; but it must have been clear to him that he had struggled in vain. Then he looked back upon his art, his oratory, and told himself that, as the life of a man of action was no longer open to him, he could make for himself a greater career as a man of letters. He could do so. He has done so. But I doubt whether he had ever a confirmed purpose as to the future. Had

some grand Consular career been open to him—had it been given to him to do by means of the law what Cæsar did by ignoring the law—this life of him would not have been written. There would, at any rate, have been no need of these last chapters to show how indomitable was the energy and how excellent the skill of him who could write such books, because—he had nothing else to do.

The *De Oratore* is a work in three divisions, addressed to his brother Quintus, in which it has undoubtedly been Cicero's object to convince the world that an orator's employment is the highest of all those given to a man to follow; and this he does by showing that, in all the matters which an orator is called upon to touch, there is nothing which he cannot adorn by the possession of some virtue or some knowledge. To us, in these days, he seems to put the cart before the horse, and to fail from the very beginning, by reason of the fact that the orator, in his eloquence, need never tell the truth. It is in the power of man so to praise—constancy, let us say—as to make it appear of all things the best. But he who sings the praise of it may be the most inconstant of mankind, and may know that he is deceiving his hearers as to his own opinions—at any rate, as to his own practice. The virtue should come first, and then the speech respecting it. Cicero seems to imply that, if the speech be there, the virtue may be assumed.

But it has to be acknowledged, in this and in all his discourses as to the perfect orator, that it is here as it has been in all the inquirers after the τὸ καλόν.²⁴² We must recognize the fact that the Romans have adopted a form of inquiry from the Greeks, and, having described a more than human perfection, have instigated men to work up toward it by letting it be known how high will be the excellence, should it ever be attained. It is so in the *De Oratore*, as to which we must begin by believing that the speech-maker wanted is a man not to be found in any House of Commons. No Conservative and no Liberal need fear that he will be put out of court by the coming of this perfectly eloquent man. But this Cicero of whom we are speaking has been he who has been most often quoted for his perfections.²⁴³ The running after an impossible hero throws a damp over the whole search. When no one can expect to find the thing sought for, who can seek diligently? By degrees the ambitious student becomes aware that it is impossible, and is then carried on by a desire to see how he is to win a

second or a third place, if so much may be accorded to him. In his inquiries he will find that the Cicero, if he look to Quintilian or Tacitus—or the Crassus, if he look to Cicero—is so set before him as the true model; and with that he may be content.

The *De Oratore* is by far the longest of his works on rhetoric, and, as I think, the pleasantest to read. It was followed, after ten years, by the *Brutus*, or *De Claris Oratoribus*, and then by the *Orator*. But in all of them he charms us rather by his example than instructs us by his precepts. He will never make us believe, for instance, that a man who talks well will on that account be better than a man who thinks well; but he does make us believe that a man who talks as Cicero knew how to do must have been well worth hearing, and also that to read his words, when listening to them is no longer possible, is a great delight. Having done that, he has no doubt carried his object. He was too much a man of the world to have an impracticable theory on which to expend himself. Oratory had come uppermost with him, and had indeed made itself, with the Romans, the only pursuit to be held in rivalry with that of fighting. Literature had not as yet assumed its place. It needed Cicero himself to do that for her. It required the writing of such an essay as this to show, by the fact of its existence, that Cicero the writer stood quite as high as Cicero the orator. And then the written words remain when the sounds have died away. We believe that Cicero spoke divinely. We can form for ourselves some idea of the rhythm of his periods. Of the words in which Cicero spoke of himself as a speaker we have the entire charm.

Boccaccio, when he takes his queen into a grassy meadow and seats her in the midst of her ladies, and makes her and them and their admirers tell their stories, seems to have given rise to the ideas which Cicero has used when introducing his Roman orators lying under a plane-tree in the garden of Tusculum, and there discussing rhetoric; so much nearer to us appear the times of Cicero, with all the light that has been thrown upon them by their own importance, than does the middle of the fourteenth century in the same country. But the practice in this as in all matters of social life was borrowed from the Greeks, or perhaps rather the pretence of the practice. We can hardly believe that Romans of an advanced age would so have arranged themselves for the sake of conversation. It was a manner of bringing men together which had its attraction for the mind's eye; and Cicero, whose keen imagination represented to him the pleasantness of the picture, has used the

form of narrative with great effect. He causes Crassus and Antony to meet in the garden of Crassus at Tusculum, and thither he brings, on the first day, old Mucius Scævola the augur, and Sulpicius and Cotta, two rising orators of the period. On the second day Scævola is supposed to be too fatigued to renew the intellectual contest, and he retires; but one Cæsar comes in with Quintus Lutatius Catulus, and the conversation is renewed. Crassus and Antony carry it on in chief, but Crassus has the leading voice. Cæsar, who must have been the wag among barristers of his day, undertakes to give examples of that Attic salt by which the profundity of the law courts is supposed to have been relieved. The third conversation takes place on the afternoon of the second day, when they had refreshed themselves with sleep; though Crassus, we are specially told, had given himself up to the charms of no mid-day siesta. His mind had been full of the greatness of the task before him, but he will show neither fatigue nor anxiety. The art, the apparent ease with which it is all done, the grace without languor, the energy without exertion, are admirable. It is as though, they were sitting by running water, or listening to the music of some grand organ. They remove themselves to a wood a little farther from the house, and there they listen to the eloquence of Crassus. Cotta and Sulpicius only hear and assent, or imply a modified dissent in doubting words.

It is Crassus who insists that the orator shall be omniscient, and Antony who is supposed to contest the point with him. But they differ in the sweetest language; and each, though he holds his own, does it with a deference that is more convincing than any assertion. It may be as well, perhaps, to let it be understood that Crassus and Cæsar are only related by distant family ties—or perhaps only by ties of adoption—to the two of the First Triumvirate whose names they bear; whereas Antony was the grandfather of that Cleopatra's lover against whom the Philippics were hurled.

No one, as I have said before, will read these conversations for the sake of the argument they contain; but they are, and will be, studied as containing, in the most appropriate language, a thousand sayings respecting the art of speech. "No power of speaking well can belong to any but to him who knows the subjects on which he has to speak;"²⁴⁴ a fact which seems so clear that no one need be troubled with stating it, were it not that men sin against it every day. "How great the undertaking to put yourself forward

among a crowd of men as being the fittest of all there to be heard on some great subject!"²⁴⁵ "Though all men shall gnash their teeth, I will declare that the little book of the twelve tables surpasses in authority and usefulness all the treatises of all the philosophers."²⁴⁶ Here speaks the Cicero of the Forum, and not that Cicero who amused himself among the philosophers. "Let him keep his books of philosophy for some Tusculum idleness such as is this of ours, lest, when he shall have to speak of justice, he must go to Plato and borrow from him, who, when he had to express him in these things, created in his books some new Utopia."²⁴⁷ For in truth, though Cicero deals much, as we shall see by-and-by, with the philosophers, and has written whole treatises for the sake of bringing Greek modes of thought among the Romans, he loved the affairs of the world too well to trust them to philosophy. There has been some talk of old age, and Antony, before the evening has come, declares his view. "So far do I differ from you," he says, "that not only do I not think that any relief in age is to be found in the crowd of them who may come to me for advice, but I look to its solitude as a harbor. You indeed may fear it, but to me it will be most welcome."²⁴⁸

Then Cicero begins the second book with a renewal of the assertion as to oratory generally, not putting the words into the mouth of any of his party, but declaring it as his own belief: "This is the purpose of this present treatise, and of the present time, to declare that no one has been able to excel in eloquence, not merely without capacity for speaking, but also without acquired knowledge of all kinds."²⁴⁹ But Antony professes himself of another opinion: "How can that be when Crassus and I often plead opposite causes, and when one of us can only say the truth? Or how can it be possible, when each of us must take the cause as it comes to him?"²⁵⁰ Then, again, he bursts into praise of the historian, as though in opposition to Crassus: "How worthy of an orator's eulogy is the writing of history, whether greatest in the flood of its narrative or in its variety! I do not know that we have ever treated it separately, but it is there always before our eyes. For who does not know that the first law of the historian is that he must not dare to say what is false: the next, that he must not dare to suppress what is true."²⁵¹ We wonder, when Cicero was writing this, whether he remembered his request to Lucceius, made now two years ago. He gives a piece of advice to young advocates, apologizing, indeed, for thinking it necessary;

but he has found it to be necessary, and he gives it: "Let me teach this to them all; when they intend to plead, let them first study their causes."²⁵² It is not only here that we find that the advice which is useful now was wanted then. "Read your cases!" The admonition was wanted in Rome as it has been since in London.

But the great mistake of the whole doctrine creeps out at every page as we go on, and disproves the idea on which the *De Oratore* is founded. All Cicero's treatises on the subject, and Quintilian's, and those of the pseudo-Tacitus, and of the first Greek from which they have come, fall to the ground as soon as we are told that it must be the purport of the orator to turn the mind of those who hear him either to the right or to the left, in accordance with the drift of the cause.²⁵³ The mind rejects the idea that it can be the part of a perfect man to make another believe that which he believes to be false. If it be necessary that an orator should do so, then must the orator be imperfect. We have the same lesson taught throughout. It is the great gift of the orator, says Antony, to turn the judge's mind so that he shall hate or love, shall fear or hope, shall rejoice or grieve, or desire to pity or desire to punish.²⁵⁴ No doubt it is a great power. All that is said as to eloquence is true. It may be necessary that to obtain the use of it you shall educate yourself with more precision than for any other purpose. But there will be the danger that they who have fitted the dagger to the hand will use it. It cannot be right to make another man believe that which you think to be false.

In the use of raillery in eloquence the Roman seems to have been very backward; so much so that it is only by the examples given of it by themselves as examples that we learn that it existed. They can appall us by the cruelty which they denounce. They can melt us by their appeals to our pity. They can terrify; they can horrify; they can fill us with fear or hope, with anger, with despair, or with rage; but they cannot cause us to laugh. Their attempts at a joke amuse us because we recognize the attempt. Here Cæsar is put forward to give us the benefit of his wit. We are lost in surprise when we find how miserable are his jokes, and take a pride in finding that in one line we are the masters of the Romans. I will give an instance, and I pick it out as the best among those selected by Cicero. Nasica goes to call upon Ennius, and is informed by the maid-servant that her master is not at

home. Ennius returns the visit, and Nasica halloos out from the window that he is not within. "Not within!" says Ennius; "don't I know your voice?" Upon which Nasica replies, "You are an impudent fellow! I had the grace to believe your maid, and now you will not believe me myself."²⁵⁵ How this got into a law-case we do not know; it is told, however, just as I have told it. But there are enough of them here to make a small Joe Miller; and yet, in the midst of language that is almost divine in its expressions, they are given as having been worthy of all attention.

The third book is commenced by the finest passage in the whole treatise. Cicero remembers that Crassus is dead, and then tells the story of his death. And Antony is dead, and the Cæsars. The last three had fallen in the Marian massacres. There is but little now in the circumstances of their death to excite our tears. Who knows aught of that Crassus, or of that Antony, or of those Cæsars? But Cicero so tells it in his pretended narrative as almost to make us weep. The day was coming when a greater than either of them was to die the same death as Antony, by the order of another Antony—to have his tongue pierced, and his bloody head thrust aloft upon the rostra. But no Roman has dared to tell us of it as Cicero has told the story of those others. Augustus had done his work too well, and it was much during his reign that Romans who could make themselves heard should dare to hold their tongues.

It would be useless in me here to attempt to give any notion of the laws as to speech which Cicero lays down. For myself I do not take them as laws, feeling that the interval of time has been too great to permit laws to remain as such. No orator could, I feel sure, form himself on Cicero's ideas. But the sweetness of the language is so great as to convince us that he, at any rate, knew how to use language as no one has done since: "But there is a building up of words, and a turning of them round, and a nice rendering. There is the opposing and the loosening. There is the avoiding, the holding back, the sudden exclamation, and the dropping of the voice; and the taking an argument from the case at large and bringing it to bear on a single point; and the proof and the propositions together. And there is the leave given; and then a doubting, and an expression of surprise. There is the counting up, the setting right; the utter destruction, the continuation, the breaking off, the pretence, the answer made to one's self, the change of names, the disjoining

and rejoining of things—the relation, the retreat, and the curtailing."²⁵⁶ Who can translate all these things when Quintilian himself has been fain to acknowledge that he has attempted and has failed to handle them in fitting language?

And then at last there comes that most lovely end to these most charming discourses: "His autem de rebus sol me ille admonuit, ut brevior essem, qui ipse jam præcipitans, me quoque hac præcipitem pæne evolvere coegit."²⁵⁷ These words are so charming in their rhythm that I will not rob them of their beauty by a translation. The setting sun requires me also to go to rest: that is their simple meaning. At the end of the book he introduces a compliment to Hortensius, who during his life had been his great rival, and who was still living when the *De Oratore* was written.

B.C. 52, ætat. 55. The next on the list is the *De Optimo Genere Oratorum*—a preliminary treatise written as a preface to a translation made by himself on the speeches of Æschines and Demosthenes against Ctesiphon in the matter of the Golden Crown. We have not the translations; but we have his reasons for translating them—namely, that he might enable readers only of Latin to judge how far Æschines and Demosthenes had deserved, either of them, the title of "Optimus orator." For they had spoken against each other with the most bitter abuse, and each spokesman was struggling for the suppression of the other. Each was speaking with the knowledge that, if vanquished, he would have to pay heavily in his person and his pocket. He gives the palm to neither; but he tells his readers that the Attic mode of speaking is gone—of which, indeed, the glory is known, but the nature unknown. But he explains that he has not translated the two pieces verbatim, as an interpreter, but in the spirit, as an orator, using the same figures, the same forms, the same strength of ideas. We have to acknowledge that we do not see how in this way he can have done aught toward answering the question *De Optimo Genere Oratorum*; but he may perhaps have done something to prove that he himself, in his oratory, had preserved the best known Grecian forms.

The *De Partitione Oratoria* Dialogus follows, of which we have already spoken, written when he was an old man, and was in the sixty-first year of his life. It was the year in which he had divorced Terentia, and had been made thoroughly wretched in private and in public affairs. But he was not

on that account disabled from preparing for his son these instructions, in the form of questions and answers, on the art of speaking.

We next come to the Brutus; or, *De Claris Oratoribus*, a dialogue supposed to have been held between Brutus, Atticus, and Cicero himself. It is a continuation of the three books *De Oratore*. He there describes what is essential to the character of the optimus orator. He here looks after the special man, going back over the results of past ages, and bringing before the reader's eyes all Greek and Roman orators, till he comes down to Cicero. I cannot but say that the feeling is left with the reader that the orator optimus has been reached at last in Cicero's mind.

We must remark, in the first place, that he has chosen for his friend, to whom to address his piece, one whom he has only known late in life. It was when he went to Cilicia as governor, when he was fifty-six years old, that he was thrown by Atticus into close relations with Brutus. Now he has, next to Atticus, become his most chosen friend. His three next treatises, the *Orator*, the *Tusculan Disquisitions*, and the *De Natura Deorum*, have all been graced, or intended to be graced, by the name of Brutus. And yet, from what we know, we can hardly imagine two men less likely to be brought together by their political ambition. The one compromising, putting up with the bad rather than with a worse, knowing that things were evil, and contented to accept those that were the least so; the other strict, uncompromising, and one who had learned lessons which had taught him that there was no choice among things that were bad! And Brutus, too, had told Cicero that his lessons in oratory were not to his taste. There was a something about Cicero which enabled him to endure such rebukes while there was aught worthy of praise in the man who rebuked him; and it was to this something that his devotion was paid. We know that Brutus was rapacious after money with all the greed of a Roman nobleman, and we know also that Cicero was not. Cicero could keep his hands clean with thousands around him, and with thousands going into the pockets of other men. He could see the vice of Brutus, but he did not hate it. He must have borne, too, with something from Atticus of the same kind. The truth seems to me that to Cicero there was no horror as to greediness, except to greed in himself. He could hate it for himself and yet tolerate it in others, as a man may card-playing, or rackets, or the turf. But he must have known that Brutus had made himself the owner of all good gifts in learning, and took

him to his heart in consequence. In no other way can I explain to myself the feeling of subservience to Brutus which Cicero so generally expresses: it exists in none other of his relations of life. Political subservience there is to Pompey; but he can laugh at Pompey, and did not dedicate to him his treatises *De Republica*, or *De Legibus*. To Appius Claudius he was very courteous. He thought badly of Appius, but hardly worse than he ought to have done of Brutus. Of Cælius he was fond, of Curio, of Trebatius. To Pætus he was attached, to Sulpicius and Marcellus. But to none of them did he ever show that deference which he did to Brutus. I could have understood this feeling as evinced in the political letters at the end of his life, and have explained it to myself by saying that the "ipsissima verba" have not probably come to us. But I cannot say that the name of Brutus does not stand there, written in imperishable letters on the title-pages of his most chosen pieces. If this be so, Brutus has owed more to his learning than the respect of Cicero. All ages since have felt it, and Shakespeare has told us that "Brutus is an honorable man."

There is a dispute as to the period of the authorship of this treatise. Cicero in it tells us of Cato and of Marcellus, and therefore we must suppose that it was written when they were alive. Indeed, he so compares Cæsar and Marcellus as he could not have done had they not both been alive. But Cato and Marcellus died B.C. 46, and how then could the treatise have been written in B.C. 45? It should, however, be remembered that a written paper may be altered and rewritten, and that the date of authorship and that of publication cannot be exactly the same. But the time is of but little matter to those who can take delight in the discourse. He begins by telling us how he had grieved when, on his return from Cilicia, he had heard that Hortensius was dead. Hortensius had brought him into the College of Augurs, and had there stood to him in the place of a parent. And he had lamented Hortensius also on behalf of Rome. Hortensius had gone. Then he goes on to say that, as he was thinking of these things while walking in his portico, Brutus had come to him and Pomponius Atticus. He says how pleasantly they greeted each other; and then gradually they go on, till Atticus asks him to renew the story he had before been telling. "In truth, Pomponius," he says, "I remember it right well, for then it was that I heard Deiotarus, that truest and best of kings, defended by our Brutus here," Deiotarus was that Eastern king whose defence by Cicero himself I have mentioned when speaking of

his pleadings before Cæsar. Then he rushes off into his subject, and discusses at length his favorite idea. It must still be remembered that neither here are to be traced any positive line of lessons in oratory. There is no beginning, no middle, and no end to this treatise. Cicero runs on, charming us rather by his language than by his lessons. He says of Eloquence that "she is the companion of peace, and the associate of ease."²⁵⁸ He tells us of Cato, that he had read a hundred and fifty of his speeches, and had "found them all replete with bright words and with great matter; * * * and yet no one in his days read Cato's speeches!"²⁵⁹ This, of course, was Cato the elder. Then we hear how Demosthenes said that in oratory action was everything: it was the first thing, the second, and the third. "For there is nothing like it to penetrate into the minds of the audience—to teach them, to turn them, and to form them, till the orator shall be made to appear exactly that which he wishes to be thought."²⁶⁰ * * * The man who listens to one who is an orator believes what he hears; he thinks everything to be true, he approves of all."²⁶¹ No doubt! In his power of describing the orator and his work Cicero is perfect; but he does not describe the man doing that which he is bound to do by his duty.

He tells us that nothing is worse than half a dozen advocates—which certainly is true.²⁶² Further on he comes to Cæsar, and praises him very highly. But here Brutus is made to speak, and tells us how he has read the Commentaries, and found them to be "bare in their beauty, perfect in symmetry, but unadorned, and deprived of all outside garniture."²⁶³ They are all that he has told us, nor could they have been described in truer words. Then he names Hortensius, and speaks of him in language which is graceful and graphic; but he reserves his greatest strength for himself, and at last, declaring that he will say nothing in his own praise, bursts out into a string of eulogy, which he is able to conceal beneath dubious phrases, so as to show that he himself has acquired such a mastery over his art as to have made himself, in truth, the best orator of them all.²⁶⁴

Perhaps the chief charm of this essay is to be found in the lightness of the touch. It is never heavy, never severe, rarely melancholic. If read without reference to other works, it would leave on the reader's mind the impression that though now and again there had come upon him the memory of a friend who had gone, and some remembrance of changes in the State to which, as

an old man, he could not give his assent; nevertheless, it was written by a happy man, by one who was contented among his books, and was pleased to be reminded that things had gone well with him. He writes throughout as one who had no great sorrow at his heart. No one would have thought that in this very year he was perplexed in his private affairs, even to the putting away of his wife; that Cæsar had made good his ground, and, having been Dictator last year, had for the third time become Consul; that he knew himself to be living, as a favor, by Cæsar's pleasure. Cicero seems to have written his Brutus as one might write who was well at ease. Let a man have taught himself aught, and have acquired the love of letters, it is easy for him then, we might say, to carry on his work. What is it to him that politicians are cutting each other's throats around him? He has not gone into that arena and fought and bled there, nor need he do so. Though things may have gone contrary to his views, he has no cause for anger, none for personal disappointment, none for personal shame; but with Cicero, on every morning as he rose he must have remembered Pompey and have thought of Cæsar. And though Cæsar was courteous to him, the courtesy of a ruler is hard to be borne by him who himself has ruled. Cæsar was Consul; and Cicero, who remembered how majestically he had walked when a few years since he was Consul by the real votes of the people, how he had been applauded for doing his duty to the people, how he had been punished for stretching the laws on the people's behalf, how he had refused everything for the people, must have had bitter feelings in his heart when he sat down to write this conversation with Brutus and with Atticus. Yet it has all the cheerfulness which might have been expected from a happy mind. But we must remark that at its close—in its very final words—he does allude with sad melancholy to the state of affairs, and that then it breaks off abruptly. Even in the middle of a sentence it is brought to a close, and the reader is left to imagine that something has been lost, or that more might have been added.

The last of these works is the Orator. We have passed in review the *De Oratore*, and the *Brutus*; or, *De Claris Oratoribus*. We have now to consider that which is commonly believed to be the most finished piece of the three. Such seems to have become the general idea of those scholars who have spoken and written on the subject. He himself says that there are in all five books. There are the three *De Oratore*; the fourth is called the *Brutus*, and

the fifth the Orator.²⁶⁵ In some MSS. this work has a second title, *De Optimo Genere Dicendi*—as though the five books should run on in a sequence, the first three being on oratory in general, the fourth as to famous orators, while the last concluding work is on the best mode of oratory. Readers who may wish to carry these in their minds must exclude for the moment from their memory the few pages which he wrote as a preface to the translations from *Æschines* and *Demosthenes*. The purport is to show how that hitherto unknown hero of romance may be produced—the perfect orator.

Here as elsewhere we shall find the greatest interest lies in a certain discursive treatment of his subject, which enables him to run hither and thither, while he always pleases us, whatever attitude he may assume, whatever he may say, and in whatever guise he may speak to us. But here, in the last book, there does seem to be some kind of method in his discourse. He distinguishes three styles of eloquence—the simple, the moderate, and the sublime, and explains that the orator has three duties to perform. He must learn what on any subject he has to say; he must place his arguments in order, and he must know how to express them. He explains what action should achieve for the orator, and teaches that eloquence depends wholly on elocution. He tells us that the philosophers, the historians, and the poets have never risen to his ideas of eloquence; but that he alone does so who can, amid the heat and work of the Forum, turn men's minds as he wishes. Then he teaches us how each of the three styles should be treated—the simple, the moderate, and the sublime—and shows us how to vary them. He informs us what laws we should preserve in each, what ornaments, what form, and what metaphors. He then considers the words we should use, and makes us understand how necessary it is to attend to the minutest variety of sound. In this matter we have to acknowledge that he, as a Roman, had to deal with instruments for listening infinitely finer than are our British ears; and I am not sure that we can follow him with rapture into all the mysteries of the *Pœon*, the *Dochmius*, and the *Dichoreus*. What he says of rhythm we are willing to take to be true, and we wonder at the elaborate study given to it; but I doubt whether we here do not read of it as a thing beyond us, by descending into which we should be removing ourselves farther from the more wholesome pursuits of our lives.

There are, again, delightful morsels here. He tells us, for instance, that he who has created a beautiful thing must have beauty in his soul,²⁶⁶—a charming idea, as to which we do not stop to inquire whether it be true or not. He gives us a most excellent caution against storing up good sayings, and using them from the storehouse of our memory: "Let him avoid these studied things, not made of the moment, but brought from the closet."²⁶⁷ Then he rises into a grand description of the perfect orator: "But that third man is he, rich, abundant, dignified, and instructed, in whom there is a divine strength. This is he whose fulness and culture of speech the nations have admired, and whose eloquence has been allowed to prevail over the people."²⁶⁸ * * * Then will the orator make himself felt more abundantly. Then will he rule their minds and turn their hearts. Then will he do with them as he would wish."²⁶⁹

But in the teeth of all this it did not please Brutus himself. "When I wrote to him," he said to Atticus, "in obedience to his wishes, 'De Optimo Genere Dicendi,' he sent word, both to you and me, that that which pleased me did not satisfy him."²⁷⁰ "Let every man kiss his own wife," says Cicero in his letter in the next words to those we have quoted; and we cannot but love the man for being able to joke when he is telling of the rebuff he has received. It must have been an additional pang to him, that he for whom he had written his book should receive it with stern rebuke.

At last we come to the Topica; the last instructions which Cicero gives on the subject of oratory. The Romans seem to have esteemed much the lessons which are here conveyed, but for us it has but little attraction. He himself declares it to have been a translation from Aristotle, but declares also that the translation has been made from memory. He has been at sea, he says, in the first chapter, and has there performed his task, and has sent it as soon as it has been done. There is something in this which is unintelligible to us. He has translated a treatise of Aristotle from memory—that is, without having the original before him—and has done this at sea, on his intended journey to Greece!²⁷¹ I do not believe that Cicero has been false in so writing. The work has been done for his young friend Trebatius, who had often asked it, and was much too clever when he had received it not to recognize its worth. But Cicero has, in accordance with his memory, reduced to his own form Aristotle's idea as to "invention" in logic.

Aristotle's work is, I am informed, in eight books: here is a bagatelle in twenty-five pages. There is an audacity in the performance—especially in the doing it on board ship; but we must remember that he had spent his life in achieving a knowledge of these things, and was able to write down with all the rapidity of a practised professor the doctrines on the matter which he wished to teach Trebatius.

This later essay is a recapitulation of the different sources to which an orator, whether as lawyer, advocate, philosopher, or statesman, may look for his arguments. That they should have been of any great use to Trebatius, in the course of his long life as attorney-general about the court of Augustus, I cannot believe. I do not know that he rose to special mark as an orator, though he was well known as a counsellor; nor do I think that oratory, or the powers of persuasion, can be so brought to book as to be made to submit itself to formal rules. And here they are given to us in the form of a catalogue. It is for modern readers perhaps the least interesting of all Cicero's works.

There is left upon us after reading these treatises a general idea of the immense amount of attention which, in the Roman educated world, was paid to the science of speaking. To bring his arguments to bear at the proper moment—to catch the ideas that are likely to be rising in the minds of men—to know when the sympathies may be expected and when demanded, when the feelings may be trusted and when they have been too blunted to be of service—to perceive from an instinctive outlook into those before him when he may be soft, when hard, when obdurate and when melting—this was the business of a Roman orator. And this was to be achieved only by a careful study of the characters of men. It depended in no wise on virtue, on morals, or on truth, though very much on education. How he might please the multitude—this was everything to him. It was all in all to him to do just that which here in our prosaic world in London we have been told that men ought not to attempt. They do attempt it, but they fail—through the innate honesty which there is in the hearts of men. In Italy, in Cicero's time, they attempted it, and did not fail. But we can see what were the results.

The attention which Roman orators paid to their voices was as serious, and demanded the same restraint, as the occupations of the present athlete. We are inclined to doubt whether too much of life is not devoted to the purpose.

It could not be done but by a people so greedy of admiration as to feel that all other things should be abandoned by those who desire to excel. The actor of to-day will do it, but it is his business to act; and if he so applies himself to his profession as to succeed, he has achieved his object. But oratory in the law court, as in Parliament, or in addressing the public, is only the means of imbuing the minds of others with the ideas which the speaker wishes to implant there. To have those ideas, and to have the desire to teach them to others, is more to him than the power of well expressing them. To know the law is better than to talk of knowing it. But with the Romans so great was the desire to shine that the reality was lost in its appearance; and so prone were the people to indulge in the delight of their senses that they would sacrifice a thing for a sound, and preferred lies in perfect language to truth in halting syllables. This feeling had sunk deep into Cicero's heart when he was a youth, and has given to his character the only stain which it has. He would be patriotic: to love his country was the first duty of a Roman. He would be honest: so much was indispensable to his personal dignity. But he must so charm his countrymen with his voice as to make them feel while they listened to him that some god addressed them. In this way he became permeated by the love of praise, till it was death to him not to be before the lamps.

The "perfect orator" is, we may say, a person neither desired nor desirable. We, who are the multitude of the world, and have been born to hold our tongues and use our brains, would not put up with him were he to show himself. But it was not so in Cicero's time; and this was the way he took to sing the praises of his own profession and to magnify his own glory. He speaks of that profession in language so excellent as to make us who read his words believe that there was more in it than it did in truth hold. But there was much in it, and the more so as the performers reacted upon their audience. The delicacy of the powers of expression had become so great, that the powers of listening and distinguishing had become great also. As the instruments became fine, so did the ears which were to receive their music. Cicero, and Quintilian after him, tell us this. The latter, in speaking of the nature of the voice, gives us a string of epithets which it would be hopeless to attempt to translate: "Nam est et candida, et fusca, et plena, et exilis, et levis, et aspera, et contracta, et fusa, et dura, et flexibilis, et clara, et obtusa; spiritus etiam longior, breviorque."²⁷² And the remarkable thing

was, that every Roman who listened would understand what the orator intended, and would know too, and would tell him of it, if by error he had fallen into some cadence which was not exactly right. To the modes of raising the voice, which are usually divided into three—the high or treble, the low or bass, and that which is between the two, the contralto and tenor—many others are added. There are the eager and the soft, the higher and the lower notes, the quicker and the slower. It seems little to us, who know that we can speak or whisper, hammer our words together, or drawl them out. But then every listener was critically alive to the fact whether the speaker before him did or did not perform his task as it should be done. No wonder that Cicero demanded who was the *optimus orator*. Then the strength of body had to be matured, lest the voice should fall to "a sick, womanly weakness, like that of an eunuch." This must be provided by exercise, by anointing, by continence, by the easy digestion of the food—which means moderation; and the jaws must be free, so that the words must not strike each other. And as to the action of the orator, Cicero tells us that it should speak as loudly and as plainly as do the words themselves. In all this we find that Quintilian only follows his master too closely. The hands, the shoulders, the sides, the stamping of the foot, the single step or many steps—every motion of the body, agreeing with the words from his mouth, are all described.²⁷³ He attributes this to Antony—but only because, as he thinks of it, some movement of Antony's has recurred to his memory.

To make the men who heard him believe in him was the one gift which Cicero valued; not to make them know him to be true, but to believe him to be so. This it was, in Cicero's time, to be the *optimus orator*.

Since Cicero's time there has been some progress in the general conduct of men. They are less greedy, less cruel, less selfish—greedy, cruel, and selfish though they still are. The progress which the best among us have made Cicero in fact achieved; but he had not acquired that theoretic aversion to a lie which is the first feeling in the bosom of a modern gentleman; therefore it was that he still busied himself with finding the *optimus orator*.

CHAPTER XII.

CICERO'S PHILOSOPHY.

It will have been observed that in the list given in the previous chapter the works commonly published as Cicero's Philosophy have been divided. Some are called his Philosophy and some his Moral Essays. It seems to be absurd to put forward to the world his Tusculan Inquiries, written with the declared object of showing that death and pain were not evils, together with a moral essay, such as that *De Officiis*, in which he tells us what it may become a man of the world to do. It is as though we bound up Lord Chesterfield's letters in a volume with Hume's essays, and called them the philosophy of the eighteenth century. It might be true, but it would certainly be absurd. There might be those who regard the letters as philosophical, and those who would so speak of the essays; but their meaning would be diametrically opposite. It is so with Cicero, whose treatises have been lumped together under this name with the view of bringing them under one appellation. It had been found necessary to divide his works and to describe them. The happy man who first thought to put the *De Natura Deorum* and the *De Amicitia* into boards together, and to present them to the world under the name of his philosophy, perhaps found the only title that could unite the two. But he has done very much to mislead the world, and to teach readers to believe that Cicero was in truth one who endeavored to live in accordance with the doctrine of any special school of philosophy.

He was too honest, too wise, too civilized, too modern for that. He knew, no one better, that the pleasure of the world was pleasant, and that the ills are the reverse. When his wife betrayed him, he grieved. When his daughter died, he sorrowed. When his foe was strong against him, he hated him. He avoided pain when it came near him, and did his best to have everything comfortable around him. He was so far an Epicurean, as we all are. He did not despise death, or pain, or grief. He was a modern-minded man—if I make myself understood—of robust tendencies, moral, healthy, and enduring; but he was anything but a philosopher in his life. Let us remember the way in which he laughs at the idea of bringing philosophy into real life in the *De Oratore*. He is speaking of the manner in which the lawyers would have had to behave themselves in the law courts if philosophy had been allowed to prevail: "No man could have grieved aloud. No patron would have wept. No one would have sorrowed. There would have been no calling of the Republic to witness; not a man would have

dared to stamp his foot, lest it should have been told to the Stoics."²⁷⁴ "You should keep the books of the philosophers for your Tusculan ease," he had said in the preceding chapter; and he speaks, in the same page, of "Plato's fabulous State."

Then why, it may be asked, did he write so many essays on philosophy—enough to have consumed the energies of many laborious years? There can be no doubt that he did write the Philosophy, though we have ample reason to know that it was not his philosophy. All those treatises, beginning with the *Academica*—written when he was sixty-two, two years only before his death, and carried on during twelve months with indomitable energy—the *De Finibus*, the *Tusculan Disputations*, the *De Natura Deorum*, the *De Divinatione*, and the *De Fato*—were composed during the time named. To those who have regarded Cicero as a philosopher—as one who has devoted his life to the pursuits of philosophy—does it not appear odd that he should have deferred his writing on the subject and postponed his convictions till now? At this special period of his life why should he have rushed into them at once, and should so have done it as to be able to leave them aside at another period? Why has all this been done within less than two years? Let any man look to the last year of his life, when the *Philippics* were coming hot from his brain and eager from his mouth, and ask himself how much of Greek philosophy he finds in them. Out of all the sixty-four years of his life he devoted one to this philosophy, and that not the last, but the penultimate; and so lived during all these years, even including that one, as to show how little hold philosophy had upon his conduct. Αἰδεομαι Τρωῶας. Was that Greek philosophy? or the eager exclamation of a human spirit, in its weakness and in its strength, fearing the breath of his fellow-men, and yet knowing that the truth would ultimately be expressed by it?

Nor is the reason for this far to seek, though the character which could avail itself of such a reason requires a deep insight. To him literature had been everything. We have seen with what attention he had studied oratory—rhetoric rather—so as to have at his fingers'-ends the names of those who had ever shone in it, and the doctrines they had taught. We know how well read he was in Homer and the Greek tragedians; how he knew by heart his Ennius, his Nævius, his Pacuvius, and the others who had written in his own tongue. As he was acquainted with the poets and rhetoricians, so also was he acquainted with those writers who have handled philosophy. His

incredible versatility was never at fault. He knew them all from the beginning, and could interest himself in their doctrines. He had been in the schools at Athens, and had learned it all. In one sense he believed in it. There was a great battle of words carried on, and in regard to that battle he put his faith in this set or in the other. But had he ever been asked by what philosophical process he would rule the world, he would have smiled. Then he would have declared himself not to be an Academician, but a Republican.

It was with him a game of play, ornamented with all the learning of past ages. He had found the schools full of it at Athens, and had taken his part in their teaching. It had been pleasant to him to call himself a disciple of Plato, and to hold himself aloof from the straitness of the Stoics, and from the mundane theories of the followers of Epicurus. It had been well for him also to take an interest in that play. But to suppose that Cicero, the modern Cicero, the Cicero of the world—Cicero the polished gentleman, Cicero the soft hearted, Cicero the hater, Cicero the lover, Cicero the human—was a believer in Greek philosophy—that he had taken to himself and fed upon those shreds and tatters and dry sticks—that he had ever satisfied himself with such a mode of living as they could promise to him—is indeed to mistake the man. His soul was quiveringly alive to all those instincts which now govern us. Go among our politicians, and you shall find this man and the other, who, in after-dinner talk, shall call himself an Epicurean, or shall think himself to be an Academician. He has carried away something of the learning of his college days, and remembers enough of his school exercises for that; but when he has to make a speech for or against Protection, then you will find out where lies his philosophy.

And so it was with Cicero during this the penultimate year of his life. He poured forth during this period such an amount of learning on the subject, that when men took it up after the lapse of centuries they labelled it all as his philosophy. When he could no longer talk politics, nor act them—when the Forum was no longer open to him, nor the meetings of the people or of the Senate—when he could no longer make himself heard on behalf of the State—then he took to discussions on Carneades. And his discussions are wonderful. How could he lay his mind to work when his daughter was dead, and write in beautiful language four such treatises as came from his pen while he was thinking of the temple which was to be built to her memory?

It is a marvel that at such a period, at such an age, he should have been equal to the labor. But it was thus that he amused himself, consoled himself, distracted himself. It is hard to believe that, in the sad evening of his life, such a power should have remained with him; but easier, I think, than to imagine that in that year of his life he had suddenly become philosophical.

In describing the *Academica*, the first of these works in point of time, it is necessary to explain that by reason of an alteration in his plan of publishing, made by Cicero after he had sent the first copy to Atticus, and by the accident that the second part has been preserved of the former copy and the first part of the second, a confusion has arisen. Cicero had felt that he might have done better by his friends than to bring Hortensius, Catulus, and Lucullus discussing Greek philosophy before the public. They were, none of them, men who when alive had interested themselves in the matter. He therefore rewrote the essays, or altered them, and again sent them forth to his friend Varro. Time has been so far kind to them as to have preserved portions of the first book as altered, and the second of the four which constituted the first edition. It is that which has been called *Lucullus*. The *Catulus* had come first, but has been lost. Hortensius and Cicero were the last two. We may perceive, therefore, into what a length of development he carried his purpose. It must be of course understood that he dictated these exercises, and assisted himself by the use of all mechanical means at his disposal. The men who worked for him were slaves, and these slaves were always willing to keep in their own hands the good things which came to them by the exercise of their own intelligence and adroitness. He could not multiply his own hands or brain, but he could multiply all that might assist them. He begins by telling Varro that he has long since desired to illustrate in Latin letters the philosophy which Socrates had commended, and he asks Varro why he, who was so much given to writing, had not as yet written about any of these things. As Varro boasted afterward that he was the author of four hundred and ninety books, there seems to be a touch of irony in this. Be that as it may, Varro is made to take up the gauntlet and to rush away at once amid the philosophers. But here on the threshold, as it were, of his inquiries, we have Cicero's own reasons given in plain language: "But now, hit hard by the heavy blow of fortune, and freed as I am from looking after the State, I seek from philosophy relief from my pain." He thinks that he may in this way perhaps best serve the public, or even "if it be not so, what

else is there that he may find to do?"²⁷⁵ As he goes on, however, we find that what he writes is about the philosophers rather than philosophy.

Then we come to the Lucullus. It seems odd that the man whose name has come down to us as a by-word for luxury, and who is laden with the reproach of overeating, should be thus brought forward as a philosopher. It was perhaps the subsequent feeling on Cicero's part that such might be the opinion of men which induced him to alter his form—in vain, as far as we are concerned. But Lucullus had lived with Antiochus, a Greek philosopher, who had certain views of his own, and he is made to defend them through this book.

Here as elsewhere it is not the subject which delights us so much as the manner in which he handles certain points almost outside the subject: "How many things do those exercised in music know which escape us! Ah, there is Antiope, they say; that is Andromache."²⁷⁶ What can be truer, or less likely, we may suppose, to meet us in a treatise on philosophy, and, therefore, more welcome? He is speaking of evidence: "It is necessary that the mind shall yield to what is clear, whether it wish it or no, as the dish in a balance must give way when a weight is put upon it."²⁷⁷ * * * You may snore, if you will, as well as sleep," says Carneades; "what good will it do you?"²⁷⁸ And then he gives the guesses of some of the old philosophers as to the infinite. Thales has said that water is the source of everything. Anaximander would not agree to this, for he thought that all had come from space. Anaximenes had affirmed that it was air. Anaxagoras had remarked that matter was infinite. Xenophanes had declared that everything was one whole, and that it was a god, everlasting, eternal, never born and never dying, but round in his shape! Parmenides thought that it was fire that moved the earth. Leucippus believed it to be "plenum et inane." What "full and empty" may mean I cannot tell; but Democritus could, for he believed in it—though in other matters he went a little farther! Empedocles sticks to the old four elements. Heraclitus is all for fire. Melissus imagines that whatever exists is infinite and immutable, and ever has been and ever will be. Plato thinks that the world has always existed, while the Pythagoreans attribute everything to mathematics.²⁷⁹ "Your wise man," continues Cicero, "will know one whom to choose out of all these. Let the others, who have been repudiated, retire."

"They are all concealed, these things—hidden in thick darkness, so that no human eye can have power enough to look up into the heavens or down on to the earth. We do not know our own bodies, or the nature or strength of their component parts. The doctors themselves, who have opened them and looked at them, are ignorant. The Empirics declare that they know nothing; because, as soon as looked at, they may change. * * * Hicetas, the Syracusan, as Theophrastus tells us, thinks that the heavens and the sun and the moon and the stars all stand still, and that nothing in all the world moves but the earth. Now what do you, followers of Epicurus, say to this?"²⁸⁰ I need not carry the conversation on any farther to show that Cicero is ridiculing the whole thing. This Hicetas, the Syracusan, seems to have been nearer the mark than the others, according to the existing lights, which had not shone out as yet in Cicero's days. "But what was the meaning of it all? Who knows anything about it? How is a man to live by listening to such trash as this?" It is thus that Cicero means to be understood. I will agree that Cicero does not often speak out so clearly as he does here, turning the whole thing into ridicule. He does generally find it well to say something in praise of these philosophers. He does not quite declare the fact that nothing is to be made of them; or, rather, there is existing in it all an under feeling that, were he to do so, he would destroy his character and rob himself of his amusement. But we remember always his character of a philosopher, as attributed to Cato, in his speech during his Consulship for Murena. I have told the story when giving an account of the speech. "He who cuts the throat of an old cock when there is no need, has sinned as deeply as the parricide when breaking his father's neck,"²⁸¹ says Cicero, laughing at the Stoics. There he speaks out the feelings of his heart—there, and often elsewhere in his orations. Here, in his *Academica*, he is eloquent on the same side. We cannot but rejoice at the plainness of his words; but it has to be acknowledged that we do not often find him so loudly betraying himself when dealing with the old discussions of the Greek philosophers.

Very quickly after his *Academica*, in B.C. 45, came the five books, *De Finibus Bonorum et Malorum*, written as though with the object of settling the whole controversy, and declaring whether the truth lay with the Epicureans, the Stoics, or the Academics. What, at last, is the good thing, and what the evil thing, and how shall we gain the one and avoid the other? If he will tell us this, he will have proved himself to be a philosopher to

some purpose. But he does nothing of the kind. At the end of the fifth book we find Atticus, who was an Epicurean, declaring to Quintus Cicero that he held his own opinion just as firmly as ever, although he had been delighted to hear how well the Academician Piso had talked in Latin. He had hitherto considered that these were things which would not sound well unless in the Greek language.

It is again in the form of a dialogue, and, like all his writings at this time, is addressed to Brutus. It is in five books. The first two are supposed to have been held at Cumæ, between Cicero, Torquatus, and Triarius. Here, after a prelude in favor of philosophy and Latin together, Torquatus is allowed to make the best excuse he can for Epicurus. The prelude contains much good sense; for, whether he be right or not in what he says, it is good for every man to hold his own language in respect. "I have always thought and said that the Latin language is not poor as it is supposed to be, but even richer than the Greek."²⁸² "Let us learn," says Torquatus, who has happened to call upon him at Cumæ with Triarius, a grave and learned youth, as we are told, "since we have found you at your house, why it is that you do not approve of Epicurus—he who, alive, seems to have freed the minds of men from error, and to have taught them everything which could tend to make them happy."²⁸³ Then Torquatus goes to work and delivers a most amusing discourse on the wisdom of Democritus and his great disciple. The words fly about with delightful power, so as to leave upon our minds an idea that Torquatus is persuading his audience; for it is Cicero's peculiar gift, in whosoever mouth he puts his words, to make him argue as though he were the victor. We feel sure that, had he in his hand held a theory contrary to that of Torquatus, had he in truth cared about it, he could not have made Torquatus speak so well. But the speaker comes to an end, and assures his hearers that his only object had been to hear—as he had never heard before—what Cicero's own opinion might be on the matter.

The second book is a continuation of the same meeting. The word is taken up by Cicero, and he refutes Torquatus. It seems to us, however, that poor Epicurus is but badly treated—as has been generally the case in the prose works which have come down to us. We have, indeed, the poem of Lucretius, and it is admitted that it contains fine passages. But I was always told when young that the writing of it had led him to commit suicide—a

deed on his part which seems to have been painted in black colors, though Cato and Brutus, the Stoics, did the same thing very gloriously. The Epicureans are held to be sensualists, because they have used the word "pleasure" instead of "happiness," and Cicero is hard upon them. He tells a story of the dying moments of Epicurus, quoting a letter written on his death-bed. "While I am writing," he says, "I am living my last hour, and the happiest. I have so bad a pain in my stomach that nothing can be worse. But I am compensated for it all by the joy I feel as I think of my philosophical discourses."²⁸⁴ Cicero then goes on to declare that, though the saying is very noble, it is unnecessary; he should not, in truth, have required compensation. But whenever an opinion is enunciated, the reader feels it to be unnecessary. He does not want opinion. He is satisfied with the language in which Cicero writes about the opinions of others, and with the amusing manner in which he deals with things of themselves heavy and severe.

In the third book he, some time afterward, discusses the Stoic doctrine with Cato at the Tusculan villa of Lucullus, near to his own. He had walked over, and finding Cato there by chance, had immediately gone to work to demolish Cato's philosophical doctrines. He tells us what a glutton Cato was over his books, taking them even into the Senate with him. Cicero asks for certain volumes of Aristotle, and Cato answers him that he would fain put into his hand those of Zeno's school. We can see how easily Cato falls into the trap. He takes up his parable, and preaches his sermon, but he does it with a marvellous enthusiasm, so that we cannot understand that the man who wrote it intended to demolish it all in the next few pages. I will translate his last words of Cato's appeal to the world at large: "I have been carried farther than my intention. But in truth the admirable order of the system, and the incredible symmetry of it, has led him on. By the gods, do you not wonder at it? In nature there is nothing so close packed, nor in art so well fitted. The latter always agrees with the former—that which follows with that which has gone before. Not a stone in it all can be moved from its place. If you touch but one letter it falls to the ground. How severe, how magnificent, how dignified stands out the person of the wise man, who, when his reason shall have taught him that virtue is the only good, of a necessity must be happy! He shall be more justly called king than Tarquin, who could rule neither himself nor others; more rightly Dictator than Sulla, the owner of the three vices, luxury, avarice, and cruelty; more rightly rich

than Crassus, who, had he not in truth been poor, would never have crossed the Euphrates in quest of war. All things are justly his who knows how to use them justly. You may call him beautiful whose soul is more lovely than his body. He is free who is slave to no desire. He is unconquered for whose mind you can forge no chains; you need not wait with him for the last day to pronounce him happy. If this be so, then the good man is also the happy man. What can be better worth our study than philosophy, or what more heavenly than virtue?"²⁸⁵ All of this was written by Cicero in most elaborate language, with a finish of words polished down to the last syllable, because he had nothing else wherewith to satisfy the cravings of his intellect.

The fourth book is a continuation of the argument "Which when he had said he (made) an end.—But I (began)."²⁸⁶ With no other introduction Cicero goes to work and demolishes every word that Cato had said. He is very courteous, so that Cato cannot but admit that he is answered becomingly; but, to use a common phrase, he does not leave him a leg to stand upon. Although during the previous book Cato has talked so well that the reader will think that there must be something in it, he soon is made to perceive that the Stoic budge is altogether shoddy.

The fifth and last book, *De Finibus*, is supposed to recount a dialogue held at Athens, or, rather, gives the circumstances of a discourse pretended to have been delivered there by Pupius Piso to the two Ciceros, and to their cousin Lucius, on the merits of the old Academy and the Aristotelian Peripatetics; for Plato's philosophy had got itself split into two. There was the old and the new, and we may perhaps doubt to which Cicero devoted himself. He certainly was not an Epicurean, and he certainly was not a Stoic. He delighted to speak of himself as a lover of Plato. But in some matters he seems to have followed Aristotle, who had diverged from Plato, and he seems also to have clung to Carneades, who had become master of the new Academy. But, in truth, to ascertain the special doctrine of such a man on such a subject is vain. As we read these works we lose ourselves in admiration of his memory; we are astonished at the industry which he exhibits; we are delighted by his perspicuity; and feel ourselves relieved amid the crowd of names and theories by flashes of his wit; but there comes home to us, as a result, the singular fact of a man playing with these

theories as the most interesting sport the world had produced, but not believing the least in any of them. It was not that he disbelieved; and perhaps among them all the tenets of the new Academy were those which reconciled themselves the best to his common-sense. But they were all nothing to him but an amusement.

In this book there are some exquisite bits. He says, speaking of Athens, that, "Go where you will through the city, you place your footsteps on the vestiges of history."²⁸⁷ He says of a certain Demetrius, whom he describes as writing books without readers in Egypt, "that this culture of his mind was to him, as it were, the food by which his humanity was kept alive."²⁸⁸ And then he falls into the praise of our love for our neighbors, and introduces us to that true philosophy which was the real guide of his life. "Among things which are honest," he says, "there is nothing which shines so brightly and so widely as that brotherhood between men, that agreement as to what may be useful to all, and that general love for the human race. It comes from our original condition, in which children are loved by their parents; and then binding together the family, it spreads itself abroad among relations, connections, friends, and neighbors. Then it includes citizens and those who are our allies. At last it takes in the whole human race, and that feeling of the soul arises which, giving every man his own, and defending by equal laws the rights of each, is called justice."²⁸⁹ It matters little how may have been introduced this great secret which Christ afterward taught, and for which we look in vain through the writings of all the philosophers. It comes here simply from Cicero himself in the midst of his remarks on the new Academy, but it gives the lesson which had governed his life: "I will do unto others as I would they should do unto me." In this is contained the rudiments of that religion which has served to soften the hearts of us all. It is of you I must think, and not of myself. Hitherto the schools had taught how a man should make himself happy, whether by pleasure, whether by virtue, or whether by something between the two. It seems that it had never as yet occurred to a man to think of another except as a part of the world around him. Then there had come a teacher who, while fumbling among the old Greek lessons which had professed to tell mankind what each should do for himself, brings forth this, as it were, in preparation for the true doctrine that was to come: "Ipsa caritas generis humani!"—"That love of the human race!" I trust I may be able to show, before I have finished my work, that

this was Cicero's true philosophy. All the rest is merely with him a play of words.

Our next work contains the five books of the Tusculan Disputations, addressed to Brutus: *Tusculanarum Disputationum, ad M. Brutum, libri i., ii., iii., iv., and v.* That is the name that has at last been decided by the critics and annotators as having been probably given to them by Cicero. They are supposed to have been written to console himself in his grief for the death of Tullia. I have great doubt whether consolation in sorrow is to be found in philosophy, but I have none as to the finding it in writing philosophy. Here, I may add, that the poor generally suffer less in their sorrow than the rich, because they are called upon to work for their bread. The man who must make his pair of shoes between sunrise and the moment at which he can find relief from his weary stool, has not time to think that his wife has left him, and that he is desolate in the world. Pulling those weary threads, getting that leather into its proper shape, seeing that his stitches be all taut, so that he do not lose his place among the shoemakers, so fills his time that he has not a moment for a tear. And it is the same if you go from the lowest occupation to the highest. Writing Greek philosophy does as well as the making of shoes. The nature of the occupation depends on the mind, but its utility on the disposition. It was Cicero's nature to write. Will any one believe that he might not as well have consoled himself with one of his treatises on oratory? But philosophy was then to his hands. It seems to have cropped up in his latter years, after he had become intimate with Brutus. When life was again one turmoil of political fever it was dropped.

In the five of the Books of the Tusculan Disputations, still addressed to Brutus, he contends: 1. That death is no evil; 2. That pain is none; 3. That sorrow may be abolished; 4. That the passions may be conquered; 5. That virtue will suffice to make a man happy. These are the doctrines of the Stoics; but Cicero does not in these books defend any school especially. He leans heavily on Epicurus, and gives all praise to Socrates and to Plato; but he is comparatively free: "Nullius adductus jurare in verba magistri,"²⁹⁰ as Horace afterward said, probably ridiculing Cicero. "I live for the day. Whatever strikes my mind as probable, that I say. In this way I alone am free."²⁹¹

Let us take his dogmas and go through them one by one, comparing each with his own life. This, it may be said, is a crucial test to which but few philosophers would be willing to accede; but if it shall be found that he never even dreamed of squaring his conduct with his professions, then we may admit that he employed his time in writing these things because it did not suit him to make his pair of shoes.

Was there ever a man who lived with a greater fear of death before his eyes—not with the fear of a coward, but with the assurance that it would withdraw him from his utility, and banish him from the scenes of a world in sympathy with which every pulse of his heart was beating? Even after Tullia was dead the Republic had come again for him, and something might be done to stir up these fainéant nobles! What could a dead man do for his country? Look back at Cicero's life, and see how seldom he has put forward the plea of old age to save him from his share of the work of attack. Was this the man to console himself with the idea that death was no evil? And did he despise pain, or make any attempt at showing his disregard of it? You can hardly answer this question by looking for a man's indifference when undergoing it. It would be to require too much from philosophy to suppose that it could console itself in agony by reasoning. It would not be fair to insist on arguing with Cato in the gout. The clemency of human nature refuses to deal with philosophy in the hard straits to which it may be brought by the malevolence of evil. But when you find a man peculiarly on the alert to avoid the recurrence of pain, when you find a man with a strong premeditated antipathy to a condition as to which he pretends an indifference, then you may fairly assert that his indifference is only a matter of argument. And this was always Cicero's condition. He knew that he must at any rate lose the time passed by him under physical annoyance. His health was good, and by continued care remained so to the end; but he was always endeavoring to avoid sea-sickness. He was careful as to his baths, careful as to his eyes, very careful as to his diet. Was there ever a man of whom it might be said with less truth that he was indifferent as to pain?

The third position is that sorrow may be abolished. Read his letters to Atticus about his daughter Tullia, written at the very moment he was proving this. He was a heart-broken, sorrow-stricken man. It will not help us now to consider whether in this he showed strength or weakness. There will be doubt about it, whether he gained or lost more by that deep devotion

to another creature which made his life a misery to him because that other one had gone; whether, too, he might not have better hidden his sorrow than have shown it even to his friend. But with him, at any rate, it was there. He can talk over it, weep over it, almost laugh over it; but if there be a thing that he cannot do, it is to treat it after the manner of a Stoic.

His passions should be conquered. Look back at every period of his life, and see whether he has ever attempted it. He has always been indignant, or triumphant, or miserable, or rejoicing. Remember the incidents of his life before and after his Consulship—the day of his election and the day of his banishment—and ask the philosophers why he had not controlled his passion. I shall be told, perhaps, that here was a man over whom, in spite of his philosophy, his passion had the masterhood. But what attempt did he ever make? Has he shown himself to us to be a man with a leaning toward such attempts? Has he not revelled in his passions, feeling them to be just, righteous, honest, and becoming a man? Has he regretted them? Did they occasion him remorse? Will any one tell me that such a one has lived with the conviction that he might conquer the evils of the world by controlling his passions? That virtue will make men happy he might probably have granted, if asked; but he would have conceded the point with a subterfuge. The commonest Christian of the day will say as much; but he will say it in a different meaning from that intended by the philosophers, who had declared, as a rule of life, that virtue would suffice to make them happy. To be good to your neighbors will make you happy in the manner described by Cicero in the fifth book, *De Finibus*. Love those who come near you. Be good to your fellow-creatures. Think, when dealing with each of them, what his feelings may be. Melt to a woman in her sorrow. Lend a man the assistance of your shoulder. Be patient with age. Be tender with children. Let others drink of your cup and eat of your loaf. Where the wind cuts, there lend your cloak. That virtue will make you happy. But that is not the virtue of which he spoke when he laid down his doctrine. That was not the virtue with which Brutus was strong when he was skinning those poor wretches of Salamis. Such was the virtue with which the heart of Cicero glowed when he saw the tradesmen of the Cilician town come out into the market-place with their corn.

Cicero begins the second book of the *Tusculans* by telling us that Neoptolemus liked to do a little philosophy now and then, but never too

much at a time. With himself the matter was different: "In what else is there that I can do better?" Then he takes the bit between his teeth and rushes away with it. The reader feels that he would not stop him if he could. He does little, indeed, for philosophy; but so much for literature that he would be a bold man who would want to have him otherwise employed.

He wrote three treatises, *De Natura Deorum*. Had he declared that he would write three treatises to show the ideas which different men had taken up about the gods he would be nearer to the truth. We have an idea of what was Cicero's real notion of that "*dominans in nobis deus*"²⁹²—that god which reigns within us—and which he declares in Scipio's dream to have forbidden us to commit suicide. Nothing can be farther removed from that idea than the gods of which he tells us, either in the first book, in which the gods of Epicurus are set forth; in the second, in which the Stoics are defended; or the third, in which the gods, in accordance with the Academy, are maintained; not but that, either for the one or for the other, the man who speaks up for that sect does not say the best that is to be said. Velleius is eloquent for the Epicureans, Balbus for the Stoics, and Cotta for the Academy. And in that which each says there is to be found a germ of truth—though indeed Cicero makes his Epicurean as absurd as he well can do. But he does not leave a trace behind of that belief in another man's belief which an energetic preacher is sure to create. The language is excellent, the stories are charming, the arguments as used against each other are courteous, clever, and such that on the spur of the moment a man cannot very well reply to them; but they leave on the mind of the reader a sad feeling of the lack of reality.

In the beginning he again repeats his reasons for writing on such subjects so late in life. "Being sick with ease, and having found the condition of the Republic to be such that it has to be ruled by one man, I have thought it good, for the sake of the Republic, to write about philosophy in a language that shall be understood by all our citizens, believing it to be a matter of great import to the glory of the State that things of such weight should be set forth in the Latin tongue;"²⁹³ not that the philosophy should be set forth, but what the different teachers said about it. His definition of eternity—or rather the want of definition—is singular: "There has been from all time an eternity which no measurement of time can describe. Its duration cannot be

understood—that there should have been a time before time existed."²⁹⁴ Then there comes an idea of the Godhead, escaping from him in the midst of his philosophy, modern, human, and truly Ciceronian: "Lo, it comes to pass that this god, of whom we are sure in our minds, and of whom we hold the very footprints on our souls, can never appear to us."²⁹⁵

By-and-by we come to a passage in which we cannot but imagine that Cicero does express something of the feeling of his heart, as for a moment he seems to lose his courtesy in abusing the Epicureans: "Therefore do not waste your salt, of which your people are much in want, in laughing at us. Indeed, if you will listen to me, you will not try to do so; it does not become you; it is not given to you; you have not the power. I do not say this to you," he says, addressing Velleius, "for your manners have been polished, and you possess the courtesy of our people; but I am thinking of you all as a body, and chiefly of him who is the father of your rules—a man without science, without letters—one who insults all, without critical ability, without weight, without wit."²⁹⁶ Cicero, I think, must have felt some genuine dislike for Epicurus when he spoke of him in such terms as these.

Then, alas! there is commenced a passage in which are inserted many translated verses of the Greek poet Aratus. Cicero when a lad had taken in hand the *Phænomena* of Aratus, and here he finds a place in which can be introduced some of his lines. Aratus had devoted himself to the singing of the stars, and has produced for us many of the names with which we are still familiar: "The Twins;" "The Bull;" "The Great Bear;" "Cassiopeia;" "The Waterman;" "The Scorpion;" these and many others are made to come forward in hexameters—and by Cicero in Latin, as by Aratus in their Greek guise. We may suppose that the poem as translated had fallen dead—but here it is brought to life and is introduced into what is intended as at least a rationalistic account of the gods and their nature. Nothing less effective can be imagined than the repetition of uninteresting verses in such a place; for the reader, who has had Epicurus just handled for him, is driven to remember that their images are at any rate as false as the scheme of Epicurus, and is made to conclude that Balbus does not believe in his own argument. It has been sometimes said of Cicero that he is too long. The lines have probably been placed here as a joke, though they are inserted at such a length as to carry the reader away altogether into another world.

Farther on he devotes himself to anatomical research, which, for that age, shows an accurate knowledge. But what has it to do with the nature of the gods? "When the belly which is placed under the stomach becomes the receptacle of meat and drink, the lungs and the heart draw in the air for the stomach. The stomach, which is wonderfully arranged, consists chiefly of nerves. * * * The lungs are light and porous, and like a sponge—just fit for drawing in the breath. They blow themselves out and draw themselves in, so that thus may be easily received that sustenance most necessary to animal life."²⁹⁷

The third book is but a fragment, but it begins well with pleasant raillery against Epicurus. Cotta declares that he had felt no difficulty with Epicurus. Epicurus and his allies had found little to say as to the immortal gods. His gods had possessed arms and legs, but had not been able to move them. But from Balbus, the Stoic, they had heard much which, though not true, was nevertheless truthlike. In all these discourses it seems that the poor Epicureans are treated with but a moderate amount of mercy. But Cotta continues, and tells many stories of the gods. He is interrupted in his tale, for the sad hand of destruction has fallen upon the MS., and his arguments have come to us unfinished. "It is better," he says, "not to give wine to the sick at all, because you may injure them by the application. In the same way I do not know whether it would not be better to refuse that gift of reason, that sharpness and quickness of thought, to men in general, than to bestow it upon them so often to their own destruction."²⁹⁸ It is thus that is discussed the nature of the gods in this work of Cicero, which is indeed a discussion on the different schools of philosophy, each in the position which it had reached in his time.

The *De Natura Deorum* is followed by two books, *De Divinatione*, and by the fragment of one, *De Fato*. Divination is the science of predicting events. By "Fatum" Cicero means destiny, or that which has been fixed beforehand. The three books together may be taken as religious discourses, and his purport seems to have been to show that it might be the duty of the State to foster observances, and even to punish their non-observance—for the benefit of the whole—even though they might not be in themselves true. He is here together with his brother, or with those whom, like his brother, he may suppose to have emancipated themselves from superstition—and tells

him or them that though they do not believe they should feign belief. If the augurs declare by the flight of birds that such a thing should be done, let it be done, although he who has to act in the matter has no belief in the birds. If they declare that a matter has been fixed by fate, let it be as though it were fixed, whether fixed or no. He repudiates the belief as unreasonable or childish, but recommends that men should live as though they believed. In such a theory as this put thus before the reader, there will seem to be dissimulation. I cannot deny that it is so, though most anxious to assert the honesty of Cicero. I can only say that such dissimulation did prevail then, and that it does prevail now. If any be great enough to condemn the hierarchs of all the churches, he may do so, and may include Cicero with the Archbishop of Canterbury. I am not. It seems necessary to make allowance for the advancing intelligence of men, and unwise to place yourself so far ahead as to shut yourself out from that common pale of mankind. I distrust the self-confidence of him who thinks that he can deduce from one acknowledged error a whole scheme of falsehood. I will take our Protestant Church of England religion and will ask some thoughtful man his belief as to its changing doctrines, and will endeavor to do so without shocking the feelings of any. When did Sabbatarian observances begin to be required by the Word of God, and when again did they cease to be so? If it were worth the while of those who have thought about the subject to answer my question, the replies would be various. It has never begun! It has never wavered! And there would be the intermediate replies of those who acknowledge that the feeling of the country is altering and has altered. In the midst of this, how many a father of a family is there who goes to church for the sake of example? Does not the Church admit prayers for change of weather? Ask the clergyman on his way from church what he is doing with his own haystack, and his answer will let you know whether he believes in his own prayers. He has lent all the sanctity of his voice to the expression of words which had been written when the ignorance of men as to the works of nature was greater; or written yesterday because the ignorance of man has demanded it. Or they who have demanded it have not perhaps been ignorant themselves, but have thought it well to subserve the superstition of the multitude. I am not saying this as against the religious observances of to-day, but as showing that such is still the condition of men as to require the defence which Cicero also required when he wrote as follows: "Former ages erred in much which we know to

have been changed by practice, by doctrine, or by time. But the custom, the religion, the discipline, the laws of the augurs and the authority of the college, are retained, in obedience to the opinion of the people, and to the great good of the State. Our Consuls, Claudius and Junius, were worthy of all punishment when they put to sea in opposition to the auspices; for men must obey religion, nor can the customs of our country be set aside so easily."²⁹⁹ No stronger motive for adhering to religious observances can be put forward than the opinion of the people and the good of the State. There will be they who aver that truth is great and should be allowed to prevail. Though broken worlds should fall in disorder round their heads, they would stand firm amid the ruins. But they who are likely to be made responsible will not cause worlds to be broken.

Such, I think, was the reasoning within Cicero's mind when he wrote these treatises. In the first he encounters his brother Quintus at his Tusculan villa, and there listens to him discoursing in favor of religion. Quintus is altogether on the side of the gods and the auspices. He is, as we may say, a gentleman of the old school, and is thoroughly conservative. In this way he has an opportunity given him of showing the antiquity of his belief. "Stare super vias antiquas," is the motto of Quintus Cicero. Then he proceeds to show the two kinds of divination which have been in use. There is the one which he calls "Ars," and which we perhaps may call experience. The soothsayer predicts in accordance with his knowledge of what has gone before. He is asked to say, for instance, whether a ship shall put to sea on a Friday. He knows—or thinks that he knows, or in his ignorance declares that he thinks that he knows—that ships that have put to sea on Friday have generally gone to the bottom. He therefore predicts against the going to sea. Although the ship should put forth on the intended day, and should make a prosperous voyage, the prophet has not been proved to be false. That can only be done by showing that ships that have gone to sea on Friday have generally been subject to no greater danger than others—a process which requires the close observations of science to make good. That is Art. Then there is the prediction which comes from a mind disturbed—one who dreams, let us say, or prophesies when in a fit—as the Sibyl, or Epimenides of Crete, who lived one hundred and fifty-seven years, but slept during sixty-four of them. Quintus explains as to these that the god does not desire mankind to understand them, but only to use them.³⁰⁰

He tells us many amusing details as to prophetic dreams and the doings of soothsayers and wise men. The book so becomes chatty and full of anecdotes, and interspersed with many pieces of poetry—some by others and some by Cicero. Here are given those lines as to the battle of the eagle and the dragon which I have ventured to call the best amid the nine versions brought forward.³⁰¹

We cannot but sympathize with him in the reason which he prefixes to the second book of this treatise: "I often ask myself and turn in my mind how best I may serve the largest number of my fellow-citizens, lest there should come a time in which I should seem to have ceased to be anxious for the State; and nothing better has occurred to me than that I should make known the way of studying the best arts—which indeed I think I have now done in various books."³⁰² Then he recapitulates them. There is the opening work on philosophy which he had dedicated to Hortensius, now lost. Then in the four books of the Academics he had put forward his ideas as to that school which he believed to be the least arrogant and the truest—meaning the new Academy. After that, as he had felt all philosophy to be based on the search after good and evil, he had examined that matter. The Tusculan Inquiries had followed, in which he had set forth, in five books, the five great rules of living well. Having finished this, he had written his three books on the nature of the gods, and was now in the act of completing it, and would complete it, by his present inquiries. We cannot but sympathize with him because we know that, though he was not quite in earnest in all this, he was as near it as a man can be who teaches that which he does not quite believe himself. Brutus believed it, and Cato, and that Velleius, and that Balbus, and that Cotta. Or if perchance any of them did not, they lived, and talked, and read, and were as erudite about it, as though they did. The example was good, and the precepts were the best to be had. Amid it all he chose the best doctrine, and he was undoubtedly doing good to his countrymen in thus representing to them in their native language the learning by which they might best be softened.

"Græcia capta ferum victorem cepit, et artes,
Intulit agresti Latio."³⁰³

Here, too, he explains his own conduct in a beautiful passage. "My fellow-citizens," says he, "will pardon me, or perhaps will rather thank me, for that when the Republic fell into the power of one man I neither hid myself nor did I desert them; nor did I idly weep, or carry myself as though angry with the man or with the times; nor yet, forsooth, so flattering the good fortune of another, that I should have to be ashamed of what I had done myself. For I had learned this lesson from the philosophy of Plato—that there are certain changes in public affairs. They will be governed now by the leaders of the State, then by the people, sometimes by a single man."³⁰⁴ This is very wise, but he goes to work and altogether destroys his brother's argument. He knows that he is preaching only to a few—in such a manner as to make his preaching safe. His language is very pleasing, always civil, always courteous; but not the less does he turn the arguments of his brother into ridicule. And we feel that he is not so much laughing at his brother as at the gods themselves—they are so clearly wooden gods—though he is aware how necessary it is for the good of the State that they shall be received. He declares that, in accordance with the theory of his brother—meaning thereby the Stoics—"it is necessary that they, the gods, should spy into every cottage along the road, so that they may look after the affairs of men."³⁰⁵ It is playful, argumentative, and satirical. At last he proposes to leave the subject. Socrates would also do so, never asking for the adhesion of any one, but leaving the full purport of his words to sink into the minds of his audience. Quintus says that he quite agrees to this, and so the discourse *De Divinatione* is brought to an end.

Of his book on fate we have only a fragment, or the middle part of it. It is the desire of Cicero to show that, in the sequence of affairs which men call Life, it matters little whether there be a Destiny or not. Things will run on, and will be changed, or apparently be changed, by the action of men. What is it to us whether this or that event has been decreed while we live, and while each follows his own devices? All this, however, is a little tedious, taken at the end of so long a course of philosophy; and we rise at last from the perusal with a feeling of thankfulness that all these books of Chrysippus of which he tells us, are not still existent to be investigated.

Such is the end of those works which I admit to have been philosophical, and of which it seems he understood that they were the work of about eighteen months. They were all written after Cæsar's triumph—when it was no longer in the power of any Roman to declare his opinion either in the Senate or in the Forum. Cæsar had put down all opposition, and was made supreme over everything—till his death. The *De Fato* was written, indeed, after he had fallen, but before things had so far shaped themselves as to make it necessary that Cicero should return to public life. So, indeed, were the three last moral essays, which I shall notice in the next chapter; but in truth he had them always in his heart. It was only necessary that he should send them forth to scribes, leaving either to himself or to some faithful Tiro the subsequent duty of rearrangement. But what a head there was there to contain it all!

CHAPTER XIII.

CICERO'S MORAL ESSAYS.

We have now to deal with the moral essays of this almost inexhaustible contributor to the world's literature, and we shall then have named perhaps a quarter of all that he wrote. I have seen somewhere a calculation that only a tenth of his works remain to us, dug out, as it were, from the buried ruins of literature by the care of sedulous and eager scholars. I make a more modest estimate of his powers. Judging from what we know to have been lost, and from the absence of any effort to keep the greater portion of his letters, I think that I do not exaggerate his writing. Who can say but that as time goes on some future Petrarch or some future Mai may discover writings hitherto unknown, concealed in convent boxes, or more mysteriously hidden beneath the labors of Middle-Age monks? It was but in 1822 that the *De Republica* was brought to light—so much of it at least as we still possess; and for more than thirty years afterward Cardinal Mai continued to reproduce, from time to time, collections of Greek and Latin writings hitherto unheard of by classical readers. Let us hope, however, that the zeal

of the learned may stop short of that displayed by Simon Du Bos, or we may have whole treatises of Cicero of which he himself was guiltless.³⁰⁶

I can hardly content myself with classifying the *De Republica* and the *De Legibus* under the same name with these essays of Cicero, which are undoubtedly moral in their nature. But it may pass, perhaps, without that distinct contradiction which had to be made as to the enveloping the *De Officiis* in the garb of philosophy. It has been the combining of the true and false in one set, and handing them down to the world as Cicero's philosophy, which has done the mischief. The works reviewed in the last chapter contained disputations on the Greek philosophy which Cicero thought might be well handled in the Latin language for the benefit of his countrymen. It would be well for them to know what Epicurus taught, or Zeno, and how they differed from Socrates and Plato, and this he told them. Now in these moral essays he gives them his own philosophy—if that may be called philosophy which is intended to teach men how to live well. There are six books on government, called the *De Republica*, and three on law; and there are the three treatises on old age and friendship, each in one book, and that on the duty of man to man, in three.

There is a common error in the world as to the meaning of the word republic. It has come to have a sweet savor in the nostrils of men, or a most evil scent, according to their politics. But there is, in truth, the Republic of Russia, as there is that of the United States, and that of England. Cicero, in using it as the name of his work, simply means "the government;" and the treatise under that head contains an account of the Roman Empire, and is historical rather than argumentative and scientific. He himself was an oligarch, and had been brought up amid a condition of things in which that most deleterious form of government recommended itself to him as containing all that had been good and magnificent in the Roman Empire. The great men of Rome, whom the empire had demanded for its construction, had come up each for the work of a year; and, when succeeding, had perhaps been elected for a second. By the expulsion of their kings, the class from whom these men had been chosen showed their personal desire for honor, and the marvel is that through so many centuries those oligarchs should have flourished. The reader, unless he be strongly impregnated with democratic feelings, when he begins to read Roman history finds himself wedded to the cause of these oligarchs. They have

done the big deeds, and the opposition comes to them from vulgar hands. Let me ask any man who remembers the reading of his Livy whether it was not so with him. But it was in truth the democratic element opposed to these leaders, and the battles they won from time to time within the walls of the city, which produced the safety of Rome and enabled the government to go on. Then by degrees the people became enervated and the leaders became corrupt, and by masterhood over foreign people and external subjects slaves were multiplied, and the work appertaining to every man could be done by another man's hand. Then the evils of oligarchy began. Plunder, rapine, and luxury took the place of duty performed. A Verres ruled where a Marcellus had conquered. Cicero, who saw the difference plainly enough in regard to the individuals, did not perceive that this evil had grown according to its nature. That state of affairs was produced which Mommsen has described to us as having been without remedy. But Cicero did not see it. He had his eyes on the greatness of the past—and on himself—and would not awake to the fact that the glory was gone from Rome. He was in this state of mind when he wrote his *De Republica*, nine years before the time in which he commenced his philosophical discussions. Then he still hoped. Cæsar was away in Gaul, and Pompey maintained at Rome the ghost of the old Republic. He could still open his mouth and talk boldly of freedom. He had not been as yet driven to find consolation amid that play of words which constitutes the Greek philosophy.

I must remind the readers again that the *De Republica* is a fragment: the first part is wanting. We find him telling us the story of the elder Cato, in order that we may understand how good it is that we should not relax in our public work as long as our health will sustain us. Then he gives instances to show that the truly good citizen will not be deterred by the example of men who have suffered for their country, and among the number he names himself. But he soon introduces the form of dialogue which he afterward continues, and brings especially the younger Scipio and Lælius upon the scene. The lessons which are given to us are supposed to come from the virtue of the titular grandson of the greater Scipio who out-manœvred Hannibal. He continues to tell story after story out of the Roman chronicles, and at last assures us that that form of government is the best in which the monarchical element is tempered by the authority of the leading citizens, and kept alive by the voices of the people. Is it only because I am an

Englishman that he seems to me to describe that form of government which was to come in England?

The second book also begins with the praises of Cato. Scipio then commences with Romulus, and tells the history of Rome's kings. Tarquin is banished, and the Consulate established. He tells us, by no means with approbation, how the Tribunate was established, and then, alas! there comes a break in the MS.

In the third we have, as a beginning, a fragment handed down to us by Augustine, in which Cicero complains of the injustice of Nature in having sent man into the world, as might a step-mother, naked, weak, infirm, with soul anxious, timid, and without force, but still having within it something of divine fire not wholly destroyed. Then, after a while, through many "lacunæ," Scipio, Lælius, and one Philus fall into a discourse as to justice. There is a remarkable passage, from which we learn that the Romans practised protection with a rigor exceeding that of modern nations. They would not even permit their transalpine allies to plant their olives and vineyards, lest their produce should make their way across Italy—whereby they raised the prices against themselves terribly of oil and wine.³⁰⁷ "There is a kind of slavery which is unjust," says one, "when those men have to serve others who might 'properly belong to themselves.' But when they only are made to be slaves who—" We may perceive that the speaker went on to say that they who were born slaves might properly be kept in that position. But it is evidently intended to be understood that there exists a class who are slaves by right. Carneades, the later master of the new Academy, has now joined them, and teaches a doctrine which would not make him popular in this country. "If you should know," he says, "that an adder lay hid just where one were about to sit down whose death would be a benefit to you, you would do wrong unless you were to tell him of it. But you would do it with impunity, as no one could prove that you knew it." From this may be seen the nature of the discourses on justice.

The next two books are but broken fragments, treating of morals and manners. In the sixth we come to that dream of Scipio which has become so famous in the world of literature that I do not know whether I can do better than translate it, and add it on as an appendix to the end of my volume. It is in itself so beautiful in parts that I think that all readers will thank me. (See

appendix to this chapter). At the same time it has to be admitted that it is in parts fantastic, and might almost be called childish, were it not that we remember, when reading it, at what distance of time it was written, and with what difficulty Cicero strove to master subjects which science has made familiar to us. The music of the spheres must have been heard in his imagination before he could have told us of it, as he has done in language which seems to be poetic now as it was then—and because poetic, therefore not absurd. The length of the year's period is an extravagance. You may call your space of time by what name you will; it is long or short in proportion to man's life. He tells us that we may not hope that our fame shall be heard of on the other side of the Ganges, or that our voices shall come down through many years. I myself read this dream of Scipio in a volume found in Australia, and read it two thousand years after it was written. He could judge of this world's future only by the past. But when he tells us of the soul's immortality, and of the heaven to be won by a life of virtue, of the duty upon us to remain here where God has placed us, and of the insufficiency of fame to fill the cravings of the human heart, then we have to own that we have come very near to that divine teaching which he was not permitted to hear.

Two years afterward, about the time that Milo was killing Clodius, he wrote his treatise in three books, *De Legibus*. It is, we are told, a copy from Plato. As is the *Topica* a copy from Aristotle, written on board ship from memory, so may this be called a copy. The idea was given to him, and many of the thoughts which he has worked up in his own manner. It is a dialogue between him and Atticus and his brother Quintus, and treats rather of the nature and origin of law, and how law should be made to prevail, than of laws as they had been as yet constructed for the governance of man. All that is said in the first book may be found scattered through his philosophic treatises. There are some pretty morsels, as when Atticus tells us that he will for the nonce allow Cicero's arguments to pass, because the music of the birds and the waters will prevent his fellow-Epicureans from hearing and being led away by mistaken doctrine.³⁰⁸ Now and again he enunciates a great doctrine, as when he declares that "there is nothing better than that men should understand that they are born to be just, and that justice is not a matter of opinion, but is inherent in nature."³⁰⁹ He constantly opposes the idea of pleasure, recurring to the doctrine of his Greek philosophy. It was

not by them, however, that he had learned to feel that a man's final duty here on earth is his duty to other men.

In the second book he inculcates the observance of religious ceremonies in direct opposition to that which he afterward tells us in his treatise *De Divinatione*. But in this, *De Legibus*, we may presume that he intends to give instructions for the guidance of the public, whereas in the other he is communicating to a few chosen friends those esoteric doctrines which it would be dangerous to give to the world at large. There is a charming passage, in which we are told not to devote the rich things of the earth to the gods. Gold and silver will create impure desire. Ivory, taken from the body of an animal, is a gift not simple enough for a god. Metals, such as iron, are for war rather than for worship. An image, if it is to be used, let it be made of one bit of wood, or one block of stone. If cloth is given, let it not be more than a woman can make in a month. Let there be no bright colors. White is best for the gods; and so on.³¹⁰ Here we have the wisdom of Plato, or of those from whom Plato had borrowed it, teaching us a lesson against which subsequent ages have rebelled. It is not only that a god cannot want our gold and silver, but that a man does want them. That rule as to the woman's morsel of cloth was given in some old assembly, lest her husband or her brother should lose the advantage of her labor. It was seen what superstition would do in collecting the wealth of the world round the shrines of the gods. How many a man has since learned to regret the lost labor of his household; and yet what god has been the better? There may be a question of æsthetics, indeed, with which Cicero does not meddle.

In the third book he descends to practical and at the same time political questions. There had been no matter contested so vehemently among Romans as that of the establishment and maintenance of the *Tribunate*. Cicero defends its utility, giving, with considerable wit, the task of attacking it to his brother Quintus. Quintus, indeed, is very violent in his onslaught. What can be more "pestiferous," or more prone to sedition? Then Cicero puts him down. "O Quintus," he says, "you see clearly the vices of the *Tribunate*! but can there be anything more unjust than, in discussing a matter, to remember all its evils and to forget all its merits? You might say the same of the *Consuls*; for the very possession of power is an evil in itself. But without that evil you cannot have the good which the institution contains. The power of the *Tribunes* is too great, you say. Who denies it?

But the violence of the people, always cruel and immodest, is less so under their own leader than if no leader had been given them. The leader will measure his danger; but the people itself know no such measurement."³¹¹ He afterward takes up the question of the ballot, and is against it on principle. "Let the people vote as they will," he says, "but let their votes be known to their betters."³¹² It is, alas, useless now to discuss the matter here in England! We have been so impetuous in our wish to avoid the evil of bribery—which was quickly going—that we have rushed into that of dissimulation, which can only be made to go by revolutionary changes. When men vote by tens of thousands the ballot will be safe, but no man will then care for the ballot. It is, however, strange to see how familiar men were under the Roman Empire with matters which are perplexing us to-day.

We now come to the three purely moral essays, the last written of his works, except the Philippics and certain of his letters, and the Topica. Indeed, when you reach the last year or two of his life, it becomes difficult to assign their exact places to each. He mentions one as written, and then another; but at last this latter appears before the former. They were all composed in the same year, the year before his death—the most active year of his life, as far as his written works are concerned—and I shall here treat *De Senectute* first, then *De Amicitia*, and the *De Officiis* last, believing them to have been published in that order.

The *De Senectute* is an essay written in defence of old age, generally called *Cato Major*. It is supposed to have been spoken by the old Censor, 149 B.C., and to have been listened to by Scipio and Lælius. This was the same Scipio who had the dream—who, in truth, was not a Scipio at all, but a son of Paulus Æmilius, whom we remember in history as the younger Africanus. Cato rushes at once into his subject, and proves to us his point by insisting on all those commonplace arguments which were probably as well known before his time as they have been since. All men wish for old age, but none rejoice when it has come. The answer is that no man really wishes for old age, but simply wishes for a long life, of which old age is the necessary ending. It creeps on us so quickly! But in truth it does not creep quicker on youth than does youth on infancy; but the years seem to fly fast because not marked by distinct changes. It is the part of a wise man to see that each portion of his five-act poem shall be well performed. Cato goes on with his

lesson, and tells us perhaps all that could be said on behalf of old age at that period of the world's history. It was written by an old man to an old man; for it is addressed to Atticus, who was now sixty-seven, and of course deals much in commonplaces. But it is full of noble thoughts, and is pleasant, and told in the easiest language; and it leaves upon the reader a sweet savor of the dignity of age. Let the old man feel that it is not for him to attempt the pranks of youth, and he will already have saved himself from much of the evil which Time can do to him. I am ready for you, and you cannot hurt me. "Let not the old man assume the strength of the young, as a young man does not that of the bull or the elephant. * * * But still there is something to be regretted by an orator, for to talk well requires not only intellect but all the powers of the body. The melodious voice, however, remains, which—and you see my years—I have not yet lost. The voice of an old man should always be tranquil and contained."³¹³ He tells a story of Massinissa, who was then supposed to be ninety. He was stiff in his joints, and therefore when he went a journey had himself put upon a horse, and never left it, or started on foot and never mounted.³¹⁴ "We must resist old age, my Lælius. We must compensate our shortness by our diligence, my Scipio. As we fight against disease, so let us contend with old age."³¹⁵ * * * Why age should be avaricious I could never tell. Can there be anything more absurd than to demand so great a preparation for so small a journey?"³¹⁶ He tells them that he knew their fathers, and that "he believes they are still alive—that, though they have gone from this earth, they are still leading that life which can only be considered worthy of the name."³¹⁷

The *De Amicitia* is called Lælius. It is put into the mouth of Lælius, and is supposed to be a discourse on friendship held by him in the presence of his two sons-in-law, Caius Fannius and Mucius Scævola, a few days after the death of Scipio his friend. Not Damon and Pythias were more renowned for their friendship than Scipio and Lælius. He discusses what is friendship, and why it is contracted; among whom friendship should exist; what should be its laws and duties; and, lastly, by what means it should be preserved.

Cicero begins by telling the story of his own youth; how he had been placed under the charge of Scævola the augur, and how, having changed his toga, he never left the old man's side till he died; and he recalls how once, sitting with him in a circle with friends, Scævola fell into that mode of

conversation which was usual with him, and told him how once Lælius had discoursed to them on friendship. It is from first to last fresh and green and cooling, as is the freshness of the early summer grass to men who live in cities. The reader feels, as he goes on with it, that he who had such thoughts and aspirations could never have been altogether unhappy. Coming at the end of his life, in the telling the stories of which we have had to depend so much on his letters to Atticus, it reminds me of the love that existed between them. He has sometimes been querulous with his Atticus. He has complained of bad advice, of deficient care, of halting friendship—in reading which accusations we have, all of us, declared him to be wrong. But Atticus understood him. He knew that the privileges and the burden must go together, and told himself how much more than sufficient were the privileges to compensate the burden. When we make our histories on the bases of such loving letters, we should surely open them with careful hands, and deal with them in sympathy with their spirit. In writing this treatise *De Amicitia* especially for the eyes of Atticus, how constantly the heart must have gone back to all that had passed between them—how confident he must have been of the truth of his friend! He who, after nearly half a century of friendship, could thus write to his friend on friendship cannot have been an unhappy man.

"Should a new friendship spring up," he tells us, "let it not be repressed. You shall still gather fruit from young trees; but do not let it take the place of the old. Age and custom will have given the old fruit a flavor of its own. Who is there that would ride a new horse in preference to one tried—one who knows your hand?"³¹⁸

I regard the *De Officiis* as one of the most perfect treatises on morals which the world possesses, whether for the truth of the lessons given, for their universality, or for the beauty and lightness of the language. It is on a subject generally heavy, but is treated with so much art and grace as to make it a delight to have read it, and an important part of education to know it. It is addressed to his son, and is as good now as when it was written. There is not a precept taught in it which is not modern as well as ancient, and which is not fit alike for Christians and Pagans. A system of morality, we might have said, should be one which would suit all men alike. We are bound to acknowledge that this will suit only gentlemen, because he who shall live in accordance with it must be worthy of that name. The

"honestum" means much more in Latin than it does in English. Neither "honor" nor "honesty" will give the rendering—not that honor or that honesty which we know. Modern honor flies so high that it leaves honesty sometimes too nearly out of sight; while honesty, though a sterling virtue, ignores those sentiments on which honor is based. "Honestum" includes it all; and Cicero has raised his lessons to such a standard as to comprise it all. But he so teaches that listeners delight to hear. He never preaches. He does not fulminate his doctrine at you, bidding you beware of backslidings and of punishments; but he leads you with him along the grassy path, till you seem to have found out for yourself what is good—you and he together, and together to have learned that which is manly, graceful, honest, and decorous.

In Cicero's essays is to be found always a perfect withdrawal of himself from the circumstances of the world around him; so that the reader shall be made to suppose that, in the evening of his life, having reached at last, by means of work done for the State, a time of blessed rest, he gives forth the wisdom of his age, surrounded by all that a tranquil world can bestow upon him. Look back through the treatises written during the last two years, and each shall appear to have been prepared in some quiet and undisturbed period of his life; but we know that the last polish given by his own hands to these three books *De Officiis* was added amid the heat and turmoils of the *Philippics*. It is so singular, this power of adapting his mind to whatever pursuit he will, that we are taught almost to think that there must have been two Ciceros, and that the one was eager in personal conflict with Antony, while the other was seated in the garden of some Italian villa meditating words by obeying which all men might be ennobled.

In the dialectical disputations of the Greek philosophers he had picked up a mode of dividing his subject into numbers which is hardly fitted for a discourse so free and open as is this. We are therefore somewhat offended when we are told that virtue is generally divided "into three headings."³¹⁹ If it be so, and if it be necessary that we should know it, it should, I think, be conveyed to us without this attempt at logical completeness. It is impossible to call this a fault. Accuracy must, indeed, be in all writers a virtue. But feeling myself to be occasionally wounded by this numbering, I mention it. In the *De Officiis* he divides the entire matter into three parts, and to each part he devotes a book. In the first he considers whether a thing is fit to be

done or left undone—that is, whether it be "honestum" or "turpe;" in the second, whether it be expedient, that is "utile," or the reverse; and in the third he compares the "honestum" and the "utile," and tells us what to choose and what to avoid.

The duty due by a citizen to his country takes with him a place somewhat higher than we accord to it. "Parents are dear, children are dear to us, so are relations and friends; but our country embraces it all, for what good man would not die so that he might serve it? How detestable, then, is the barbarity of those who wound their country at every turn, and have been and are occupied in its destruction."³²⁰ He gives us some excellent advice as to our games, which might be read with advantage, perhaps, by those who row in our university races. But at the end of it he tells us that the hunting-field affords an honest and fitting recreation.³²¹ I have said that he was modern in his views—but not altogether modern. He defends the suicide of Cato. "To them," he says, speaking of Cato's companions in Africa, "it might not have been forgiven. Their life was softer and their manners easier. But to Cato nature had given an invincible gravity of manners which he had strengthened with all the severity of his will. He had always remained steadfast in the purpose that he would never stand face to face with the tyrant of his country."³²² There was something terribly grand in Cato's character, which loses nothing in coming to us from the lips of Cicero. So much Cicero allows to the stern nature of the man's character. Let us look back and we shall find that we make the same allowance. This is not, in truth, a lesson which he gives us, but an apology which he makes.

Read his advice given in the following line for the outward demeanor of a gentleman: "There are two kinds of beauty. The one is loveliness, which is a woman's gift. But dignity belongs to the man. Let all ornament be removed from the person not worthy of a man to wear—and all fault in gesture and in motion which is like to it. The manners of the wrestling-ground and of the stage are sometimes odious; but let us see the actor or the wrestler walking simple and upright, and we praise him. Let him use a befitting neatness, not verging toward the effeminate, but just avoiding a rustic harshness. The same measure is to be taken with your clothes as with other matters in which a middle course is best."³²³

Then he tells his son what pursuits are to be regarded as sordid. "Those sources of gain are to be regarded as mean in the pursuit of which men are apt to be offended, as are the business of tax-gathers and usurers. All those are to be regarded as illiberal to which men bring their work but not their art." As for instance, the painter of a picture shall be held to follow a liberal occupation—but not so the picture dealer. "They are sordid who buy from merchants that they may sell again: they have to lie like the mischief or they cannot make their living. All mere workmen are engaged in ignoble employment: what of grandeur can the mere workshop produce? Least of all can those trades be said to be good which administer only to our pleasures—such as fish-mongers, butchers, cooks, and poulterers."³²⁴ He adds at the end of his list that of all employment none is better than agriculture, or more worthy of the care of a freeman. In all of this it is necessary that we should receive what he says with some little allowance for the difference in time; but there is nothing, if we look closely into it, in which we cannot see the source of noble ideas, and the reason for many notions which are now departing from us—whether for good or evil who shall say?

In the beginning of the second book he apologizes for his love of philosophy, as he calls it, saying that he knew how it had been misliked among those round him. "But when the Republic," he says, "had ceased to be—that Republic which had been all my care—my employment ceased both in the Forum and the Senate. But when my mind absolutely refused to be inactive, I thought that I might best live down the misery of the time if I devoted myself to philosophy."³²⁵ From this we may see how his mind had worked when the old occupation of his life was gone. "Nihil agere autem quum animus non posset!" How piteous was his position, and yet how proud! There was nothing for him to do—but there was nothing because hitherto there had been so much that he had always done.

He tells his son plainly how an honest man must live. To be ashamed of nothing, he must do nothing of which he will be ashamed. But for him there is this difficulty: "If any one on his entrance into the world has had laid upon him the greatness of a name won by his father, let us say—as, my Cicero, has perhaps happened to you—the eyes of all men will be cast upon him, and inquiry will be made as to his mode of life. He will be so placed

under the meridian sun that no word spoken or deed done by him shall be hidden.³²⁶ * * * He must live up to the glory to which he has been born." He gives to his son much advice about the bar. "But the greatest praise," he says, "comes from defending a man accused; and especially so when you shall assist one who is surrounded and ill-treated by the power of some great man. This happened to me more than once in my youth, when, for instance, I defended Roscius Amerinus against Sulla's power. The speech is with us extant still."³²⁷ He tells us much as to the possession of money, and the means of insuring it in a well-governed state. "Take care that you allow no debts to the injury of the Republic. You must guard against this at all hazards—but never by taking from the rich and giving it to the poor. Nothing is so requisite to the State as public credit—which cannot exist unless debtors be made to pay what they owe. There was nothing to which I looked more carefully than this when I was Consul. Horse and foot, they tried their best; but I opposed them, and freed the Republic from the threatened evil. Never were debts more easily or more quickly collected. When men knew that they could not ignore their creditors, then they paid. But he who was then the conquered is the conqueror now. He has effected what he contemplated—even though it be not now necessary for him."³²⁸ From this passage it seems that these books must have been first written before Cæsar's death. Cæsar, at the time of Catiline's conspiracy, had endeavored to annul all debts—that is, to establish "new tables" according to the Roman idiom—but had failed by Cicero's efforts. He had since affected it, although he might have held his power without seeking for the assistance of such debtors. Who could that be but Cæsar? In the beginning of the third book there is another passage declaring the same thing: "I have not strength enough for silent solitude, and therefore give myself up to my pen. In the short time since the Republic has been overturned I have written more than in all my former years."³²⁹ That, again, he could not have written after Cæsar had fallen. We are left, indeed, to judge, from the whole nature of the discourse, that it was written at the period in which the wrongs done by Cæsar to Rome—wronges at any rate as they appeared to Cicero—were just culminating in that regal pride of action which led to his slaughter. It was written then, but was published a few months afterward.

CHAPTER XIV.

CICERO'S RELIGION.

I should hardly have thought it necessary to devote a chapter of my book to the religion of a pagan, had I not, while studying Cicero's life, found that I was not dealing with a pagan's mind. The mind of the Roman who so lived as to cause his life to be written in after-times was at this period, in most instances, nearly a blank as to any ideas of a God. Horace is one who in his writing speaks much of himself. Ovid does so still more constantly. They are both full of allusions to "the gods." They are both aware that it is a good thing to speak with respect of the national worship, and that the orders of the Emperor will be best obeyed by believers. "Dis te minorem quod geris, imperas," says Horace, when, in obedience probably to Augustus, he tells his fellow-citizens that they are forgetting their duties in their unwillingness to pay for the repairs of the temples. "Superi, quorum sumus omnia," says Ovid, thinking it well to show in one of his writings, which he sent home from his banishment, that he still entertained the fashionable creed. But they did not believe. It was at that time the fashion to pretend a light belief, in order that those below might live as though they believed, and might induce an absolute belief in the women and the children. It was not well that the temple of the gods should fall into ruins. It was not well that the augurs, who were gentlemen of high family, should go for nothing. Cæsar himself was the high-priest, and thought much of the position, but he certainly was bound by no priestcraft. A religious belief was not expected from a gentleman. Religious ceremonies had gradually sunk so low in the world's esteem that the Roman nobility had come to think of their gods as things to swear by, or things to amuse them, or things from which, if times were bad with them, some doubtful assistance might perchance come. In dealing with ordinary pagans of those days religion may be laid altogether on one side. I remember no passage in Livy or Tacitus indicating a religious belief.

But with Cicero my mind is full of such; and they are of a nature to make me feel that had he lived a hundred years later I should have suspected him of some hidden knowledge of Christ's teachings. M. Renan has reminded us of Cicero's dislike to the Jews. He could not learn from the Jews—though the Jew, indeed, had much that he could teach him. The religion which he

required was far from the selfishness of either Jew or Roman. He believed in eternity, in the immortality of the soul, in virtue for the sake of its reward hereafter, in the omnipotence of God, the performance of his duty to his neighbors, in conscience, and in honesty. "Certum esse in cælo definitum locum, ubi beati ævo sempiterno fruuntur."³³⁰ "There is certainly a place in heaven where the blessed shall enjoy eternal life." Can St. Paul have expressed with more clearness his belief as to a heaven? Earlier in his career he expresses in language less definite, but still sufficiently clear, his ideas as to another world: "An vero tam parvi animi videamur esse omnes, qui in republica, atque in his vitæ periculis laboribusque versamur, ut, quum, usque ad extremum spatium, nullum tranquillum atque otiosum spiritum duxerimus, vobiscum simul moritura omnia arbitremur?"³³¹ "Are we all of us so poor in spirit as to think that after toiling for our country and ourselves—though we have not had one moment of ease here upon earth—when we die all things shall die with us?" And when he did go it should be to that glory for which virtue shall have trained him. "Neque te sermonibus vulgi dederis, nec in præmis humanis spem posueris rerum tuarum; suis te oportet illecebris ipsa virtus trahat ad verum decus."³³² "You shall put your hope neither in man's opinion nor in human rewards; but Virtue itself by her own charms shall lead you the way to true glory." He thus tells us his idea of God's omnipotence: "Quam vim animum esse dicunt mundi, eandemque esse mentem sapientiamque perfectam; quem Deum appellant."³³³ "This force they call the soul of the world, and, looking on it as perfect in intelligence and wisdom, they name it their God." And again he says, speaking of God's care, "Quis enim potest—quam existimet a deo se curari—non et dies, et noctes divinum numen horrere?"³³⁴ "Who is there, when he thinks that a God is taking care of him, shall not live day and night in awe of his divine majesty?" As to man's duty to his neighbor, a subject as to which Pagans before and even after the time of Cicero seem to have had but vague ideas, the treatise *De Officiis* is full of it, as indeed is the whole course of his life. "Omne officium, quod ad conjunctionem hominum et ad societatem tuendam valet, anteponendum est illi officio, quod cognitione et scientia continetur."³³⁵ "All duty which tends to protect the society of man with men is to be preferred to that of which science is the simple object." His belief in a conscience is shown in the law he lays down against suicide: "Vetat enim dominans ille in nobis deus, injussu hinc nos suo

demigrare."³³⁶ "That God within us forbids us to depart hence without his permission." As to justice, I need give no quotation from his works as proof of that virtue which all his works have been written to uphold.

This pagan had his ideas of God's governance of men, and of man's required obedience to his God, so specially implanted in his heart, that he who undertakes to write his life should not pass it by unnoticed. To us our religion has come as a thing to believe, though taking too often the form of a stern duty. We have had it from our fathers and our mothers; and though it has been given to us by perhaps indifferent hands, still it has been given. It has been there with all its written laws, a thing to live by—if we choose. Rich and poor, the majority of us know at any rate the Lord's Prayer, and most of us have repeated it regularly during our lives. There are not many of us who have not learned that they are deterred by something beyond the law from stealing, from murder, from committing adultery. All Rome and all Romans knew nothing of any such obligation, unless it might be that some few, like Cicero, found it out from the recesses of their own souls. He found it out, certainly. "Suis te oportet illecebris ipsa virtus trahat ad verum decus." "Virtue itself by its own charms shall lead you the way to true glory." The words to us seem to be quite commonplace. There is not a curate who might not put them into a sermon. But in Cicero's time they were new, and hitherto untaught. There was the old Greek philosopher's idea that the τὸ καλόν—the thing of beauty—was to be found in virtue, and that it would make a man altogether happy if he got a hold of it. But there was no God connected with it, no future life, no prospect sufficient to redeem a man from the fear of death. It was leather and prunella, that, from first to last. The man had to die and go, melancholy, across the Styx. But Cicero was the first to tell his brother Romans of an intelligible heaven. "Certum esse in cœlo definitum locum ubi beati ævo sempiterno fruuntur." "There is certainly a place in heaven where the blessed shall enjoy eternal life." And then how nearly he had realized that doctrine which tells us that we should do unto others as we would they should do unto us—the very pith and marrow and inside meaning of Christ's teaching, by adapting which we have become human, by neglecting which we revert to paganism. When we look back upon the world without this law, we see nothing good in it, in spite of individual greatness and national honor. But Cicero had found it. —"That brotherhood between men, that agreement as to what may be useful

to all, and that general love for the human race!"³³⁷ It is all contained in these few words, but if anything be wanted to explain at length our duty to our neighbors it will be found there on reference to this passage. How different has been the world before that law was given to us and since! Even the existence of that law, though it be not obeyed, has softened the hearts of men.

If, as some think, it be the purport of Christ's religion to teach men to live after a godlike fashion rather than to worship God after a peculiar form, then may we be allowed to say that Cicero was almost a Christian, even before the coming of Christ. If, as some think, an eternity of improved existence for all is to be looked for by the disciples of Christ, rather than a heaven of glory for the few and for the many, a hell that never shall be mitigated, then had Cicero anticipated much of Christ's doctrine. That he should have approached the mystical portion of our religion it would of course be absurd to suppose. But a belief in that mystical part is not essential for forming the conduct of men. The divine birth, and the doctrine of the Trinity, and the Lord's Supper, are not necessary to teach a man to live with his brother men on terms of forbearance and brotherly love. You shall live with a man from year's end to year's end, and shall not know his creed unless he tell you, or that you see him performing the acts of his worship; but you cannot live with him, and not know whether he live in accordance with Christ's teaching. And so it was with Cicero. Read his works through from the beginning to the end, and you shall feel that you are living with a man whom you might accompany across the village green to church, should he be kind enough to stay with you over the Sunday. The urbanity, the softness, the humanity, the sweetness are all there. But you shall not find it to be so with Cæsar, or Lucretius, or with Virgil. When you read his philosophical treatises it is as though you were discussing with some latter-day scholar the theories of Plato or of Epicurus. He does not talk of them as though he believed in them for his soul's guidance, nor do you expect it. All the interest that you have in the conversation would be lost were you to find such faith as that. You would avoid the man, as a pagan. The Stoic doctrine would so shock you, when brought out for real wear, as to make you feel yourself in the company of some mad Atheist—with a man for whose welfare, early or late in life, church bells had never been rung. But with a man who has his Plato simply by heart you can spend

the long summer day in sweet conversation. So it is with Cicero. You lie down with him looking out upon the sea at Comæ, or sit with him beneath the plane-tree of Crassus, and listen while he tells you of this doctrine and the other. So Arcesilas may be supposed to have said, and so Carneades laid down the law. It was that and no more. But when he tells you of the place assigned to you in heaven, and how you are to win it, then he is in earnest.

We care in general but little for any teacher of religion who has not struggled to live up to his own teaching. Cicero has told us of his ideas of the Godhead, and has given us his theory as to those deeds by which a man may hope to achieve the heaven in which that God will reward with everlasting life those who have deserved such bliss. Love of country comes first with him. It behooves, at any rate, a man to be true to his country from first to last. And honesty and honor come next—that "honestum" which carries him to something beyond the mere integrity of the well-conducted tradesmen. Then family affection; then friendship; and then that constant love for our fellow-creatures which teaches us to do unto others as we would they should do unto us. Running through these there are a dozen smaller virtues, but each so mingled with the other as to have failed in obtaining a separate place—dignity, manliness, truth, mercy, long-suffering, forgiveness, and humanity.

Try him by these all round and see how he will come out of the fire. He so loved his country that we may say that he lived for it entirely; that from the first moment in which he began to study as a boy in Rome the great profession of an advocate, to the last in which he gave his throat to his murderers, there was not a moment in which his heart did not throb for it.

In the defence of Amerinus and in the prosecution of Verres, his object was to stop the proscriptions, to shame the bench, and to punish the plunderers of the provinces. In driving out Catiline the same strong feeling governed him. It was the same in Cilicia. The same patriotism drove him to follow Pompey to the seat of war. The same filled him with almost youthful energy when the final battle for the Republic came. It has been said of him that he began life as a Liberal in attacking Sulla, and that afterward he became a Conservative when he gained the Consulship; that he opposed Cæsar, and then flattered him, and then rejoiced at his death. I think that they who have so accused him have hardly striven to read his character amidst the changes

of the time. A Conservative he was always; but he wished to see that the things around him were worth conserving. He was always opposed to Cæsar, whose genius and whose spirit were opposed to his own. But in order that something of the Republic might be preserved, it became necessary to bear with Cæsar. For himself he would take nothing from Cæsar, except permission to breathe Italian air. He flattered him, as was the Roman custom. He had to do that, or his presence would have been impossible—and he could always do something by his presence. As far as love of country went, which among virtues stood the first with him, he was pure and great. There was not a moment in his career in which the feeling was not in his heart—mixed indeed with personal ambition, as must be necessary, for how shall a man show his love for his country except by his desire to stand high in its counsels? To be called "Pater Patriæ" by Cato was to his ears the sweetest music he had ever heard.

Let us compare his honesty with that of the times in which he lived. All the high rewards of the State were at his command, and he might so have taken them as to have been safer, firmer, more powerful, by taking them; but he took nothing. No gorgeous wealth from a Roman province stuck to his hands. We think of our Cavendishes, our Howards, and our Stanleys, and feel that there is nothing in such honesty as this. But the Cavendishes, the Howards, and the Stanleys of those days robbed with unblushing pertinacity. Cæsar robbed so much that he put himself above all question of honesty. Where did he, who had been so greatly in debt before he went to Spain, get the million with which he bribed his adherents? Cicero neither bought nor sold. Twenty little stories have been told of him, not one with a grain of enduring truth to justify one of them. He borrowed, and he always paid; he lent, but was not always repaid. With such a voice to sell as his, a voice which carried with it the verdict of either guilt or innocence, what payments would it not have been worth the while of a Roman nobleman to make to him? No such payments, as far as we can tell, were ever made. He took a present of books from his friend Pœtus, and asked another friend what "Cincius" would say to it? Men struggling to find him out, and not understanding his little joke, have said, "Lo! he has been paid for his work. He defended Pœtus, and Pœtus gave him books." "Did he defend Pœtus?" you ask. "We surmise so, because he gave him books," they reply. I say that

at any rate the fault should be brought home against him before it is implied from chance passages in his own letters.

Cicero's affection for his family gives us an entirely unfamiliar insight into Roman manners. There is a softness, a tenderness, an eagerness about it, such as would give a grace to the life of some English nobleman who had his heart garnered up for him at home, though his spirit was at work for his country. But we do not expect this from the Pompeys and Cæsars and Catos of Rome, perhaps because we do not know them as we know Cicero. It is odd, however, that we should have no word of love for his boys, as to Pompey; no word of love for his daughter, as to Cæsar. But Cicero's love for his wife, his brother, his son, his nephew, especially for his daughter, was unbounded. All offences on their part he could forgive, till there came his wife's supposed dishonesty, which was not to be forgiven. The ribaldry of Dio Cassius has polluted the story of his regard for Tullia; but in truth we know nothing sweeter in the records of great men, nothing which touches us more, than the profundity of his grief. His readiness to forgive his brother and to forgive his nephew, his anxiety to take them back to his affections, his inability to live without them, tell of his tenderness.

His friendship for Atticus was of the same calibre. It was of that nature that it could not only bear hard words but could occasionally give them without fear of a breach. Can any man read the records of this long affection without wishing that he might be blessed with such a friendship? As to that love of our fellow-creatures which comes not from personal liking for them, but from that kindness of heart toward all mankind which has been the fruit to us of Christ's teaching, that desire to do unto others as they should do unto us, his whole life is an example. When Quæstor in Sicily, his chief duty was to send home corn. He did send it home, but so that he hurt none of those in Sicily by whom it was supplied. In his letter to his brother as to his government of Asia Minor, the lessons which he teaches are to the same effect. When he was in Cilicia, it was the same from first to last. He would not take a penny from the poor provincials—not even what he might have taken by law. "Non modo non fœnum, sed ne ligna quidem!" Where did he get the idea that it was a good thing not to torment the poor wretches that were subjected to his power? Why was it that he took such an un-Roman pleasure in making the people happy?

Cicero, no doubt, was a pagan, and in accordance with the rules prevailing in such matters it would be necessary to describe him of that religion, if his religion be brought under discussion. But he has not written as pagans wrote, nor did he act as they acted. The educated intelligence of the Roman world had come to repudiate their gods, and to create for itself a belief—in nothing. It was easier for a thoughtful man, and pleasanter for a thoughtless, to believe in nothing, than in Jupiter and Juno, in Venus and in Mars. But when there came a man of intellect so excellent as to find, when rejecting the gods of his country, that there existed for him the necessity of a real God, and to recognize it as a fact that the intercourse of man with man demanded it, we must not, in recording the facts of his life, pass over his religion as though it were simple chance. Christ came to us, and we do not need another teacher. Christ came to us so perfected in manhood as to be free from blemish. Cicero did not come at all as a teacher. He never recognized the possibility of teaching men a religion, or probably the necessity. But he did see the way to so much of the truth as to perceive that there was a heaven; that the way to it must be found in good deeds here on earth; and that the good deeds required of him would be kindness to others. Therefore I have written this final chapter on his religion.

APPENDIX.

(See page [308](#), Vol. II.)

SCIPIO'S DREAM.

Scipio the younger had gone, when in Africa, to meet Massinissa, and had there discussed with the African king the character of his nominal grandfather, for he was in fact the son of Paulus Æmilius and had been adopted by the son of the great conqueror at Zama. He had then retired to rest, and had dreamed a dream, and is thus made to tell it. Africanus the elder had shown himself to him greater than life, and had spoken to him in the following words: "Approach," said the ghost; "approach in spirit, and cease to fear, and write down on the tablets of your memory this that I shall tell you.

"Look down upon that city. I compelled it to obey Rome. It now seeks to renew its former strife, and you, but yet new to arms, have come to conquer it." Then from his starry heights he points to the once illustrious Carthage. "In twice twelve months that city you shall conquer, and shall have earned for yourself that name which by descent has become yours. Destroyer of Carthage, triumphant Censor, ambassador from Rome to Egypt, Syria, Asia, and Greece, you shall be chosen Consul a second time, though absent and, having besieged Numantia, shall bring a great war to an end. Then will the whole State turn to you and to your name. The Senate, the citizens, the allies will expect you. In one word, it will be to you as Dictator that the Republic will look to be saved from the crimes of your relatives.

"But that you may be always alive to protect the Republic, know this. There is in heaven a special place of bliss for those who have served their country. To that God who looks down upon the earth there is nothing dearer than men bound to each other by reverence for the laws."

"Then, frightened, I asked him whether he were still living, and my father Paulus, and others whom we believed to have departed. 'In truth,' he said,

'they live who have escaped from the bondage of the flesh. This which you call life is death. But behold Paulus your father.' Beholding him, I poured forth a world of tears, but he, embracing me, forbade me to weep.

"'Since this of yours is life, as my grandsire tells me,' I said, as soon as my tears allowed me to speak, 'why, O father most revered, do I delay here on earth, rather than haste to meet you?' 'It cannot be so,' he answered. 'Unless that God whose temple is around you everywhere shall have liberated you from the chains of the body, you cannot come to us. Men are begotten subject to his law, and inhabit the globe which is called the earth; and to them is given a soul from among the stars, perfect in their form and alive with heavenly instincts, which complete with wondrous speed their rapid courses. Wherefore, my son, by you and by all just men that soul must be retained within its body's confines, nor can it be allowed to flit without command of him by whom it has been given to you. You may not escape the duty which God has trusted to you. Live, my Scipio, and shine with piety and justice, as your grandfather did and I have done. It is your duty to your parents and to your relatives, but especially your duty to your country. There lies the road to heaven. By following that course shall you find your way to those who crowd with disembodied spirits the realm beneath your eyes.'

"Then did I behold that splendid circle of fire which you, after the Greeks, call the Milky-way, and looking out from thence could see that all things were beautiful and all wonderful. There were stars which we cannot see from hence, and others of tremendous, unsuspected size; and then those smaller ones nearest to us, which shine with a reflected light. But every star among them all loomed larger than our earth. That seemed so mean, that I was sorry to belong to so small an empire.

"As I gazed a sound struck my ears. 'What music is that,' said I, 'swelling so loudly and yet so sweet?'

"'It is that harmony of the stars,' he said, 'which the world creates by its own movement. Low and loud, base and treble, they clang together with unequal

intervals, but each in time and tune. They could not work in silence, and nature demands that from one end of heaven to the other they shall be sonorous with a deep diapason. The far off give a loud treble twang. Those nearest to the moon sound low and base. The earth, the ninth in order, immovable upon its lowest seat, occupies the centre of the system. From the eight there come seven sounds, distinct among themselves, Venus and Mercury joining in one effort. In that number is the secret of all human affairs. Learned men have made their way to heaven by imitating this music; as have others also by the excellence of their studies. Filled with this sound the sense of hearing has failed among men. What sense is duller? It is as when the Nile falls down to her cataracts, and the nations around, astonished by the tumult, become deaf.'

'''Then,' said Africanus, 'look and see how small are the habitations of men, how grand are those of the angels of light. What fame can you expect from men, or what glory? You see how they live in mean places—in small spots, lonely amid vast solitudes, and that they who inhabit them dwell so isolated that nothing can pass between them. Can you expect glory from them?

'''You behold this earth surrounded by zones. You see two of them, frozen from their poles, have been made solid with everlasting ice; and how the centre realm between them has been scorched by the sun's rays. Two, however, are fit for life. They who inhabit the southern, whose footsteps are opposed to ours, are a race of whom we know nothing. But see how small a part of this little earth is inhabited by us who are turned toward the north. For all the earth which you inhabit, wide and narrow, is but a small island surrounded by that sea which you call the great Atlantic Ocean—which, however large as you deem it, how small it is! Has your name or has mine been able, over this small morsel of the earth's surface, to ascend Mount Caucasus or to cross the Ganges? Who in the regions of the rising or setting sun has heard of our fame? Cut off these regions, distant but a hand's breadth, and see within what narrow borders will your reputation be spread! They who speak of you—for how short a time will their voices be heard?

"Grant that man, unenvious, shall wish to hand down your fame to future ages, still there will come those storms of nature. The earth will be immersed in water and scorched with fire; a doom which in the course of ages must happen, and will deny to you any lasting glory. Will you be content that they who are to come only shall hear of you, when to those crowds of better men who have passed away your name shall be as nothing?

"And remember too that no man's renown shall reach the duration of a year. Men call that space a year which they measure by the return of a single star to its old place. But when all the stars shall have come back, and shall have made their course across the heavens, then, then shall that truly be called a year. In this year how many are there of our ages contained. For as when Romulus died, and made his way here to these temples of the gods, the sun was seen by man to fade away, so will the sun again depart from the heavens, when the stars, having accomplished their spaces, shall have returned to their old abodes. Of this, the true year, not a twentieth part has been as yet consumed. If, then, you despair of reaching this abode, which all of true excellence strive to approach, what glory is there to be gained? When gained, it will not last the space of one year. Look then aloft, my son, and fix your eyes upon this eternal home. Despise all vulgar fame, nor place your hopes on human rewards. Let Virtue by her own charms lead you on to true glory. Let men talk of you—for talk they will. Man's talk of man is small in its space, and short-lived in its time. It dies with a generation and is forgotten by posterity.'

"When he had spoken I thus answered him: 'Africanus,' I said, 'I indeed have hitherto endeavored to find a road to heaven, following your example and my father's; but now, for so great a reward, will I struggle on more bravely.' 'Struggle on,' he replied, 'and know this—not that thou art mortal but only this thy body. This frail form is not thyself. It is the mind, invisible, and not a shape at which a man may point with his fingers. Know thyself to be a god. To be strong in purpose and in mind; to remember to provide and to rule; to restrain and to move the body it is placed over, as the great God does the world—that is to be a god. And as the God who moves this mortal world is eternal, so does an eternal soul govern this frail body.'"

FOOTNOTES:

[1](#) As I shall explain a few pages farther on, four of these speeches are supposed by late critics to be spurious.

[2](#) See Mr. Long's introduction to these orations. "All this I admit," says Mr. Long, speaking of some possible disputant; "but he will never convince any man of sense that the first of Roman writers, a man of good understanding, and a master of eloquence, put together such tasteless, feeble, and extravagant compositions."

[3](#) Pro Cn. Plancio, ca. xxx.: "Nonne etiam illa testis est oratio quæ est a me prima habita in Senatu. * * * Recitetur oratio, quæ propter rei magnitudinem dicta de scripto est."

[4](#) Quintilian, lib. xi., ca. 1, who as a critic worshipped Cicero, has nevertheless told us very plainly what had been up to his time the feeling of the Roman world as to Cicero's self-praise: "Reprehensus est in hac parte non mediocriter Cicero."

[5](#) Ad Att., lib. iv., 2. He recommends that the speech should be put into the hands of all young men, and thus gives further proof that we still here have his own words. When so much has come to us, we cannot but think that an oration so prepared would remain extant.

[6](#) I had better, perhaps, refer my readers to book v., chap. viii., of Mommsen's History.

[7](#) "Politique des Romains dans la religion;" a treatise which was read by its author to certain students at Bordeaux. It was intended as a preface to a longer work.

[8](#) Ad Div., lib. i., 2.

[9](#) Ad Div., lib. i., 5: "Nosti hominis tarditatem, et taciturnitatem."

[10](#) Ad Quintum Fratrem, lib. ii., 3.

[11](#) Ibid., lib. ii., 6.

[12](#) Ad Att., lib. iv., 5.

[13](#) Ad Div., lib. v., 12.

[14](#) Very early in the history of Rome it was found expedient to steal an Etruscan soothsayer for the reading of these riddles, which was gallantly done by a young soldier, who ran off with an old prophet in his arms (Livy, v., 15). We are naively told by the historian that the more the prodigies came the more they were believed. On a certain occasion a crowd of them was brought together: Crows built in the temple of Juno. A green tree took fire. The waters of Mantua became bloody. In one place it rained chalk in another fire. Lightning was very destructive, sinking the temple of a god or a nut-tree by the roadside indifferently. An ox spoke in Sicily. A precocious baby cried out "Io triumphe" before it was born. At Spoletum a woman became a man. An altar was seen in the heavens. A ghostly band of armed men appeared in the Janiculum (Livy, xxiv., 10). On such occasions the "aruspices" always ordered a vast slaughter of victims, and no doubt feasted as did the wicked sons of Eli.

Even Horace wrote as though he believed in the anger of the gods—certainly as though he thought that public morals would be improved by renewed attention to them:

Delicta majorum immeritus lues,
Romane, donec templa refeceris.—Od., lib. iii., 6.

[15](#) See the Preface by M. Guerault to his translation of this oration, *De Aruspium Responsis*.

[16](#) Ca. ix.: "Who is there so mad that when he looks up to the heavens he does not acknowledge that there are gods, or dares to think that the things which he sees have sprung from chance—things so wonderful that the most intelligent among us do not understand their motions?"

[17](#) Ca. xxviii.: "Quæ in tempestate sæva quieta est, et lucet in tenebris, et pulsa loco manet tamen, atque hæret in patria, splendetque per se semper, neque alienis unquam sordibus obsolescit." I regard this as a perfect allocution of words in regard to the arrangement both for the ear and for the intellect.

[18](#) Ca. xlv.: "There have always been two kinds of men who have busied themselves in the State, and have struggled to be each the most prominent. Of these, one set have endeavored to be regarded as 'populares,' friends of the people; the other to be and to be considered as 'optimates,' the most trustworthy. They who did and said what could please the people were 'populares,' but they who so carried themselves as to satisfy every best citizen, they were 'optimates.'" Cicero, in his definition, no doubt begs the question; but to do so was his object.

[19](#) Mommsen, lib. v., chap. viii., in one of his notes, says that this oration as to the provinces was the very "palinodia" respecting which Cicero wrote to Atticus. The subject discussed was no doubt the same. What authority the historian has found for his statement I do not know; but no writer is generally more correct.

[20](#) *De Prov. Cons.*, ca. viii.

[21](#) Ca. xiii.

[22](#) Ca. xiv.

[23](#) Ca. xviii.

[24](#) *Pro C. Balbo*, ca. vii.

[25](#) *Ibid.*, ca. xiii.

[26](#) *Gibbon, Decline and Fall*, ca. vii.

[27](#) There was no covenant, no bond of service, no master's authority, probably no discipline; but the eager pupil was taught to look upon the anxious tutor with love, respect, and faith.

[28](#) In *Pisonem*, xxvii. Even in Cicero's words as used here there is a touch of irony, though we cannot but imagine that at this time he was anxious to stand

well with Pompey. "There are coming on the games, the most costly and the most magnificent ever known in the memory of man; such as there never were before, and, as far as I can see, never will be again." "Show yourself there if you dare!"—he goes on to say, addressing the wretched Piso.

[29](#) Plutarch's Life of Pompey: "Crassus upon the expiration of his Consulship repaired to his province. Pompey, remaining in Rome, opened his theatre." But Plutarch, no doubt, was wrong.

[30](#) We may imagine what was the standing of the family from the address which Horace made to certain members of it in the time of Augustus. "Credite Pisones," De Arte Poetica. The Pisones so addressed were the grandsons of Cicero's victim.

[31](#) Quin., ix., 4: "Pro dii immortales, quis hic illuxit dies!" The critic quotes it as being vicious in sound, and running into metre, which was considered a great fault in Roman prose, as it is also in English. Our ears, however, are hardly fine enough to catch the iambic twang of which Quintilian complains.

[32](#) Ca. xviii., xx., xxii.

[33](#) "Quæ potest homini esse polito delectatio," Ad Div., vii., 1. These words have in subsequent years been employed as an argument against all out-of-door sports, with disregard of the fact that they were used by Cicero as to an amusement in which the spectators were merely looking on, taking no active part in deeds either of danger or of skill.—*Fortnightly Review*, October, 1869, The Morality of Field Sports.

[34](#) Ad Att., lib. iv., 16.

[35](#) Ad Div., ii., 8.

[36](#) See the letter, Ad Quin. Frat., lib. iii., 2: "Homo undique actus, et quam a me maxime vulneraretur, non tulit, et me trementi voce exulem appellavit." The whole scene is described.

[37](#) Ad Fam., v., 8.

[38](#) Ad Quin. Frat., ii., 12.

[39](#) Ad Att., iv., 15.

[40](#) Val. Max., lib. iv., ca. ii., 4.

[41](#) Horace, Sat., lib. ii., 1:

HOR. "Trebati,

Quid faciam præscribe."—TREB. "Quiescas."—HOR. "Ne faciam, inquis, Omnino versus?"—TREB. "Aio."—HOR. "Peream male si non Optimum erat."

Trebatius became a noted jurisconsult in the time of Augustus, and wrote treatises.

[42](#) Ca. iv.: "Male judicavit populus. At judicavit. Non debuit, at potuit."

[43](#) Ca. vi.: "Servare necesse est gradus. Cedat consulari generi praetorium, nec contendat cum praetorio equester locus."

[44](#) Ca. xix.

[45](#) Ad Fam., i., 9.

[46](#) Ca. xi.

[47](#) Ad Fam., lib. ii., 6: "Dux nobis et auctor opus est et eorum ventorum quos proposui moderator quidem et quasi gubernator."

[48](#) Mommsen, book v., chap. viii. According to the historian, Clodius was the Achilles, and Milo the Hector. In this quarrel Hector killed Achilles.

[49](#) Ad Att., lib. iv., 16.

[50](#) Ad Fam., lib. vii., 7.

[51](#) Vell. Pat., ii., 47.

[52](#) We remember the scorn with which Horace has treated the Roman soldier whom he supposes to have consented to accept both his life and a spouse from the Parthian conqueror:

Milesne Crassi conjuge barbara
Turpis maritus vixit?—Ode iii., 5.

It has been calculated that of 40,000 legionaries half were killed, 10,000 returned to Syria, and that 10,000 settled themselves in the country we now know as Merv.

[53](#) Ad Quin. Frat., lib. ii., 4, and Ad Att., lib. iv., 5.

[54](#) "Interrogatio de ære alieno Milonis."

[55](#) Livy, Epitome, 107: "Absens et solus quod nulli alii umquam contigit."

[56](#) The Curia Hostilia, in which the Senate sat frequently, though by no means always.

[57](#) Ca. ii.

[58](#) Ca. v.

[59](#) Ca. xx., xxi.

[60](#) Ca. xxix.

[61](#) Ca. xxxvii.: "O me miserum! O me infelicem! revocare tu me in patriam, Milo, potuisti per hos. Ego te in patria per eosdem retinere non potero!" "By the aid of such citizens as these," he says, pointing to the judges' bench, "you were able to restore me to my country. Shall I not by the same aid restore you to yours?"

[62](#) Ad Fam., lib. xiii., 75.

[63](#) Ad Fam., lib. vii., 2: "In primisque me delectavit tantum studium bonorum in me exstitisse contra incredibilem contentionem clarissimi et potentissimi viri."

[64](#) Cæsar, a Sketch, p. 336.

[65](#) Ibid., p. 341.

[66](#) He reached Laodicea, an inland town, on July 31st, B.C. 51, and embarked, as far as we can tell, at Sida on August 3d, B.C. 50. It may be doubted whether any Roman governor got to the end of his year's government with greater despatch.

[67](#) No exemption was made for Cæsar in Pompey's law as it originally stood; and after the law had been inscribed as usual on a bronze tablet it was altered at Pompey's order, so as to give Cæsar the privilege. Pompey pleaded forgetfulness, but the change was probably forced upon him by Cæsar's influence.—Suetonius, J. Cæsar, xxviii.

[68](#) Ad Div., lib. iii., 2.

[69](#) Ad Att., lib. v., 1.

[70](#) Abeken points out to us, in dealing with the year in which Cicero's government came to an end, B.C. 50, that Cato's letters to Cicero (Ad Fam., lib. xv., 5) bear irrefutable testimony as to the real greatness of Cicero. See the translation edited by Merivale, p. 235. This applies to his conduct in Cilicia, and may thus be taken as evidence outside his own, though addressed to himself.

[71](#) The Roman Triumvirate, p. 107.

[72](#) Cæsar, a Sketch, pp. 170, 341.

[73](#) Professor Mommsen says no word of Cicero's government in Cilicia.

[74](#) I cannot but refer to Mommsen's account of this transaction, book v., chap. viii.: "Golden fetters were also laid upon him," Cicero. "Amid the serious embarrassments of his finances the loans of Cæsar free of interest * * * were in a high degree welcome to him; and many an immortal oration for the Senate was nipped in the bud by the thought that the agent of Cæsar might present a bill to him after the close of the sitting." There are many assertions here for which I have looked in vain for the authority. I do not know that Cicero's finances were seriously embarrassed at the time. The evidence goes rather to show that they were not so. Had he ever taken more than one loan from Cæsar? I find nothing as to any question of interest; but I imagine that Cæsar treated Cicero as Cicero afterward treated Pompey when he lent him money. We do not know whether even Crassus charged Cæsar interest. We may presume that a loan is always made welcome, or the money would not be borrowed, but the "high degree of welcome," as applied to this especial loan, ought to have some special justification. As to Cicero's anxiety in borrowing the money I know nothing, but he was very anxious to pay it. The borrowing and the lending of money between Roman noblemen was very common. No one had ever borrowed so freely as Cæsar had done. Cicero was a lender and a

borrower, but I think that he was never seriously embarrassed. What oration was nipped in the bud by fear of his creditor? He had lately spoken twice for Saufeius, once against S. Clodius, and against Plancus—in each case opposing the view of Cæsar, as far as Cæsar had views on the matter. The sum borrowed on this occasion was 800,000 sesterces—between £6000 and £7000. A small additional sum of £100 is mentioned in one of the letters to Atticus, lib. v., 5., which is, however, spoken of by Cicero as forming one whole with the other. I can hardly think that Mommsen had this in view when he spoke of loans in the plural number.

[75](#) M. C. Marcellus was Consul B.C. 51; his brother, C. Claudius Marcellus, was Consul B.C. 50, another C. Claudius Marcellus, a cousin, in B.C. 49.

[76](#) Mommsen calls him a "respected Senator." M. De Guerle, in his preface to the oration Pro Marcello, claims for him the position of a delegate. He was probably both—though we may doubt whether he was "respected" after his flogging.

[77](#) Ad Att., lib. v., 11: "Marcellus foede in Comensi;" and he goes on to say that even if the man had been no magistrate, and therefore not entitled to full Roman treatment, yet he was a Transalpine, and therefore not subject to the scourge. See Mr. Watson's note in his Select Letters.

[78](#) Ad Div., lib. ii., 8.

[79](#) Ad Att., lib. v., 13.

[80](#) Ibid.: "Quæso ut simus annui; ne intercaletur quidem." It might be that an intercalary month should be added, and cause delay.

[81](#) Ad Div., lib. viii., 2: "Ut tibi curæ sit quod ad pantheras attinet."

[82](#) Ad Att., lib. v., 14.

[83](#) Ad Div., lib. iii., 5.

[84](#) Ad Att., lib. v., 15.

[85](#) Ibid., 16.

[86](#) Ad Att., lib. v., 17.

[87](#) Ad Div., lib. iii., 6.

[88](#) Ad Div., lib. xv., 1.

[89](#) Ibid., iii., 8.

[90](#) Ad Div., lib. viii., 8.

[91](#) Ad Div., lib. viii., 10.

[92](#) Ibid., ii., 10.

[93](#) This mode of greeting a victorious general had no doubt become absurd in the time of Cicero, when any body of soldiers would be only too willing to curry favor with the officer over them by this acclamation. Cicero ridicules

this; but is at the same time open to the seduction—as a man with us will laugh at the Sir Johns and Sir Thomases who are seated around him, but still, when his time comes, will be pleased that his wife shall be called "My Lady" like the rest of them.

[94](#) Ad Div., lib. ii., 7.

[95](#) Ad Att., lib. v., 2.

[96](#) Ad Div., lib. xv., 4.

[97](#) Ibid., xv., 10, and lib. xv., 13: "Ut quam honorificentissimum senatus consultum de meis rebus gestis faciendum cures."

[98](#) Ad Div., lib. viii., 6.

[99](#) Ibid., 7.

[100](#) Ibid., iii., 7.

[101](#) Ibid., 9.

[102](#) The amount seems so incredible that I cannot but suspect an error in the MS. The sum named is two hundred Attic talents. The Attic talent, according to Smith's dictionary, was worth £243 13s. It may be that this large amount had been collected over a series of years.

[103](#) Ad Att., lib. v., 21.

[104](#) Ibid., vi., 1. This is the second letter to Atticus on the transaction, and in this he asserts, as though apologizing for his conduct to Brutus, that he had not before known that the money belonged to Brutus himself: "Nunquam enim ex illo audivi illam pecuniam esse suam."

[105](#) In the letter last quoted, "Flens mihi meam famam commendasti." "Believe," he says, "that I cling to the doctrines which you yourself have taught me. They are fixed in my very heartstrings."

[106](#) See the former of the two letters, Ad. Att., lib. v., 21: "Quod enim prætori dare consuessent, quoniam ego non acceperam, se a me quodam modo dare."

[107](#) Ad Att., vi., 1: "Tricesimo quoque die talenta Attica xxxiii., et hoc ex tributis." On every thirteenth day he gets thirty three talents from the taxes, the talent being about £243. Of the poverty of Ariobarzanes we have heard much, and of the number of slaves which reached Rome from his country. It was thus, probably, that the king paid Pompey his interest.

Mancipiis locuples eget æris Cappadonum rex.—Hor. Epis., lib. i., vi.

Persius tells us how the Roman slave-dealer was wont to slap the fat Cappadocian on the thigh to show how sound he was as he was selling him, Sat. vi., 77. "Cappadocis eques catastis" is a phrase used by Martial, lib. x., 76, to describe from how low an origin a Roman knight might descend, telling us also that there were platforms erected for the express purpose of selling slaves from Cappadocia. Juvenal speaks also of "Equites Cappadoces" in the same

strain, Sat. vii., 15. The descendant even of a slave from Cappadocia might rise to be a knight. From all this we may learn what was the source of the £8000 a month which Pompey condescended to take, and which Cicero describes as being "ex tributis."

[108](#) Ad Att., lib. vi., 2.

[109](#) Ad Att., lib. vi., 3.

[110](#) Ad Div., lib. viii., 11.

[111](#) Ad Att., lib. vi., 4, 5.

[112](#) Ad Div., lib. ii., 15: "Scito me sperare ea quæ sequuntur."

[113](#) Ibid.

[114](#) Ad Att., lib. vii., 1.

[115](#) Ad Att., lib. vi., 8.

[116](#) Ad Att., lib. xi., 1.

[117](#) Appian and Piso were the last two Censors elected by the Republic.

[118](#) Ad Div., lib. ii., 15.

[119](#) Appian, De Bell. Civ., lib. ii., 26. The historian tells us that the Consul built a temple with the money, but that Curio had paid his debts.

[120](#) Mommsen, book v., ca. ix.

[121](#) Ad Att., lib. vii., 1: "Video cum altero vinci satius esse quam cum altero vincere."

[122](#) Ad Att., lib. vii., 2: "Adolescentem, ut nosti, et adde, si quid vis, probum."

[123](#) Ad Att., lib. vii., 20-23.

[124](#) Ibid., lib. viii., 4.

[125](#) Ibid., lib. viii., 7.

[126](#) Copy of letter D, enclosed in letter to Atticus, lib. viii., 11.

[127](#) Ad Att., lib. ix., 10.

[128](#) Ibid., lib. ix., 12.

[129](#) Ad Att., lib. x., 4.

[130](#) Ad Att., lib. xi., 5.

[131](#) Horace, Sat., lib. i., sat. 5.

[132](#) Ad Att., lib. xi., 7.

[133](#) Ad Div., xiv., 16.

[134](#) Ad Att., lib. xi., 24.

[135](#) Ad Att., lib. xi., 24.

[136](#) Ibid., lib. xi., 20-22.

[137](#) Ad Div., xiv., 22, 20. The numbers going the wrong way is only an indication that the letters were wrongly placed by Grævius.

[138](#) Ad Att., lib. xi., 22

[139](#) Oratoriæ Partitiones, xvii., xxiii.

[140](#) De Officiis, lib. i., ca. xxxi.: "Catoni cum incredibilem tribuisset natura gravitatem, eamque ipse perpetua constantia roborasset, semperque in proposito susceptoque consilio permansisset, moriendum potius quam tyranni vultum aspiciendum fuit."

[141](#) This was Lucius Volcatius Tullus.

[142](#) But it is now, I believe, the opinion of scholars that Wolf has been proved to be wrong, and the words to have been the very words of Cicero, by the publication of certain fragments of ancient scholia on the Pro Marcello which have been discovered by Cardinal Mai since the time of the dispute.

[143](#) Ad Div., iv., 11.

[144](#) Pro Marcello, ii.

[145](#) Pro Ligario, i.

[146](#) Pro Ligario, iii.

[147](#) Ad Fam., lib. iv., 14.

[148](#) Ad Div., lib. ix., 16.

[149](#) Ad Att., lib. xii., 7.

[150](#) Ibid., 32.

[151](#) Ad Div., lib. xvi., 21.

[152](#) Pliny, Hist. Nat., lib. xiv., 28.

[153](#) Ad Div., lib. vi., 18.

[154](#) Ad Att., lib. xii., 12.

[155](#) Ibid., 18, 28.

[156](#) Ad Att., lib. xii., 14.

[157](#) Ibid., 18, 28.

[158](#) Ad Att., lib. xiii., 28.

[159](#) Suetonius, Julius Cæsar, ca. xxxvii.

[160](#) Ad Att., lib. xiii., 44.

[161](#) Ad Att., lib. xiii., 42.

[162](#) Pro Rege Deiotaro, ii.

[163](#) Ibid., ca. xii.: "Solus, inquam, es, C. Cæsar, cujus in victoria cecide it nemo nisi armatus."

[164](#) Cæsar, De Bello Gallico, lib. iii., 16: "Itaque, omni Senatu necato, reliquos sub corona vendidit," he says, and passes on in his serene, majestic manner.

[165](#) Quint., lib. x., vii.: "Nam Ciceronis ad præsens modo tempus aptatos libertus Tiro contraxit."

[166](#) Horace, Epis., lib. i., 1: "Nullus in orbe sinus Baiis præluceat amænis."

[167](#) Ad Att., lib. xiii., 52.

[168](#) Ad Div., lib. vii., 30.

[169](#) Mommsen, book v., xi.

[170](#) He left Brundisium on the last day of the year.

[171](#) Shakspeare, Julius Cæsar, act i., sc. 2.

[172](#) Ad Att., lib. xiv., 9, 15.

[173](#) Quintilian, lib. vii., 4.

[174](#) These words will be found in M. Du Rozoir's summary to the Philippics.

[175](#) Ad Att., lib. xiv., 1.

[176](#) Ibid., 14: "Quam oculis cepi justo interitu tyranni."

[177](#) Morabin, liv. vi., chap. iii., sec. 6.

[178](#) Velleius Paterculus, lib. ii., ca. lviii.

[179](#) Mommsen, book v., xi.

[180](#) Ad Att., lib. xiv., 4.

[181](#) Ibid., lib. xiv., 6.

[182](#) Ibid., lib. xiv., 7.

[183](#) Ad Att., lib. xiv., 9.

[184](#) Ibid., lib. xiv., 11.

[185](#) Ad Att., lib. xiv., 13.

[186](#) Ad Div., lib. xvi., 23.

[187](#) Ad Div., lib. ix., 11.

[188](#) Ad Att., lib. xiv., 21.

[189](#) Ad Att., lib. xv., 21.

[190](#) Ibid., lib. xv., 26.

[191](#) Ad Att., lib. xv., 27.

[192](#) Ibid., lib. xvi., 1.

[193](#) Ibid., lib. xvi., 5.

[194](#) Ibid., lib. xvi., 2.

[195](#) Ad Att., lib. xvi., 7.

[196](#) Phil., i., 5: "Nimis iracunde hoc quidem, et valde intemperanter." "Who," he goes on to say, "has sinned so heavily against the Republic that here, in the Senate, they shall dare to threaten his house by sending the State workmen?"

[197](#) Brutus, Ciceroni, lib. ii., 5: "Jam concedo ut vel Philippici vocentur quod tu quadam epistola jocans scripsisti." I fear, however, that we must acknowledge that this letter cannot be taken as an authority for the early use of the name.

[198](#) Phil., i., ca. vii.

[199](#) Ibid., i., ca. viii.

[200](#) Ibid., i., ca. x.

[201](#) The year of his birth is uncertain. He had been Consul three years back, and must have spoken often.

[202](#) Ad Div., lib. xii., 2.

[203](#) It may here be worth our while to quote the impassioned language which Velleius Paterculus uses when he chronicles the death of Cicero, lib. ii., 66: "Nihil tamen egisti, M. Antoni (cogit enim excedere propositi formam operis, erumpens animo ac pectore indignatio), nihil, inquam, egisti, mercedem cælestissimi oris et clarissimi capitis abscissi numerando, auctoramentoque funebri ad conservatoris quondam reipublicæ tantique consulis irritando necem. Rapuisti tu M. Ciceroni lucem sollicitam, et ætatem senilem, et vitam miseriorem, te principe, quam sub te triumviro mortem. Famam vero gloriamque factorum atque dictorum adeo non abstulisti, ut auxeris. Vivit, vivetque per omnium sæculorum memoriam; dumque hoc vel forte, vel providentia, vel utcumque constitutum, rerum naturæ corpus, quod ille pæne solus Romanorum animo vidit, ingenio complexus est, eloquentia illuminavit, manebit incolume, comitem ævi sui laudem Ciceronis trahet, omnisque posteritas illius in te scripta mirabitur, tuum in eum factum execrabitur; citiusque in mundo genus hominum, quam ea, cadet." This was the popular idea of Cicero in the time of Tiberius.

[204](#) Ad Div., lib. xii., 23.

[205](#) Ad Att., lib. xvi., 11.

[206](#) On referring to the Milo, ca. xv., the reader will see the very different tone in which Cicero spoke of this incident when Antony was in favor with him.

[207](#) It was a sign of an excellent character in Rome to have been chosen often as heir in part to a man's property.

[208](#) Horace, Odes, lib. iii., 30.

[209](#) Ad Att., lib. xvi., 14.

[210](#) Philippics, lib. vi., 1.

[211](#) "Populum Romanum servire fas non est, quem dii immortales omnibus gentibus imperare voluerunt."

[212](#) Ad Div., lib. xi., 8.

[213](#) Ad Div., lib. x., 3.

[214](#) Ad Brutum, lib. ii., 6.

[215](#) Appian. De Bell. Civ., lib. iii., ca. 26.

[216](#) Vell. Pat., lib. ii., 62: "Quæ omnia senatus decretis comprehensa et comprobata sunt."

[217](#) Ad Div., lib. xii., 7. This is in a letter to Cassius, in which he says, "Promisi enim et prope confirmavi, te non expectasse nec expectaturum decreta nostra, sed te ipsum tuo more rempublicam defensurum."

[218](#) Appian, lib. iii., ca. 50. The historian of the civil wars declares that Piso spoke up for Antony, saying that he should not be damnified by loose statements, but should be openly accused. Feelings ran very high, but Cicero seems to have held his own.

[219](#) Ad Div., lib. x., 27.

[220](#) Suetonius, Augustus, lib. xi.

[221](#) Tacitus, Ann., lib. i., x.: "Cæsis Hirtio et Pansa, sive hostis illos, seu Pansam venenum vulnere affusum, sui milites Hirtium et, machinator doli, Cæsar abstulerat."

[222](#) Philip., xiv., 3: "Omnibus, quanquam ruit ipse suis cladibus, pestem, vastitatem, cruciatum, tormenta denuntiat."

[223](#) Philip., xiv., 12: "O fortunata mors, quæ naturæ debita, pro patria est potissimum reddita."

[224](#) Ad Div., lib. xi., 9.

[225](#) Ibid., lib. xi., 10.

[226](#) Ibid., lib. xi., 11.

[227](#) Ibid., lib. xi., 18.

[228](#) Ad Div., lib. x., 34.

[229](#) Ad Brutum, lib. i., 4.

[230](#) Ad Div., lib. xi., 20: "Ipsam Cæsarem nihil sane de te questum, nisi quod diceret, te dixisse, laudandum adolescentem, ornandum, tollendum."

[231](#) Ad Div., lib. xii., 10.

[232](#) Appian, lib. iii., 92.

[233](#) Dio Cassius, lib. xlv., 46.

[234](#) Vell. Paterculus, lib. ii., 65.

[235](#) Vell. Paterculus, lib. ii., 66: "Repugnante Cæsare, sed frustra adversus duos, instauratum Sullani exempli malum, proscriptionis."

[236](#) Vell. Paterculus, lib. ii., 66: "Nihil tam indignum illo tempore fuit, quam quod aut Cæsar aliquem proscribere coactus est, aut ab ullo Cicero proscriptus est."

[237](#) Suetonius, Augustus, 27: "In quo restitit quidem aliquamdiu collegis, ne qua fieret proscriptionis, sed inceptam utroque acerbius exercuit."

[238](#) Phil., iv., ca. xviii.

[239](#) In the following list I have divided the latter, making the Moral Essays separate from the Philosophy.

[240](#) I have given here those treatises which are always printed among the works of Cicero.

[241](#) De Inventione, lib. ii., 4.

[242](#) Quintilian, in his Proæmium or Preface: "Oratorem autem instituimus illum perfectum, qui esse nisi vir bonus non potest." It seems as though there had almost been the question whether the perfect orator could exist, although there was no question he had never done so as yet.

[243](#) Quint., lib. iii., 1: "Præcipuum vero lumen sicut eloquentiæ, ita præceptis quoque ejus, dedit unicum apud nos specimen orandi, docendique oratorias artes, M. Tullius." And in Tacitus, De Oratoribus, xxx.: "Ita ex multa eruditione, ex pluribus artibus," he says, speaking of Cicero, "et omnium rerum scientia exundat, et exuberat illa admirabilis eloquentia; neque oratoris vis et facultas, sicut ceterarum rerum, angustis et brevibus terminis cluditur; sed is est orator, qui de omni quæstione pulchre, et ornate, et ad persuadendum apte dicere, pro dignitate rerum, ad utilitatem temporum, cum voluptate audientium possit." This has not the ring of Tacitus, but it shows equally well the opinion of the day.

[244](#) De Oratore, lib. i., ca. xi.

[245](#) Ibid., lib. i., ca. xxv.

[246](#) Ibid., lib. i., ca. xlv.

[247](#) Ibid., lib. i., ca. lii.

[248](#) Ibid., lib. i., ca. lx.

[249](#) De Oratore, lib. ii., ca. i.

[250](#) Ibid., lib. ii., ca. vii.

[251](#) Ibid., lib. ii., ca. xv.

[252](#) Ibid., lib. ii., ca. xxiv.

[253](#) De Oratore, lib. ii., ca. xxvii.: "Ut probemus vera esse ea, quæ defendimus; ut conciliemus nobis eos, qui audiunt; ut animos eorum, ad quemcumque causa postulabit motum, vocemus."

[254](#) Ibid., lib. ii., ca. xlv.

[255](#) De Oratore, lib. ii., ca. lxviii.

[256](#) De Oratore, lib. iii., ca. liv.

[257](#) Ibid., lib. iii., ca. lv.

[258](#) Brutus, ca. xii.

[259](#) Ibid., ca. xvii.

[260](#) Ibid., ca. xxxviii.

[261](#) Ibid., ca. l.

[262](#) Ibid., ca. lvii.

[263](#) Ibid., ca. lxxv.

[264](#) Brutus, ca. xciii.

[265](#) De Divinatione, lib. ii., 1.

[266](#) Orator, ca. ii.

[267](#) Orator, ca. xxvi.

[268](#) Ibid., ca. xxviii.

[269](#) Ibid., ca. xxxvi. Here his language becomes very fine.

[270](#) Ad. Att., lib. xiv., 20.

[271](#) Topica, ca. 1: "Itaque haec quum mecum libros non haberem, memoria repetita, in ipsa navigatione conscripsi, tibi ex itinere misi."

[272](#) Quint., lib. xi., 3. The translations of these epithets are "open, obscure, full, thin, light, rough, shortened, lengthened, harsh, pliable, clear, clouded."

[273](#) Brutus, ca. xxxviii.

[274](#) De Oratore, lib. i., ca. liii.

- [275](#) Academica, ii., lib. i., ca. iii.
- [276](#) Ibid., i., lib. ii., ca. vii.
- [277](#) Ibid., lib. ii., ca. xii.
- [278](#) Ibid., lib. ii., ca. xxix.
- [279](#) Academica, i., lib. ii., ca. xxxvii.
- [280](#) Ibid., lib. ii., ca. xxxix.
- [281](#) Pro Murena, ca. xxix.
- [282](#) De Finibus, lib. i., ca. iii.
- [283](#) Ibid., lib. i., ca. v.
- [284](#) De Finibus, lib. ii., ca. xxx.
- [285](#) De Finibus, lib. iii., ca. xxii.
- [286](#) De Finibus, lib. iv., ca. 1.
- [287](#) De Finibus, lib. v., ca. ii.
- [288](#) Ibid., lib. v., ca. xix.
- [289](#) Ibid., lib. v., ca. xxiii.
- [290](#) Epis., lib. i., 1, 14.
- [291](#) Tus. Disp., lib. v., ca. xi.
- [292](#) Tus. Disp., lib. i., ca. xxx.
- [293](#) De Natura Deo., lib. i., ca. iv.
- [294](#) Ibid., lib. i., ca. ix.
- [295](#) Ibid., lib. i., ca. xiv.
- [296](#) Ibid., lib. ii., ca. xxix.
- [297](#) De Nat. Deo., lib. ii., ca. liv., lv.
- [298](#) De Nat. Deo., lib. iii., ca. xxvii.
- [299](#) De Divinatione, lib. ii., ca. xxxiii.
- [300](#) De Divinatione, lib. i., ca. xviii.
- [301](#) Ibid., lib. i., ca. xlvii.
- [302](#) De Divinatione, lib. ii., ca. i.
- [303](#) Horace, Ep., lib. ii., ca. i.:

"Greece, conquered Greece, her conqueror subdued,
And Rome grew polished who till then was rude."

[304](#) De Divinatione, lib. ii., ca. ii.

[305](#) Ibid., lib. ii., ca. li.

[306](#) The story of Simon Du Bos and his MS. has been first told to me by Mr. Tyrell in his first volume of the Correspondence of Cicero, p. 88. That a man should have been such a scholar, and yet such a liar, and should have gone to his long account content with the feeling that he had cheated the world by a fictitious MS., when his erudition, if declared, would have given him a scholar's fame, is marvellous. Perhaps he intended to be discovered. I, for one, should not have heard of Bosius but for his lie.

[307](#) De Republica, lib. iii. It is useless to give the references here. It is all fragmentary, and has been divided differently as new information has been obtained.

[308](#) De Legibus, lib. i., ca. vii.

[309](#) De Legibus, lib. i., ca. x.

[310](#) Ibid., lib. ii., ca. xviii.

[311](#) De Legibus, lib. iii., ca. ix., x.

[312](#) Ibid., lib. iii., xvii.

[313](#) De Senectute, ca. ix.

[314](#) Ibid., ca. x.

[315](#) Ibid., ca. xi.

[316](#) Ibid., ca. xviii.

[317](#) Ibid., ca. xxi.

[318](#) De Amicitia, ca. xix.

[319](#) De Officiis, lib. ii., ca. v.

[320](#) Ibid., lib. i., ca. xvii.

[321](#) De Officiis, lib. i., ca. xxix: "Suppeditant autem et campus noster et studia venandi, honesta exempla ludendi." The passage is quoted here as an antidote to that extracted some time since from one of his letters, which has been used to show that hunting was no occupation for a "polite man"—as he, Cicero, had disapproved of Pompey's slaughter of animals on his new stage.

[322](#) Ibid., lib. i., ca. xxxi.

[323](#) De Officiis, lib. i., ca. xxxvi. It is impossible not to be reminded by this passage of Lord Chesterfield's letters to his son, written with the same object; but we can see at once that the Roman desired in his son a much higher type of bearing than the Englishman. The following is the advice given by the Englishman: "A thousand little things, not separately to be defined, conspire to

form these graces—this 'je ne sais quoi' that always pleases. A pretty person; genteel motions; a proper degree of dress; an harmonious voice, something open and cheerful in the countenance, but without laughing; a distinct and properly raised manner of speaking—all these things and many others are necessary ingredients in the composition of the pleasing 'je ne sais quoi' which everybody feels, though nobody can describe. Observe carefully, then, what displeases or pleases you in others, and be persuaded that, in general, the same thing will please or displease them in you. Having mentioned laughing, I must particularly warn you against it; and I could wish that you may often be seen to smile, but never heard to laugh, while you live." I feel sure that Cicero would laugh, and was heard to laugh, and yet that he was always true to the manners of a gentleman.

[324](#) De Officiis, lib. i., ca. xlii.

[325](#) De Officiis, lib. ii., l.

[326](#) Ibid., lib. ii., ca. xiii.

[327](#) Ibid., lib. ii., ca. xiv.

[328](#) De Officiis, lib. ii., ca. xxiv.

[329](#) Ibid., lib. iii., ca. i.

[330](#) De Republica, lib. vi. It is useless to give the chapters, as the treatise, being fragmentary, is differently divided in different editions.

[331](#) Ad Archiam, ca. xii.

[332](#) De Republica, lib. vi.

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THE END.

Transcriber's Note:

Latin word "demuntiat" in Footnote 22 has been corrected as "denuntiat" and Latin words "At" and "audient" in Footnote 253 have been corrected as "Ut" and "audiunt" respectively after checking with reliable sources.

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